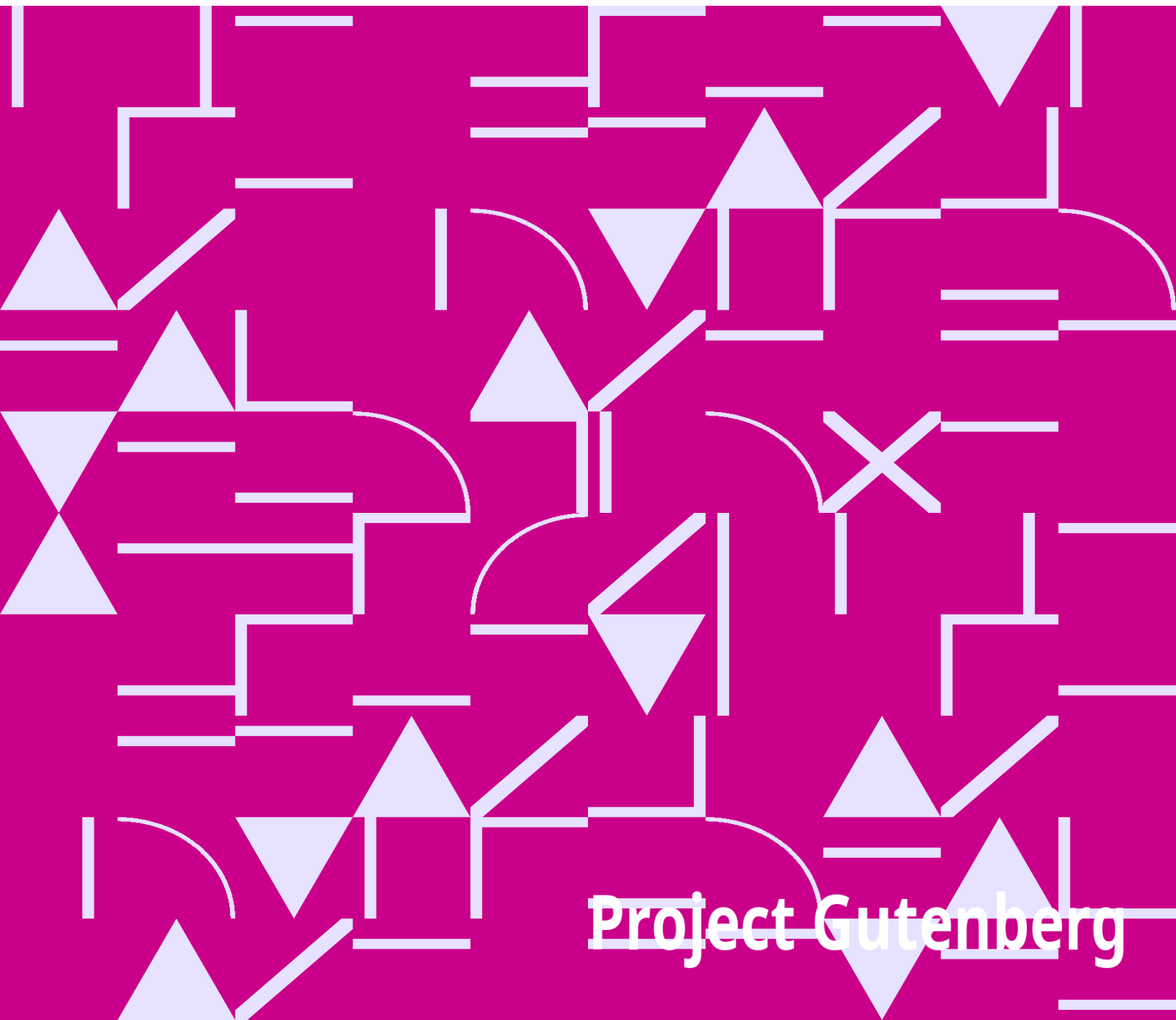


The Forest of Dean: An Historical and Descriptive Account

H. G. Nicholls

A decorative background pattern consisting of various geometric shapes in white and light purple on a magenta background. The shapes include triangles, squares, rectangles, and lines, some of which are arranged to form larger, more complex geometric figures like stars and crosses.

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*** START OF THE PROJECT GUTENBERG EBOOK THE FOREST
OF DEAN: AN HISTORICAL AND DESCRIPTIVE ACCOUNT ***

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Portraits of two Iron-Miners in their working dress.
Photographed from the life by Mr. Atkinson.

THE
FOREST OF DEAN;

AN HISTORICAL AND DESCRIPTIVE ACCOUNT,

DERIVED FROM PERSONAL OBSERVATION, AND OTHER SOURCES, PUBLIC,
PRIVATE, LEGENDARY, AND LOCAL.



Effigy of a Forest Free miner, reduced from a brass
of the 15th century in Newland Church.

By H. G. NICHOLLS, M.A.,
PERPETUAL CURATE OF HOLY TRINITY, DEAN FOREST.

1858.

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John Murray, Albemarle Street.
1858.

PREFACE.

Disappointment expressed by others and felt by myself that a History of the Forest of Dean should never have appeared in print, and an impression that a considerable amount of interesting information relative to it might be brought together, combined I may add with the fact that there seemed no probability of such a work being otherwise undertaken until old usages and traditions had passed away, have induced me to attempt its compilation. I here venture to publish the fruit of my labours, in the hope that the reader may derive some portion of that pleasure which the prosecution of the work has afforded me, and trusting that the same indulgent consideration which led the officers of the Government, the gentlemen of the neighbourhood, and many of the intelligent Foresters to aid in the execution, will by them and the public be extended to the work itself.

I have endeavoured to make it as complete as possible by supplying every known circumstance, mostly in the words of the original narrator, and yet trying so to harmonize the whole as to engage the attention of the general reader, but more particularly of the residents in the district, by acquainting them with the past and present state of one of the most interesting and remarkable localities in the kingdom.

H. G. N.

July, 1858.

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CHAPTER I.

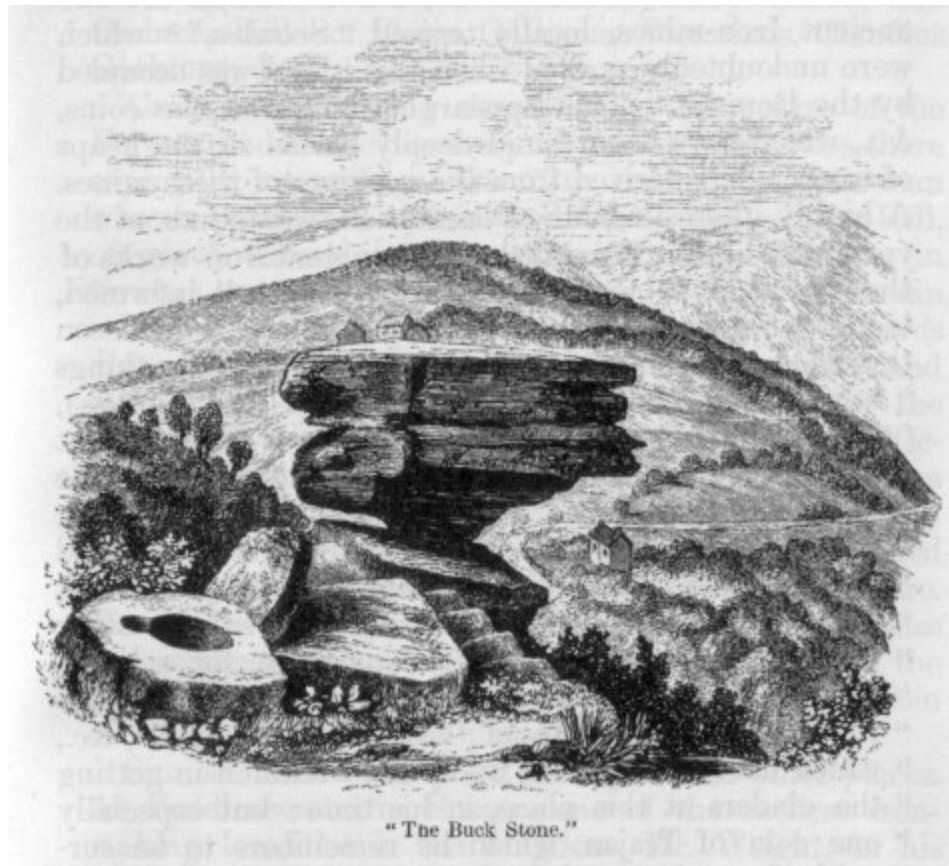
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The district known as “the Forest of Dean” is situated within that part of Gloucestershire which is bounded by the rivers Severn and Wye. Its name is of doubtful origin. Was it so called from its proximity to the town of Mitcheldean, or Dean Magna, mentioned in Domesday Book, and which, agreeably to its name, is situated in a wooded valley, the word “Dean,” or “Dene,” being Saxon, and signifying a dale or den?—or do we accept the statement of Giraldus, and some other writers, that the Forest of Dean

obtained its name from the Danes sheltering themselves in it, secured by its shades and thickets from the retaliation of the neighbouring people, whose country they had devastated?—Or, again, do we “fancy,” with Camden, that “by cutting off a syllable it is derived from Arden, which word the Gauls and Britons heretofore seemed to have used for a wood, since two very great forests, the one in Gallia Belgica, the other amongst us in Warwickshire, are called by one and the same name, Arden”? This latter suggestion Evelyn, in his ‘*Sylva*,’ accepts, in which he is supported by the fact that the name of “Dean” is first met with in William the Norman’s survey.

Probably the earliest trace of this locality being inhabited exists in the Druidical rocks which are found on the high lands on the Gloucestershire side of the Wye. The chief of them is “the Buck Stone,” so called perhaps from the deer which sheltered beneath it, or else from its fancied resemblance to that animal when viewed from certain distant spots. It is a huge mass of rock poised on the very crest of Staunton Hill, which being of a pyramidal form, and almost 1000 feet high, renders the stone on its summit visible in one direction as far as Ross, nine miles off. A careful examination of the structure of the rock, and particularly of the character of its base, will show that its position is natural. But that the Druids had appropriated it to sacrificial purposes, is evident from a rudely hollowed stone which lies adjacent. In shape “the Buck Stone” is almost flat on the top, and four-sided, the north-east side measuring sixteen feet five inches, the north seventeen feet, the south-west nine feet, and the south side twelve feet. The face of the rock on which it rests slopes considerably, and the bearing point is only two feet across. This part may be an unbroken neck of rock, but apparently the entire block has crushed down upon its base, as though, from having once formed the extremity of the portion of cliff near, it had fallen away, and had accidentally balanced itself in its present position. ^[2] The texture of “the Buck Stone” is similar to that of the slab of rock on which it rests, commonly known as the old red sandstone conglomerate of quartz pebbles (a stratum of which extends through the whole district), exceedingly hard in most of its veins, but very perishable in others; and hence perhaps the form and origin of this singular object.



In addition to the above, there is a large mass of grit-stone, from nine to ten feet high, standing in a field on the north side of the road leading from Bream to St. Briavel's, named "the Long Stone." Another, called by the same name, and of similar character, occurs on the north-east side of the Staunton and Coleford road; but nothing remarkable is known of either of them, only their weather-worn appearance shows that they have been exposed to the action of the elements during many centuries.

Next in order of time to the above remains are the ancient Iron-mines, locally termed "Scowles," ^[4] which were undoubtedly worked when this island was occupied by the Romans. This appears certain from the coins, &c., which have been found deeply buried in the heaps of iron cinders derived from the workings of these mines. A highly interesting MS. Dissertation, written about the year 1780 by Mr. Wyrall, on the ancient iron-works of the Forest, a subject on which he was well informed, being a resident in the neighbourhood, is conclusive on this head. He states:—"Coins, fibula, and other things known to be in use with that people (the Romans), have been frequently found in the beds of cinders at certain

places: this has occurred particularly at the village of Whitchurch, between Ross and Monmouth, where large stacks of cinders have been found, and some of them so deep in the earth, eight or ten feet under the surface, as to demonstrate without other proof that they must have lain there for a great number of ages. The present writer has had opportunities of seeing many of these coins and fibula, &c., which have been picked up by the workmen in getting the cinders at this place, in his time; but especially one coin of Trajan, which he remembers to be surprisingly perfect and fresh, considering the length of time it must have been in the ground. Another instance occurs to his recollection of a little image of brass, about four inches long, which was then found in the cinders at the same place, being a very elegant female figure, in a dancing attitude, and evidently an antique by the drapery."

Numerous additional traces of the same people have been discovered in this neighbourhood, viz., a Roman pavement, tesserae, bricks, and tiles at Whitchurch, already mentioned; remains of Ariconium, a town, it seems, of blacksmiths, at Bollitree; a camp, bath, and tessellated pavement at Lydney; and coins to a large amount, indicative of considerable local prosperity, on the Coppet Woodhill, at Lydbrook, Perry Grove, and Crabtree Hill—of Philip, Gallienus, Victorinus, Claudius Gothicus, &c.

Crabtree Hill being situated near the centre of the Forest, renders the discovery of Roman antiquities there especially interesting. On 27th August, 1839, a man who was employed to raise some stone in Crabtree Hill, of which several heaps were lying on the surface, in turning over the stone found about twenty-five Roman coins. The next day, in another heap about fifty yards distant, he found a broken jar or urn of baked clay, and 400 or 500 coins lying by it, the coins being for the most part those of Claudius II., Gallienus, and Victorinus. The spot is rather high ground, but not a hill or commanding point, and there do not appear any traces of a camp near it. Some of the stones seemed burnt, as if the building had been destroyed by fire. There was no appearance of mortar, but the stones had evidently been used in building, and part of the foundation of a wall remained visible. A silver coin of Aurelius was likewise picked up.

Similar discoveries have been made in other places. At Seddlescombe, in Sussex, one of the earliest iron-making localities in the kingdom, Mr.

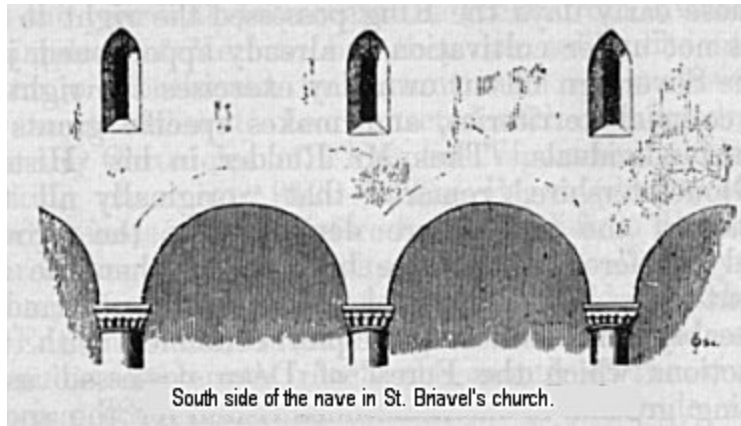
Wright, in his interesting work entitled 'Wanderings of an Antiquary,' mentions several Roman coins, especially one of the Emperor Diocletian, having been met with in a bed of iron cinders, manifestly of great antiquity, since four large oaks stood upon its surface.

An interval of a few hundred years brings us to the probable date of the next class of antiquities, viz. the military earthworks yet traceable in the neighbourhood. They are four in number, commencing with the lines of circumvallation which enclose the promontory of Beachley; next, the camp and entrenchments on the high lands of Tidenham Chase; then, a camp near the Barse Common; and, as a termination to the chain, the triple dyke defending Symmond's Yat. Some have regarded these remains as forming the southern termination of Offa's Dyke, which that sovereign constructed about the year 760, to prevent the Welsh from invading his kingdom of Mercia; but they are not sufficiently uniform or continuous to warrant such a conclusion. They seem rather to be connected with the incident which the Chronicles of Florentius Wigorniensis relate as taking place A.D. 912:—"The Pagan pirates, who nearly nineteen years before had retired from Britain, approaching by the province of Gaul, called Lydivinum, return with two leaders, Ohterus and Hroaldus, to England, and, sailing round West Saxonia and Cornubia, at length reach the mouth of the river Sabrina (Severn), and, without delay, invade the northern lands of the British, and, exploring all the parts adjoining the bank of the river, pillage most of them. Cymelgeac, a British bishop who occupied the plains of Yrcenefeld (Archenfield), was likewise taken; and they, not a little rejoicing, carry him off to their ships, whom, not long after, King Edward ransomed for forty pounds of silver. Soon after, the whole force, leaving their ships, return to the aforesaid plains, and make their way for the sake of plunder; but suddenly as many of the inhabitants as possible of the adjoining towns of Hereford and Glevum (Gloucester) assemble, and give them battle. Hroaldus, the leader of the enemy, and his brother Ohterus, the other leader, with a large part of the army, are slain. The rest are put to flight, and driven by the Christians into a certain fence (septum), where they are at length besieged, until they give hostages, so that as fast as possible they depart King Edward's realm." Mr. Fryer, of Coleford, ingeniously supposes that Symmond's Rock was the scene of the above contest, which may possibly be correct.

Edward the Confessor is stated in Domesday Book to have exempted the Forest of Dean from taxation, with the object apparently of preserving it from spoliation. The exact terms used are, "*has tras c' cessit rex E. quietas a geldo pro foresta custod,*" manifesting an interest in its protection on the part of the Crown, to which no doubt it had now become annexed. Probably in those early days the King possessed the right to all lands not under cultivation or already apportioned, just as the Sovereign of our own day exercises the right in our colonial territories, and makes specific grants to private individuals. Thus, Mr. Rudder, in his 'History of Gloucestershire,' remarks that "originally all the lands of the subject are derived from the Crown, and our forests may have been made when the ancient kings had the greater part in their own hands." Agreeably with which principle, combined with the attractions which the Forest of Dean possessed as a hunting ground, it was sometimes visited for the sports of the chase by William the Conqueror, who in the year 1069 was thus diverting himself when he received information that the Danes had invaded Yorkshire and taken its chief city. Roused to fury by these tidings, he swore "by the splendour of the Almighty" that "not one Northumbrian should escape his revenge;" an oath which he put into prompt and terrible execution. It seems not improbable that upon one of these royal visits the miners of the Forest applied for and obtained their "customs and franchises," which, even in the less remote days of Edward I., were granted, as the record of them declares, "time out of minde." The demand which the Conqueror made upon the citizens of Gloucester for thirty-six "Icres" of iron yearly, each of which comprised ten bars, made at their forges, six in number, wherewith to furnish his fleet with nails, was procured doubtless from this Forest, for which impost the above-named grant was possibly designed as a compensation.

The 'Annals' of Giraldus, relative to the reign of Henry I., inform us that the Castle of St. Briavel's, or Brulails was now built by Milo Fitz-Walter, with the design of confirming the royal authority in the neighbourhood, and of checking the inroads of the Welsh; but, extensive as its ruins still are, they seem to contain no trace of so early a period. The only vestige of that age is seen in the Parish Church, which stands opposite the north entrance of the castle. Henry created Fitz-Walter Earl of Hereford, and committed the castle of St. Briavel's, and the district adjoining, to his care. The

‘Itinerary’ of the same writer speaks of “the noble Forest of Dean, by which Gloucester was amply supplied with iron and venison.” Tithes of the latter were given by this King to the Abbey there.



In the fifth year of the succeeding reign of Stephen, by whom the gifts just mentioned were confirmed, the Forest of Dean, that is, its royal quitrents, were granted to Lucy, Milo Fitz-Walter's third daughter, upon her marrying Herbert Fitz-Herbert, the King's chamberlain, and progenitor to the present Earl of Pembroke and Montgomery. So profuse a gift on such an occasion may seem almost incredible; but its tenure, we must remember, was precarious, the Forest itself being continually exposed to danger by its proximity to the Welsh border. Mahel was this lady's youngest brother, of whom Camden records that "the judgment of God overtook him for his rapacious ways, inhumane cruelties, and boundless avarice, always usurping other men's rights. For, being courteously treated at the Castle of St. Briavel's by Walter de Clifford, the castle taking fire, he lost his life by the fall of a stone on his head from the highest tower." It should be observed, however, that, according to Sir R. C. Hoare, Camden is mistaken in placing the scene of Mahel's catastrophe in the Forest of Dean; Brendlais, or Bynllys, as mentioned by Giraldus, being a small village on the road between Hereford and Hay, where a stately tower marks the site of the ancient castle of the Cliffords, in which most likely this tyrant lost his life.

In this year also, A.D. 1140, the Abbey of Flaxley was founded by Roger, the Earl of Hereford's eldest son, by whom it was partially endowed, and who named it "the Abbey of St. Mary de Dene," the site being formerly included in the precincts of the Forest. The institution of the Abbey was confirmed

by Henry II., who further enriched it by granting permission to the monks to feed their cattle, hogs, &c., in the Forest, repair their buildings with its timber, and have an iron-forge there. In course of years the Fitz-Herbert interest in the Forest and Castle of St. Briavel's, passing through the families of Henry de Bohun and Bernard de Newmarch, was released by the former to King John, who granted them at the close of his reign to John de Monmouth. The 'Itinerary' of this monarch shows that he often visited the neighbourhood, no doubt for the diversions of the chase, viz.:—

A.D. 1207,	at Gloucester	Nov. 14, Wednesday.
	St. Briavel's	„ 15, Thursday.
	„	„ 16, Friday morning.
	Flaxley	„ „ „ evening.
	St. Briavel's	„ 17, Saturday.
	Hereford	„ 18, Sunday.
1212,	at Flaxley	„ 8, Thursday.
	„	„ 9, Friday.
	St. Briavel's	„ 10, Saturday.
	„	„ 11, Sunday.
	„	„ 12, Monday.
	Flaxley	„ „ Monday evening.
1213,	at St. Briavel's	„ 28, Thursday.
	„	„ 29, Friday.
	Monmouth	„ „ Friday evening.
	„	„ 30, Saturday.
	St. Briavel's	„ „ „
	Flaxley	„ „ „
	Gloucester	„ 30, Saturday.

1214,	at Braden's Coke	Dec. 11, Thursday.
	Ashton	„ „ „
	Flaxley	„ „ „

From this date Bigland, in his 'County History,' arranges nearly an unbroken succession of the constables of St. Briavel's Castle, and wardens of the Forest of Dean, viz.:—

A.D. 1215	17 King John	John de Monmouth.
1260	44 Henry III.	Robert Waleran.
1263	47 „	John Giffard (Baron).
„	„	Thomas de Clace.
1282	12 Edward I.	William de Beauchamp Earl of Warwick.
1289	19 „	John de Bottourt (deprived).
1291	21 „	Thomas de Everty.
1298	27 „	John de Handeloe.
1300	29 „	Ralph de Abbenhalle.
1307	1 Edward II.	John de Bottourt (restored).
1308	2 „	William de Stanre.
1322	15 „	Hugh Le Despenser (senior).
1327	18 „	John de Nyvers.
„	20 „	John de Hardeshull.
1341	14 Edward III.	Roger Clifford (Baron).
1391	14 Richard II.	Thomas de Woodstock Duke of Gloucester.
1436	14 Henry VI.	John Duke of Bedford.
1459	38 „	John Tiptoft Earl of Worcester.
1466	6 Edward IV.	Richard Neville Earl of Warwick &c.

1612	9 James I.	Henry Earl of Pembroke.
1632	10 Charles I.	Philip „
1660	1 Charles II.	Henry Lord Herbert of Raglan Duke of Beaufort.
1706	5 Queen Anne	Charles Earl of Berkeley.
1700	9 „	James „
1736	8 George II.	Augustus „
1755	27 „	Norborne Berkeley Esq. Lord Bottetourt.
1760	1 George III.	Frederic Augustus Earl of Berkeley.
1814	54 „	Henry Somerset Duke of Beaufort.
1838		Chief Commissioner of Woods and Forests.

Judging from the architectural character of the remains of St. Briavel's Castle, the whole of which seem to belong to the middle of the thirteenth century, and closely to resemble in several features the neighbouring castles of Chepstow and Goodrich, viz. in their entrances, angular-headed arches, and three-cornered buttresses, the present building was probably erected by John de Monmouth, at the cost of the Crown, paid out of the increasing receipts which now accrued to it from the charges levied upon the iron mines and forges at work in the district. The latter, being itinerant forges, were ordered to cease until the King, Henry III., should command otherwise, which appears to have led to the Chief Justice in Eyre directing that none should have an iron-forge in the Forest without a special licence from the Sovereign.



Entrance to St. Briavel's Castle from the North.

By royal permission the Abbot of Flaxley possessed both an itinerant and a stationary forge; one of the former kind also belonged to the men of Cantelupe. Henry Earl of Warwick had likewise forges in his woods at Lydney, as well as others in the Forest, and these formed no doubt but a small part of the whole number. The dimensions of these forges may be judged of by the two at Flaxley consuming more than two oaks weekly, to the destruction of much timber, in lieu of which the King gave the Abbey 872 acres of woodland, which still forms part of the property at the present day, under the name of “the Abbot’s Woods.”

During the long reign of Henry III. pasturage was granted to the men of Rodley, who also in common with the King’s people might hunt the boar. Commonage was likewise given to the Abbot of Flaxley. The bailiwick of Dean Magna was granted to Walter Wither. The men of Awre were allowed, by custom, pasturage in the Forest; those of Rodley, estover, dead and dry wood, with pannage and food for cattle as well.

The earliest of the various perambulations of the Forest, in the ensuing reign of Edward I., was in the year 1282, and comprised the peninsula formed by the Severn and Wye, proceeding north-east as far as Newent, and north to Ross, as in fact it had always done. It may be also observed that about this period the Abbot of Gloucester purchased thirty-six acres of land in Hope Maloysell, held by Gilbert and Julian Lepiatte, receiving also Thomas Dunn's gift of all his lands in the same parish. The most ancient of the justice seats for these parts sat the same year at Gloucester Castle. By its proceedings, some of the records of which happily still exist, we learn that upwards of seventy-two "*Forgeæ errantes*," or moveable forges, were found here; that the sum which the Crown charged for licensing them was at the rate of seven shillings a year, viz. three shillings and six pence for six months, or one shilling and nine pence a quarter; that a miner received one penny, or the worth of it in ore, for each load brought to any of the King's ironworks; but if conveyed out of the Forest the penny was paid to the Crown; and that in those cases where a forge was farmed, forty-six shillings was charged. ^[12] No less than fifty-nine mines were let at this time to Henry de Chaworth, who had besides forges at work in the Forest.

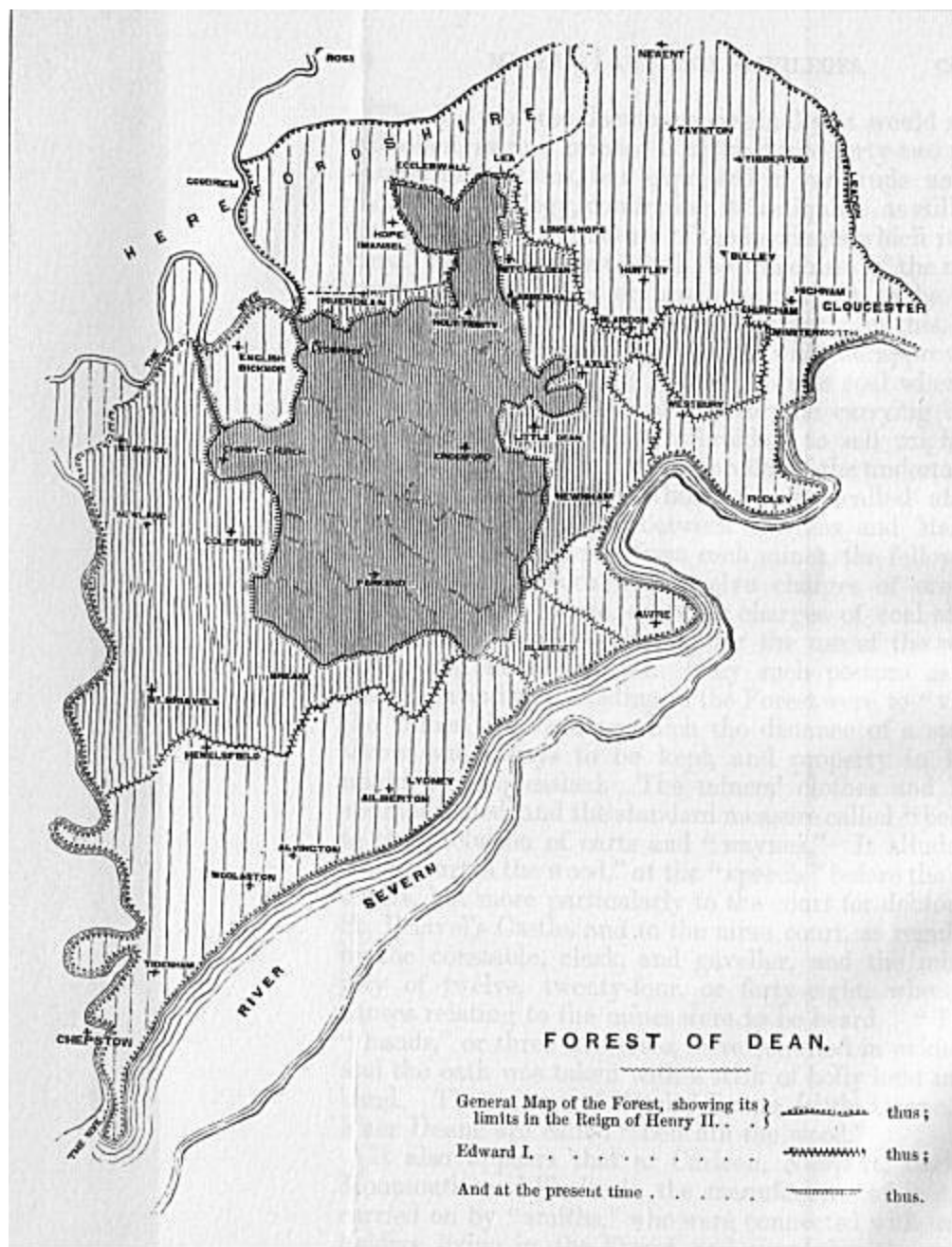
A careful examination of the oldest copy extant of 'The Miners' Laws and Privileges,' regarded, as Mr. Wyrall tells us, writing in the year 1780, "as the Magna Charta of our miners and colliers," incontrovertibly proves that it belongs to this period. It was first printed by William Cooper, at the Pelican in Little Britain, 1687, from a manuscript copy preserved in the office of the Deputy Gaveller, to which a postscript is added, "written out of a parchm^t. roll, now in y^e hands of Richard Morse of Clowerwall, 7 June, 1673, by Tho: Davies." Richard Morse was then one of the deputy gavellers. The date of the compilation has heretofore been considered as determined by the wording of the short introduction with which it is prefaced, commencing thus—"Bee itt in minde and Remembrance what y^e Customes and Franchises hath been that were granted tyme out of Minde, and after in tyme of the Excellent and redoubted Prince, King Edward, unto the Miners of the Forrest of Deane, and the Castle of St. Briavells," &c., in which words it will be observed that only the name of King Edward is mentioned, the number not being added, although for some cause or other all modern copies insert "the Third," and hence the impression that the collection was then formed; whereas the description given in the paragraph

immediately following, specifying what were then the limits of the Forest, shows its date to be that of the first of the Edwards, since the bounds are therein recorded as extending “between Chepstowe Bridge and Gloucester Bridge, the halfe deale of Newent, Rosse Ash, Monmouth Bridge, and soe farr into the Seassoames as the blast of a horne or the voice of a man may bee heard.” But these limits ceased to prevail soon after the beginning of the fourteenth century, and consequently an earlier date must be assigned for the above record than has commonly been given to it.

The body of the document, originally, it would seem, unbroken, as now printed is divided into forty-two paragraphs or sections, but expressed in very rude and involved phraseology, confirming its antiquity, as still further appears by the nature of the incidents which it contains. It specifies, first of all, the franchises of the mine, meaning its liberties or privileges, as not to be trespassed against, and consisting apparently in this, that every man who possessed it might, with the approval of the King’s gaveller, dig for iron ore or coal where he pleased, and have right of way for the carrying of it, although in certain cases “forbids” to sell might be declared. A third part of the profits of the undertaking belonged to the King, whose gaveller called at the works every Tuesday “between Mattens and Masse,” and received one penny from each miner, the fellowship supplying the Crown with twelve charges of ore per week at twelve pence, or three charges of coal at one penny. Timber was allowed for the use of the works above and below ground. Only such persons as had been born and were abiding in the Forest were to “visit” the mines, in working which the distance of a stone’s throw was always to be kept, and property in them might be bequeathed. The miners’ clothes and light are mentioned, and the standard measure called “bellis,” to the exclusion of carts and “waynes.” It alludes to “the court of the wood,” at the “speech” before the Verderers, but more particularly to the court for debtors at St. Briavel’s Castle, and to the mine court, as regulated by the constable, clerk, and gaveller, and the miners’ jury of twelve, twenty-four, or forty-eight, where all causes relating to the mines were to be heard. “Three hands,” or three witnesses, were required in evidence, and the oath was taken with a stick of holly held in the hand. The miners of Mitchel Deane, Little Deane, and Ruer Deane are called “beneath the wood.”

It also appears that at Carleon, Newport, Barkley, Monmouth, and Trelleck, the manufacture of iron was carried on by “smiths,” who were connected

with smith-holders living in the Forest, and supplying the ore, at each of which places it is remarkable that iron cinders have been found. The document concludes with the names of the forty-eight miners by whom it was witnessed, confirmed, and sealed.



Such then were the mining privileges and regulations existing amongst the operatives of the Forest at this period, A.D. 1300, which by their settled and methodical character bear out the statement made in the preface to “the

Customes,” &c., that they had been then granted “time out of mind,” and consequently were more ancient than the sieges of Berwick, to which it appears many of the Forest miners and bowmen were summoned, and perhaps received for services then rendered their peculiar rights.

Another important characteristic of this reign (Edward I.) is the unsettled state of the Forest boundaries, as indicated in the various perambulations which were made about this time. A record of that made in 1302 is preserved in the Tower of London, whilst the register of the perambulation performed by Letters Patent the year following, exists in Walter Froucester’s transcript of it, in the possession of the Dean and Chapter of Gloucester. Both documents agree in setting forth the same limits, no longer extending to Gloucester, Chepstow, and Monmouth, or even including Hewelsfield, Alvington, Ailberton, Lydney, Purton, Box, Rodley, Westbury, Blaisdon, Huntley, Longhope, Newent, Taynton, Tibberton, Highnam, Churcham, and Bulley as formerly; but confining them, as nearly as can now be determined, to the bounds laid down in the accompanying map of the district. It appears that these perambulations were made by a numerous and important staff of officers, comprising four King’s justices especially appointed, the chief justice in Eyre, nine foresters in fee, four verderers, and twenty-four jurors—such was the importance then attached to those acts.

There are some further items of information extant of this date, viz. the ten bailiwicks of “Abbenhalle, Blakeney, Berse, Bicknoure, Great Dean, Little Dean, Stauntene, Le Lee, and Bleyght’s Ballye, and Ruardean,” held respectively by Ralph de Abbenhalle, Walter de Astune, William Wodeard, Cecilia de Michegros, the Constable of St. Briavel’s Castle, Richard de la More, John de la Lee, Alexander Bleyght, and Alexander de Byknore; Henry de Chaworth had fifty-nine mines, and some forges; the timber wood of Kilcote was held by Bogo de Knoville; William Bliss held 180 acres of assart, and seventeen acres of meadow land; certain miners, named William de Abbensale, Walter and Elys Page, had been found digging mine at Ardlonde belonging to the Abbot of Flaxley, who at once removed them, and filled up the place. The question was now also raised as to the Crown possessing the right of conferring the tithes of the “assarted” (rooted up) Forest lands, not being within the bounds of any of the adjacent churches; when it was decided in the affirmative, the King exercising the claim in

favour of the church of Newland, in consideration, probably, of the lordship of the manor being held by him, and the whole being formerly comprised in the Forest. A considerable proportion of such of the existing encroachments as are reputed the oldest pay tithes to Newland, a circumstance confirmatory of their alleged antiquity. ^[16]

The records we possess of the ensuing reign of Edward II. afford the interesting intelligence that on various public occasions the military services of the Foresters were required, and even at places as distant as Berwick-upon-Tweed, which, owing to its position as a border town, and the contests then waging between the English and Scotch, was repeatedly lost and won by both sides. From the year 1174 to 1482 it changed owners upwards of sixteen times. The sieges to which our choice Foresters were summoned appear to have been those of 1310, 1311, 1315, 1317, 1319, and 1355. On the first occasion the Constable of St. Briavel's, and Keeper of the Forest of Dean, was commanded to select one hundred archers and twelve miners. In the following year writs were addressed to the Sheriff of Gloucester, directing that, out of fifty men to be chosen from the county, the larger number should be from the Forest of Dean, and urging expedition in sending them. The next writ, issued four years afterwards, was sent to the Sheriff of Herefordshire, and is entitled "Concerning the Choice of Soldiers in the Forest of Dean," and orders ninety-six men of those parts to be provided. Two years later the Keeper of St. Briavel's is directed to bring two hundred men to Northallerton; and again, two years afterwards, he is to take twenty of the strongest miners in his bailiwick to Newcastle-upon-Tyne; and a writ was addressed to all mayors, sheriffs, bailiffs, &c., reciting the aforesaid instructions, and commanding that assistance should be rendered them whenever it was needed during their journey. In connexion with these incidents, it is stated by Guthrie, the historian, that Sir Edward Manny bringing engineers out of the Forest of Dean, and Edward III. investing the place with a prodigious army, the Scots capitulated. They were also ordered by the same King to join his forces at Portsmouth in 1346 and 1359.

From these facts we are justified in concluding that the population then inhabiting the Forest were regarded as a brave and skilful race, not merely in their own quarter of the kingdom, but also in the camp of its Kings. They were skilful with the bow from following the chase on the King's behalf,

and were of course able sappers and miners from the nature of their everyday occupations. Indeed, the tradition now in vogue amongst the Foresters, is, that their ancestors were made free miners in return for the aforesaid services; but it has been shown that the franchises of the mine date from an earlier period. ^[18]

The researches of the Rev. T. D. Fosbroke, as printed in his History of the county, supply most of the following additional particulars of this reign. The Bishop of Llandaff, who already claimed the moiety of a fishery at Bigswear on the Wye, to which the parish of Newland extends, received a grant of the newly cleared Forest lands for founding a chantry at the latter place. Tithes to the amount of ten pounds from the iron-mines in the Forest were given to that dignitary, but the Dean of Hereford and the Canons, with the Rectors of St. Briavel's and Lydney, aided by their servants and others, violently carried them away, the see of Hereford then comprising all these parts. The vineyard of Norton, together with certain wastes, were let to John de Witham and his heir for 50s. 6d. per annum, provided two hundred acres of the adjoining soil were brought into cultivation and enclosed at a certain rent, by which all injury to the Crown would be avoided, Norton not being a vineyard, but a "lacijs" worth sixpence per annum. So also William Jote might hold one hundred acres, twenty lying in Michelerleye, and eighty in Brakenford, and also the Prior of Lanthony two hundred and seventy acres, upon paying twopence per annum. The Abbot of Gloucester had leave to cut wood in Birdewoode and Hope Mayloysell, without demand or view of the Forester. The men of Rodley Mead Forest were allowed to have firewood and mast for their swine. John de Abbenhall held a certain bailiwick of the King by the service of guarding it with bows and arrows. Robert de Barrington held forty acres of waste near Malescoyewood. Ralph Hatheway was seized of forty acres in Holstone. Bogo de Knoville was seized of Kilcot-wood, and Henry de Chaworth had a forge in the Forest.

By the sixth year of Edward III. (A.D. 1333) the dispute between the Dean and Chapter of Hereford and the Bishop of Llandaff, relative to the tithes of the iron-mines in the parish of Newland, was settled in the Bishop's favour, who also obtained the great tithes and the presentation to the living, all of which still continue attached to that see, and in connexion with which it may be observed, that by far the larger part of the fabric of the church at

Newland exhibits the style of architecture which prevailed at that period. It is a large building, and the tower is particularly fine.

Parliament now confirmed the perambulations made in 26th and 28th Edward I., which reduced the bounds of the Forest to the limits which, with some slight exceptions, remained in force till within the last twenty-five years. The ensuing items of information, taken from Mr. Fosbroke's valuable work on the county, apply to this period. Guy de Brien, to whom the Forest was farmed, obtained wages from the Crown for the payment of four foresters, who were allowed the privilege of cutting all underwood within the same from seven years to seven years. J. Flory held the bailiwick of the Lee, and John Preston that of Blakeney. Robert Sappy, warden of the Forest, petitioned Parliament for some allowance to be made him, as, owing to the late alienations of Crown property in favour of the monks of Tintern and the Bishop of Llandaff, he no longer received the usual pay of one hundred shillings per annum. The Abbey of Gloucester had twigs granted to it for the annual repairs of the weirs at Minsterworth and Durry; a similar privilege was enjoyed by the lords of the manor of Rodley, provided the twigs were fetched once a day with two horses, between the 14th of September and the 3rd of May; heavy timber was also allowed for the same purpose. John Juge succeeded to the bailiwick of the Lee, but was unlawfully deprived of it by John Talbot, who held the castle on Penyard as well as Goodrich. William de Staunton held the bailiwick there, and Reginald Abbenhall the woods. Walter Ivor held that at Blakeney, after Roger Flotman. The Abbot of Gloucester had ninety acres of land in Walmore, at eight pence an acre rent, for cultivation, but not for commonage. John Joice and his heirs had a grant of 116 acres in several parcels in the Forest, at the yearly rent of nineteen shillings and four pence.

In the reign of Richard II. John Wolton obtained the grant for life of a place called Stowe. It was found that a monk from the convent of Grace Dieu was celebrating mass in the Forest for the souls of the King, his successors, and ancestors, holding two carucates of land, ten acres of meadow, and six acres of wood, a fact which may account for the name of "Church Hill," at Park End. Thomas Hatheway was a chief forester. A bailiwick in the Forest, with lands in Lee-Walton and Lee in Herefordshire, were held in tail, remainder to Richard Curle, by Thomas de Brugg and Elizabeth his wife. The Castle of St. Briavel's and the Forest were given in special tail to

the Duke of Gloucester, who was afterwards empowered by Parliament to constitute justices and other officers then usually attached to such properties.

In the time of Henry IV. William Warwyn held a certain bailiwick here by the service of being a forester in fee. Another office called “the forester’s wyke” was filled by Henry de Aure. In the succeeding reign this Forest was held in capite as the King’s heir, by John Duke of Bedford, under a grant made by Henry IV.

Whilst the throne was occupied by Henry VI. we have chiefly to notice the complaint, which the traders of Tewkesbury made to the Government, that “their boats and trowes conveying all manner of merchandise down the Severn to Bristol, &c.,” had been stopped at the coast of the Forest by great multitudes of the common people dwelling thereabouts, who seized their vessels, carried away the corn, threatened their lives if they resisted, and forbad any complaint being made, on their coming that way again. The petition caused letters of privy seal to be proclaimed in those parts to the effect that “no man of the said Forest should be so hardy to inquiet or disturb the people passing the said river with merchandise, upon pain of treason.” But the account proceeds to say that “the said trespassers came to the said river with greater routs and riots than ever they did before, there despoiling at divers times eight trowes of wheat, rye, flour, and divers other goods and chattels, and the men of the same cast overboard, and divers of them drowned, and the hawsers of the same trowes cut away, and mainstrung the owners of the said goods, who should not be so hardy as to cause any manner of victuals to be carried any more by the same stream, much or little, for lord or for lady, as they would hew their boats all to pieces if they did so.” More stringent measures were therefore evidently necessary, and in 1429 the Parliament passed an act, enforcing a restoration of the plunder, and amends for the injury done, within fifteen days, and the offenders to be imprisoned, or else the Statute of Winchester would be enforced against them.

The singular perquisite of a bushel of coal, worth twenty pence, from each pit, at the end of every six weeks, was now attached to the office of “capital forester of all the foresters,” held at this period by Robert Greyndour. The King’s lands, manors, castles, and other possessions in this Forest, were

also granted to Henry Duke of Warwick, for one hundred pounds annual rental.

After the accession of Edward IV., and his unpopular marriage with Elizabeth Woodville, this Forest was the spot to which, upon the defeat at Edgecote (26th July, 1469), her father the Earl Rivers and her brother Sir John Woodville fled, where they were recaptured and carried to Northampton, their place of execution. A sergeantry, called woodward of the Lee Baile, was then held by John Throckmorton, Esq.

In the reign of Henry VIII. the office of Bleysbale and forestership of fee was filled by William Alberton. A rental of sixty-five shillings and sixpence was paid to the Crown for certain lands in the Forest held by the priory of Monmouth; and others, called Cley-pitts, Litterfield, and Hill Hardwell, paid two shillings and four pence. Letters patent granted the custody of the Gablewood to Henry Bream.

Edward VI. farmed the Forest to Sir Anthony Kingston. How far the Forest population were interested in the stirring events of the Reformation, we are, unfortunately, left to conjecture; but the suppression of the adjacent Abbeys of Tintern and Flaxley, with their large possessions, must have brought the changes of the period visibly home to them.

The reign of Elizabeth brings us to the date of an incident more generally notorious perhaps than any other in the history of Dean Forest, viz. its intended destruction by the Spanish Armada. Evelyn in his 'Sylva' thus mentions it:—"I have heard that in the great expedition of 1588 it was expressly enjoined the Spanish Armada that if, when landed, they should not be able to subdue our nation and make good their conquest, they should yet be sure not to leave a tree standing in the Forest of Dean." Were it not that he particularly states that he had "heard" the report, we should conclude that he obtained his information from Fuller's 'Worthies,' published two years previously, where it is mentioned with this only difference, that "a Spanish ambassador was to get it done by private practices and cunning contrivances." Fuller had probably read this account in 'Samuel Hartlib, his Legacy of Husbandry,' published in 1655, where, speaking of the deficiency of woods at that time, he writes—"the State hath done very well to pull down divers iron-works in the Forest of Dean, that

the timber might be preserved for shipping, which is accounted the toughest in England, and, when it is dry, as hard as iron. The common people did use to say that in Queen Elizabeth's days the Spaniards sent an ambassador purposely to get this wood destroyed."

As Mr. Evelyn writes that he "heard" what he states of the matter, Mr. Secretary Pepys was probably his informant, who was told it by his friend Sir John Winter, who again heard it from his grandfather, Sir William Winter, vice-admiral of Elizabeth's fleet, but kinsman to Thomas Winter of Huddington, who at the close of this reign was constantly aiding the Spanish Romanists in their intrigues here, and eventually took part in the Gunpowder Plot. Such tradition is highly to the credit of the Forest timber of those days, if not to the iron as well. Both must have been renowned for supplying an important portion of the materials used in the Royal dockyards, which were at this time much enlarged, an increase of the navy being found necessary; whilst the stock of timber then standing in different parts of the kingdom was judged so insufficient for the wants of the Government, that recent acts of the legislature had directed that "twelve standils or storers likely to become timber should be left on every acre of wood or underwood that was felled at or under twenty-four years' growth," and prohibited the "turning woodland into tillage," and required that, "whenever any wood was cut, it must be immediately enclosed, and the young spring thereof protected for seven years." Moreover, no trees upwards of a foot in the square were to be converted into charcoal for making iron.

The returns from Sir Julius Cæsar's collection preserved in the Lansdowne MSS. recognise the above regulations, as well as the market for wood created by the Forest iron-works, now greatly enlarged; they possess considerable interest, and will be found in Appendix No. I.

CHAPTER II.

A.D. 1612–1663.

Grants in the Forest to Earl of Pembroke—Mining restricted to the Foresters—Iron cinders of old workings re-smelted in the new furnaces—Last justice seat held in 1635, extending the limits of the Forest to those of Edward I.—Grant to E. Terringham—Forest surveyed in 1635—Sale of the woods to Sir J. Winter—Disturbances of the Civil War at Coleford, Highmeadow, Ruerdean—Adventures of Sir J. Winter at Westbury, Little Dean, Newnham, Lydney—Events on the north side of the Forest—Incidents of the Protectorate, riots and devastations of the Forest—Sir J. Winter's patent restored—Effects of a great storm—Survey of the Forest in 1662—Mr. J. Pepys and Sir J. Winter on the Forest—The latter resumes his fellings—Inhabitants suggest replanting and enclosing the Forest—Act of 20 Charles II., c. 3—Sir J. Winter's licence confirmed.

On the 17th of February, 1612, William Earl of Pembroke obtained a grant “of 12,000 cords of wood yearly for twenty-one years at 4s. per cord, being £2400, and reserving a rent besides of £33 6s. 8d. per annum,” with “liberty to dig for and take within any part of the said Forest, or the precincts thereof, such and so much mine ore, cinders, earth, sand, stone, breaks, moss, sea coal, and marle, as should be necessary for carrying on the iron-works let to him, or which he should erect; no person or persons whatsoever other than the said Earl to be permitted during the said term to take or carry out of the said Forest any wood, timber, mine ore, or cinders, without consent of the said Earl, except such timber as should be used for his Majesty's shipping.” The Earl obtained, on the 13th June of the same year, a grant of “the lordship, manor, town, and castle of St. Briavel's, and all the Forest of Dean with the appurtenances, and all lands, mines, and quarries

belonging thereto, except all great trees, wood, and underwood, to hold for forty years at the yearly rent of £83 18s. 4d., and an increase rent of £3 8d.”

It appears that, soon after these leases were granted, the miners, hitherto accustomed to dig for ore in the Forest, resumed their work without the Earl’s consent, and an information was filed against some of them by the Attorney-General. Upon this, an order, dated 28th January, 1613, was made by the Court, “that those miners, and such others as had been accustomed to dig ore in the Forest, upon the humble submission for their offences, and acknowledgment that the soil was the King’s, and that they had no interest therein, and upon their motion by counsel that they were poor, and had no other means of support, and praying to be continued in their employment, should be permitted, *out of charity and grace, and not of right*, to dig for mine ore and cinders, to be carried to his Majesty’s iron-works, and not to any other place, at the accustomed rates; if the farmers of the King’s iron-works should refuse to give those rates which, as well as the number of diggers, were to be ascertained by Commissioners to be named by the Court, that then they might sell the ore to others; but no new diggers were to be allowed, but only such poor men as were inhabitants of the said Forest.” It was not intended that this order should always continue in force, but only until such time as the cause brought in the name of the foresters should be heard and determined. This, however, appears never to have been done, as no decree was obtained, probably from the miners considering it best to accept the terms offered, regarding the above order as a record in their favour, since it provided that “no new diggers were to be allowed, but only such poor men as were inhabitants of the said Forest;” a view, it may be remarked, agreeing with that which the free miners took in their memorial of 1833. [\[25\]](#)

The cinders adverted to were the ashes or refuse left by a former race of iron manufacturers, whose skill was too limited to effect more than the separation of a portion of the metal, but which the improved methods, now introduced into the district, turned to a good account. A return made in 1617, by Sir William Coke, &c., to a commission issued out of the Exchequer, to inquire concerning the Forest of Dean, states that “His Majesty, since the erecting the iron-works, had received a greater revenue than formerly.” Their structure is described in “The Booke of Survey of the Forest of Dean Ironwork,” dated 1635, from which it appears that the stone

body of the furnace now adopted was usually about twenty-two feet square, the blast being kept up by a water-wheel not less than twenty-two feet in diameter, acting upon two pairs of bellows measuring eighteen feet by four, and kept in blast for several months together. Such structures existed at Cannope, Park End, Sowdley, and Lydbrook. Besides which, there were forges, comprising chafferies and fineries, at Park End, Whitecroft, Bradley, Sowdley, and Lydbrook. Messrs. Harris and Chaloner, &c., as farmers to the Crown, held all of them on lease.

The last justice seat in Eyre, or Supreme Court of Judicature for the royal forests, was held the same year as the above (1635) at Gloucester Castle before Henry Earl of Holland, on which occasion “the matter concerning the perambulation of this Forest was solemnly debated,” the counsel for the Crown producing the bounds thereof as settled by the 12th of Henry III. and 10th Edward I., with the view of obtaining its re-extension to Gloucester, Monmouth, and Chepstow. On the other hand, the counsel for the City of Gloucester, &c., brought forward the perambulations made 26th and 28th Edward I., confirmed by Letters Patent 29th Edward I., and by an Act of 10th Edward III. The Grand Jury, not being able to agree to their verdict on that day, which was a Saturday, desired further time in a matter of such weight; and on the Monday following decided, that the more extensive limits, comprising seventeen additional villages, were the true ones. But “their inhabitants being fearful that they would be questioned for many things done contrary to the Forest Laws, the King’s Counsel, in regard of their being but new brought in, and long usage, thought it not fitt to proceed with any of them at that justice seat.” Amongst some 120 claims to rights and privileges of various kinds preserved in the Office of Public Records, [\[27\]](#) and put in at the same Court, was one of Philip Earl of Pembroke to be Constable of the Castle of St. Briavel’s and Warden of the Forest, under a grant from the King, and, as such, Chief Judge of the Mine Law Court.

In A.D. 1637 a grant was made to Edward Terringham of “all the mines of coal and quarries of grindstone within the Forest of Dean, and in all places within the limits and perambulations thereof, as well those within his Majesty’s demesne lands, and the waste and soil there, as also all such as lay within the lands of any of his Majesty’s subjects within the perambulation of the said Forest, to his Majesty reserved, or lawfully belonging, to hold for thirty-one years, at the yearly rent of £30.”

The next year (1638) is marked by the first effort which the Crown seems to have made to renew the crops of timber in the Forest, rendered necessary by the report that, on surveying it, a supply of no more than 105,557 trees, containing 61,928 tons of timber, and 153,209 cords of wood, of which only 14,350 loads were fit for shipbuilding, was found, as “the trees were generally decayed, and passed their full groath.” Accordingly, under the direction of Sir Baynham Throckmorton, 16,000 or 17,000 acres were ordered to be taken in, “leaving fit and convenient highways in and through the same.” After sundry meetings, the commoners consented thereunto, few or none objecting, in consideration of 4000 acres set apart for their use on the different sides of the Forest, as follows:—On the side next Lydney and Awre, 550 acres; towards Ruerdean and Lydbrook, 350 acres; near to St. Briavel’s, 500 acres; towards Little Dean, Flaxley, Abenhall, and Mitcheldean, and the Lea, 876 acres; in Abbot’s Wood, 76 acres; on the side nearest to Newland and the villages of Breme, Clearwell, and Coleford, 900 acres; towards Newland, 174 acres; next to Bicknor, 350 acres; and towards Rodley and Northwood, 100 acres. The Lea Bailey, containing the best timber, was not included, but left open. The proportion observed in the size of these common lands is probably indicative of the way in which the population surrounding the Forest was distributed. Traces of the bounds of some of these allotments may yet be made out, by the remains of the ditches and banks with which they were fenced.

Such a scheme, if judiciously carried out, would have done much to secure the object in view, only it was connected unhappily with the entire sale made under the date of 20th February, 1640 (15th Charles I.), to Sir John Winter, of all the mines, minerals, and stone-quarries within the limits of the Forest, to work and use the same, together with all timber, trees, woods, underwood growing in any part thereof, in consideration of £10,000, and the yearly sum of £16,000 for six years, and of a fee farm rent of £1950 12s. 6d. for ever. This bargain was equivalent to selling the Forest altogether, and the inhabitants of the district, being greatly dissatisfied, took advantage of the approaching civil distractions to throw down the fences which Sir J. Winter had already begun to make.

Of those distractions, the first that occurred in this part of the county took place on the 20th February, 1643. Clarendon and Corbet record, that on this day Lord Herbert, the Earl of Worcester’s eldest son, and the King’s

Lieutenant-General of South Wales, marched through Coleford and the Forest of Dean for Gloucester, at the head of an army of 500 horse and 1500 foot, the outfit and preparation of which is stated to have cost £60,000. At Coleford their progress was impeded by a troop of Parliamentarians under Colonel Berrowe, aided by a disorderly rabble of country people. An affray ensued, during which the old market-house was burnt, and Major-General Lawley, who commanded the foot, “a bold and sprightly man,” with two other officers, were shot dead from a window, although not one common soldier was hurt. Colonel Brett was then put in command of the foot, Lord John Somerset continuing at the head of the horse. They forced a passage through, after capturing Lieutenant-Colonel Winter, together with some inferior officers and common soldiers, and so, putting the rest to flight, marched without further molestation for Gloucester.

In the April following, Sir William Waller, retreating from Monmouth towards Gloucester through the Forest, narrowly escaped capture by Prince Maurice, who was at hand to intercept him with a considerable force. Alluding many years afterwards to this adventure, he writes:—“Upon my march that night through the Forest of Dean, it happened through the sleepiness of an officer, that the main body was separated from the fore troope with which I marched, so that I was fain to make an halt for above half an hour, within little more than a mile of the Prince’s head-quarter, in broad daylight; the allarme taken, and not 120 horse with me. Nevertheless, itt pleased God in his infinite mercy to direct the rest of my troopes to me; and, under the conduct of his providence, to grant me a safe and honorable retreat to Gloucester, in despite of the enemy, who charged me in the reare, with more loss to himself than to me.”

But the individual who figured most prominently in these parts at this eventful period was the ardent royalist Sir John Winter. His case is thus quaintly stated by Sanderson:—“From the pen, as secretary to the Queen, he was put to the pike, and did his business very handsomely, for which he found the enmity of the Parliament ever after;” so that Corbet, one of their devoted adherents, designates him “a plague,” and his house of White Cross, near Lydney, “a den.” This place he had been secretly strengthening against attack for some time, storing it with arms and ammunition, and collecting soldiers; but he did not openly declare himself until the siege of Gloucester was raised, on 5th September, 1643. During the ensuing winter,

and on to the 7th of May following, Corbet speaks of him as “referring all his industry to his own house,” described as being “in the heart of the Forest,” of which, says the same writer, he had “obtained the entire command,” and from whence he succeeded in making constant attacks upon the adjoining small Parliamentary garrisons of Huntley and Westbury, who were treacherously sold to him by Captain Thomas Davis, and he was thus enabled to advance almost to Gloucester. Upon the day just named, in the year 1644, the following affray happened at Westbury, occasioned by Colonel Massy’s attempt to recover it for the Parliament. Corbet says: —“Here the enemy held the church, and a strong house” (understood to be Mr. Colchester’s) “adjoining.” “The Governor (Colonel Massy), observing a place not flanked, fell-up that way with the forlorne hope, and secured them from the danger of shot. The men got stooles and ladders to the windowes, where they stood safe, cast in granadoes, and fired them out of the church. Having gained the church, he quickly beat them out of their workes, and possest himself of the house, where he took about four score prisoners, slaying twenty others, without the losse of a man.”

Upon the same day a similar but more fatal encounter took place at Littledean, a village situated under the east slopes of the Forest hills, and as yet occupied for the King. “Here,” says Corbet, “the governor’s troop of horse found the enemy stragling in the towne, and, upon the discovery of their approach, shuffling towards the garrison, which the troopers observing, alighted and ran together with them into the house, where they tooke about 20 men. Neere unto which guard, Lieutenant-Colonel Congrave, Governor of Newnham, and one Captain Wigmore, with a few private souldiers, were surrounded in some houses by the residue of our horse. These had accepted quarter, ready to render themselves, when one of their company from the house kils a trooper, which so enraged the rest, that they broke in upon them, and put them all to the sword: in which accident, this passage was not to be forgotten that expressed in one place an extreame contrariety in the spirits of men under the stroke of death: Congrave died with these words, ‘Lord receive my soule!’ and Wigmore cryed nothing but ‘Dam me more, dam me more!’ desperately requiring the last stroke, as enraged at divine revenge.” The spot where these officers fell is considered to have been at Dean Hall, in the dining-room, near the fireplace.

Corbet next goes on to recite how Colonel Massy followed up these exploits by marching to Newnham the next day, “where,” says he, “a strong party of Sir John Winter’s forces kept garrison in the church, and the fort adjoining,” (on a spot which has been turned lately into public pleasure grounds,) “of considerable strength, who at that instant were much daunted and distracted by the losse of Congrave, their governor. Our men were possest of the town without opposition, and recovered the houses, by which they got nere the workes. The Governour (Massy) commanded a blind of faggots to be made athwart the street, drew up two pieces of ordnance within pistoll shot, and observing a place not well flanked where he might lead up his men to the best advantage, himself marched before them, and found that part of the work fortified with double pallisadoes; the souldiers being provided with sawes to cut them down, and having drawn them close within a dead angle, and secure from their shot, and drawing the rest of his forces for a storme, the enemy forthwith desires a parley, and to speake with the governour, which he refused, and commanded a sudden surrender. In this interim some of the enemy jumpt over the workes, and so our men broke in upon the rest, who ranne from the out worke into the churche, hoping to cleare the mount which we had gained. But our men were too nimble, who had no sooner entred the mount, but rushed upon them before they could reach home, and tumbled into the church altogether. Then they cryed for quarter, when, in the very point of victory, a disaster was like to befall us: a barrell of gunpowder was fired in the church, undoubtedly of set purpose, and was conceived to be done by one Tipper, a most virulent Papist, and Sir John Winter’s servant, despairing withall of his redemption, being a prisoner before, and having falsified his engagement. The powder-blast blew many out of the church, and sorely singed a greater number, but killed none. The souldiers, enraged, fell upon them, and in the heate of blood slew neere 20, and amongst others this Tipper. All the rest had quarter for their lives (save one Captaine Butler, an Irish rebell, who was knocked down by a common souldier), and an 100 prisoners taken. The service was performed without the losse of a man on our side.”

Emboldened to proceed, and anxious to take advantage of Sir John Winter’s absence at Coleford, Colonel Massy marched on forthwith to Lydney House. He did not attack it, however, so well was it fortified and provided,

and courageously defended, by Lady Winter, who, upon being pressed to deliver, answered—

“Sir,—Mr. Winter’s unalterable allegiance to his King and Sovereign, and his particular interest to this place, hath by his Majesty’s commission put it into this condition, which cannot be pernicious to any but to such as oppose the one and invade the other; wherefore rest assured that in these relations we are, by God’s assistance, resolved to maintain it, all extremities notwithstanding. Thus much in Mr. Winter’s absence you shall receive from

“MARY WINTER.”

To inconvenience so daring a lady would be contrary to the Colonel’s gallantry, and he drew off to the adjoining hills towards the Forest, the better to meet Sir John Winter and Colonel Mynne, who were reported to be returning with a considerable strength of horse, assisted by the Lord Herbert’s forces. But the Royalists not appearing, Massy contented himself with setting fire to Sir John’s iron-mills and furnaces, and in the evening marched back to Gloucester.

Lydney House and Berkeley Castle remained the last strongholds of the Royalists in the county of Gloucester. The restless proprietor of the former was perpetually engaged in attempts to restore the King’s declining cause, and in particular to reduce the inhabitants of the Forest, which was an object of some importance, as their iron-works, &c., afforded supplies to Bristol, then besieged by the Parliament forces. The foresters had declined in their loyalty, through Sir John Winter’s occupying their woods, from which his enclosures excluded them. Accordingly his name is rarely absent from the accounts given by contemporary writers, of efforts made in this neighbourhood for the Crown. Most likely he assisted Prince Rupert in his first attempt made in the month of September, 1644, to fortify and establish a permanent guard on the promontory at Beachley, but from which they were quickly dislodged by Massy. We know he was present when the same effort was renewed a month later, and had a second time to be relinquished, Sir John Winter only effecting his escape by hard riding, and making a desperate descent upon the river Wye, by which he was only just enabled to reach the Prince’s ships lying at its mouth.

So favourable an opportunity as this defeat gave for the capture of Lydney House was not to be lost, and it was invested forthwith. Timely aid was however rendered about the 2nd of April, 1645, by the arrival of Prince Maurice with a force of 2,000 horse and 1,500 foot, who, as they marched towards it from Hereford, took advantage of the occasion to lay waste the Forest, as a retribution on the inhabitants for having deserted the King's cause. Corbet says that "they plundered the houses to the bare walls, driving all the cattell, seizing upon the persons of men, and sending them captives to Monmouth and Chepstow, except such as escaped to us by flight, as many did with their armes, and some few that saved themselves in woods and mine pitts." The same authority adds that "the King's forces returned a second time into the Forest, and took the gleanings of the former harvest." In the course of the month of May the royalists retired, and Sir John Winter, resolving that his house should never harbour his enemies, burnt it to the ground. He then joined the King, by whom he was presently despatched with letters to the Queen, in France, and mentioning him in these terms—"This bearer, Sir John Winter, as thy knowledge of him makes it needlesse to recommend him to thee, soe I should injure him if I did not beare him the true witnesse of having served me with as much fidelity and courage as any, not without much good successe; though some crosse accydents of late hath made him (not without reason) desire to waite upon thee, it being needfull that I should give him this testimony, least his journey to thee be misinterpreted."

The estate which Sir John Winter thus vacated in this neighbourhood was soon after assigned to his opponent by the House of Commons, who ordered on the 29th of September, 1645, "that Major-General Massy, in consideration of his good and faithful service which he hath done for the kingdom, shall have allowed him the estate of Sir John Winter (who is a delinquent to the Parliament) in the Forest of Dean; all his iron-mills, and the woods (timber trees only excepted not to be felled), with all the profits belonging to them; and ordered that an order at once should be brought into the House to that purpose." Eventually, however, Sir John Winter recovered his property, through the influence probably of the Lords in Parliament, who appear to have favoured him. On his return to this country he nevertheless seems to have been imprisoned, for on the 7th of September, 1652, we find him liberated from the Tower, upon bail for three

months, on account of sickness; a term of liberty which was enlarged upon the 7th of December, on the same security, to three months longer, with permission to go where he pleased within twenty miles of London. On the 17th of the same month he was remanded back to the Tower.

Evelyn tells us that at this time Sir John Winter amused himself with a project for charring coal. "July 11th, 1656.—Came home by Greenwich Ferry, where I saw Sir John Winter's new project of charring sea-coale, to burne out the sulphure and render it sweete. He did it by burning the coals in such earthen pots as the glasse-men mealt their mettall, so firing them without consuming them, using a barr of yron in each crucible or pot, which barr has a hook at one end, that so the coales being mealted in a furnace wth other crude sea-coales under them, may be drawn out of the potts sticking to the yron, whence they are beaten off in greate halfe-exhausted cinders, which being rekindled make a cleare pleasant chamber fire, deprived of their sulphur and arsenic malignity. What successe it may have, time will discover."

Reverting to Sir John Winter's retreat from Lydney, it may be remarked that, with his retirement from the Forest district, its south side became quiet; not so its north, for there the following incidents occurred. The first of them arose from Colonel Massy's efforts to retake Monmouth, which he strove to accomplish by feigning a sudden retreat from before it towards Gloucester, as though he had received unfavourable tidings. With this view he and his forces drew off some three miles into the thickets of the Forest, sending out scouts at the same time to prevent his being surprised by the enemy. Intelligence of their disappearance being reported within the garrison to Lieutenant-Colonel Kyrle, who was in the secret, he speedily set out in pursuit, but was himself surprised with a troop of thirty horse, near midnight, by Massy, in Mr. Hall's house, at High-Meadow. A combination of their forces being effected, they returned to Monmouth, and with mutual aid, favoured by a dark and rainy night, recaptured the town, much to the joy of the Colonel and his friends. Kyrle, an ancestor of "the Man of Ross," lived at Walford, where he was buried, and where his helmet is still preserved.

The capture of Monmouth proved to be only temporary, as the place was again lost, thus exposing that side of the Forest to the incursions of the

Cavalier troops. To check these invasions, the garrison of High-Meadow was carefully kept up. Ruerdean, six miles to the west, and well situated for guarding the Forest on the north, was made another military post, being intended to stop plunderers from the King's garrison at Goodrich, and where there is a spot yet called "Shoot-Hill," adjoining which many cannon-balls have been found. Probably the site of the old castle at Bicknor was also converted into an out-station, guarding the two parallel valleys which there pass up towards the middle of the Forest from the Wye. This station would likewise assist, from its relative position, in transmitting signals between Ruerdean and High-Meadow, or even from Gloucester, if the Beacon, which formerly stood on the crest of Edge Hill, were included in the range. Such posts would be serviceable to the Parliamentary Colonel Birch, when engaged in the siege of Goodrich Castle, not more than four miles north of Ruerdean; for his supplies would be drawn chiefly from the Forest, as indeed appears from a letter dated 4th July, 1646, in which he says, "We have supplies of shells for our granadoes from the Forest of Dean."

Several traditions of violence and blood, referring no doubt to this period, are preserved by the inhabitants of these parts of the Forest, one of whom reports an act of cruelty perpetrated on a householder living in the little hamlet of Drybrook, who was struck down, and his eyes knocked out, for refusing to give up a flitch of bacon to a foraging party. Another legend, relative to the same neighbourhood, preserves the memory of a skirmish called "Edge Hill's Fight," from the spot on which it occurred. It is true that some of the neighbouring foresters suppose it to be "the Great Fight mentioned in the almanack," an idea which might perhaps have given rise to the story, were it not that a small stream which descends from the place in question bears the name of "Gore Brook," from the human blood which on that occasion stained its waters.

The ensuing years of the Protectorate, judging from the frequent notices in the Parliamentary Journals to that effect, appear to have been destructive to the timber of the Forest rather than to life or property. Frequent orders were issued by the Committee of the House of Commons charged with the care of the Forest of Dean, forbidding the felling of any more trees whatever, and ordering that any which had been cut down should be sold for the benefit of the Government. The gentlemen of the county were invited to

assist herein, both by viewing any timber which had been felled, and also by causing any of it which they judged fit to be reserved for shipping to be brought into the stores of the Navy. Sir J. Winter asserts that during the time of the Commonwealth above 40,000 trees were cut down by order of the House of Commons.

In 1650 the above-named Committee ordered all the iron-works to be suppressed and demolished. Six years later a Bill was brought in and passed, signed by the Protector Richard, for mitigating the rigour of the Forest Laws, and for preserving the timber, which all contemporary testimony on the subject states to have gone miserably to wreck during the civil wars. On the 11th of May, 1659, Colonel White reported to the House of Commons, that “upon the 3rd day of this instant month divers rude people in tumultuous way, in the Forest of Dean, did break down the fences, and cut and carry away the gates of certain coppices enclosed for preservation of timber, turned in their cattle, and set divers places of the said Forest on fire, to the great destruction of the young growing wood.” This riot was probably excited by the efforts which the Government had recently made for the re-forestation of 18,000 acres; to effect which 400 cabins of poor people, living upon the waste, and destroying the wood and timber, were thrown down.

It would be interesting to know what was the disposition of the inhabitants of the Forest, and of the neighbourhood generally, towards the exiled Sovereign, as the way to his restoration began to open out. A slight clue is afforded by Captain Titus’s letter, reporting to the King that “he had been in the Forest of Dean, and had found the gentlemen very forward; that several of them had engaged for considerable numbers.”

The return of Charles at once restored Sir John Winter to liberty, and to the benefits of the Patent which the late King had granted him, as also to his place as Secretary and Chancellor to the Queen Dowager. He proceeded to act upon the former, by repairing his enclosures, in spite of determined opposition from the neighbouring inhabitants, who strongly represented to the Government that the continuance of that grant would injure both it and the public. Sir Charles Harbord, under date 28th of December, 1661, thus describes the way in which the above complaint was preferred:—“His Majesty hath been pleased to be present with my Lord Chancellor, and Lord

Treasurer, &c., at the hearing of this business, and hath given order that a Commission shall be forthwith issued out of the Exchequer to inquire into the state of the Forest; intending, upon the return of the said Commission, to acquaint the Parliament with the true state of the business; and to recommend it to their wisdom to provide that the said Forest may be restored to his Majesty's demesne, and re-afforested, and improved by enclosures for a future supply of wood for a constant support of the iron-works there, producing the best iron of Europe for many years, and for the produce of timber for the navy, and other uses in time to come; which might be of great use for defence of this nation, the old trees there standing being above 300 years' growth, and yet as good timber as any in the world; and the ground so apt to produce, and so strong to preserve timber, especially oaks, that within 100 years there may be sufficient provision there found to maintain the navy royal for ever." Perhaps the ancient trees here named are those of which Sir John Winter spoke in the "good discourse" Mr. Pepys had with him, as "being left at a great fall in Edward the Third's time, by the name of forbid-trees, which at this day are called 'vorbid trees.'"

Here it may be noted, that there happened on the night of 18th February, 1662, a dreadful storm of wind, alluding to which Pepys writes:—"We have letters from the Forest of Deane, that above 1,000 oakes and as many beeches are blown down in one walke there;" and Mr. Fosbroke has recorded from some other source, that near Newent "the roads were impassable till the trees blown down were cut away, in some great orchards it being possible to go from one end to the other without touching the ground."

The Commission mentioned above was directed to Lord Herbert, as Constable of the Castle of St. Briavel's and Warden of the Forest, and others, to examine the state and condition thereof. After a careful survey, it was reported by them that they had found 25,929 oaks and 4,204 beeches, containing 121,572 cords of wood, fit for being converted into charcoal, as used at the iron furnaces, and 11,335 tons of ship timber suitable for the navy. They add, however, that "cabins of beggarly people, with goats, sheep, and swine, began to invade the same as formerly." A fresh agreement was forthwith entered into with Sir John Winter on the part of the Crown, who thereupon surrendered his former Patent, reserving the woods called Snead and Kidnalls, and nominated Francis Finch and Robert

Clayton to receive a new grant of all such trees as were not fit for shipping, together with the use and occupation of the King's iron-works, and liberty to dig for and use iron ore and cinders in the Forest. Touching the drawing up of this agreement, Mr. Pepys's 'Diary,' under date 20th June, 1662, supplies us with the following particulars:—"Up by 4 or 5 o'clock, and to the office, and there drew up the agreement between the King and Sir John Winter about the Forest of Deane; and having done it, he come himself, whom I observed to be a man of fine parts; and we read it, and both liked it well. That done, I turned to the Forest of Deane, in Speede's Mapps, and there he shewed me how it lies; and the Lea-bayly with the great charge of carrying it to Lydney, and many other things worth knowing." They evidently enjoyed each other's society, for in the month of August next following they again met at "the Mitre," in Fenchurch Street, "to a venison pasty," whither Mr. Pepys was brought "in Sir John Winter's coach, where I found him" (he records) "a very worthy man, and good discourse, most of which was concerning the Forest of Deane, and the timber there, and iron workes with their great antiquity, and the vast heaps of cinders which they find, and are now of great value, being necessary for the making of iron at this day; and without which they cannot work." Evelyn's Diary of 5th November, 1662, also points to the same topic:—"The Council of the Royal Society met to amend the Statutes, &c., dined together; afterwards meeting at Gresham College, where was a discourse suggested by me, concerning planting his Majesty's Forest of Dean with oake, now so much exhausted of ye choicest ship-timber in the world."

Sir John Winter lost no time in acting upon the privileges conferred on him by the late agreement; but just as on the former occasion, it gave extreme dissatisfaction to the neighbourhood, whose complaints reached the House of Commons, and forthwith a committee was appointed to investigate the whole matter; from which committee Sir Charles Harbord reported to the House, "that Sir John Winter had 500 cutters of wood employed in Dean Forest, and that all the timber would be destroyed if care should not be speedily taken to prevent it." The report of the committee was accompanied by certain propositions, which manifest a public spirit highly creditable to the neighbourhood, although "the great difficulty" is noticed "with which the many freeholders that had right of common and other privileges were prevailed with to submit the same to the Crown for

enclosing the said Forest.” These propositions were made the basis of the ensuing Act, and I insert them without abridgment. They are headed:—

“Proposals by and on the behalf of the Freeholders, Inhabitants, and Commoners, within the Forest of Dean, for the preservation and improvement of the growth of timber there.

“Imprimis, That 11,000 acres of the waste soil of the Forest of Dean, whereof the Lea Baily and Cannopp to be part of the said waste, may be enclosed by his Majesty, and discharged for ever from all manner of pasture, estovers, and pannage; and if ever his Majesty, or his successors, shall think fit to lay open any part of the said 11,000 acres, then to take in so much elsewhere, so as the whole enclosure exceed not at any one time 11,000 acres.

“That all the wood or timber which shall hereafter grow upon the remaining 13,000 acres shall absolutely belong to his Majesty, discharged from all estovers for ever, and pannage for twenty years next ensuing. That the whole waste soil be re-afforested, and subject to the Forest laws; but that the severity of the Forest laws be taken off from the lands in several, belonging to the freeholders and inhabitants within the said Forest, they themselves being contented to serve his Majesty, according to their several offices and places, as formerly at the Forest courts.

“That the deer to be kept on the said waste soil may not exceed 800 at any one time; and the fees which belong to the particular officers, touching venison, may be preserved to them, as to venison only, and not to wood and trees.

“That it is consented to that the winter heyning and fence month, according to the Forest law, being such times wherein no kind of cattle be permitted to abide in any part of the said waste, may be understood to be from Saint Martin’s day in the winter to Saint George’s day in April; and afterwards, from fifteen days before Midsummer to fifteen days after.

“That all grants of any part of the waste soil of the said Forest be re-assumed and made void; and that no part of the said waste or soil be

aliened for ever from the Crown, or farmed to any particular person or persons, by lease or otherwise.

“And that this may be settled by Act of Parliament.

“(Signed) HEN: HALL. DUN: COLCHESTER,
WM. PROBIN. JO: WITT.”

The importance of the foregoing propositions appears from the use made of them, more than a century afterwards, by the Commissioners of Woods and Forests in 1788, who informed the descendants of those gentlemen who appended their names to the above document, that they had thereby lost all claim to any perquisite in the way of bark and windfalls; observing also, that the important Act of 1668 (20 Charles II.) resulting from it was approved by and obtained at the desire of the freeholders, inhabitants, and commoners then living.

Another proposition intended to further the preservation of the Forest woods was presented to the Lord Warden of the Castle of St. Briavel's by the freeholders thereof, promising on their part to relinquish claims to wood and timber for so long a time as “his sacred Majesty” should resolve to suspend his iron-works therein, whom they implore to call in the patent granted to Sir John Winter.

Some idea may be formed of the strength of public feeling against Sir John Winter, on account of his wholesale fellings of the Forest timber, by the decision which Mr. Pepys records his “cousin Roger” to have given upon him, viz. that “he deserves to be hanged.” In order that the mischief might be put an end to as soon as possible, late as it was in the session, a bill was brought into the House for settling the Forest, and preserving and improving the wood and timber. Parliament was prorogued, however, before the bill could pass, and its promoters had to be content with the House “recommending the Lord Treasurer and the Chancellor of the Exchequer to take care for the preservation and improvement of the Forest.” This recommendation appears to have had no influence on Sir John Winter, for on a new survey made in 1667 it was reported to Government that out of the 30,233 trees sold to him, only about 200 remained standing, and that from 7000 to 8000 tons of timber, fit for his Majesty's navy, was found wanting. He would seem to have felt some

alarm at this report, for twice about this time he resorted to Mr. Pepys, who writes, 15th March, 1667—"This morning I was called up by Sir John Winter, poor man, come in a sedan from the other end of the town, about helping the King in the business of bringing down his timber to the sea-side in the Forest of Deane;" and again 30th April, "Sir John Winter, to discourse with me about the Forest of Deane."

All the propositions sent up to the Government in 1663 were incorporated in the Act of 20 Charles II., chap. 3, which also provided that the new enclosures should be perfected within two years, in favourable and convenient places, the cost of making and maintaining them being met by the sale of such trees as would never prove timber; that no trees were to be felled until they had been viewed and marked by two or more justices of the peace, under a penalty of twenty pounds; that no fee-trees were to be allowed, and all grants to be void; that every freeholder might do what he pleased with his land; that no enclosure was to be mined, quarried, or trespassed in; that the bounds of the Forest were to remain as settled in 20 James I.; that all lawful rights and privileges relating to its minerals were to continue, with permission to the Crown to lease coal-mines and stone-quarries for periods not exceeding thirty-one years; that the letters-patent granted for a term not expired to Sir John Winter, Kt., Francis Finch and Robert Clayton, Esqs., should remain good, as also, certain leases granted to Thomas Preston, Esq., and Sir Edward Villiers, Kt. After all that had occurred, it seems strange that Sir John Winter should have obtained permission by Act of Parliament to retain his patent; he had however several powerful friends, and also strong claims on the Crown in consideration of his services during the civil war.

CHAPTER III.

A. D. 1663–1692.

First “Order” of forty-eight free miners in Court—8,487 acres enclosed and planted—Speech-house begun—Second order of the Miners’ Court—The King’s iron-works suppressed—The six “walks” and lodges planned out—All mine-works forbidden in the enclosures—Third order of the Miners’ Court—Enclosures extended—Fourth order of the Miners’ Court—Speech-house finished—The Forest perambulated—Fifth order of the Miners’ Court—Proposal to resume the King’s iron-works rejected—Sixth and seventh orders of the Miners’ Court—Riots connected with the Revolution—Eighth order of the Miners’ Court—Dr. Parsons’s account of the Forest.

Contemporaneously with the important Parliamentary enactments noticed in the preceding chapter, there took place, on the 18th of March (1663), the earliest session of a local but very significant court, that of “the Mine Law,” whose date and proceedings have been preserved. It was held at Clearwell before Sir Baynham Throgmorton, deputy constable of St. Briavel’s Castle, and a jury of forty-eight free miners, and shows that the Forest Miners of that day were a body of men engaged in carrying on their works according to rule, so as to avoid disputes or unequal dealing.

The Court ordered and ordained, as respects the western half of the district, that the minerals of the Forest could only be disposed of, beyond the limits of the Hundred, by free miners; that no manner of carriage was to be used for transporting them, nor more than four horses kept by any one party; that the selling price was to be determined by six “Barganers”; but that any free miner might carry “a dozen” of lime coal to the lime slad for 3s., to the top of the Little Doward for 5s. 6d., to any other kilns thereon for 5s. 4d., to the

Blackstones for 5s., to Monmouth for 5s. 6d., to the Weare over Wye for 4s., to Coldwall for 3s. 6d., to Lydbrook for 3s., and to Redbrook for 4s. 4d.; that no young man who had not served an apprenticeship for five years should work for himself at the mine or coal, nor should any of the “labourers” do so unless they had worked seven years, neither was any young man to carry coal, &c., unless he was a householder; and that none should sue for mine, &c., but in the Court of the Mine, under the penalty “of 100 dozen of good sufficient oare or coale, the one-half to be forfeited to the King, and the other halfe to the myner that will sue for the same.” The originals of this foregoing, and of the seventeen succeeding “Orders,” written on parchment, are preserved in the office of the Deputy Gaveller at Coleford. The forty-eight signatures to it are almost effaced, and about half have “marks” affixed to them, but the whole are written in the same hand.

The new Act of 1668 was soon brought into operation. Immediately after it had passed, upwards of 8,487 acres of open land were enclosed and planted, the remaining 2,513 acres being taken in some time afterwards. The following statement of Mr. Agar, then surveyor of the woods, shows that the cost of making the enclosures was raised as the Act directed. He said that he “received several sums of money by the sale of cordwood to Mr. Foley and divers others, and of the timber that did happen to arise out of the old oaks and beeches felled for the cordwood and other uses, and of wood that I *sold* to the colliers for their pits, in the whole amounting to £5,125 8s. 9¼d., which money was expended in buying Cannope, &c., of Banistree Maynard, Esq., at £1,500; in setting up his Majesty’s Enclosures in the said Forest, of 8,400 acres, with gates, stiles, &c., and some reparations of them; in employing a sworn surveyor to admeasure them; in building part of the Speech House; in divers repairs at Saint Briavel’s Castle; in the charge of executing two several commissions, and other services in the said Forest.”

In allusion to the item of timber *sold* to the colliers, the commissioners, in their report of 1788, remark:—“Immediately after the passing of the Act of 1668, the colliers, who, it is said, now pretend to have a right to whatever timber they find necessary for carrying on their works in the Forest, without paying anything for it, then purchased it from the Crown.” It seems also that “the Speech House” was then commenced, although it was not finished until 1682.

The *second* existing Order of the Mine Law Court states that it met in 1674, on the 9th March, at Clowerwall, before Sir George Probert, deputy constable of St. Briavel's Castle, chiefly with the design of raising a fund for defending in a legal way the rights of the free miners, and affording them support when injured at their work.

To these ends a payment of 6d. per quarter was levied upon each miner, digging for or carrying mineral, if fifteen years of age, as also upon every horse so used, payable within fourteen days, under a fine of 2s. Six collectors were to receive the above payments, to be remunerated at the rate of 1s. per quarter for each pound they gathered. Twice a year they handed in their accounts, under a penalty of £5, and perpetual exclusion from any office of trust, if such were found defective. It appears therefore that the free miners valued their rights, and not only took thought for the morrow, but provided for it. They added a proviso that the servants of the Deputy Constable should have the benefit of always being supplied first at the pits, showing that they knew something also of public diplomacy. This "Order" has the names of forty-eight miners attached, all severally sealed, but written in one hand.

In this year also (1674) it was suggested that if the King would put the old iron-works of the Forest in repair, and also build one furnace and two forges, all which might be done for £1,000, a clear profit of £2,190 could be made upon every 8,000 long and short cords of wood, of which the Forest was in a condition to supply a vast quantity. This proposal was nevertheless not acted upon, it being judged desirable rather to pull down the old iron-works than erect new, lest the waste in supplying the necessary quantities of wood should ultimately prove destructive to the Forest, now in a flourishing condition. Accordingly the iron-works then standing were ordered to be pulled down, and the materials sold. The greatest attention is admitted by the commissioners of 1788, who examined the office papers relating to this period, to have been given by the then Ministers of State, by Sir Charles Harbord, surveyor-general of the Crown lands, and by his son and successor Mr. William Harbord, to the protection of the young wood and the enclosures; and they affirm that "it is chiefly in those parts of the Forest which were then enclosed that the timber with which the dockyards have

been since furnished from this Forest has been felled, and in which any considerable quantity of useful timber may now be found.”

On the 28th of September, 1675, at the recommendation of Sir Charles Harbord, to whom the plan was probably suggested by the precedent of the ten bailiwicks into which the district had been anciently divided, the Forest was formed into six “walks,” or districts, a keeper being appointed to each. Six lodges were built for their use in convenient situations, with 30 acres of land attached, “for the better encouragement and enabling of the said keepers to attend and watch over the said enclosures within their several walks, and to preserve the same, and the young springs of wood and trees thereon growing, and to grow from time to time, from spoil and harm.” The names given to each of the six divisions were derived from some of the most eminent living characters of that day. Thus, the Speech House, or King’s Walk, was so called after Charles II.; York Walk and Lodge after the Duke of York; Danby Walk and Lodge after the Earl of Danby, prime Minister at the time; Worcester Walk and Lodge after Henry Marquis of Worcester, the then constable of the Castle of St. Briavel’s, and warden of the Forest; Latimer Walk and Lodge after Viscount Latimer; and Herbert Walk and Lodge after Lord Herbert; in the two last instances, out of compliment to the Worcester family apparently. The Speech House was so called from its being intended for the use of the ancient Court of “the Speech,” as mentioned in the Laws and Franchises of the Mine. Now also a grant of sixty tons of timber was made by the King towards rebuilding the parish church of Newent, as a tablet therein declares.

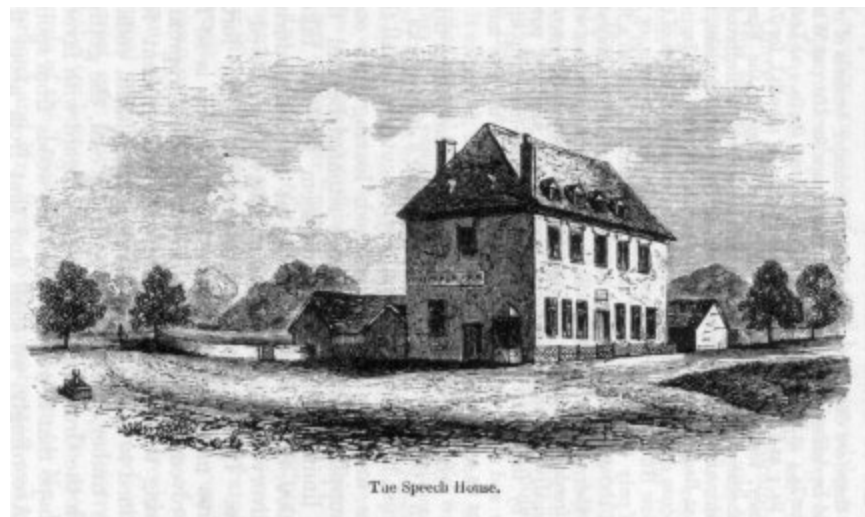
How strictly the enclosures were preserved at this time against all mining operations, is shown by the refusal which Sir Charles Harbord gave to a petition presented to the Treasury by several gentlemen and freeholders of the parish of Newland, for leave to make a coal level through an enclosure, although they were backed by Sir Baynham Throckmorton, Deputy-Governor of St. Briavel’s Castle, who had also been one of the Commissioners first appointed for carrying out the Act of 1668, and who gave it as his opinion that agreeing to the prayer of the petition would conduce to the preservation of the woods in the Forest, and the convenience and advantage of the country. The wording of the refusal was very peremptory, to the effect that “the enclosures could only be preserved for timber by being kept discharged from all claims;” that “although miners and

quarrymen had been long permitted to dig where they pleased, yet that they could not prove their right to do so; and as to coal-works, any such claims were unknown, much less any liberty of cutting his Majesty's woods for the support thereof; and the same ought to be totally suppressed, and would be so by a good officer, as Colonel Wade was in the time of the Usurpation, and that only by the Forest Law, and the ordinary authority of a Justice of Peace." It is not unlikely that in the last observation a hint was intended to be given to Sir Baynham Throckmorton, lest he should compromise his independent position with the colliers in the Forest by publicly accepting, as he had done the year before at their Mine Law Court, "their thankful acknowledgment of the many favors received by them from him," in return for which they agreed that, when he "should send his own horses or waynes to any of the colepitts for cole, the miners shall presently seame and load them before any other person whatever."

Passing over an interval of three years, we come to the date of the *third* of the Mine Law Courts, held on the 8th September, 1678, at "Clowerwall," before Sir Baynham Throckmorton, &c., whose favour it shows the free-miners were most anxious to preserve, since, upon understanding that the former order of 1668, forbidding any foreigner to convey or deliver minerals, had proved prejudicial to him and his friends and tenants, they now revoked the same, allowing any foreigner to carry fire or lime coal for his own use; besides which, they constituted the Marquis of Worcester, the then Constable of St. Briavel's Castle, as well as Sir Baynham Throckmorton, his Deputy, "free miners to all intents and purposes."

This same Court decided that "the Winchester bushell, three of which were to make a barrell," should be the constant measure for "iron ore and coale," 4d. being the smallest price allowed to be taken for "a barrell of fire coale." Pits having become numerous, they decreed that "none should presume to sink a pit within 100 yards of one already made without the consent of the undertakers, under a penalty of 100 dozen of good fire coale" (which is the earliest regulation for protecting coal-works). Lastly, six "barganers" were to fix the price at which iron ore should be sold or carried to the different works. The names of forty-eight miners are appended to this "order," all written in the same hand opposite their respective marks.

The importance of securing a supply of timber for the navy led to frequent Commissions of Inquiry, and the issue of Instructions, with respect to the royal forests. The Marquis of Worcester, Warden of Dean Forest, made a Return, on the 23rd of April, 1680, minutely describing the condition of the older trees, as well as of those planted ten years before, together with the state of the fences surrounding the new plantations. Parts of several of the enclosures are reported to have trees which were grown up out of the reach of cattle, and therefore fit to be thrown open, an equal quantity of waste land being enclosed instead, which was accordingly done by warrant, dated 21st July, 1680, not more than eleven years from the time they were taken in: consequently the young trees must have grown with rapidity, or else were left to take their chance very early. With the design as it would seem of making room for the new plantations, it is further stated that “there were remaining about 30 cabins, in several parts of the Forest, inhabited by about 100 poor people, and that they had taken care to demolish the said cabins, and the enclosures about them.” It should be remarked that these poor people must not be classed with the “free miners” of the Forest, although “they had been born in it, and never lived elsewhere,” but as “cabiners,” who had to work seven years in the pits before they could become “free.”



The *fourth* Record of the Mine Law Court informs us that it sat before Sir Baynham Throckmorton on the 27th April, 1680, at the Speech House, yet barely completed, unless it were the spacious Court-room, devoted to the public business of the Forest, for which it has been used ever since. The “Order” then passed implies, that although the last Court had appointed six

“bargainers” to deal with the difficult question of valuing the minerals offered for sale, inconvenience was yet experienced on this head.

It was therefore decreed that a dozen Winchester bushels of iron ore should be delivered at St. Wonnarth’s furnace for 10s.; at Whitchurch, for 7s.; at Bishopswood, for 9s.; at Linton, for 9s.; at Longhope, for 9s.; at Flaxley, for 8s.; at Gunsmills (if rebuilt), for 7s.; at Blackney, for 6s.; at Lydney, for 6s.; at those in the Forest lately demolished (if rebuilt), for the same as before; at Redbrooke, for 4s. 6d.; at the Abbey, viz. Tintern, for 9s.; at Brockweare, for 6s. 6d.; at Redbrooke Passage, for 5s. 6d.; at Gunspill, for 7s. So also no house or smith’s coal was to be delivered on the banks of the Wye, below Huntsam Ferry, for less than 8s. a dozen bushels, or for 4s. 6d. if only lime coal; and if above Huntsam, 3s. 6d., on a forfeiture of 100 dozen of good iron ore, the one half to his Majesty, and the other to the miner that will sue for the same, together with loss of “freedom” and utter expulsion from the mine-works—a very heavy penalty for such an offence, showing the arbitrary power assumed by the court, at one time conferring free-minership upon strangers and foreigners, and at another deposing the free miner merely for an over or even an under charge.

This “order” likewise informs us that the instructions given in 1674, to pull down the King’s iron-works in the Forest, had been so thoroughly executed, that all the furnaces were ere this demolished, leaving such only to be supplied with ore as were situated beyond the Forest limits. These furnaces seem to have taken about 600 dozen bushels of ore at one time, during the delivery of which no second party was allowed to come in. It is signed by fourteen out of the forty-eight free miners in their own hands, which is so far an improvement; but if the iron trade was unpromising, owing to the course which the Government felt constrained to take, lest its development should endanger the timber, it was not so with the coal, the getting of which the Crown would obviously regard with favour, in the hope that it would relieve the woods from spoliation. Accordingly, we shall find that from about this period on through the next century coal-works were constantly on the increase, so as eventually to throw the getting of iron-ore into the shade. This last “order” cancelled an agreement passed by the Mine Law Court on the 9th of March, 1675, to the effect that a legal-defence fund be

raised; but it confirmed the decree of a former court forbidding any young man to set up for himself as a free miner unless he was upwards of twenty-one years of age, and had served by indenture an apprenticeship of five years, and had also given a bond of ten pounds to obey all the orders of the said court.

One of the most minute of the various perambulations of this Forest dates from about this time, and serves to identify several spots, the early names of which have long passed away. On this occasion nineteen “regarders” went the rounds, preserving much the same course as the bounds of 28 Edward I.

The next, or *fifth* session of the Mine Law Court was held at Clearwell, on the 19th of September, 1682, Henry Melborne and William Wolseley, Esqrs., acting as joint deputies for the Marquis of Worcester, constable of St. Briavel’s Castle.

It confirmed, for the most part, the “orders” already issued, and further exacted the payment, within six days, of 6d. from every miner thirteen years of age and upwards, and an additional 6d. for every horse used in carrying mineral, “for raising a present sum of money for urgent occasions,” and required all coal-pits which had been wrought out to be sufficiently secured. Only fourteen signatures are attached to this “order,” the remaining thirty-four free miners making their “marks.”

In the course of the next year, A.D. 1683, a scheme resembling that proposed ten years before was started by Sir John Erule, supervisor or conservator of the Forest. His project was to raise £5,390 a year for the Crown, upon an outlay, in the first place, of no more than £1,000, to be spent in building iron-works, and an annual consumption of 8,000 cords of wood out of the Forest, care being taken that no oak or beech-tree, fit or likely to become fit for shipbuilding, be used. The Lords of the Treasury referred the plan to Mr. William Harbord and Mr. Agar, to be investigated and reported on. They rejected it however, as was done in the former case, and for the same reason, namely, that if carried out it would prove injurious to the woods and timber.

The *sixth* order of the Court of Mine Law records that it assembled on the 8th of December, 1685, at Clearwell, before William Wolseley, Esq., deputy

to the Duke of Beaufort, constable of St. Briavel's Castle.

Its principal design seems to have been that of confirming the former 6d. rate, and authorizing the same to be raised to 10s., if necessary, towards keeping up a fund for supporting the miners' claims at law, which of late they had been obliged to do in the Court of Exchequer against Mr. Beck and others. The order concludes with the following direction: "That one-half of the jury should be iron-miners, and the other half colliers," so rapidly had coal-mining advanced, and so important had its condition become. An examination of the original document shows this order to have been signed by one person writing down the names of the forty-eight free miners, since they all exhibit the same hand-writing.

The *seventh* of the orders still extant reports the Court of the Mine to have been held at Clearwell on the 5th of April, 1687, before William Wolseley, Esq., and commences by stating that more money was wanted for legal purposes, and that every miner must pay two shillings, with two shillings besides for every mine-horse, towards meeting them.

It likewise directed that each coal-pit and dangerous mine-pit, if left unworked for a whole month together, should be fenced with a stone wall or posts and rails, under a penalty of 10s. All previous orders, fixing the prices at which the minerals of the Forest were alone to be sold, were now abolished, not having been found to answer; and all miners were left at liberty to sell or carry and deliver their ore and coal to whom, where, and how they pleased; and whereas previously all colliers were entitled to be first served at the pits, now it was ordained that the inhabitants of the hundred should precede the trade, and that those miners only should keep horses who had land sufficient to feed them. The following provision speaks for itself—"For the restrayning that pernicious and abominable sinne of perjury too much used in these licentious times, every myner convicted by a jury of 48 miners in the said Court shall for ever loose and totally forfeite his freedome as touching the mines, and bee utterly expelled out of the same, and all his working tooles and habitt be burnt before his face, and he never afterwards to be a witness or to be believed in any matter

whatsoever.” Of the forty-eight jurymen whose names are appended to the above, sixteen signed.

It was in the month of January following (1688) that a riotous assemblage of the people pulled down Worcester Lodge and York Lodge, besides much defacing and spoiling the Speech House; an outrage connected probably with the unpopularity of James II., after whom the Speech House and York Lodge were called. With reference to the general feeling of the neighbourhood respecting the principles of the Revolution, Mr. Pyrke, of Dean Hall, states that the release of Lord Lovelace, a supporter of the Prince of Orange, out of Gloucester prison, was effected by “a young gentleman of that county,” an ancestor of his, “who took up arms for the Prince, and drove out all the Popish crew that were settled in that city,” and that the exploit has been handed down in the following rude lines, sung by his haymakers at their harvest supper:—

“A health to Captain Pyrke, who in Little Dean was bred,
And of a thousand men he was the head;
He fought for the truth and the Protestant faith;
We drink his good health, and so do rejoice.

He down in the West King William did meet,
And to him he sent both oxen and sheep,
Till he had an order which from him did come,
And with honour to Gloucester he brought him along.

When he came to Gloucester he had but forty men,
The city of Gloucester all barred unto him;
The city was guarded with soldiers about,
But he brought Lord Lovelace from his prison quite out.

With sword in his hand he before them did go;
He was not ashamed his face for to show:
‘They who have anything to say to Lord Lovelace,’ said he,
‘O then, if they have, let them speak it to me.’

Then up to the Mayor away he did get,
And his wooden god to pieces did beat;

And the big golden chair where King James sate
He threw in the fire, which made a brave heat.

Then up into Oxfordshire away he did ride,
To bring Lord Lovelace safe home;
He plundered the Papists along as he goes,
He could not endure to see us abused.”

Two years later than the date of the above outrages, wood-fellings to the extent of 6,186 short cords were made, pursuant to their Majesties’ letters of Privy Seal. They were sold, it is said, for six shillings a cord, which was considered a good price for the county of Gloucester.

A period of about five years from the time that the last was held brings us to the date of the *eighth* record of the Mine Law Court, viz. the 17th of January, 1692. It was held at Clearwell, before the three deputies of the Constable of St. Briavel’s Castle, *i.e.* Tracy Catchmay, John Higford, and George Bond, Esqrs.

The Court levied a further contribution of 12d. upon every miner, with an additional 1s. on every mine horse, with which to clear off certain charges incurred in a recent suit in the Court of Exchequer at Westminster. It extended the protective distance of 100 yards, within which every pit was guarded from being encroached upon by any other work, to 300 yards. It also provided that no iron ore intended for Ireland should be shipped on the Severn or Wye for a less sum than 6s. 6d. for every dozen bushels. This order was signed by sixteen out of the forty-eight miners with their own hands, the rest making their marks only.

To this period is assigned Dr. Parsons’s quaint remarks on the Forest. “It abounds,” he says, “with springs for the most part of a brownish or umber colour, occasioned by their passage through the veynes of oker, of which there is a great plenty, or else through the rushy tincture of the mineralls of the ore. The ground of the Forest is more inclined to wood and cole than corn, yet they have enough of it too. The inhabitants are, some of them, a sort of robustic wild people, that must be civilized by good discipline and government. The ore and cinder wherewith they make their iron (which is

the great imployment of the poorer sort of inhabitants) 'tis dug in most parts of y^e Forest, one in the bowells, and the other towards the surface of the earth. But, whether it be by virtue of the Forrest laws, or other custome, the head Gaviler of the Forrest, or others deputed by him, provided they were born in the Hundred of St. Briavel's, may go into any man's grounds whatsoever, within the limitation of the Forrest, and dig or delve for ore and cinders without any molestation. There are two sorts of ore: the best ore is your brush ore, of a blewish colour, very ponderous and full of shining specks like grains of silver; this affordeth the greatest quantity of iron, but being melted alone produceth a mettall very short and brittle. To remedy this inconvenience, they make use of another material which they call cinder, it being nothing else but the refuse of the ore after the melting hath been extracted, which, being melted with the other in due quantity, gives it that excellent temper of toughness for which this iron is preferred before any other that is brought from foreign parts. But it is to be noted that in former times, when their works were few and their vents small, they made use of no other bellows but such as were moved by the strength of men, by reason whereof their fires were much less intense than in the furnaces they now imploy; so that, having in them only melted downe the principal part of the ore, they rejected the rest as useless, and not worth their charge: this they call their cinder, and is found in an inexhaustible quantity throughout all the parts of the country where any glomerys formerly stood, for so they were then called."

CHAPTER IV.

A.D. 1692–1758.

Condition of the Forest described, and management examined—Depredations—Ninth and tenth orders of the Miners' Court—Timber injured by the colliers—The Forest in its best state, 1712—Eleventh, twelfth, and thirteenth orders of the Miners' Court—Fourteenth order of the Miners' Court—Swainmote Court discontinued—Extension of coal-works and injury of trees—Forest neglected—Fifteenth, sixteenth, and seventeenth orders of the Miners' Court—Grant of 9200 feet of timber to the Gloucester Infirmary.

Reverting to the general condition and management of the Forest, an important commission was issued this year, 1692, to the Crown officers and some of the neighbouring gentry, directing them to examine and inquire into the six following particulars:—I. The quantity of coppicewood fit for being cut from year to year for twenty-one years to come—II. The annual charge for the next twenty-one years of maintaining the enclosures—III. What the cost would be of disenclosing certain coal-pits, with which some of the plantations were encumbered—IV. What the salaries of the Crown officers of the Forest amounted to, and the cost of making such repairs as the buildings they occupied required—V. As to the way in which the timber fellings of 1688 had been disposed of, with the state of the enclosures, if those who had charge of them had duly protected them from injury—and VI. How far trespass and pounding had been enforced, or unlawful building permitted.

These were all very important questions, and under the first head, as to wood fit to be cut for cording, &c., the commissioners report, that “there are great and valuable quantities of scrubbed beech and birch, with some holly, hazel, and orle, fit to be cut and disposed of, being 192,000 cords, worth at 4s. 10d., amounting to £46,488, of which 12,000 cords might be cut every

year, worth £2,900. Or, as the total quantity of such wood was 615,500 cords, their worth at 4s. 10d. was £148,745 16s. 8d., to which £60,000 may safely be added for future clearings if a twenty-one years' lease be granted. £100 a year would suffice to keep the enclosures in repair." The commissioners, in contemplating the expediency of making a grant adapted to the requirements of iron-making, supposing the King's furnaces to be restored, considered that it "would utterly destroy the Forest, now the best nursery for a navy in the world;" since the party obtaining such a lease would be sure to consider their own advantage rather than the preservation of the district. They also urged that a grant like that intimated was opposed to the intentions of the Act of 20th Charles II., as also to the previous decisions of 1662 and 1674, and would cause much dissatisfaction amongst the freeholders of the Forest, who were prepared to petition against it. The commissioners recommended that "the making of the fellets, if put in execution, should certainly be intrusted to the present officers, who had given sufficient testimony of their care in such matters." Their report adds that "the Lea Bayly is now a spring of oak and beech of four, five, and six years' growth, but much cropped and spoiled by cattle, by reason the enclosures made for the preservation thereof have in the night been several times pulled down and destroyed by persons unknown." The other places mentioned in the Act of 1668, called "Cannop Fellet, Buckholt, Beachenhurst, and Moyey Stock," are described as "generally very well grown with oak and beech of fifty, forty, and thirty years' growth, and under, many thousand of them being forty foot and upwards, without a bough to hurt them." They further state, that some of the enclosure fences, especially those on the north-east side of the Forest, would cost £137 10s. to repair, and £30 a year afterwards, perhaps, to keep them good, the other parts formerly enclosed not needing reparation, the trees being grown up past danger from deer or cattle, "unless in case of some accident, or pulling down by the rabble, as hath been sometimes done." Viewing the places where the last fellets for cordwood were made in 1690, the commissioners state that "a very great stock has been left upon the ground for timber, and all imaginable care taken by the officers employed in making the said fellets, and preserving all the stores and saplings, with the principal shoots of such beech as grow upon old stools well sheltered by other woods, for the improvement thereof." With reference to the expediency of throwing open such of the enclosures as contained coal-pits, we learn that no

inconvenience was felt on that account, as “not more than six pits had ever been so situated, and now not one, those plantations having grown up, and their fences down.” The sum total of salaries paid to the conservators and six keepers was £210 per annum, arising from wood sales. Various repairs are stated to have been necessary. The Castle of St. Briavel’s, it is said, “hath been a very great and ancient building, but the greatest part is ruined and fallen down, and only some part kept up for a place to hold the courts in for the King’s manor and hundred thereof, and also for a prison for debtors attached by process out of the said courts, and for offenders and trespassers within the Forest. The same is very necessary to be repaired; and for mending the roof and tiling, and in glazing, plaistering, repairing the prison windows, and building a new pound, &c., will cost the sum of £10 14s. 2d. The cost of rebuilding Worcester and York Lodges, pulled down by the rioters in 1688, and repairing the Speech House, which was likewise much injured at that time, will be, they calculate, £219 10s.”

As to injury done to the woods, the following presentments amongst many others made by the keepers were instanced:—“John Simons of Blackney, for cutting green orle wood. Edward Revoke and James Drew of Little Dean, for cutting and carrying away a young oak. The same Edward Revoke, for building some part of his house with wood out of the said Forest.” Respecting these depredations the commissioners recommend that, in consideration of the colliers having, time out of mind, had an allowance of wood, but not timber for the support of their pits, but which has been stopped for some time, it may be again allowed to them by order of the verderers, and taken by view of a woodward or keeper. The Attachment and Swainmote Courts are stated to have been “duly kept, although ineffectually to the preservation of the Forest, as they can only convict, but cannot punish; and that the trespass-money paid into the said courts in this reign does not exceed 5s., the only remedy being in having a justice seat held for the purpose once a year, for six or seven years.” The report is signed by Wm. Cooke, Re Pynder, Wm. Boevey, J. Viney, Jo. Kyrle, Phil. Ryley.

The *ninth* Mine Law Court was held on the 25th of April, 1694, at Clearwell, before John Higford and George Bond, Esqrs.

It confirmed the punishment already awarded against “the abominable sin of perjury,” to prevent which it directs that “no person shall be permitted to swear in his own cause unless it be for a matter transacted underground, or where it was difficult to have any witnesses;” nor shall any bargain be binding unless it be proved by two witnesses.

All causes of debt or damage amounting to 40s. were to be heard on both sides as in other courts, the verdict being given by a jury of twelve miners; but in lesser causes by the Constable of the Court. Provision was also made that “every defendant have twenty-four hours’ notice to provide for his defence,” every witness being allowed 12p. a-day, the fees of the Court remaining the same as before, all which, as well as the defendant’s time, the plaintiff losing the cause, or being non-suited, had to pay. This “Order” also reduces the price of ore for Ireland from 8s. to 5s. a dozen bushels, pitched at Brockwre, or if at Wye’s Green for 4s. ditto; fire-cole at 8s. a dozen bushels; smith’s-cole, 6s., and charking at 8s., “without handing, thrusting, kicking, or knocking the same,” under the usual penalty. Eighteen miners out of the jury of forty-eight signed their names themselves “to this Order,” the remaining thirty only making their marks.

The earliest particular recorded in the next century bears date 1701, on the 27th January, in which year the *tenth* Miners’ Court of forty-eight sat at Clearwell, before Serjeant Powlett and George Bond, Esq., deputies to Charles Earl of Berkeley.

Its proceedings were as follows:—Certain temporary orders, dated the 12th March, 1699, and 11th November, 1700, regulating the loading of horses and carts, forbidding any coal to be sent off by the river Wye below Welch-Bicknor, authorizing the raising of money for paying the costs of the miners’ debts in law, securing the Records of their Court, and making the present deputy constable of St. Briavel’s Castle a free miner, were confirmed and made perpetual. Mention is also made for the first time of “the utmost seventy” being the greatest number ever comprised in the miners’ jury. The order further directs that the Records of Mine-law, used at the hearing of the suit in the Exchequer, be recorded, and put into a chest, to be left in the custody of Francis

Wyndham, Esq., whom the court had made a free miner, and that in paying any of the costs incurred in that cause a legal discharge be taken. Now the ton of 21 cwt. was fixed as a weight of coal, to be sold for 5s. to an inhabitant of the hundred, or for 6s. to foreigners; and every pit was to be provided with scales. Upwards of twenty of the forty-eight miners who formed the jury at this court put their names to the above verdict, the remainder being marksmen.

In the year 1705, Edward Wilcox, Esq., Surveyor-General to the Royal Forests, having carefully examined the condition of the woods in the Forest of Dean, stated that he found them very full of young trees, of which two thirds were beech, overtopping the oaks, to their injury; and he recommended that one sixteenth part, or about 700 acres, should be annually cleared and fenced in, which would yield a profit to the Crown of £3,500 a year, and leave the standard oaks and beech to grow to perfection. Lord Treasurer Godolphin consented to this proposal, and granted a warrant for carrying it into execution; but it was petitioned against by those who claimed a right of common, whose free-pasturage would thereby be lessened; at the same time, however, others were desirous that it might take effect, as they would get a living by cutting the underwood, and preparing it for the furnaces. At length on the 4th of July, 1707, the Attorney-General, Sir Simon Harcourt, decided—that “no claim or right of common could prevent the enclosing, keeping in severalty, or improving, as her Majesty should direct, the 11,000 acres mentioned in the Act of 20 Charles II., and preserving the same as a nursery of wood and timber only.”

Another event of this year was the holding a Court of Mine Law, on the 1st of July, at Mitcheldean, but afterwards by adjournment at Coleford, before George Bond and Roynon Jones, Esqrs., deputies.

It confirmed the directions of a former court of forty-eight, that the law-papers produced at the late suit in the Court of Exchequer, with all the other records of the Mine Law Court, be collected forthwith, and consigned to the care of Francis Wyndham, Esq.; and that the law debts then incurred be at length paid, out of a 1s. rate upon every miner and mine-horse. The 20s. penalty for leaving pits unfenced was also reimposed. This “Order” bears the genuine signatures of nineteen out of the forty-eight jurymen, the rest merely making their marks.

In the next year, A.D. 1708, Mr. Wilcox, the Surveyor-General, represented to Lord Godolphin that the inhabitants of the neighbourhood had been stripping some of the trees of their bark, whereupon those trees, with any others not likely to be of any use to the navy, were ordered to be cut down and used for gates, stiles, and fences, or sold for the benefit of the Crown. Three years later a similar charge was preferred against certain colliers for cutting trees and wood, but we do not find that it came to anything.

Sir Robert Atkyns, to whom this Forest was well known, describes its condition at this time, as “containing only six houses, which are the lodges for so many keepers. There had been many cottages erected, but they had been lately pulled down;” not that there were literally no other dwellings in it, for the ancient “assarted” lands were probably so occupied, but the mining population lived for the most part in the surrounding villages. Speaking of the different Forest courts, he says—“the Swainmote Court is to preserve the vert and venison, and is kept at the Speech-house, which is a large strong house, newly built in the middle of the Forest for that purpose. There is another court called the Miners’ Court, which is directed by a steward appointed by the constable of the Forest, and by juries of miners, returned to judge between miner and miner, who have their particular laws and customs, to prevent their encroaching upon one another, and to encourage them to go on quietly in their labour in digging after coals and iron-ore, with which this Forest doth abound.” The room in which most of these courts were held retains its original character, only it has been floored with wood, and is no longer divided by rails into compartments for the jury and the accused. Stains of human blood once marked the ceiling over the north-east corner of the apartment, said to have dropped down from the room above, where an unfortunate poacher, who had been much injured by a gun, was confined. It is asserted that for many years no water could remove nor whitewash hide the unsightly marks.



In the Commissioners' Report of 1788 it is said that about this time (1712) the Forest was probably in its best state, although its courts had not been so regularly held since the Revolution as before, yet that the greatest attention had been given to it by the different authorities under the Crown. And as the commissioners deplore the unfavourable change which had subsequently taken place, we may contrast the state into which the Forest had then fallen, with its present condition, so much more hopeful and lucrative than it had been at that the brightest period of its past history. There are no public documents relating to this Forest to be met with for many years from this time; indeed it is hardly ever mentioned in the book of the Surveyor-General of the Crown lands, which only contained warrants for felling timber for the navy or for sale. The produce was for the most part directed to be applied to the repairing of lodges, roads, or fences, or the payment of salaries to officers, or fee-gifts from the Crown. The proceedings of the Court of the Miners, on the contrary, remain recorded, and serve to fill up the interval. They show that one was held at the Speech-house on the 7th of January, 1717, before Richard Machen and William James, Esqrs., deputies.

By it a 6d. levy was made on every miner, and on every working horse, towards meeting any law expenses which the Society of Miners

might incur in defending their rights; and should more money be required, authorizing a jury of only twelve miners, with the consent of the two deputy-constables, to order the paying of the same. It further imposed a fine of upwards of £30 on any miner who should sue another respecting any matter relating to the mine in any other court. It also constituted the Honourable Matthew Ducie Morton, Thomas Gage, John Wyndham, Richard Machen, William James, and Christopher Bond, Esqrs., free miners, “out of the due and great respect, honour, and esteem borne towards them.” We need not call in question the truthfulness of such protestations; but doubtless, had these worthy miners perceived the inconsistency of such admissions, they would not have so readily dispensed with the ancient regulation which restricted the fellowship of the mine to those who had worked therein. They were well intended at the time, but long afterwards weakened in a legal point of view the free miners’ rights. This “Order” exhibits only eleven original signatures, the thirty-seven other jurymen making their marks.

Only two years intervened between the holding of the Court just mentioned, and the one which followed it, held at the Speech House, on 10th November, 1719, before Richard Machen and William James, Esqrs., Deputies.

On this occasion certain previous orders were cancelled, and in their stead it was determined that no one living out of the Hundred of St. Briavel’s should convey any coal out of the Forest unless he belonged to the Forest division of the county, and carried for his own private use. A penalty of £5 was imposed upon any person under twenty-one years of age carrying ore or coal. All traffic in coal, either up or down the Wye, was to stop at Welch Bicknor, between which and Monmouth Bridge no coal was to be pitched. At Monmouth, fire-coal was to be sold at 9s. the dozen bushels; smith’s-coal at 8s.; and lime-coal at 5s. 6d. Above Lydbrook, on the Wye, fire-coal was to be sold at 8s. a ton, or the dozen barrels; smith’s-coal at 6s.; and lime-coal at 3s. One free miner was not to sell any fire-coal to another under 5s. per ton of 21 cwt. Roynon Jones and Edmund Probyn, Esqrs., were made free miners. Lastly, any former orders in private hands, together with all

writings relating to the Free-miners' Court, were to be delivered to William James, Esq., to be kept in the said miners' chest, at the Speech-house. Perhaps this direction was, with few exceptions, complied with, not, it would seem, in every case, as several of those alluded to in the existing orders of the forty-eight cannot be found. Nineteen signatures made by the parties themselves occur at the end of this Order; the rest are only marks.

Nine years passed away before another full Mine Law Court is recorded. This was on the 12th November, 1728, by adjournment, at the Speech House, before Maynard Colchester, Esq., and William James, Gent.

The following gentlemen were made free miners:—Thomas Wyndham, of Clearwell; Maynard Colchester, of Westbury; William Hall Gage, son and heir to Lord Viscount Gage; William Jones, of Nass, Esqrs.; William Jones, of Soylewell, Gent.; Robert James, of the same place, Gent.; Thomas Wyndham the younger, of Clearwell, Gent.; Thomas Pyrke the younger, of Little Dean, Gent.; and William Lane, Deputy Clerk. A forfeit of £10 was laid upon any miner who had received a “forbidment” from another, if he persisted in carrying on his work in that place. The distance of 300 yards, which, by a former order, made in 1692, protected every pit from interruption, was now enlarged to 500 yards in all levels in all parts of the mines called “beneath the wood,” under the same penalty; and further, the giving away of coals was forbidden under a fine of £5. Twenty-two original signatures appear at the foot of this Order; the other names are merely marked.

The extension of the Forest coal-works, in depth and underground operations, as indicated by the enlargement of the protective distance, effected a corresponding change in the kind of timber required for propping the mine. That is, as the pressure from above increased, owing to the workings being carried deeper, stronger stays and supports were necessary than cordwood or saplings supplied. Nothing less than the stems and main limbs of timber trees would suffice. How the colliers obtained these requisites, the particulars given in the following complaint, made in 1735 by the Surveyor-General, show:—“A practice has prevailed among the

colliers of boring large holes in trees that they may become dotard and decayed, and, as such, may be delivered to them gratis for the use of their collieries.” The only notice, it cannot be called a remedy, which this evil obtained, was that, for the future, directions were given that “such bored trees as appeared to be dead and spoiled shall be felled, taking care that none be cut down that may be of use to the navy.”

It is, however, further stated, that the colliers frequently obtained from the keepers the best trees in the Forest, although their claims merely extended to pit-timber. The existence of so serious an evil proves that many things were going wrong, and we are prepared for the representations made the next year (1736) to the Treasury by Christopher Bond, Esq., Conservator and Supervisor of the Forest. He reported that “after the Act of the 20th Charles II., 11,000 acres had been enclosed; that the officers were duly elected, Forest courts held, and offenders prosecuted and punished, to the successful rearing of a fine crop of wood; but that within the last 30 years these elections had been neglected, the Courts discontinued, and offenders left unpunished; the Officers of Inheritance had grown remiss and negligent, so that some enclosures, and those of only a few acres of the 11,000, were kept up, and these not carefully repaired; a great number of cottages were erected upon the borders of the Forest, the inhabitants whereof lived by rapine and theft; that there were besides many other offences committed, such as intercommuning of foreigners, surcharges of commoners, trespasses in the fence month and winter haining, and in the enclosures; keeping hogs, sheep, goats, and geese, being uncommonable animals, in the Forest; cutting and burning the nether vert, furze, and fern; gathering and taking away the crabs, acorns, and mast; and other purprestures and offences; carrying away such timber trees as were covertly cut down in the night time; by which practices several hundred fine oaks were yearly destroyed, and the growth of others prevented; and that it was feared that some of the inferior officers of the Forest, finding offenders to go on with impunity, were not only grown negligent, but also connived at, if not partook in, the spoil daily committed.”

To remedy this bad state of things, Mr. Bond proposed that a new law should be passed, explanatory of the Act of 1668, by enforcing the Forest officers to do their duty, and by superseding the odious, because unlimited and arbitrary, proceedings of the former Chief Justices in Eyre by a jury,

and convictions before the verderers at their Swainmote Court, with a power lodged in those officers to fine, under a certain sum, all offenders. The Surveyor-General of the Crown Woods had the above proposal submitted to his consideration, and was directed to attend the Attorney and Solicitor-General, Sir John Willis and Sir Dudley Ryder, to take their opinion thereon, which was, that “the offences were chiefly owing to the neglect of putting the Stat. 20th Charles II. in execution; and they recommended, therefore, that the several vacant offices of the Forest should be filled up, that the Forest Courts should be regularly held, and that the officers should be strictly enjoined to do their duty.” It is disappointing to find no evidence that anything was done in consequence of this opinion.

About this time the *fifteenth* of the series of “Orders” enacted by the Mine Law Court of forty-eight, informs us that it met by adjournment at the Speech House on the 6th of December, 1737, before William Jones, Esq., Deputy Constable of St. Briavel’s Castle.

Owing to the injury which it was considered foreigners had done to the free miners by carrying coal out of the Forest for merchandise, it was decided that for the future no such carrying should be allowed except to certain persons named, under a penalty of £5, or property to that amount, or imprisonment in St. Briavel’s Castle for a year, to the perpetrator or any cognizant thereof. From this it seems perfectly plain that the free miner regarded the carrying of coal as much a part of his profession as getting it, and therefore equally requiring protection. The “Order” proceeds to direct that in every suit before the Mine-Law Court the plaintiff and defendant were to pay 6d. to the Clerk for entering the same, which was to form his salary. The rights of free-minership were conferred upon the Honourable Thomas Gage, Christopher Bond the younger, Esq., Thomas Crawley, Esq., James Rooke, Esq., Thomas James, Gent., Thomas Barron the younger, Gent., Thomas Marshall, Yeoman. John Wade was to be made “free” on his working a year and a day in the mine; and making it a rule that a foreigner’s son, being born in the Hundred, and seeking to become a free miner, was to serve by indenture an apprenticeship of seven years. The above “Order” has only twenty-three marks attached to it, more than half the jury signing their own names.

Proceeding to the date and objects of the next “Order” of the same Court, we find that it had been adjourned to the 2nd March, 1741, at the Speech House, before Edward Tomkins Machen, Esq., Deputy. It commences by explaining the terms “above” and “beneath the wood” to be two ancient divisions of the Forest, “beginning at the river Wye at Lydbrook, where the brooke there leading from the forges falls into the said river, and so up the said brooke or stream unto a place in the said Forest called Moyery Stock, and from thence along a Wayn-way at the bottom of a place called the Salley Vallett, and so along the same way between the two old enclosures that did belong to Ruardean and Little Dean Walks unto Cannop’s Brooke, and down the said brooke to Cannop’s Bridge; and from thence along the road or highway to the Speech-house, and from thence along the said highway to Foxe’s Bridge, and from thence down Blackpool Brooke to Blakeney.”

It is worthy of remark, that the same boundary line, with only a trifling difference, defines the two townships of East and West Dean, into which the Forest is now divided for the purposes of the Poor Law Amendment Act. The connexion of this division with the Court of Mine Law consisted simply in this, that the attendance of a free miner on the jury was regulated by the position of his works and habitation in one or other of them.

A £5 penalty was laid upon all miners who should send or carry any coals to Hereford or Monmouth by the Wye, except lime-coal at “the New Wears,” at 4s. a dozen bushels. A similar fine was inflicted on any inhabitant of the Forest division of the county who should “presume” to carry coal otherwise than for their own use; so also no miner was to work more than two pits at one time; nor to carry coal for any person not a free miner; neither to sell fire-coal or stone-coal charks under 7s. a dozen bushels, or 5s. if smith’s coal, at Redbrook, which, if refused there, a “forbid” shall be declared until the former coal should be accepted. This “Order” further enacted that if coal was found in any bargeman’s boat, and he refuse to say from whom he had it, a general “forbid” shall be declared that no miner serve him with any more. A free miner is briefly defined to be “such as have lawfully worked at coal a year and a day.” A foreigner selling coal at Hereford for less than 13s. per ton was to be summoned, or abide the consequences of a general “forbid.” Should there be at any time more

than a sufficiency of coal for the trade on the Wye, the barge-owners were to employ the services of the miners, or be fined according to their wages. A horse-load to the Wye was fixed at 2 cwt. and a quarter for 6d., ten such making a ton, to be weighed, if required, under a forfeit of 2s. 6d. Miners beneath the wood were bound to sell not less than a cwt. of coal for 4d.; 3 bushels of smith's coal for 5d.; and 1 bushel of lime coal for 1d. at the pit. No team was to be served with less than 2 cwt. nor more than 21 cwt., to be weighed, if desired, or forfeit £5. This Order constituted Richard Clarke and Edward Tomkins Machen, Esqrs., free miners, and exhibits at the end the penmanship of only 18 of the jury, all the rest merely making their marks.

We now arrive at the *seventeenth* or last "Order" issued by the Mine Law Court. It dates 22nd October, 1754, and sat at the Speech House, before Maynard Colchester and Thomas James, Esqrs.

It records the election to free-minerships of the Right Honble. George Augustus Lord Dursley, Charles Wyndham of Clearwell, Esq., Rev. Roynon Jones of Monmouth, John Probyn of Newland, Esq., his son Edmund, Maynard Colchester the younger, Esq., Roynon Jones the younger, of Nass, Esq., Kedgwin Webley of London, Gentleman, Kedgwin Hoskins the elder, of Clearwell, Gent., William Probyn the younger, of Newland, Gent., Mr. Kedgwin Hoskins the younger, of Clearwell, Mr. Edmund Probyn the younger, son of the said William Probyn, Mr. Thomas James the younger, Mr. Thomas Baron the younger, son of Mr. Thomas Baron of Coleford, Herbert Rudhall Westfaling, of Rudhall in Herefordshire, Esq., John Clarke, of "The Hill," in Herefordshire, Esq., Thomas Foley the elder, of "Stoke Eddy," in the said shire, Esq., Thomas Foley the younger, of the same, Esq., John Symons, of the Mine, in the same county, Esq., Ion Yate, of Arlingham, Esq., William Lane, of "King's Standley," and Barrow Lawrence, of Bruen's Lodge, Gent.

So full a list of persons of position and influence as this Order exhibits, lending their names to the Free Miners' Society, indicates the existence of considerable importance in that body; and yet this was the last Court having

forty-eight free miners on the jury whose proceedings have been preserved, the fact being that they failed to agree in their verdicts, and then gentlemen refused to attend, owing, it is said, to the violent quarrels and disputes which arose between foreigners possessed of capital, who now began to be admitted to the works, and the free miners. It is also reported that the decisions of the court were seldom observed, no Act of Parliament having passed to render them valid. The former protective distance between one mine and another was increased from 500 to 1000 yards of any levels, and enforced by a £5 penalty. The order concludes with directing that

“The water-wheel engine at the Orling Green, near Broadmoor, be taken to be a level to all intents and purposes.” This machine was evidently the first of its kind erected in the Forest, as was also the steam-engine which superseded it, each manifesting the improvements going on in the method of working the mines. The signatures appended to this final “Order” show twenty-five marksmen, and twenty-three names written by their possessors.

The Benefaction-Boards of the Gloucester Infirmary record, in reference to this period, the following particular:—“A gracious benefaction from his Majesty King George II. of 9,200 feet of rough oak timber from the Forest of Deane.”

CHAPTER V.

A.D. 1758–1800.

Mr. John Pitt suggested 2,000 acres to be planted—The Forest surveyed—Great devastations and encroachments—The roads—Act of 1786, appointing a Commission of Inquiry—New plantations recommended—Messrs. Drivers employed to report on the Forest—Corn riots—Mitcheldean market.

Reverting to the state of the woods and timber in the Forest, it appears that ere this the old enclosures had been thrown open, the trees planted early in this century having attained to considerable size, and some parts so far cleared as to suggest the formation of new plantations. In 1758 John Pitt, Esq., then Surveyor-General of Woods, &c., proposed to the Treasury that 2,000 acres should be enclosed, which was ordered to be done accordingly; but probably it was executed in part only, since Mr. Pitt was removed from his office five years afterwards, when a survey of the timber was made, and it was computed that there were 27,302 loads of timber fit for the navy, 16,851 loads of about sixty years' growth, and 20,066 loads dotard and decaying. To this period also belongs the first opening of the old Fire-engine colliery, or Orling Green coal-work, galed to "foreigners," but subsequently conveyed by them at different times in shares to various persons, including the gaveller, by whom the first fire-engine was put up about 1777, a date also memorable as being the one on which the Court of Free Miners wholly ceased to act.

Mr. John Pitt was reinstated in 1763, and represented that he found "great spoil had been committed, and great quantities of wood and timber, amounting in value to £3,255, cut by order of Sir Edmund Thomas, the late Surveyor-General, without warrant." The year following, Mr. Pitt presented a second memorial to the Government, proposing that 2,000 acres more should be taken in, at an estimated cost of £2,077. The usual warrant was

issued for the purpose, authorizing wood-sales to that amount, although the expense ultimately came to £3,676. 5s. 6½d.

The attention of Parliament was directed at this time to the best means of increasing the supply of timber to the Royal dockyards. A committee formed for investigating the matter produced the clearest evidence of decrease of navy timber throughout the kingdom, to the extent of at least two-thirds within the last forty years, according to the experience of thirty different dealers. The annual amount of such timber supplied from Dean Forest is stated to have averaged at this time about 2,000 loads. Probably the most correct view of the disposition of the woods, plantations, &c., and of the district in general, is afforded by Mr. Taylor's map of the county of Gloucester, published in 1777. It indicates the enclosures formed since the beginning of the century, as well as a considerable extent of woodland; indeed we know, from the return made to a Parliamentary survey taken in 1783, that the Forest contained 90,382 oak-trees, amounting to 95,043 loads, besides 17,982 beech-trees, in which were 16,492 loads; to protect which more effectually, Mr. Pitt instituted the place of "watch-man," attaching to it a dwelling-house on Oaken Hill, and a small quantity of land, with a salary of £10, and any fines or rewards obtained on the conviction of timber stealers.

Very mischievous devastations and encroachments were nevertheless still continued. For instance, Mr. Slade, the purveyor to the navy, stated to the Treasury, that "he had discovered and was informed of most shameful depredations of the oak timber, which was cut every day by persons living round the Forest; and that for some years it had been the custom to steal the body of the tree in the night, and cut it into cooper's wares, leaving the top part on the spot, which the keepers took as their perquisite; and that whole trees were conveyed every spring tide to Bristol; and that when he was at Gatcomb, in one day there were five or six teams came with timber, planks, and knees, winter-felled, and other timber, among which were several useful pieces for ships of fifty and sixty-four guns." It was also stated by Mr. Pitt, the Surveyor-General, that "everything in his power had been done to put a stop to them, but that the offenders had become so desperate and daring as to bid defiance to his deputies, and render every attempt of his in a summary way totally ineffectual," adding that, "not long before, a number of persons in disguise had openly cut down two large timber-trees at

Yorkley, in Dean Forest, and wounded several keepers who attempted to oppose them.” Mr. Colchester likewise informed the Government that “the greatest part of the fine timber this Forest has been so famous for has been cut down, and the large and extensive tract of land formerly covered with the noblest timber is now become a barren waste and heath.”

Mr. Thomas Blunt, the deputy-surveyor, also reports, in allusion to this period, that, “having formerly pulled down and destroyed many cottages, fences, and enclosures, he had latterly been obliged to desist, fearing his life and property were endangered by the repeated threats and insults of the encroachers and their party.” He adds that “about 1000 loads of oak timber were annually being felled for the use of the miners, of which at least one-fifth part was fit for naval purposes; and that the great waste, spoil, and destruction of timber and wood on the Forest is and hath been occasioned by an improper application of the timber delivered to the miners for the use of their works, one-half of which would have been more than sufficient, for that he had frequently seized large quantities of offal timber, and such other timber as the miners could not use in their works; and in particular that on or about the 28th of January, 1783, he seized and took 586 feet of oak-timber, and more than 200 cleft pieces of oak, called kibbles, from one George Martin, who acknowledged that they had been stolen. He had also seized at the Fire-Engine in the Forest between two and three waggonloads of timber, hewn up and converted by the colliers into cooper’s wares for market, as the neighbourhood, being a great cinder country, would require.” Joseph Pyrke, Esq., a verderer and deputy-constable, further stated that “numberless encroachments, enclosing one, two, or three acres, were taken in for gardens by the idle poor, and also by people in good circumstances,” and that “nothing short of a capital offence would ever preserve the remaining timber.”

We obtain information on the subject of pit-timber from Mr. Hartland’s evidence before the Parliamentary Commissioners. He says that “the sorts of wood or timber delivered to the miners were oak and beech, and none other; chiefly oak in the summer, more pits being sunk in the summer than in the winter, and the keepers having the bark; more beech is allowed in the winter than oak. But oak timber is necessary, and is always allowed, for sinking the pits, and for making what the miners call the gateway, or gangway, from the body of coal to the pit, and also for the gutters in the

levels, for draining off the water; but beech, birch, orle, holly, or any other kind of wood, would serve for the purpose of getting coal, and supporting the earth after the coal is taken away, but none is ever delivered to them but oak and beech.” He goes on to say that “the evil of the colliers misapplying the timber served to them by the keepers could only be remedied by refusing it for the future to such parties as had been detected therein. Fining them was found impracticable, owing to the difficulty of proving the timber to have been the King’s, without which proof the justices could hardly act.”

Rewards of £20, and in gross cases of £50, were offered to any persons making a discovery whereby any of the offenders should be convicted; but without much effect, for the sufficient reason, as stated in the official report of 1788, that the resident officers derived advantages from the continuance of the abuse. Thus the Deputy-Surveyor took as perquisites the tops of all timber rejected by the navy, as well as of all stolen timber; all trees found felled by wood-stealers; one moiety of the cord-wood made from the offal-wood of timber delivered to the miners, and of stolen timber, besides from four pence to six pence for every tree felled for the use of the miners; whereby his salary was raised from £50 to £500 a year. It was much the same with the six keepers, who received one shilling on every order for delivery of timber to the miners or colliers; the moiety of all offal-wood of timber cut for the miners; the moiety of all cord-wood of stolen timber; all lengths or pieces of trespass, and the bark of timber delivered to the miners, stolen timber called kibbles, and of all stolen timber found within their respective walks, by means of which their stipends were increased £100 a year each.

Mr. Miles Hartland, the assistant-deputy-surveyor, in his examination, on the 15th of May, 1788, before the Dean Forest Commissioners, also stated that “he believed the cottages and encroachments in the Forest have nearly doubled within the last forty years. The persons who inhabit the cottages are chiefly poor labouring people who are induced to seek habitations in the Forest for the advantages of living rent free, and having the benefit of pasturage for a cow or a few sheep, and of keeping pigs in the woods; but many encroachments have been made by people of substance. The cattle of the cottagers are impounded when the Forest is driven by the keepers, as all other cattle are; and when the owners take them from the pound, paying the usual fees to the keepers, they turn them again into the Forest, having no

other means of maintaining them. The greater number of the cottagers are from the neighbouring parishes; but there are also a great many from Wales, and from various parts of England, remote from the Forest. They are detrimental to the Forest by cutting wood for fuel, and for building huts, and making fences to the patches which they enclose from the Forest; by keeping pigs, sheep, &c., in the Forest all the year, and by stealing timber.”

Speaking of the Forest roads, on which £11,631 3s. 10d. had been expended within the preceding twenty-five years, Mr. Hartland stated that “the principal were the road from Mitcheldean to Monmouth, and from Little Dean to Coleford. These two are public high roads, not necessary or useful to the Forest, but rather detrimental to it by affording the readier means to convey away the coal in waggons and carts, in which timber has sometimes been found concealed. Besides the above, there are several roads leading from the Forest to Newland, Coleford, and St. Briavel’s, which have been kept in repair at the charge of the Forest, but are of no use to it—rather the contrary. The only road now used for conveying the navy timber is the Purton Road, which is the most convenient for carriage to the water side from all parts of the Forest except the Chesnuts in Edge Hills, and the Lea Bailey; but there is no navy timber now in either of these places except the Lea Bailey. If the repairing of the public roads at the charge of the Forest were to be discontinued, the public would be obliged to put up turnpike gates on the roads, and collect tolls for repairing them, as in other parts of the country.”

The parts of the Forest which Mr. Hartland described as being “bare of timber and yet fittest to be enclosed as being of a very proper soil, were Hazle Hill and Edge Hills, including Tanner’s Hill, Green Bottom and Greenhill, Badcock’s Bailey and Chesnuts, East and West Haywood, part of Great Staple Edge, Meezeyhurst, Howbeach and Putmage, Buckhall, Moor and Bradley Hill, Bircham Dingles and Mason’s Tump, Blakevellet, Breames Eves and Howell Hill, the Perch and Coverham, Great and Little Bourts, the Lea Bailey, Bailey Hill and Lining Wood, Great and Little Berry, Pluds and Smithers Tump, Blackthorn Turf and Serridge, Kensley’s Ridge, Daniel Moor and Beechenhurst, ‘forming in short twenty plantations,’ which might, he thinks, be enclosed by a ditch about 3 feet deep and 3½ wide, with a quick hedge planted upon the bank.”

The detection of the various abuses which the above extracts exhibit constitutes the first fruit of the enactment of the 26th George III. (1786) for appointing commissioners to inquire into the state of the woods, forests, &c., of the Crown, and to report thereon, adding such observations as should occur to them for their future management and improvement.

Upwards of £2,000 worth of timber out of the Forest was granted, 26th of April, 1786, towards building a gaol in Gloucester, as well as a penitentiary house and houses of correction within the county, at a total cost of £30,000, upon the plea that the old castle, on the site of which the gaol was to be built, belonged to the King, and also that one of the houses of correction was to be erected within the Forest, whereby the rights of the Crown would be supported. The execution of this grant required 1,690 trees.

The gentlemen appointed to act in the commission above named were, Sir Charles Middleton, John Call, Esq., and Arthur Holdsworth, Esq., who forthwith proceeded to collect information on the history and management of the Forest of Dean, as well as the claims and usages of the mining population. Their report, being the third of the series, was published on the 3rd of June, 1788. Commencing with an introduction respecting the Royal Forests generally, it proceeds to this Forest in particular, “as being in proportion to its extent by far the most valuable and the most proper for a nursery of naval timber,” and refers first to the origin and results of the important Act of the 20th Charles II.; then to the abuses which have since crept in, with their disastrous effects; and, thirdly, to the best way of settling the claims of commoners, and how to render this Forest a very valuable nursery of timber for the royal navy.

All particulars bearing upon the two former heads have been as fully stated in the preceding pages of this work as circumstances permitted: under the last head, the suggestions of the commissioners amounted briefly to this,—that, agreeably to the plan begun about the year 1638, under the supervision of Sir Baynham Throckmorton, a commission should be created to superintend the enclosing of about 18,000 acres. The most wooded parts of the Forest were to be selected, and where the soil was best fitted for the growth of timber, avoiding the coalworks, and leaving out all necessary roads to be made and kept in repair by turnpikes, unless required for the carriage of timber only; the rights of commoners were to be discharged by

allotting an equitable extent of land suitable for pasture, and the colliers to pay for all pit timber; the deer were to be disposed of, as demoralizing the inhabitants and injuring the young wood; and lastly, the commissioners recommended ejecting the cottagers who had established themselves in the Forest, as often before, in defiance of authority, and who numbered upwards of 2,000, occupying 589 cottages, besides 1,798 small enclosures containing 1,385 acres. As to defraying the cost of executing the above works, the commissioners recommended the sale of about 440 acres of detached pieces of Crown land adjoining the Forest, and if necessary dotard and decayed trees, or such as would never become fit for naval use.

The surveyors, Messrs. A. and W. Driver, calculated the fencing, planting, and keeping up the contemplated enclosures, for the whole of the ensuing 100 years, at £564,330, by which time the timber would probably be worth £10,680,473, and yield an annual net revenue of £52,052. According to the Report of these gentlemen, the Forest then contained about 24,000 oak-trees averaging one and a half loads each, and 24,000 oak-trees measuring about half a load each, not including unsound trees, of which there were many, besides a considerable number of fine large beech as well as young growing trees. The principal stock of young timber, from which any expectation could be formed, was in the Lea Bailey and Lining Woods, which were in general well stocked, and would produce a considerable quantity of fine timber, if properly fenced and protected from the depredations of plunderers. As to the names, extent, and character of the plantations then existing, they report as follows:—

“The Great Enclosure, which contained 743 acres 35 poles, was begun to be made about twelve years ago, with post and rail; but before the whole was completed, a great part was taken away, and nothing now remains but the bank; there are no young trees of any kind.”

“Stonedge Enclosure was made about twelve years ago; it contained 125 acres 1 rood 10 poles, and was fenced with a dry stone wall, which is, for the most part, destroyed; there are a great many thorns and hollies, with some very fine large oaks, but no young timber of any kind coming up.”

“*Coverham Enclosure*, which contained 350 acres 2 roods 34 poles, was made about fifteen years ago, part with a dry stone wall, and part post and rails; nothing but the bank now remains. There was a great quantity of young timber, particularly birch, in this enclosure, which is nearly all destroyed in consequence of the fences being pulled down.”

“*Serridge Enclosure* was made about twelve years ago. It contained 409 acres 3 roods 20 poles, and was fenced with a dry stone wall, of which but little remains, being quite open in many parts; there are no young trees of any sort, and but few old trees.”

“*Heywood Enclosure* contained 715 acres 3 roods 38 poles, and was made about ten years ago, part with a dry stone wall, and part pales; very few traces remain, and in some parts none at all. We have been informed that great part of the wall was pulled down, or fell, before the whole was completed, and the pales carried away by waggons, &c., soon after they were put up; and from its present appearance it is evident no advantage has been derived from this enclosure, as there are no young trees in any part of it.”

The three following enclosures, containing together 323 acres 1 rood 33 poles, are all that remain enclosed and in good repair, except the Buckholt Enclosure mentioned last, viz.:—

“*Stapleage Enclosure*, containing 183 acres 1 rood 3 poles, has been made about five years, part with dry stone wall, and part dead hedge; in general in good repair. In some parts of it there are a few small oak and beech plants, and also a few large oaks and beeches.”

“*Speech House Enclosure*, containing 5 acres 6 poles, was made four years ago by the Deputy Surveyor, and planted with acorns which have produced some young oaks.”

“*Birchwood Enclosure*, containing 135 acres 24 poles, has been made about five years, part with dead hedge and part dry stone wall, which in general is in good repair; there are but few young oaks coming up.”

“*Buckholt Enclosure*, which contains 352 acres 3 roods 20 poles, has been made about eighty years, the greatest part with a stone wall, the

rest hedge and ditch. The fences of this enclosure have of late years been kept in good repair. There are some very fine large oaks in it, but in general it contains a great quantity of fine young beech. There are also some oak-trees of about ten or fifteen years' growth, and young oaks are coming up from acorns which have been set in vacant places. A few Weymouth pines have also been planted in this enclosure, which grow very well."

The total acreage of these enclosures was 3,220 acres 6 poles, and their position is shown pretty accurately by Mr. Taylor in his map of the county. Messrs. Driver's report also informs us that there were now 589 houses, 1,798 pieces of land encroached from the open Forest, comprising 1,385 acres 3 roods 21 poles, thus distributed in the six "walks:"—

	Number of Cottages.	Number of pieces of land	Their extent.		
			A.	R.	P.
Speech-House Walk	1	2	0	0	21
Worcester do.	218	455	295	2	36
Herbert do.	95	487	325	2	22
Latimer do.	53	257	122	3	22
Danby do.	367	1201	744	1	21
York do.	98	173	195	3	15
Ellwood do.	113	397	417	3	10
Detached parts.					
Wallmore	2	3	0	1	24
Northwood Green	3	4	0	1	33
The Bearce	-	3	1	1	13
Mawkins Hazles	-	5	15	1	28

The Tence	6	10	10	0	9
Glydden	-	2	0	0	28
	---	----	----	--	---
				-	
	589	1798	1385	3	21

Upwards of seventeen different Reports on the condition of “the Forest and Land Revenues of the Crown” were made to Parliament by the Commission of 1788, a fact which will partly explain the delay which took place in carrying out the plans recommended in the Commissioners’ Third Report with reference to the Forest of Dean. The chief improvements effected were in the roads, under an Act passed in the year 1795, for mending, widening, and altering the existing roads, and making new ones through the Forest to places adjoining, in the parishes of Newland, Lydney, and Awre. Mr. John Fordyce, now the Surveyor-General, alluding to the subject in his Report, dated 1797, says, that an arrangement had been made with the principal inhabitants in the neighbourhood, whereby the cost of keeping up the roads was to be met by means of turnpikes, the Crown constructing them in the first instance.

The year 1795 is associated with the disturbances commonly called, even now, for they are not forgotten, “the Bread Riots.” They arose from the circumstance of the foresters being mainly dependent upon the adjacent farms for their corn, but which was now, owing to war, largely bought up by the Government, mostly at Gloucester and Bristol, for the supply of the army and navy. Hence the inhabitants of the Forest district were left destitute of those supplies which the miners and colliers of the Forest considered they were entitled to, in return for the fuel which they furnished to the farmers.

The following extracts from the contemporary numbers of ‘The Gloucester Journal’ minutely relate the acts of violence which ensued:—

“On Saturday morning, 30th October, 1795, as Mr. King’s waggon, of Bollitree, was bringing a load of barley to the Gloucester Market, it was beset by a number of colliers from the Forest of Dean near the Lea

Line, who inquired what the bags contained, and when told that it was barley, they cut the bags to examine; whilst this was passing, a waggon, loaded with wheat, came up the hill belonging to Mr. Dobson, of Harthill, in the parish of Weston, which was taken to in the same manner, and both waggons with the grain were taken off to a place in the Forest of Dean, called Drybrook, where the people divided the corn, and sent back the waggons and horses to the owners.” The next Saturday “a party of foresters, chiefly from the neighbourhood of Lidbrook, stopped a waggon belonging to Mr. Prince, of Longhope, loaded with ninety-two bushels of wheat, and lodged it in Ross Market-house, professedly with the intention of selling it out on Monday morning at eight shillings per bushel. A magistrate, however, reached Ross early on Monday, and, accompanied by ten of the Essex Light Dragoons, saw the grain reloaded into Mr. Prince’s waggon, and sent it off under their escort. In about an hour upwards of sixty foresters collected together, and set off in pursuit of the waggon. The magistrate followed on horseback, and at the Lea he came up with the waggon, which he sent on, and ordered the cavalry to stop till the approach of the mob. They soon made their appearance, and being at first somewhat refractory, the ringleader was taken into custody; when, after the most persuasive remonstrances of this very active magistrate, and the patient forbearance of the soldiery, they were at last prevailed upon to give up the desperate idea of rescuing the grain, and returned peaceably to Ross.”

A reputed highwayman, and noted deerstealer, named William Stallard, living on the Upper Purlieu, above the Hawthorns, is stated to have been the instigator of these outrages, and others of a similar kind on Mr. Prince’s flour-mill at Longhope. His lawless career, however, brought him to the gallows at Gloucester for horse-stealing, at the age of forty, on the 16th August, 1800, as appears by the records of that gaol. The decline of the market in Mitcheldean is said to date from the above disturbances, which naturally deterred the neighbouring farmers from sending their grain thither for sale. ^[85]

Nor were the bread riots confined to the northern side of the Forest, as upon “the evening of the same day, November 9th, many persons assembled at

Hanstell, in the parish of Awre, in this county, where a vessel belonging to Eversham, and bound to Bristol with a cargo of pease, oil, flour, leather, and wheat, was waiting for the tide. About twenty men boarded her, examined the lading, and, upon discovering the flour, gave loud huzzas, when the bank was instantly covered with their comrades, who had many horses in waiting, with which they proceeded to carry off the flour, though the trowmen (unable to defend the vessel, and menaced with instant destruction) had offered to sell it to them at a reasonable price. About 7 o'clock one of the trowmen contrived to slip ashore, ran to Newnham, and sent off an express to Gloucester for immediate military aid; but fortunately that assistance was nearer at hand. In consequence of some apprehension of a disturbance at Mitcheldean, an officer, with a serjeant and ten file of the Essex Fencibles Cavalry, had marched into the place early in the morning, and upon the arrival of the express from Newnham instantly set forth for the scene of depredation, under the command of Lieutenant Wood, and headed by Mr. Pyrke, a magistrate of Little Dean. The freebooters fled in every direction, but five men, named Thomas Yemm, Thomas Rosser, Richard Brain, George Marfell, and John Meek, being the most active ringleaders, were apprehended, some in the act of conveying away the flour upon packhorses, some had sacks of it upon their shoulders, some were just landed from the vessel; and many were busied on the bank, which was strewn with flour, dividing the sacks into smaller quantities to render it more portable, for even women and children were of the number." The five men already named were fully committed on the following Tuesday to Gloucester Castle, there to be tried at the Spring Assizes, being guarded thither by one hundred of the Surrey Fencibles, who had arrived in Newnham at 3 o'clock previously. Shortly afterwards, the serjeant of the military, called out on this occasion, was desperately bruised by a stone thrown at him by some desperadoes as he was riding near Mitcheldean, and, on a subsequent Thursday, some villains fired a piece loaded with slugs into the bed-chamber of Mr. Pyrke. At the ensuing Assizes, Thomas Yemm and Thomas Rosser were left for execution, which, although, from the excellent character they previously bore, some gentlemen of the Forest, and of the Grand Jury, interceded with his Majesty on their behalf, they underwent on the 11th April, 1797, acknowledging the justice of their sentence. The extraordinary scarcity, and consequent high price of provisions about this

time, were so acutely felt in this neighbourhood, that the Crown distributed £1,000 worth of grain amongst the distressed Foresters.

CHAPTER VI.

A.D. 1800–1831.

Lord Nelson's remarks on the Forest—Free miners endeavour to restore their Court of Mine Law—White Mead Park planted—Act of 1808, authorising the replanting of the Forest; six commissioners appointed for that purpose—Six enclosures formed in 1810—Mice—Inquiry as to the best mode of felling timber—Last of the enclosures formed 1816—First Forest church consecrated—High Meadow Woods purchased—General condition of the Forest—Unsuccessful efforts to restore the encroachments to the Crown—Plantations mended over—Ellwood and the Great Doward Estates purchased—The blight—Single trees planted out by the roads—Blight on the oaks.

There is a statement of Lord Nelson's relating to this Forest, written about the year 1802, ^[87] in which he says: "Nothing in it can grow self-sown, for the deer bark all the young trees. Vast droves of hogs are allowed to go into the woods in the autumn, and if any fortunate acorn escapes their search, and takes root, then flocks of sheep are allowed to go into the Forest, and they bite off the tender shoot." He speaks of "a set of people called Forest free miners, who consider themselves as having a right to dig for coal in any part they please," adding that "trees which die of themselves are considered as of no value to the Crown. A gentleman told me," (he says,) "that in shooting on foot (for on horseback it cannot be seen, being hid by the fern, which grows a great height), the trees of fifty years' growth, fit for buildings, fencings, &c., are cut just above ground entirely through the bark, and in two years die," so becoming a perquisite to the authorities. Lord Nelson calculated that the Forest would sell for £460,000. He forcibly concludes: "The reason why timber has of late years been so much reduced has been uniformly told me—that, from the pressure of the times, gentlemen who had £1000 to £5000 worth of timber on their estates,

although only half grown (say fifty years of age), were obliged to sell it to raise temporary sums—say to pay off legacies. The owner cannot, however sorry he may feel to see the beauty of his place destroyed, and what would be treble the value to his children annihilated, help himself. It has struck me forcibly that if Government could form a plan to purchase of such gentlemen the growing oak, it would be a national benefit, and a great and pleasing accommodation to such growers of oak as wish to sell.”

Mr. Fordyce’s second report, as Surveyor-General of the Land Revenues of the Crown, appeared on the 14th of December, 1802; but neither this nor his third, dated the 4th of March, 1806, says anything about the Forest of Dean. In 1807 the free miners of the district held a meeting, at which a resolution was passed, earnestly requesting the wardens of the Forest to hold a Court of Mine Law, as soon as possible, with the view of regulating the levels, pits, and engines.

Mr. Fordyce’s fourth and final report appeared on the 6th of April, 1809, but it only speaks of the Forest so far as related to the lands called “Whitemead Park,” hitherto in the occupation of Lord Berkeley, but whose lease would expire in January, 1808, and was sought to be renewed. The Surveyor-General declined complying with the request for renewal, upon the ground that the Park was unfavourably situated for farming purposes, and that the buildings on it were in very bad repair; whereas a large quantity of very fine timber, valued at £11,736, had grown up on the land, proving the excellence of the soil for that purpose; besides which, it was situated in the midst of the Forest, and Mr. Fordyce determined to plant the whole of it with oak at the earliest opportunity. This circumstance appears to have stimulated the Government to commence in good earnest the forming of plantations, in accordance with the suggestions made in the Commissioners’ Report of 1788, ^[89] which had been kept in view ever since, and as authorized by the old Acts of the 20th of Charles II. c. 3, and 9 and 10 William III. c. 36.

The propriety, however, of acting upon these old enactments was now doubted, as they had been so long overlooked or irregularly executed; and hence the declaratory Act of the 48th of George III., c. 72, was passed in 1808, confirming the original power to enclose 11,000 acres, as well as legalizing the enclosures of Buckholt, Stapledge, Birchwood, and Acorn Patch, formed a few years previously, containing altogether 676 acres, and

making it felony to persist in breaking down any of the fences belonging to the same. The above-named enclosures were the only ones then existing. The Buckholt principally contained beech; Stapledge was thinly stocked with oak, except on the north side, and there called Little Stapledge, on which there was plenty; and Birchwood had some clusters of natural young oaks scattered about it. The Acorn Patch was well filled with thriving young oaks about 25 years old. The same Act likewise directed that the contemplated plantations should be marked out under the supervision of not less than six Commissioners, who were named as follows:—

Lord Glenbervie, Surveyor General of Woods, &c.	
R. Fanshaw, Esq., of Plymouth Dockyard.	
Right Hon. C. Bathurst, Lydney Park,	}
The Rev. Thomas Birt, Newland,	} Magistrates
The Rev. Richard Wetherell, Westbury,	}
Sir William Guise, Highnam,	}
Joseph Pyrke, Esq., Little Dean,	} Verderers
Edmund Probyn, Esq., Newland,	}
Roynon Jones, Esq., Hay Hill,	}
Edward Kent, Esq., Itinerant Deputy Surveyor.	
Edward Machen, Esq., Deputy Surveyor.	

The connexion with the Forest of two of these gentlemen, viz. Lord Glenbervie as Surveyor-General, and Mr. Machen as Deputy-Surveyor, dates from this period; and to their joint exertions, aided by the official labours of Mr. Milne, his Lordship's excellent secretary, and at length one of the three Commissioners of Woods, &c., the existing enclosures owe their formation as well as their present promising condition; but especially to Mr. Machen is the credit due, as being the result of his able and conscientious management of the Forest for well nigh half a century.

With a prospective reference to the plantations shortly to be made, the most laudable pains were taken by Lord Glenbervie to ascertain the best mode of planting and raising the young trees. He truly remarks that “the space of nearly 100 years must elapse before the success or failure of any plan adopted in the cultivation and management of oak timber for the navy can be clearly ascertained, during the whole of which time a persevering attention and uniformity of system in the execution of the plan adopted would be equally requisite, in fact through a succession perhaps of three or four generations.” His Lordship made extensive inquiries whether acorns or plants should be first used, or rather some of each; what was the best age and size for transplanting; if plants or trees of any other kind should be set with them, or in places where oaks would not thrive; at what distance apart should they be planted; ought the soil to be cleared or dug, or how prepared; are the old trees to be removed, and the stumps of oak or beech suffered to remain?

On the 23rd of July, 1808, the general principle agreed upon in these respects was, “to plant an intermixture of acorns and oak-trees, with a very small proportion of Spanish chesnuts; so that, if either the acorns or young oaks should succeed, a sufficient crop might be expected, and to plant no trees of any other sorts, except in spots where it should be thought that oaks would not grow, and which it might be necessary to include, in order to avoid the expense of fencing, or for shelter in high and exposed situations.” The first enclosures were planted agreeably to this method, only afterwards it was found necessary to set young oaks instead of acorns, few of these only coming up.

Lord Glenbervie also interested himself in some experiments for testing the transplanting of young trees of various ages, selecting Acorn Patch in the centre of the Forest for the purpose. The annexed table, carried on to 1846, gives the result:—

- A. transplanted at 16 years of age }
- B. transplanted at 23 years of age } girth at 6 ft. from the ground.
- C. not transplanted at all }

	A.	B.	C.
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Sep. 14, 1809	7 $\frac{5}{8}$ Inches.	7 Inches.	11 $\frac{3}{4}$ Inches.
Oct. 5, 1814	14 $\frac{3}{4}$ „	11 „	15 $\frac{5}{8}$ „
Oct. 20, 1820	23 $\frac{7}{8}$ „	19 „	19 $\frac{7}{8}$ „
„ 1826	32 $\frac{1}{8}$ „	27 $\frac{3}{4}$ „	23 „
„ 1830	40 $\frac{1}{2}$ „	35 $\frac{3}{4}$ „	26 $\frac{1}{2}$ „
„ 1836	48 $\frac{3}{4}$ „	39 $\frac{1}{2}$ „	30 „
„ 1840	53 $\frac{1}{4}$ „	42 $\frac{1}{2}$ „	32 $\frac{1}{2}$ „
„ 1846	60 $\frac{1}{2}$ „	47 $\frac{3}{4}$ „	36 $\frac{1}{2}$ „

More as a satisfaction to the Government before making the new plantations, than as a guide to the commissioners, most of whom knew the Forest intimately, Messrs. Driver were now directed to examine the condition and situation of the woods and woodlands, and to report thereon. They began by numbering the timber trees in succession, and had reached 1,000, when the proceedings were put a stop to, on account of the consumption of time and money which such an elaborate plan was found to involve, and they briefly reported that the Forest seemed to contain 22,882 loads of oak timber, that only one third of the existing enclosures were fully stocked, and that encroachments were rapidly spreading.

On the 15th of September in the ensuing year, 1809, the first meeting of the above-named commissioners was held at Newnham, when 2,000 acres in various parts of the Forest were selected for planting, and such directions given that the 240 acres of White Mead Park were actually planted this season, just in time to afford Mr. Fordyce the satisfaction of living to know that the good work of renewing the Forest with oak, in accordance with his recommendation made twenty years before, was in fact begun, for at this date his useful life was brought to a close.

Referring to the list of licences granted by the Crown this year, 1809, it appears that the first effort was now made to prepare the slag and cinders from the iron furnaces for the use of the Bristol bottle-glass manufacture, by reducing them to powder in a stamping mill, one of which was erected at Park End by Messrs. Kear, under a licence dated 23rd of September. To this

year also is to be referred the introduction of tramways by two companies, designated “The Severn and Wye Railway Company,” and “The Bullo Pill Company.” The road belonging to the former of them traverses the western valley of the Forest from Lydney to Lydbrook, a distance of fourteen miles, and the latter the eastern, but both communicating with the Severn, although at points six miles apart. The licence for the line ascending from Bullo Pill describes it as designed to extend up to the Churchway engine, seven miles off. It was constructed under a private Act obtained by Sir James Jelf and his partners.

In the course of the next year, *i.e.* 1810, the Enclosure Commissioners authorized the construction of the following five plantations:—

	A.	R.	P.	
Barn Hill, containing	353	2	3	near Coleford.
Serridge „	387	3	24	„ Lydbrook.
Beechen Hurst „	308	2	36	„ Serridge.
Haywood „	407	1	34	„ Abbenhall.
Holly Hill „	41	0	38	„ Cinderford.
	----	--	--	
	1498	3	15	

The planting of them was intrusted to Mr. Driver, upon his own plan, which was to dig holes four feet apart every way, or 2,722 in an acre, and to plant an acorn in every hole but the tenth, in it substituting an oak-tree of five years old. The holes for the acorns were dug fifteen inches square and nine inches deep; but those for the young trees were made eighteen inches square and twelve inches deep. The acorns cost 8s. per 1,000, and the trees 70s. per 1,000. One tree out of every 100 was a five years old Spanish chesnut. So that planting the enclosures in this way cost about £3 15s. per acre, and the seedlings about £4 5s., which Mr. Driver was to mend over, and to keep the plants good for three years. The fences were to consist of a bank five feet high, with a row of French furze at the top and bottom, or where impracticable a dry wall instead. The most flourishing timber in the

Forest at this period appears to have been that growing on Church Hill, averaging 73 trees to the acre, each tree containing 58 feet of timber. The Severn and Wye Tramway, commenced last year, was extended in this, with the addition of a line from Monmouth up to Howler's Slade.

In 1811 only one plantation, viz. "Crab-tree Hill," comprising 372 acres 2 roods 34 poles, was formed, and planted similarly to the last; but the Enclosure Commissioners set out a considerable extent of land to be taken in and planted. On the 28th of November steam engines were licensed to be erected at Birches Well, Ivy Moorhead, "the Independent," Upper Bilson, two at "the Old Engine," and two at "No Fold." In the next year also two steam engines were licensed to be put up at Churchway Colliery, and a third at "Strip-and-at-it" Colliery. The following enclosures were made in 1812, viz.—

	A.	R.	P.	
Shute Castle	158	3	35	near Bream.
Bromley	258	3	13	„ Park End.
Chesnuds	163	2	13	„ Flaxley.
Sallow Vallets	397	2	33	„ Lydbrook.
Ruerdean Hill	313	3	19	„ Ruerdean.
Additional to Buckholt	14	3	29	„ Coleford.
	----	--	--	
	1307	3	22	

These enclosures were not planted, however, like the former ones; since, from the exuberance of weeds, and the ravages of mice, &c., that method had failed, three-fourths of the acorns never appearing, and many of those that did come up were too weak to make their way through the other more luxuriant growth that overwhelmed and choked them. But these enclosures, according to a second agreement made with Mr. Driver, as likewise all the future ones, were planted with seedling oaks instead of acorns, care being taken to clear the holes once or twice, and only the tenth trees were

introduced as before. The Buckholt was planted with three years old oaks, from the woodmen's nurseries.

The first general report of the Commissioners of Woods, &c., appointed under the Acts of 34th George III., c. 75, and 50th George III., c. 65, was made on the 4th of June, 1812, and was signed "Glenbervie, W. D. Adams, Henry Dawkins."

It says little respecting this Forest, merely alluding to it in common with the other royal forests, as fitted to take its place in supplying timber to the navy, which required 88,659 loads annually, a quantity so large as to be equivalent to 1,000 acres of oak a century old. In their present state the Royal Forests could not supply a tenth part of this amount, and would always be deficient unless 1,000 acres were planted every year for the next 100 years, by which time the above quantity might be annually felled. Ere this year ended, the Enclosure Commissioners concluded their labours of setting out the rest of the 11,000 acres in Dean Forest.

The plantations made the ensuing year of 1813 were—

	A.	R.	P.	
Oaken Hill	477	2	11	near Park End.
Park Hill	141	0	26	„ Park End.
Blakeney Hill	816	1	0	„ Blakeney.
	----	--	--	
	1434	3	37	

Permission was also given to the Severn and Wye Tramroad Company to construct a branch to the colliery at the Ivy Moore Head, as well as to Messrs. Protheroe to erect a steam engine at "Catch Can." The area of the encroachments in the Forest in 1813, and which had at that time been taken in more than twenty years, amounted to 1,610 acres 2 roods 18 poles, divided into 2,239 patches, on which were 785 houses, occupied by 1,111 persons.

In 1814 the three following extensive enclosures were made:—

	A.	R.	P.	
Stapledge	943	2	17	near Cinderford.
Nag's Head Hill	809	2	4	„ Coleford.
Russell's	990	0	16	„ Park End.

The last of them, being the largest in the Forest, was not regularly planted, but left for the most part to natural growth.

It was during this year especially, but to a certain degree also in the preceding and succeeding ones, that this Forest and the New Forest were visited with an enormous number of mice. They appeared in all parts, but particularly in Haywood enclosure, destroying a very large proportion of the young trees, so much so that only four or five plants to an acre were found uninjured by them. The roots of five years old oaks and chesnuts were generally eaten through just below the surface of the ground, or wherever their runs proceeded. Sometimes they were found to have barked the young hollies round the bottom, or were seen feeding on the bark of the upper branches. These mice were of two kinds, the common long-tailed field mouse, and the short-tailed. There were about fifty of these latter sort to one of the former. The long-tailed mice had all white breasts, and the tail was about the same length as the body. ^[95] These were chiefly caught on the wet greens in the Forest, and the short-tailed were caught both on the wet and dry grounds.

A variety of means were resorted to for their destruction, such as cats, poisons, and traps, but with little success. A Mr. Broad, who had been employed by the Admiralty, and had been successful, in killing the rats and mice in the fleet, was sent down, and tried several plans, all of which failed. At last, a miner living on Edge Hills, named Simmons, came forward, and said that he had often, when sinking wells or pits, found mice fallen in, and dead, in consequence of their endeavours to extricate themselves, and he had little doubt that the same plan would succeed in the Forest. It was tried, and holes were dug over the enclosures about two feet deep, and the same size across, and rather hollowed out at the bottom, and at the distance of about twenty yards apart, into which the mice fell, and were unable to get out again. Simmons and others were employed, and paid

by the numbers of tails which they brought in, which amounted in the whole to more than 100,000. In addition to this it may be mentioned that polecats, kites, hawks, and owls visited the holes regularly, and preyed upon the mice caught in them; and a small owl, called by Pennant, *Strix passerina*, never known in the Forest before or since, appeared at that time, and was particularly active in their destruction. The mice in the holes also ate each other.

Four more steam engines were allowed to be erected about the close of this year at Palmer's Flat and at Hopewell.

Proceeding to the following year, we find that in 1815 the number of plantations was increased by the addition of—

	A.	R.	P.	
Leonard's Hill, containing	66	0	32	near Cinderford.
Edge Hills	494	1	36	„ Little Dean.
Cock Shot	598	0	22	„ Blakeney.
Yew-tree Brake	183	0	0	„ Cinderford.
	----	--	--	
	1341	3	10	

Two years before this time the Admiralty had called the attention of the Commissioners of Woods, &c., to the most proper means of improving the durability of oak timber, which had always been supposed to be best secured by its being felled in winter, although, owing to its involving the loss of the bark, the practice had not become general. To avoid such loss it was determined, on the 15th of March this year, that the bark should be stripped in the spring from the trees standing, leaving them to be felled in the ensuing or some subsequent spring, five shillings per load being allowed for the additional trouble occasioned thereby. But this determination was not formed without careful investigation and experiment. Thus in the previous year (1814) thirty trees were marked and set apart in each of the Royal Forests, “which were divided into five classes: three of the classes were stripped standing, but with some variety in

method, and left to be felled in winter; the second class was felled, but left with the bark on; and the third felled, and then immediately afterwards stripped in the usual way.” But the results of these different methods are not stated.

Licences to erect machinery were granted in the preceding year to Messrs. Kear for a waterwheel at Park End in connexion with a mill for pounding slag from the iron furnaces, and to Mr. Mushet for a steam engine at Deepfield, and to Mr. John Protheroe for an engine at Whitelay Colliery; and in the present year two steam engines were licensed at Upper Bilson by Mr. Thomas Bennett, and one at Smith’s Folly by Mr. Glover.

In the course of the succeeding year (1816) the last of the enclosures, as set out by the commissioners appointed under the Act of 1808, were completed, viz.—

	A.	R.	P.	
Perch, containing	386	1	15	near Coleford.
Aston Bridge	475	0	4	„ Lydbrook.
Kinsley Ridge	376	1	27	„ the Speech House.
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Total	1237	3	6	

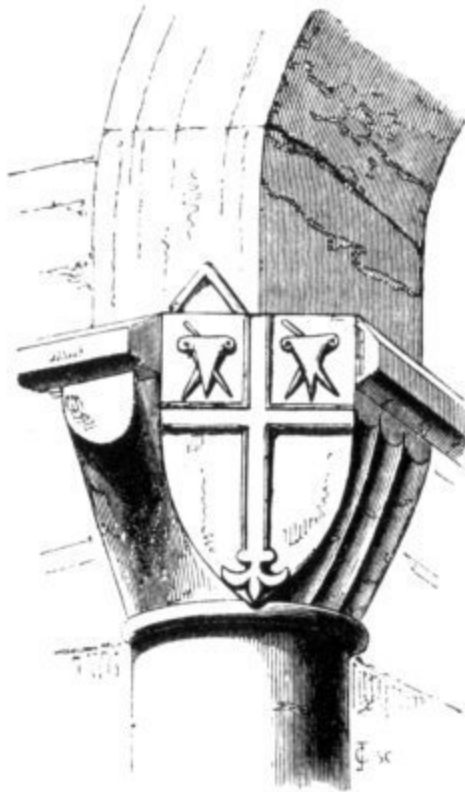
The second report of the Commissioners of Woods, dated the 18th of May, and signed by Wm. Huskisson, Wm. Dacres Adams, Henry Dawkins, states “that 9,389 acres of this Forest had been enclosed and planted, the remaining 1,611 acres, making up the 11,000, being partly fenced, and would be shut in the next year, viz. 1816, making the total number of enclosures upwards of thirty. Besides which 240 acres of Whitemead Park had been appropriated (1809) to the growth of timber, as also 120 acres adjoining the different lodges, as well as 120 acres of the open Forest, where trees twenty-five or thirty feet high had been planted, and were doing very well. The cost of these operations, since 1808, was £59,172 5s. 10d.”

To this period belongs the interesting circumstance of the then Bishop of Gloucester, the excellent Dr. Ryder, paying his first official visit to the

Forest, for the purpose of consecrating Christ Church at Berry Hill. The building was commenced, in 1812, as a chapel schoolroom, by the Rev. P. M. Procter, the Vicar of Newland, assisted by the Duke of Beaufort, the Lord Bishop, and Mr. Ryder his secretary, aided by £100 from the National Society, being the first grant made by it. But the structure was enlarged to twice the original size previous to its consecration.

The next year (1817) the Bishop had the satisfaction of being called upon in the month of April to repeat his visit to the Forest, for the purpose of dedicating the Church of the Holy Trinity, on Quarry Hill, to divine worship, for which it was first used on the previous 5th of February, having been commenced the summer before. Its erection was principally accomplished by the exertions of the Rev. H. Berkin, assisted by contributions from the Earl of Liverpool, the Right Hon. N. Vansittart, the Duke of Beaufort, Lord Kenyon, Lord Calthorpe, W. Wilberforce, Esq., M.P., and other benevolent persons. The site, comprising five acres, was given by the Crown.

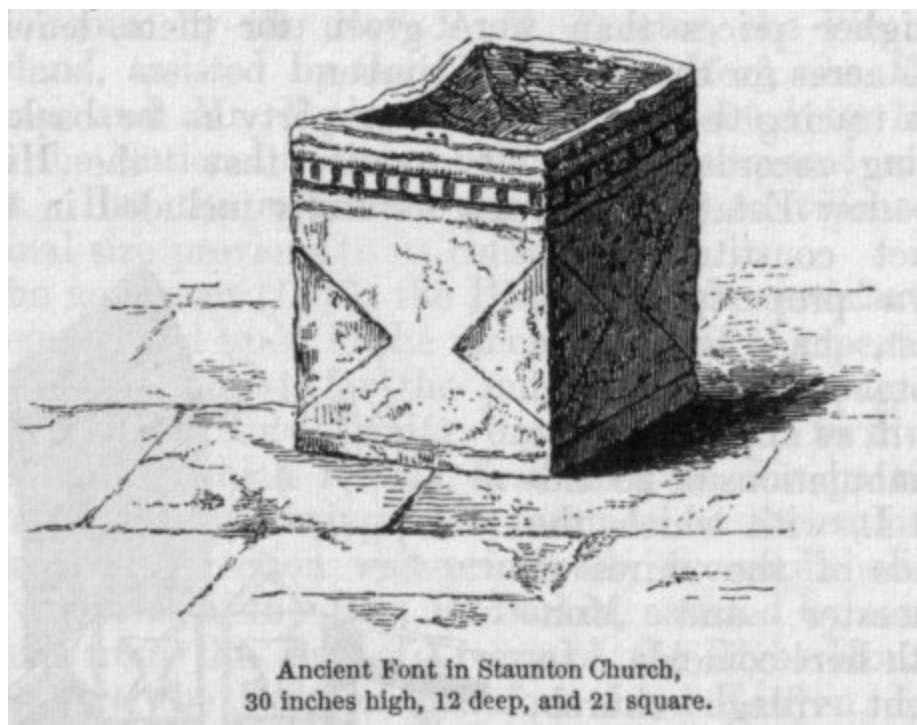
On the 15th of May this year the purchase of Lord Viscount Gage's estate, adjoining the Forest and the Wye, was concluded, as stated in the Commissioners' Report, which appeared on the 18th of June. It contained 2,229 acres of wood, which, "if preserved, would (they said) very soon be stocked with a succession of trees of the first quality, as they were of the most thriving description, the oldest being from sixty to eighty years old." The whole property contained 4,257 acres 15 poles, and, including all the timber and underwood, with certain forges, mills, limekilns, iron and tin works, was valued by the referees at £155,863 3s. 2d., the timber being priced at £61,624 4s. This agreement was confirmed by Act of Parliament, 57 George III., c. 97, which authorized the raising of the money by sales of Crown property to the amount of £101,945 6s. 3d., with the view of enabling the purchase money to be paid by five equal yearly instalments. A corn-mill, two forge-houses with appendages, the tolls of the Coleford Market-house, and about 423 acres of arable or meadow land, were sold for the most part at higher prices than were given for them, leaving 2,925 acres for the growth of timber.



Norman Capital in Staunton Church.

On tracing the history of this property as far back as existing records permit, it appears that “the High Meadow Estate,” although naturally included in the district constituting the Crown property of the Forest, had been at remote period detached from it as appears by the perambulations of 28 Edward I., with which the bounds of the shires of Gloucester and Monmouth here coincide. Its ancient village church, partly of Norman architecture, and its still more antique font, apparently Saxon, sufficiently attest the early location of inhabitants on the spot. This estate constituted one of the ten bailiwicks of the Forest as early as 10 Edward I. (1282), when it was held by John Walden, called John de Staunton, by the service, as the Rev. T. Fosbroke has ascertained, “of carrying the King’s bow before him when he came to hunt in the bailiwick, and by homageward and marchat,” and “he had for his custody housbote, heybote, of every kind of tree given or delivered by the King; all broken oaks, and all trees of every sort thrown down by the wind.” After passing through the families of the Baynhams, Brains, Winters, and Halls, who purchased the manor of English Bicknor early in the 17th century, it became by marriage the property of Sir

Thomas Gage, created Viscount Gage of Castle Island, in the county of Kerry, and Baron Gage of Castlebar, in the county of Mayo, September 14th, 1720. It must also be noticed, that licences were issued this year for the erection of steam-engines at “No Coal” and at “Churchway Coal” Mines.



The following minute and interesting account of the state of the several plantations in the year 1818 is by permission abstracted from Mr. Machen's private papers.

Speaking of the Buckholt (one of the older enclosures), he observes—

“The large timber in it has been cut, and parts of it planted with young oaks, obtained from places where they had sprung up spontaneously, but it is still imperfectly stocked. Stapledge (another of the earlier plantations) has been filled up by transplanting from the thick parts, and is tolerably well stocked on the whole. Birchwood (the third of the previous enclosures) has been planted in the vacant parts, and is fully stocked and very flourishing. From the Acorn Patch (the last of the old plantations) a large quantity of young oaks have been transplanted into the open parts of the Forest and the upper part of

Russell's Enclosure. The trees drawn out are thriving, and many of them grow faster than the trees remaining in the Acorn Patch. There is a great quantity of holly and other underwood scattered on the parts where the trees are planted, and which serves for shelter and protection, and the soil is very good. The trees, though never transplanted before, came up with bunches of fibrous roots; and though of so large a size, being from 10 to 25 ft. high, scarcely any of them failed. Several experiments were tried as to pruning closely, pruning a little, and not at all; and it appears that those pruned sufficiently to prevent the wind from loosening the roots answer best, although many of those which were reduced to bare poles, and had their heads cut off, are now sending up vigorous leading shoots, and have every appearance of becoming fine timber: those unpruned did not succeed at all." Alluding to the earthen banks, with which the plantations were mostly surrounded, Mr. Machen observes that "In most parts they appear to succeed very well, and the furze on the top of them grows very luxuriantly; but in some places, and those where the bank of mould has accumulated by being washed there in floods, the banks are mouldering, and in the last two years hawthorn-quick has been planted in those parts, and now looks very flourishing. There has not been a good year of acorns, that is, where a quantity have ripened in the Forest, since the commencement of the plantations until the present, and the trees are now loaded, and with every prospect of ripening. The young trees in all the new enclosures are looking remarkably well this year, and some of them have made shoots so long that they more resemble willows than oaks. The six first-named enclosures, in addition to the acorns and five years old oaks, have had the same quantity of five years old oaks planted in addition, in lieu of the mending over, viz. 270 on an acre; but there are parts of all these, and almost the whole of Crab-tree Hill and Haywood, which suffered not only from the failure of the acorns, but from the ravages made by the mice, that will require to be filled up as soon as there is a stock of plants sufficient for the purpose. Russell's Enclosure is left to nature: only 10,000 Spanish chesnuts have been planted in it, and some young oaks from the Acorn Patch at the north end. There is a good deal of large timber over the whole, particularly the south and centre parts, and a vast quantity of natural young oaks sprung up in the

neighbourhood of the large trees. The fern has been cut to relieve and encourage them for the last three years. The Lea Bailey Copse (north) consists of young copsewood well stored with oaks, growing on their own butts. The Lea Bailey Copse (south) has more large timber in it: this has not been regularly planted, but some trees have been transplanted from the thick parts of the north copse, and from the woodmen's nurseries. The lower Lea Bailey Enclosure has a considerable quantity of growing timber in it, and a large quantity of young oaks springing up. No planting has been done here. The fencing round these consists of a large ditch and bank, and a dead hedge at top, with hawthorn-quick planted within. The hedge having stood three years is decayed, and another will be required this year, which it is expected will last until the quick becomes a fence. The addition to the Buckholt of about fifteen acres was planted with 3 years old oaks from the woodmen's nurseries, and looks very thriving. All the other enclosures were planted with seedlings and tenth trees, according to the second agreement with Mr. Driver, in 1812, 13, 14, and 15, and are this year looking very well. Parts of all the enclosures will require mending over, but I should think more than half are sufficiently stocked with oaks well established, and that will require no further attention until they want thinning. On the high land of Haywood, Edge Hills, and Ruerdean Hill, firs and a mixture of other trees have been planted, and are thriving and growing fast, particularly on Ruerdean Hill, where the Scotch and larch take the lead. Firs, &c., have also been planted in the wet and bad parts of most of the other enclosures, and succeed. The nurseries we have in cultivation are the Bourts, 161 acres; Yew-tree Brake, about 5 acres; Ell Wood, 11 acres; and about 26 in the Vallets, or middle, and Sallow Vallets Nurseries, previously occupied by Mr. Driver. In these there are now about four millions of young oaks, three, two, and one year old, and about 600,000 firs and other trees of different sorts. The plants in Whitemead Park are thriving very well in all parts which are situated at a distance from the brook, but near to it they are very thin, stunted, and unhealthy, and are constantly killed down by spring frosts. Ash and fir trees have been planted amongst them, but with little success at present. The principal part of the large timber now in the Forest is about Park End, on Church Hill, Ivy More Head, Russell's Enclosure,

Park End Lodge Hill, and at the Lea Bailey. That at the Bailey appears younger, and some of it shook by frost, and rather drawn up by standing too thick. The timber about Park End is very fine, and I should suppose from 150 to 200 years old. There is a considerable quantity of young oak, from 15 to 40 years old, about Tanner's Hill, &c., near Gun's Mills, on the outside of Edge Hill Enclosure, and some within it in the lower part. Chesnuts Enclosure is covered with hazel, that was cut down when the oak was planted, and is now growing up with the young oaks and chesnuts, both of which are more rapidly growing in this enclosure than in any other; a double quantity of chesnuts are planted in this enclosure. There are scarcely any natural trees in the Forest but oak and beech; birch springs up spontaneously in every enclosure, and overruns the whole Forest. The few ash trees look scrubbed and unthrifty. Since the year 1809, 14,260 oak trees containing 14,546 loads of timber have been felled, viz. 11,322 trees for the navy, and 2,938 sold by auction. About 50 trees, containing about 50 loads, have been blown down or stolen."

This year, 1818, Mr. Trotter obtained the permission of the Crown to erect steam engines at Vallets Level and Howler's Slade, and in the following year the first corn mill was constructed at Cinderford, by Mr. Brace, out of an old water-wheel, and the adjoining buildings. In the year 1819 also, through the exertions of the Rev. H. Poole, the small chapel at Coleford, erected there in the reign of Queen Anne, was taken down, and a building more equal to the religious wants of the place was erected, and duly set apart for Christian worship, by Bishop Ryder, on the 18th of January, 1821.

The Third Triennial Report of the Commissioners of Woods was issued on the 18th of June, 1819. It states that three portions of land had been granted in trust for church purposes to the Lord Bishop of Gloucester, Lord Calthorpe, and the Right Honourable Nicolas Vansittart, one piece being attached to Christ Church, Berry Hill, a second to Holy Trinity Church, and the third for a proposed church at Cinderford. It also affirms that the whole of the 11,000 acres specified in the Acts for enclosing the Forest had been taken in and planted, and that the plantations were generally in a very flourishing state, comprising with the recent purchases 14,335 acres, the whole of which lands were, from the nature of the soil and the conveniences of water-carriage, probably better adapted for that purpose than any other

tract of land in the kingdom lying together and of equal extent. The report concludes by alluding to the efforts which the commissioners had been making to induce such parties as occupied encroachments on the Forest to accept leases for thirty-one years, at an almost nominal rent, with the view of effecting the ultimate restoration of these lands to the Crown, but regrets that so liberal a proposal had been refused by nearly all; nevertheless further steps were about being taken in the matter.

The following particulars relating to this period are abstracted from Mr. Machen's Memoranda:—"29th May, 1819. The frost was so severe that the verdure around White Mead, and throughout all the low parts of the Forest, was entirely destroyed. There was not a green leaf left on any oak or beech, large or small, and all the shoots of the year were altogether withered. The spruce and silver firs were all injured: in short all trees but Scotch fir and poplar suffered severely.—August 10th. The plantations had recovered from the effects of the frost—the oak more effectually than the beech, and had made more vigorous and thriving shoots than I ever saw. We measured several shoots in Serridge and Birchwood more than five feet long, and one in the Bailey Copse seven feet. We measured an oak planted in Whitemead Park near to the W. hedge, and in the second field planted below the house, seventeen feet six inches high: Lord Glenbervie was present. Shutcastle in the upper part, and the eastern part of Serridge, were looking best of all the new plantations, though all appear in a very thriving state this year." From the same source we learn that Ellwood, purchased from Colonel Probyn, and containing 110 acres, was planted this year. The holes were dug four feet apart in rows, and five feet between the rows. The trees planted were 30,000 Scotch firs, 1,600 pineasters, 3,600 larch, 6,000 Spanish chesnuts, 120,000 oaks of three and four years old, and 4,500 seedling oaks planted by way of experiment in one corner of the large field on the south side of Ellwood, and with no large plants amongst them. A few of the enclosures had oaks planted in them also, viz.-

Ruerdean Hill	35,000
Beechen Hurst	52,000
Bromley	35,000
Sallow Vallets	12,000

Park Hill	30,000
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and some more, from each of the woodmen's nurseries in their respective enclosures.

In the spring of 1820, 15,000 Scotch firs were planted in Ellwood, in the place of those that died. During the autumn and the following spring, about two million trees, which had been raised in the different Forest nurseries, were also planted out to mend over the different enclosures, viz.—

	Oaks.	Firs.
In Whitemead Park	51,000	50,000
Shutcastle Enclosure	25,500	
Ellwood	8,000	16,000
Bromeley	80,000	3,500
Nagshead	460,000	5,000
Aston Bridge	81,000	
Ruerdean Hill	120,000	63,000
Haywood	240,000	
Edge Hills	10,000	70,000
Crab-tree Hill	115,000	
Russells		25,000
Kensley Ridge	210,000	80,000
Yew-tree Brake	125,000	35,000
Blakeney Hill	100,000	13,000
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	1,625,500	360,500

Under the usual official permission, the Howler Slade Colliery was connected, by a tramway 350 yards in length, with the Severn and Wye

Railways at Cannop, and Mr. J. Scott was permitted to lay down 102 yards of tramway to his coal-works at the Moorwood, and Mr. Thomas Phillips to put up a steam engine at the Union Colliery, in Oaken Hill Enclosure.

There was also another tramway extension by the Bullo Pill Company to the Folly and Whimsey Collieries at the head of the Dam Pool. A junction was effected in 1823 between the Severn and Wye, and the Bullo Pill Tramway, by means of the Churchway Summit, parallel to Serridge, thus connecting the eastern and western lines of traffic.

In the year 1822 the consecration of the third of the Forest Churches, St. Paul's, for which a site had been given by the Crown on Mason's Tump, at Park End, took place on the 25th of April, Bishop Ryder attending.

The Fourth Triennial Report of the Commissioners of Woods, dated 1823, intimates disappointment at the little growth made by the new plantations, now eight or nine years old; but, on the other hand, it was observed that "they were doing well, and that slowness of growth was inseparable from their nature, particularly at that age." We learn from Mr. Machen's Notes that at this time, and again in the two succeeding years, very severe frosts, in one instance as late as the 23rd of June, greatly injured the young trees, more especially such as grew in low, moist situations, although in some degree it also touched those on higher lands.

The property known as "the Great Doward Estate" was purchased by the Crown, in 1824, from the Miss Griffins, for £15,000. Although separated by the river Wye, and situated in Herefordshire, and never before included within the limits of the Forest, it certainly groups with the High Meadow Woods, clothing the same valley; and it moreover forms a definite part of the geological basin of the district.

In March, 1825, the well-known and prosperous Nelson Colliery was commenced by Messrs. Bennett and Meek. A branch line of tramway was also made up to Mr. Mushet's Mine, near the Shute Castle Hill Enclosure, from the Severn and Wye line at Park End.

In each of the seasons of 1824–25 and 1825–26, Mr. Machen states that about 500 acres of the High Meadow property was planted with oak, Scotch fir, and larch, in proportions varying with the nature of the soil and openness of the situation. In the parts where shelter was most requisite,

two-thirds of fir and one-third of oak were planted, in others half of each, and in sheltered situations oak alone. A great many of these plants perished in the spring and summer of 1825 from heat and drought, and still more in 1826, which was the driest spring and summer ever remembered. In some high and shallow parts nearly every tree died; a great many also were eaten off and destroyed by the hares and rabbits. There were now 3,000 acres of wood on the High Meadow estate, viz. 2,000 acres of old woods, and 1,000 acres lately planted. In the year last mentioned the Fifth Triennial Report of the Commissioners of Woods, &c., was issued, signed by Charles Arbuthnot, Wm. Dacres Adams, and Henry Dawkins.

By the spring of 1827 Mr. Edward Protheroe effected the opening of collieries at Ivy Moore Head, Park End Main, Park End Royal Pits, and at Birch Well, at most of which pumping and winding engines were put up, a tramway 1,500 yards in length connecting them with the main road of the Severn and Wye Company. The same year saw a reduction of the landed property of the Crown by the sale of its rights in the Fence Woods, Mawkins Hazels, and Hudnalls, comprising a total of 1,273 acres 3 roods 9 poles, for £925. The Crown's right in Hudnalls, although it contained 1,200 acres, was of little value, as the inhabitants of St. Briavel's had the right of cutting wood on it.

Passing over the next year, the earliest circumstance in order of time is the opening of the important colliery at Crump Meadow, and the construction of 1,200 yards of tramway, uniting it with the main line of the Bullo Pill Company above Cinderford, all which was executed by Mr. Protheroe.

We next find, under the date of March 16th, 1829, Mr. Machen observing—"Although the Scotch firs have succeeded so well as nurses for the oaks, and have brought them forward, making them healthy and thriving on land that without shelter would only have produced them stunted and unthrifty, yet I am inclined on the whole to prefer larch. They are a shelter available for the purpose, although not so complete; but by that means the oaks are not kept too warm and brought too forward, and the larch is more valuable in itself. In some of our cold valleys, however, the larch will not grow, the spring frosts cutting them off." He also remarks—"We are now planting the oaks by the side of the road from 'Jack of the Yat' to Coleford Lane End, those at the White Oak, and opposite the Buckholt, and those leading to

Eastbatch, having been planted in 1827 and 1828. The space of road left is about fifty feet. Most of the trees are brought from the Vallets Enclosure, and do not cost more than four pence each to replant them. They are twelve to fifteen feet high, and a man can carry about two of them at a time. We are also planting the Lodge Hill about York Lodge, at the rate of 300 to an acre, leaving them without any fence.”

Upon the 6th of June this same year the sixth and last of the “Triennial Reports of the Commissioners of Woods,” &c., came out, signed Lowther, Wm. Dacres Adams, Henry Dawkins.

With reference to 1830, Mr. Machen’s note-book supplies the following memoranda:—“2nd March, planted trees on each side the road to Breem, also on the side of the Coleford Road below Bromley Enclosure, and about Catchcan Coal-works, continuing the avenue down the Long Hill, planting also the delves between Serridge and Sallow Vallets, at a cost of about four pence per tree, no fences being put round them. We planted also in the Greens of Russell’s Enclosure. Some pineasters and larch were likewise planted on the old Quarry Mounts, by the sides of the road leading from Park End to Coleford, as likely, if successful, to produce a good effect.

“(March, 1831, all died; renewed March, 1834—these mostly alive and flourishing.)”

“May 28th.—The most extraordinary blight is now upon the trees that I believe ever was known: it is confined entirely to the oak, and chiefly to the large trees, although in some parts it is extending to the young plantations. The whole of the High Meadow woods and great part of the Forest, particularly Russell’s Enclosure, and where the timber is thick, are entirely stripped of their leaves, and look as if fire had passed through them. Where a beech stands amongst them, it is perfectly green, and the oaks all around quite brown. The grubs and their webs are so thick, that it is disagreeable to ride amongst the trees, and like going into a net.”

On the 8th June, 1830, the First Annual Report of the Commissioners under the 10th Geo. IV., c. 50, was issued. It was signed by Lord Lowther, Wm. Dacres Adams, and Henry Dawkins. Mr. Machen states in his Memoranda, that “this winter single trees were planted on Breem Eaves; triple rows on Clearwell Meend, by the roads on Coverham, on the Delves. We mended

over the spots that have failed in Oaken Hill, Stapledge, Acorn Patch, Crab-tree Hill, Sallow Vallets (chiefly by drawing out where the trees are too thick). Most of the enclosures are now quite filled up.” And under date Nov. 1831, he gives the following statement of the several plantations:—

	Acres.
Land now under plantation in Dean Forest, enclosed by Act of Parliament	11,000
Whitemead Park	240
Ellwood	90
Old Keeper’s Land (3)	90

	11,420
High Meadow and Doward	3,288
Planted with single trees	1,114
Young trees of natural growth	150
Old timber	528

Total	16,500

CHAPTER VII.

A.D. 1831–1841.

Riots—Sessions of the Dean Forest Commissioners relative to St. Briavel's Court—Free miners' claims—Foreigners' petition—State of the woods—Perambulation—Rights of Commonage—Relief of the poor—Free miners' petition—Parochial divisions—Fourth and Fifth Reports of the Dean Forest Commissioners—Acts of 1838 and 1842—Award of the coal and iron mines—Enclosures thrown open, and new ones formed—Provision for the poor—Mr. Machen's memoranda.

The year 1831 is chiefly remarkable for the riotous destruction committed on the fences and banks of the enclosures, recorded by Mr. Machen as follows:—"In May, 1831, several of the single trees planted near Parkend, and on Breem's Eaves, were wilfully cut off in the night, and no discovery was made of the offenders. In the end of May a part of the wall of Oaken Hill Enclosure was thrown down in the night. When the workmen were rebuilding it, some of the colliers passing by threw out hints that it would not stand long, and in one or two instances horses and cattle were turned into the enclosures, and the woodmen were told that they had been shut up long enough, and they ought to be thrown open. The gates of several plantations had been broken in the night. On Sunday the 5th of June I saw Henry and Richard Dobbles pull away the bushes out of a gateway, and turn their cow into Cockshoots Enclosure, and when I went and expostulated with them they said they had been deprived of their rights long enough. Warren James had for some time been urging others to join him in the recovery of their rights, which they considered to be usurped by foreigners, in whose hands the principal coal-works of the Forest are, by purchase or lease from free miners; and on the 3rd June he had a hand-bill printed, calling upon all persons to meet and clear the Forest on Wednesday June 8th. I spoke to him on the 5th, and told him in the presence of numbers the

folly and danger of his proceedings; but he paid no attention, and said the Forest was given up to them in Parliament the year before; that he had a charter, which he would bring and show me. I published a notice, warning all persons not to join an unlawful assembly, and on Tuesday the 7th Mr. Ducarel and I issued a warrant to apprehend him; but it could not be executed. We swore in a number of special constables, and with the woodmen mustered about forty at the scene of action where they were to begin; but the rioters mustered nearly 200, with axes, &c., and began their work of destruction about 7 o'clock, and we found it useless to attempt to stop them. They were soon joined by others, and supplied with cider, and continued their work Wednesday, Thursday, Friday, and Saturday, in which time they destroyed nearly one-third of the fences in the Forest, the reparation of which cost about £1,500. On Sunday military arrived, and they all dispersed. Warren James was apprehended and sentenced to transportation for life, and seven or eight others to different periods of imprisonment from one month to two years. ^[111] Those who escaped suffered by lying in the woods and concealed where they could, and I believe all now repent and see the folly of their conduct. I suppose altogether nearly 2,000, including children, were employed in the work of devastation. None of the trees in the enclosures were injured, and where the cattle and sheep that were let in had eaten the grass in the drives and open places, they went back into the unenclosed Forest, and would not remain amongst the trees. In 1838 a pardon was sent out to Warren James, but he is not yet come home (June, 1839), and he has not written to any one. (1848: nothing heard of or from Warren James.”)

The above disturbance shows that an unsettled state of feeling existed in the minds of the foresters with regard to certain supposed rights of free-common, and which prevailed also on other points, such as the nature and extent of the coal-gales, and the fact that the various works were fast passing from the hands of the native free miners into those of the foreigners; all which grievances a mischievous periodical called ‘The Forester,’ published at Newnham, set forth in an exaggerated and exciting manner. Under such circumstances the Act of 1831 (1 and 2 Gul. IV., c. 12), authorizing the appointment of Commissioners to investigate such complaints, was well timed. The Commissioners were instructed to ascertain the boundaries of the Forest and the encroachments thereon; to

inquire into the rights and privileges claimed by free miners of the hundred of St. Briavel's, the constitution, powers, jurisdiction, and practice of the court held there, as well as respecting a court called "the Mine Law Court," and to report on the expediency of parochializing the Forest.

It appears from the annual Report of the Commissioners of Woods, &c., dated the 8th August, 1831, and signed by Lord Duncannon, Wm. Dacres Adams, and Henry Dawkins, that no new works were commenced this year, except the erection of a water-mill for grinding ochre, near Sowdley, arising probably from the unsettled condition of the district. It states, however, that the Crown had created an endowment of £30 per annum towards keeping the three existing churches of the Forest in repair, the congregations using them being considered too poor to do so.

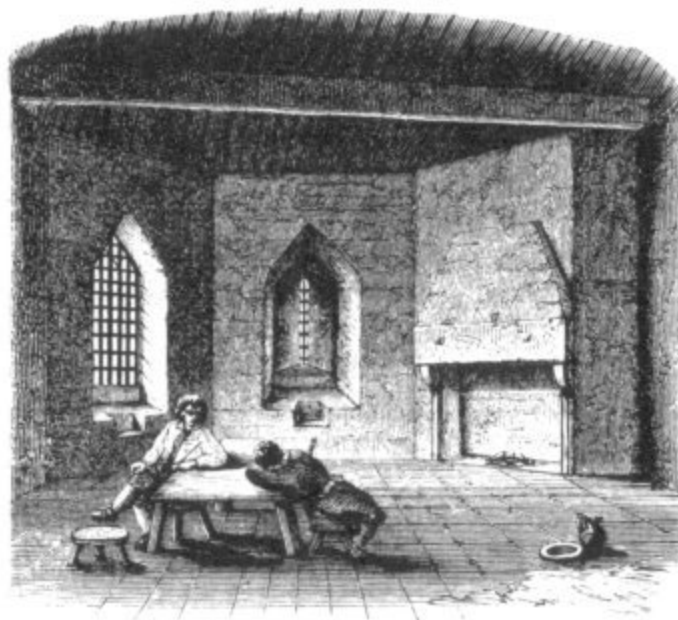
On the 21st January, 1832, the following gentlemen were appointed to act as Commissioners of Inquiry under the late Act:—

Robert Gordon, Esq., M.P., Kemble.
Ebenezer Ludlow, Esq., Serjeant at Law.
Charles Bathurst, Esq., Lydney Park.
Edward Machen, Esq., Whitemead Park.
Henry Clifford, Esq., Over Ross, Herefordshire.
Clerk, Thomas Graham, Esq., Mitre Court, Temple.
Surveyor, Mr. John Hosmer.

They held most of their sittings at the Bear Inn, in Newnham, although they also sat occasionally at Coleford, the Speech House, St. Briavel's, and Westbury. They were thus occupied most of the days in the months of February, March, April, and September, in hearing evidence "as to St. Briavel's Court and Prison," or "as to making the Forest parochial," or "as to the rights and privileges claimed by free miners," and "as to the rights to open or work quarries."

Of all these sections of inquiry, the only one which the Commissioners found they could at this time bring to a close was that having reference to St. Briavel's Court, respecting which it appeared in evidence that out of the 402 suits brought into it during the last twelve months, all but five were for debts mostly under £5, to recover which a charge of £6 or £7 might be incurred.

The prison attached to the Court is thus described:—"There is only one window, which is 1 foot wide, and in a recess. It does not open. The size of the room is 16½ feet by 17½ feet; 13 feet high; three corners cut off. In one corner is the doorway, 2½ feet broad, but no door, leading into the passage about 6 feet long, out of which the privy opens. There is a door at the outer end of the passage, and in it a hole which is considered necessary for air. The floor and ceiling are of wood, and in the former are several crevices and holes. There is a space between the ceiling of the parlour beneath and the floor of the prison-room above, which is so filled with fleas and dust that in summer time it cannot be got rid of by any cleanliness. The privy is a dark winding recess, about 6 feet from front to back, taken out of the solid castle walls. It leads to a hole going down to the bottom of the building, which is always inaccessible for cleaning, but which till six years ago had a drain from it into the moat; the air draws up through it into the passage and room. There is no water within the prisoners' liberty, and they are therefore obliged to get some person to fetch it for them. The Courtroom is in a bad state."



Interior of the Debtors' Prison in St. Briavel's Castle.

In consideration of these facts, the Commissioners in their Report upon it, which was published 7th July, very properly declared that the said Court was an evil, and required remodelling altogether, and they suggested its

conversion into a Court of Requests, in which the strict forms of law might be dispensed with, parties appearing and being examined in person, without the intervention of professional agents. Its Commissioners might comprise the Constable of the Castle of St. Briavel's, the verderers of the Forest, the magistrates of the neighbourhood, and about thirty other persons, any two of whom, under the presidency of one of the former, should form a Court, and decide cases of debt from 10s. to £10, with power to direct payment of the debt by instalments, or levies upon goods on failure of payment, there being no imprisonment of the person except for fraud, which should then take place in the county gaol at Little Dean, where, or at Coleford, the Court should meet the first Monday in every month. Such was the purport of the Report the Commissioners made to Parliament on the 7th July in this year.



The Fourth Annual Report of the Commissioners of Woods, &c., dated the 28th of August, 1832, states that Messrs. Hill had obtained the permission of the Crown, under a lease for thirty-one years, and a rental of £25, to remove all that they could find of the slag, cinders, and refuse of the ancient ironworks; thus resuming an occupation which had been discontinued for many years. The new Fancy Pits were now furnished with two engines and we also find that for a time timber ceased to be supplied from this Forest to the Royal Dockyards.

The Dean Forest Commissioners resumed their sittings the next year (1833) on the 12th of April at Newnham, and proceeded to hear further evidence “as to the rights and privileges claimed by free miners;” but the only important occurrence which ensued was the presentation of a “Memorial,” by Mr. Mushet, on behalf of parties not free miners, specifying the claims which such proprietors and occupiers of coal and iron mines in the Forest had to the support of Government in maintaining their position in the district. The Memorial states that “foreigners” had possessed coal and iron mines time out of mind, as appeared by the case of several gentlemen and freeholders of the parish of Newland, who, as long since as the year 1675, claimed the right to open certain works without any objection being made by the free miners, a liberty which, whenever it was acted upon, seems always to have benefited the public; that none of the documents of the Mine Law Court appear to exclude foreigners from working the mines; on the contrary, the Resolutions of that Court, passed 1775, establish such a right, allowing the free miner to sell or bequeath his property in the mines to any persons he may think proper; that the old gale-books contain the names of many persons not free miners, which, with similar testimony from Messrs. Tovey, James, &c., showed such to have been the uniform practice for sixty years; that the foreigners have always carried on their works with the full knowledge and authority of the Crown; that the free miners do not possess the necessary capital for carrying on the works, in which the foreigners have invested £700,000; and, lastly, that the Crown has gained several thousand pounds per annum in consequence. Twenty-one persons signed this Memorial, as also the representatives of the Forest of Dean and the Cinderford Iron Companies.

Another Memorial was likewise presented by a dozen of the inhabitants of the Forest, showing that, instead of their cottages and gardens tending to throw a burden on the adjoining parishes, the very contrary was the case, as many were therefore enabled to support themselves without applying to those parishes. The petitioners also prayed that no further part of the Forest might be enclosed for the supposed benefit of the adjacent parishes, as thereby many persons would be deprived of grazing-land for their cattle, and in consequence be necessitated to apply to the next parishes for assistance.

Alluding to the state of the woods at this time (1833), Mr. Machen's Notes, under the date of the 29th of May, state:—"This is now the fourth year in which the blight has been so prevailing upon the oak and in the Forest. I think this year it is worse than ever, and now the young plantations suffer most, the large timber being comparatively free. Park Hill, Oaken Hill, Nag's Head, Barn Hill, Stapledge, &c., and especially all the higher parts of them, are leafless, except where a beech or a chesnut shows its green foliage amidst the brown oaks. I saw a few rooks in Russell's to-day, and last year I noticed great numbers. They seem to be drawn to the Forest to feed on the grubs, for they are not generally here, and I only hope they will increase. The woodmen complain that in some situations the running of the bark has been checked; but considering it has now been four years, it seems wonderful that more injury is not done to the trees: they put out new leaves at the midsummer shoot, and appear to recover. June 4th: found the grubs changed into a chrysalis, enclosed in a leaf, with a kind of web round it. June 18th: the moths appeared in vast numbers. The rooks are still about in Park Hill."

The usual Report to Government, being the fifth annual one, was issued on the 28th August, 1833, signed "Duncannon, W. D. Adams, B. C. Stephenson." Licence was granted to construct 600 yards of tramway from the Severn and Wye line up to the Church Hill Colliery at Park End, and the Dean Forest Commissioners appointed under the Act of Parliament (1 & 2 Gul. IV. c. 12) had their commission extended.

In the autumn of 1833 the Dean Forest Commissioners directed their attention to the important object of settling the limits of the Forest, in doing which they wisely determined to be governed by the Messrs. Driver's maps of 1787, according to which the Forest boundaries had for a length of time been regarded as practically settled, comprising the soil, timber, and herbage actually belonging to the Crown. Its boundaries as thus defined were perambulated in due ancient form, commencing on the 10th of September. ^[118] The cavalcade included Commissioners Robert Gordon, Esq.; Mr. Serjeant Ludlow; Charles Bathurst, Esq.; and Edward Machen, Esq., the Deputy-Surveyor; with Mr. Graham, their Clerk; and Mr. Hosmer, their Surveyor; followed by the keepers and woodmen. "We began" (writes Mr. Machen) "on Tuesday at Little Dean, and ended at Breem; Wednesday we ended at Hoarthorns, Thursday at Drybrook, Friday at the Stenders, and

Saturday at Little Dean. We were occupied eight or nine hours each day, accomplishing about nine miles daily by the map, but the actual distance must have been nearly double.”

The year 1834 is marked by the Dean Forest Commissioners issuing their second Report, dated 1st of May, in which, after briefly explaining the data on which the late perambulation had been conducted, they proceed to state that, as respects the various encroachments, 1,510 acres 2 roods 32 poles were taken in before 1787. Since that date, and up to the year 1812, further encroachments to the extent of 573 acres 10½ poles had been made, and again from 1812 to the present time 24 acres 2 roods 9½ poles had been taken in. In consideration of the Crown never having reclaimed the old encroachments, the Commissioners recommended that all such lands “should be declared to be freehold of inheritance,” provided no additional dwelling-houses were erected on them without the licence of the Crown. They advised that the next oldest encroachments “should be granted to their present possessors for three lives, not renewable except at the pleasure of the Crown, and paying rents varying from one shilling to two shillings per acre.” As to the latest encroachments, they gave their opinion that “their possessors should have terms varying from fourteen to twenty-one years, paying rents varying from four to eight shillings per acre; the condition as to building dwelling-houses to apply to these classes also.” The following table, showing the acreage of the encroachments, classed as stated above, with the number of houses situate in the six “Walks” of the Forest, serves to exhibit the localities of the population of the district for the last hundred years.

Name of “Walk.”	Houses.	Previous to 1787.			Between 1787 and 1812.			Since 1812.		
		A.	R.	P.	A.	R.	P.	A.	R.	P.
Worcester	404	324	1	38	160	2	3	0	1	19
Park End	304	473	0	18	43	3	34	14	2	6
Blakeney	249	180	2	25	62	0	35½	2	0	9½
Little Dean	196	174	1	6	104	0	33	4	3	26

Speech House					0	2	7			
Ruerdean	290	353	0	26	199	3	36	2	1	11
Hillier's Lane	17	5	3	39	1	2	22			
Yorkley Lane	2	1	0	0				0	1	18
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			--			-			-	-
	1462	1510	2	32	573	0	10½	24	2	9½

During the greater part of September this year the Dean Forest Commissioners were engaged either at Newnham, Westbury, or the Speech-house hearing evidence “as to forming the Forest into a Parish,” and respecting “Rights of Common.” With the design of eliciting the opinions of the neighbourhood on the first head, for civil purposes only, “a circular was drawn up on the subject of enclosing lands on the outward boundaries of the Forest, with a view of relieving the conterminous parishes from the support of the Forest poor.” It was sent to the parishes bordering on the Forest, requesting the attendance of the clergymen, overseers, and landowners, for the purpose of discussing such a plan. This courteous invitation was responded to by the parish authorities of Westbury, Flaxley, Little Dean, Mitcheldean, Awre, Staunton, Ruerdean, the Lea hamlet, Bicknor, and St. Briavel’s, the Rev. H. Berkin attending on the part of the Forest clergy, when the scheme of the Commissioners was unanimously approved. By the evidence taken under the second head, it appears that the parishes or tithings of Westbury, Little Dean, Awre, Ruerdean, Bicknor, Lea hamlet, Breem, Clearwell, Newland, Lydney, St. Briavel’s, Newnham, Woolaston, and Purton, claimed the right of Common of Pasture.

In the same month “the Free Miners of the Forest” presented to the Commissioners an able memorial of their rights, in reply to that preferred the year before by persons not free miners, but who were proprietors and occupiers of coal and iron mines in the Forest; its object being to prove that “foreigners possessing and working mines therein was in direct violation of

the rights and privileges of the free miners, contrary to their customs and franchises, and are acts of injustice and usurpation.” They affirmed that the present usage of foreigners possessing mines was not of long standing,—that it dated from the discontinuance of the Mine Law Court in 1777, by which all such intrusions were strictly checked and prevented; that this Court had been in full operation upwards of 500 years, as they verily believed, and so continued until the last 60 years, meeting periodically under the presidency of the Constable appointed by the King, and attended by his deputies and by the King’s Gaveller; and that, if this Court were re-established, and their rights and privileges restored to them, there would be no difficulty in finding capital for the proper working of the mines. The memorial was signed by 1,036 persons, professedly free miners. But, as to this being the fact, a further memorial was presented to the Commissioners on the 23rd of December, urging “that no person should be considered a free miner whose birth from parents free miners cannot be proved, in addition to their having been born in the Forest, and worked in the mines a year and a day.” According to such rule, the original number of 1,036 would be reduced to 798. On the 24th of December this year (1834) another memorial, coming from free miners in the occupation of stone-quarries within the Forest, was laid before the Commissioners, pleading in few words for similar rights and customs in respect of stone-quarries as were claimed in regard of mines. The names of thirteen quarrymen were attached thereto.

Upon the 9th and three following days of June in the ensuing year (1835) the Dean Forest Commissioners, at meetings held in London, received letters from the Bishop of the diocese, from the clergymen of the Forest, and of the Lea and Flaxley parishes, recommending the parochializing the Forest for ecclesiastical purposes, either by means of curates with small chapels, or by dividing the whole into a certain number of distinct districts severally provided with a church and an incumbent. The Commissioners reported unanimously in favour of making the Forest parochial; and for all spiritual purposes they recommended an assignment of districts to each of the churches already built, as also the erection of a church and parsonage at Cinderford, with a stipend of £150 annexed, to which amount the salaries of the three existing ministers should also be raised. They further recommended the enlargement of the Lydbrook school-room into a chapel,

with £80 stipend to the clergyman serving it; and they likewise advised forming Viney Hill, having a population of nearly 800, into a district, or annexing it to Blakeney, the church there, and minister's salary, being enlarged accordingly. They also suggested that the 150 persons residing on Pope's Hill should be united to Flaxley, with £20 added to the clergyman's stipend; and that the Lea Bailey, with its 100 inhabitants, should be annexed in the same manner, and under the same conditions, to the Lea parish.

In the second place, as to the relief of the poor inhabitants of the Forest, the Commissioners were of opinion that it would be impossible to raise a fund for this purpose by means of rates on property, as so much was in the actual occupation of the Crown, or connected with mining, or the holders being too poor to bear the burthen. They advised, therefore, that about 1,600 acres of the Forest land should be enclosed and let out for the purpose of furnishing such a provision, to be dispensed at the discretion of a Board composed of the constable of St. Briavel's Castle, the verderers, clergymen, and deputy-surveyor, and the magistrates acting for the Forest division, and six inhabitants as coadjutors. ^[122]

On the 25th of August the Dean Forest Commissioners presented their fourth and fifth Reports. In the former, which gives a minute summary of the rights and privileges claimed by the free miners (derived chiefly from the evidence taken in 1832), the origin of them is stated to be involved in obscurity, although no doubt iron was manufactured in the neighbourhood as early as the time of the Romans, and coal was obtained in the reign of Edward III. Probably before, and certainly soon after, the Norman Conquest, the soil was vested in the Crown, and all the rights of a royal forest were in force. The persons by whom the mines were then worked could not have been, in the first instance, free tenants of the Crown. It is more likely that they were in a state of servitude, and subject, in that character, to perform the labour required of them. The name of "Free Miners," by which they are and have been for centuries known, seems to refer to some right or privilege distinct from their original condition; and it does not appear unreasonable to suppose that certain persons at some distant period, either by having worked for a year and a day, or by reason of some now unknown circumstance connected with the origin of the privilege, were considered as emancipated, and thereupon became entitled

or were allowed to work the mines upon their own adventure, concurrently with or subject to the right of the Crown to a certain portion of the product.

Noticing in succession many of the historical incidents attaching to the free miners of the Forest, the Report states that the franchise of the mine was unquestionably perpetuated by birth from a free father in the hundred of St. Briavel's, and afterwards working a year and a day in one of the mines and abiding within the hundred. Doubt is, however, thrown upon the necessity of birth from a free miner, the more so as the son of a foreigner could obtain his freedom after working out an apprenticeship of seven years with a free miner; and it would be difficult, if not impossible, at the present time, to confine the title to anything beyond birth and service, to which particular class of individuals the Court of Mine Law confined all mining operations.

Entering in the next place into a consideration of the actual claims of the free miners, the Commissioners declare their opinion as to how their claims are to be settled, suggesting at once the question "whether they can be now maintained with advantage to the miners themselves, or to the community," connected as they are with a most defective system of working, productive of incessant disputes and expensive litigation, and occasioning constant disputes and never-ending jealousy; and they thus conclude—"Taking all the circumstances of the case into consideration, we are of opinion that the monopoly and customary workings are practically at an end, and that, if individual claims were bought up, the whole coal-field might then be let by the Crown as between landlord and tenant, defining the limits and regulating the working."

The fifth and final Report of the Dean Forest Commissioners bore the same date as the preceding. It contains the evidence produced before them as to "certain claims of common of pasture" made by the inhabitants of the following parishes bounding the Forest, and paying a small sum annually, called "herbage money," to the lessee of the Crown of the manor and hundred of St. Briavel's, and the manor of Newland, as annexed:—

	<i>s.</i>	<i>d.</i>	
Little Dean parish	3	4	
Newnham „	3	4	

Staunton „	2	0	
Longhope „	3	4	
Abbenhall „	3	4	
Mitcheldean „	7	0	
Hope Mansel „	1	0	
Ruerdean „	3	4	
Bicknor „	1	0	
Alvington „	5	0	will not pay.
Newland „	10	0	
Huntisham tithing	7	8	will not pay.
Bledisloe	3	4	
Etloe Dutchy	5	0	}
Etloe tithing	3	0	} In Awre.
Box „	3	4	}
Hagloe and Purton	5	5	}
Blaisdon	6	8	
Blakeney tithing	4	0	
Awre parish	8	0	

It is highly probable that the above claims, and the payments for the ancient agistments, originated when the limits of the Forest comprehended the parishes by which they are made. The earliest authentic trace of them occurs in the agreement made by Charles I. with Sir John Winter in 1640, according to which about 4,000 acres of Crown land was to be taken in and attached to the bordering parishes in lieu of their rights of commonage; and in conformity with the principle of this agreement, the Commissioners recommended “that these commonable rights should be comprised in some general arrangement for the purpose of a commutation.”

The last subject the Commissioners notice is the stone-quarries, which persons born within the hundred of St. Briavel's claimed the right of opening in the waste lands of the Forest, on payment of a fee of three shillings to the gaveller, and an annual rent of three shillings and fourpence, according to the custom of at least the last hundred years, a period too long to justify the withdrawal of any existing gale, unless by compensation. Hence all that the Commissioners found themselves justified in recommending to the Crown, with the view of putting the working of the stone-quarries on a better footing, was to re-issue gales on liberal leases to all parties born within the hundred who applied for the same within a specified time.

In bringing their labours to a close, the Commissioners urge the necessity of passing an Act for definitively settling the several particulars to which their inquiries had been directed, adding that it would be well to incorporate the offices of Constable of St. Briavel's Castle, and Warden of the Forest, with the office of Woods, lest they should be found to interfere with its future administration, at that time under the charge of Lord Duncannon, B. C. Stephenson, Esq., and A. Milne, Esq.; and this was accordingly done in the following year.

We gather from Mr. Machen's memoranda that the nurseries in the Forest at this time (1835) contained:—

Oak.	Chesnut.	Larch.	Scotch.	Spruce.	Ash.	Quick.
310,000	1,300	66,500	74,700	5,300	120,000	124,000 total.
200,000	1,300	40,000	40,000	5,300	10,000	30,000 fit to plant out.

and, moreover, that 276,054 trees of various kinds had been planted out during the previous winter.

On the 27th of July, 1838, the Royal Assent was given to “an Act for regulating the opening and working of mines and quarries in the Forest of Dean, and Hundred of St. Briavel's, by the agency of a Board of Commissioners.” Thomas Sopwith, Esq., of Newcastle-upon-Tyne, was appointed by the Board of Woods and Forests a Commissioner for the purpose on behalf of the Crown; and John Probyn, Esq., of Longhope

Manor-house, Gloucestershire, was selected by the body of free miners to act on their behalf; and the office of arbitrator between them was filled by John Buddle, Esq., of Wallsend, in the county of Northumberland; Thomas Graham, Esq., acting as their solicitor, and Mr. Henry Ebsworth as his clerk. [126]

Some idea may be formed of the necessity for such a mining Commission, and of the difficulties it had to overcome, from the following particulars, as Mr. Sopwith stated them in his valuable Paper on “Mining Plans and Records,” read before the British Association at Newcastle in 1838:—“Great distrust of any interference” (he says) “existed, and some of the mine-owners refused to allow of underground surveys being made. Numerous and conflicting parties were then working mines under customs which were totally inapplicable to the present state of mining; destructive at once to the interests of the free miners of the Forest; ruinous, as sad experience had shown, to the enterprising capitalist; and subversive of the rights of the Crown. So great was the perplexity, and so numerous and conflicting were the claims of contending parties, that the law advisers of the Board of Woods deemed it almost impossible to arrive at any satisfactory adjustment of them within the period of three years, as named in the Dean Forest Mining Act. The ruinous and unsatisfactory state of the mines must appear obvious on a slight consideration. As no plans existed, it was impossible to tell to what extent or in what direction the underground works were being carried. The crossing of mattocks, that is to say, the actual meeting of the workmen underground, was often the abrupt signal for contention; the driving of narrow headings was a means by which one coal-owner might gain possession of coal which of right belonged to another; and a pit, though sunk at a cost of several thousand pounds, had no secured possession of coal beyond 12 yards round it, that is, a tract of coal 24 yards in diameter. At 40 or 50 yards from such a work another adventurer might commence a pit, and have an equal right, if right it could be called, to the coal. If a long and expensive adit was driven, another one might be commenced only a few yards deeper; and, from such a state of things, it is quite clear that great uncertainty and frequent losses inevitably ensued.” Moreover, the receipts from mines and minerals, by the Crown, upon the average of the six preceding years, were only £826 2s. 10½d.

The important Act by which these difficulties were to be removed, under the auspices of the three Commissioners above named, was framed in accordance with the suggestion thrown out in the fourth Report of the Dean Forest Commissioners, viz., that all subsisting mine-works should be released by compensation to the Crown, and the whole relet on a well-defined plan to such free miners as might make application for the same. The Act (1 and 2 Vict. cap. 43) provides that all male persons born and abiding within the hundred of St. Briavel's, being upwards of twenty-one years of age and having worked a year and a day in a coal or iron mine or stone-quarry within the said hundred, should alone have the right to hold or dispose of such works, a register of all such persons being kept as "free miners." It suppressed all claims to pit timber, with all "customs," and assigned to the Commissioners under the Act the duty of fixing rents and royalties for twenty-one years, and to the gavelle power to limit and regulate as well as to enter and survey all works which might be re-awarded or galed. No engines were to be erected nearer than sixty yards to any enclosure, within which only air-shafts might be opened, and all unnecessary buildings were to be removed.

On the 16th of August, 1838, the annual Report of the Commissioners of Woods was issued, signed by Lord Duncannon, B. C. Stephenson and A. Milne, Esqrs. It mentions that a piece of land in the parish of English Bicknor had been granted for school purposes, and that the Severn and Wye Tramway Company obtained the licence of the Crown to lay down a branch from Brook Hall Ditches to Foxes Bridge.

The only circumstance requiring notice in the following year is the decease of the second Commissioner of Woods, Sir B. C. Stephenson, who had long held the office, and he was succeeded by the Honourable Charles Gore.

The next annual Report bears date 29th July, 1840, and contains nothing calling for special notice.

The year 1841 is particularly important in the history of the Forest from its being the date of the present coal and iron mine awards, under the authority of the Mining Commissioners, the former being signed on the 8th of March, and the latter on the 20th of July. By these awards no less than 104

collieries were defined and assigned, together with twenty iron-mines, and certain rules and regulations were laid down for working them.

The duties of the Mining Commissioners having now closed, it must have been highly gratifying to those gentlemen to receive from the Government the following expressions of commendation, communicated by Mr. A. Milne:—"I am to convey to you our entire approbation of the zeal, ability, and sound discretion which appear to have marked all your proceedings in the performance of the very important, difficult, and laborious duties which devolved upon you, and their belief that, while the result will be very beneficial to the interests of the Crown, it will be attended with equal advantage to the great body of mining adventurers in securing their titles to the property on very reasonable and moderate terms, and subject to the regulations and conditions which seem to be well calculated to protect them from that constant and expensive litigation which had so long existed."

The total cost of adjusting the working of the coal and iron mines was £10,459 1s. 3d. The valuable services of the Mining Commissioners were again noticed in the annual Report of the Board of Woods, published on the 9th August in the following year, when 408 acres 2 roods were thrown open in Blakeney Hill (south) and the South Lea Bailey Copse, a similar extent of open Forest being enclosed at St. Low and Great Kenseley. It also adverts to an Act passed on 30th of July previous, dividing the Forest into ecclesiastical districts, constituting them "Perpetual Curacies," and attaching the churches of Christ Church, Holy Trinity, and St. Paul's to them, the stipends of each being raised to £150. The patronage of the two former was vested in the Crown, and the latter in the Bishop of the Diocese. The Act likewise authorizes the formation of a fourth district at Cinderford, and the erection and endowment of a church there: thus each district comprised the following number of acres:—

St. John's	5934
St. Paul's	7741
Holy Trinity	5859
Christ Church	3149

Total	22,683
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The same Report also notices the provisions now made for the relief of the poor, and for the abolition of the court and prison of the hundred of St. Briavel's. The Act for the relief of the poor is dated the 9th of July, and authorizes the introduction of the new Poor Law, dividing the Forest into the two townships of East and West Dean, by a line drawn in a diagonal direction from Lydbrook to Ayleford, being in fact almost the same boundary which separated the ancient divisions of "above and beneath the wood." The Act attached East Dean to the Westbury-upon-Severn Union, and West Dean to that of Monmouth. It also united the Hudnalls, the Bearse, the Fence, and Mawkins Hazells to the parishes of St. Briavel's and Hewelsfield, Mailscot and an adjoining tract to English Bicknor, and Walmore and Northwood's Green to the parish of Westbury-upon-Severn, for the support of their own poor, by means of rates levied as their respective overseers for the relief of the poor should direct.

CHAPTER VIII.

A.D. 1841–1858.

Messrs. Clutton's, &c., Report on the Forest timber—Viscount Duncan's Committee—Supply of 1,000 loads of timber to the Pembroke Dockyard resumed—Mr. Drummond's Committee—Report of Mr. Brown—Messrs. Matthews's Report.

By this time (1842) some of the enclosures made in 1814 were become fit for being thrown open, the young trees having grown up sufficiently, and the following Commissioners, viz., Lord Lincoln, A. Milne, C. Gore, Sir T. Crawley, J. Pyrke, M. Colchester, C. Bathurst, E. Machen, P. J. Ducarel, J. F. Brickdale, Esqrs., proceeded to authorize the laying open of 163 acres 2 roods 24 poles in Little Stapledge and Birchwood, directing that an equal quantity of land should be added to the Acorn Patch and the Bourts.

In the year 1843 Beechenhurst and Shutcastle Enclosures, comprising 467 acres 2 roods 31 poles, were disenclosed, an equal extent of land at the Delves, Harry Hill, Hangerberry, Old Croft, the Blind Meand, Cleverend Green, Clearwell Meand, and Birch Hill being taken in. Upon the 22nd of this October a sale was effected to the Crown, for the sum of £1,260, of the eligible school premises at Cinderford, erected originally by Mr. Protheroe for his workpeople. On the 22nd of October in the ensuing year, 1844, the church adjoining the school just named, to the erection of which Dr. Warneford and Charles Bathurst, Esq., largely contributed, was consecrated by Bishop Monk, the Crown endowing it with £150 per annum, making the total sum given by the Government to church endowments in the Forest upwards of £10,347. The following year is almost a blank in the annals of the neighbourhood. The Report of the Commissioners of Woods was issued on the 5th of August.

In 1846 enclosures to the extent of 1,433 acres 3 roods 5 poles, comprising Blakeney Hill, Crab-tree Hill (North), Holly Hill, Bromley, part of Edgehills, and part of Stapledge, were thrown open, and instead thereof enclosures were made at Light Moor, Middle Ridge, and Phelp's Meadow, Blaize Bailey, Mitcheldean Meand (North, South), and Loquiers, the Delves No. 4, Crump Meadow, Bourts No. 1 and 2, Eastbatch Meand, and Coverham (North and South). The Commissioners of Woods published their yearly Report on the 25th of August this year, signed by Lord Morpeth. It states that since 1841 upwards of 291 pieces of encroached land had been purchased by the foresters for £201 13s. 3d., and that no less than 193 grants of coal and iron mine had been galed under 1 and 2 Vict. c. 48, at a total annual rent to the Crown of £3,783, in sums varying from £1 to £250, as at the Bilson Colliery, besides 315 grants of stone-quarries at a total rent of £87 9s. 7d. This includes the following coal-works lately galed, viz., the collieries of Nash's Folly, New Mill Engine, Unity Colliery, Nag's Head, Smart's Delph, Gosly Knoll, producing a rental of £16, and the iron-mines at Old Park, Scarpit, Easter, Slope Pit, Yew-tree, Bromley Hill, Drybrook, Prince of Wales, Belt, and Wigpool, bringing £81 10s. to the Crown, to all which receipts a royalty of so much per ton on the mineral sold was added.

Mr. Machen's Notes inform us that in the autumn of 1846 "there was the most abundant crop of Spanish chesnuts we have ever had, and they ripen well, but the people injure the trees to get them. No acorns at all—there are some on the Turkey oaks. The fruit of most kinds has failed this year, as well as the potatoes; but of some kinds, such as chesnuts, grapes, blackberries, the crop is abundant. The spruce firs are looking very bad; many of them are nearly dead."

Except as respects the granting of additional coal and iron gales, the succeeding year of 1847 may be passed over. It appears by the annual Report which came out on the 29th of June, that the new iron-mines galed were those of Wigpool, Dean's Meand, Fairplay, Lydbrook, Symmond's Rock, Earl Fitzharding's Frog Pit, Penswell's, Eastbatch, and Tufton, paying a rental to the Crown of £104, and Morgan's Folly Colliery, rented at £4.

Proceeding to the year 1848, the Report of the Commissioners of Woods, which appeared in September, informs us that upwards of 18,000 acres in the district of the Forest were covered with wood and timber. Unfortunately blight again prevailed, of which in the month of June Mr. Machen's MS. records:—"The oak-trees have been attacked for several years past by a small caterpillar which eats all the leaves, and this year the destruction has been greater than ever; the whole Forest has been almost leafless; the high ground and the low, the large timber and the young plantations, have all suffered alike. The first time I noticed this blight was in 1830, when the High Meadow woods and many parts of the Forest suffered, but it was principally confined to the large timber. It has continued more or less every year since, but this has been the worst year of any; yet it is remarkable that the High Meadow Woods are free from it and in fine foliage, but no part of the Forest has escaped. The grub, a little black caterpillar, comes to life just as the oak is coming into leaf, and feeds upon the leaves. It attacks no other tree; the beech, chesnut, &c., stand in full verdure surrounded by the brown and leafless oaks. They envelop the tree in a web they spin about the end of May; they enclose themselves in a leaf curled up, and remain in a chrysalis state until the middle of June or July, when they change into a pale greenish small moth that flies about the trees in myriads, and lay their eggs in the bark of the trees for future mischief, and then die. There seems to be no means of checking their ravages. The rooks come in great numbers, and they and other birds destroy great quantities. The trees put forth a second foliage at the midsummer shoot, but not full, and the shoot of the year and the growth of the trees must be injured."

Under the date of the 30th of April, 1849, Messrs. John Clutton and Richard Hall report to the Government, on the Forest of Dean, that "there are about five hundred acres of the open Forest now covered with old timber, which is for the most part very fine and of very large size, and is nearly all of good quality. Our opinion is that a large portion of this timber is fit for naval purposes, and we suppose it to be worth £49,000. Its precise age we are not enabled to discover, but our impression is that this timber is about 160 years of age. It has clearly been planted since 1667, as it is recorded that only 200 trees remained on the Forest in that time. There is some old timber fit for the navy in the enclosed plantations, of the probable value of £34,500. There are also about 500 acres of land planted in the Forest with single

trees, which are in process of becoming fit for naval purposes; and there is a further portion occupied with trees of spontaneous growth. These, with the plantations thrown open, we estimate at 3,000 acres; the value of these we estimate at £106,000. The Crown has now occupied with young and old timber about 14,000 acres of the Forest.”

The same reporters speak of “the existing plantations being in a very good state, having been judiciously and well planted, fully stocked, well managed, and sufficiently protected. They are properly drained and amply thinned; so that there is upon the ground, in a state to proceed to maturity, as good a crop as can be found to exist in any part of England, taking extent and quality of soil into consideration. The plantations reflect great credit upon all parties concerned in their management, the system of which we should strongly advise to be continued. To remove the young trees with the view of converting the land into arable cultivation would involve a loss of £280,500, besides that of the increasing net annual profit, which official returns prove to be as follows:—

	£.	s.	d.
From 1828 to 1832, or average of 5 years	1531	17	4
„ 1833 to 1838 „	2475	16	2
„ 1839 to 1843 „	3566	17	1
„ 1843 to 1848 „	5482	11	3

Early in this year a select Committee of the House of Commons was appointed to inquire into the expenditure and management of the Woods, Forests, and Land Revenues of the Crown, Viscount Duncan being in the chair. Mr. Machen was examined by the committee with regard to the Forest of Dean, and amongst other particulars stated that “the fact of the expenditure on account of this Forest having increased within the last six years was explained by the circumstance that £3,000 a year had been laid out on the new plantations, and that the balance in favour of the Crown had been still further reduced by the recent fall in the price of bark and also of timber, owing probably to peculiar difficulties attending its removal.” He observed that large immediate profits could not be obtained from the oak plantations, which would, however, increase in value at the rate of about

£15,000 a year; and moreover that a considerable revenue from the sale of timber-props for the mine-works, &c., might be expected. Mr. Machen also reported an improvement in the order and conduct of the inhabitants of the Forest generally, the fruit, it may reasonably be assumed, of the many years of pious labour which the clergy and Christian teachers of the neighbourhood had bestowed on the people. The Act of 1841, under which the mines of the Forest were awarded, had, he said, been found most useful. Before the arrangements under this Act were effected, much quarrelling and litigation were continually taking place. The royalty paid by the various mines to the Crown amounted to £4,000 a year, and was steadily increasing; eight years ago it was only £700.

The evidence of Mr. Langham, the Assistant Deputy Surveyor, relates to the mode in which pit-timber and cordwood for the charcoal burner were supplied, as well as the method pursued in planting, being that of about 1,300 young oaks to the acre, and the same of larch, four feet apart. Mr. Nicholson, a tenant of the Park End Colliery, forcibly urged the construction of branch lines of railway, connecting the different works in the Forest with the leading lines, to the certain benefit of the coal-master, the consumer, and the Crown, the existing tramways being inadequate to their purpose.

Mr. Isaiah Teague took the same view, and further supported the recommendation that greater facilities should be given, not only to the mineowners to build cottages for their men, but also that the operatives themselves should be enabled to buy small plots of land for the purpose, they being now frequently obliged to live far distant from their places of work, there being few, if any, houses situated near them. These witnesses, as well as several others, agreed in stating that it was inexpedient to have deer in the Forest, as unsettling the habits of the people, and encouraging poaching. They yet admitted, however, that the deer were highly ornamental.

It was also stated in evidence that the Forest was now fully planted; and whereas some of the witnesses recommended that the larger portion of the wood should be cut, and the remainder converted into arable or pasture land, it was shown by others that to do so would be like cutting a crop of wheat whilst green, and be defeating the original intention of the

Government, which was to raise timber for the use of the navy, which the private woods of the kingdom could not supply. Much, too, of the soil was said to be unsuited for farming purposes, being so precipitous in some parts, and stony in others, as to be unfit for ploughing. Much of the timber was reported to be of the finest character, and the young trees, for the most part, doing very well. No improvements in the management of the estate were suggested, and at the close of the inquiry the committee reported that the plantations were growing luxuriantly, having been well thinned, and did credit to all concerned in their management.

The succeeding year of 1850 is chiefly noticeable for a general meeting on behalf of the fund for defraying the expenses of the contemplated Industrial Exhibition of all Nations, to take place the next year. It was held upon Wednesday the 12th of June, on the green in front of the Speech-house, under the presidency of Mr. Machen, supported by the magistrates and master-miners of the district. The day was fine, and at least 5,000 people attended—three bands of music accompanying them from the different sides of the Forest. A large waggon constituted the platform on which the speakers stood. The sight was a striking one, amidst the fine foliage of the surrounding Forest, and all passed off in a manner worthy of the occasion.

The Commissioners of Woods' Report, dated the 27th of June this year, informs us that gales of coal had been granted, under the names of the Beaufort Engine, Oaken Hill, New Bridge, East Slade (lapsed), and the Injunction Iron Mine—paying a total rental of £54. In November following this Forest contributed its quota of navy-timber, amounting to 388 loads 22 feet, towards the total of 1,000 loads levied upon the Royal Forests; which quantity was delivered at the Pembroke Dockyard at the cost of £992. 8s. for carriage. It may also be mentioned that at the Gloucester Summer Assizes of this year the action of Lord Seymour, as Chief Commissioner of Woods, *versus* Morrell, for arrears of dead rent which accumulated to the amount of £1,291 1s. 2d., was tried before Lord Chief Justice Campbell and a special jury, when a verdict was found for the Crown, subject to the opinion of the Court of Queen's Bench upon a special case, which proved, however, confirmatory of the original decision.

On the 30th of July, 1851, the official Report on the Forest was issued. It gives us the dates of three grants of land made this spring for school

purposes, situated at Viney and Blakeney Hill, and at Ruerdean Woodside. It also bears fresh testimony to the satisfactory working of the Act of 1 & 2 Vict., c. 43, for regulating the opening and working of mines and quarries, the litigation to which they had formerly given rise under the ill-defined and objectionable customs which had so long prevailed having almost entirely ceased. The actual amount annually paid to the Crown during the last six years was stated to be £4,281 17s. 4d., besides the profit made by the sale of pit-timber. Royalties and tonnage-dues were its chief sources, although arrears of minimum or dead rent had accumulated to the extent of £12,805 8s. 2½d.—payment having been refused in some cases on the plea that at certain times no minerals had been raised. Gales of coal had been granted to Cousin's Engine, Beaufort, and Fox Hole; and during the previous year 335,687 tons of coal and 80,531 tons of iron mine had been raised. This autumn arrangements were made for felling 553 loads of timber in the Forest, and 177 loads in the High Meadow Woods, for the use of the navy, under the Queen's sign-manual of the 7th of May.

In the following year (1852) there were two grants of land for educational and ecclesiastical purposes; one piece was for the site of a school at the Hawthorns, and the other for a parsonage attached to the new church at Lydbrook, which was consecrated on the previous 4th of December by Dr. Ollivant, Lord Bishop of Llandaff, acting for Dr. Monk, who was unable to attend.

During the months of April and June of this year the Right Hon. T. F. Kennedy, who, in October, 1851, had been appointed Chief Commissioner, visited the Forest of Dean, and was much struck with its fine character and great capabilities. Impressed with the conviction that it might be brought to yield a larger return to the Crown, he sought the advice of Mr. Brown, well known in Scotland as a surveyor of woods, who inspected the several plantations, and suggested that every encouragement should be given to the extension of railways through the Forest, and also recommended the erection of circular sawing power, for the purpose of reducing the timber to a portable size and shape for naval purposes, by which its value would be much increased, and the expense of carriage reduced. He likewise advised that the plan hitherto pursued of stripping the bark from the young oaks, standing, should be discontinued, and that the bark should be removed after the trees were felled, as being more convenient, and favourable to the

durability of the wood, and likewise as affording the earliest opportunity to the adjoining trees to shoot out into the vacant spaces. He also thought that the bark was better cured on stages raising it above the ground, than merely by setting it upon an end; and he suggested more frequent and moderate thinnings of the plantations, which for the sake of uniformity should be marked by the same person, thinning more on the productive soils than elsewhere. Mr. Brown considered, moreover, that fewer woodmen and keepers might suffice.

Accordingly the bark was this autumn dried on stages, and the number of keepers was reduced to three. The whole of the timber in Russell's Enclosure was felled, and the trees at Howler's Slade, Church Hill, Park End, and on the side of the road to Blakeney were marked for being so, with the exception of any very large or picturesque ones. At this time also the Lydbrook Deep Level Colliery, and the East Dean Deep Colliery, were awarded; and at the close of the year Mr. Machen resigned his office of Deputy-Gaveller, which was next held by Mr. Warrington Smith.

In the spring of 1853 all the timber on Church Hill, at Howler's Slade, and between the Blakeney Roads was cut down, forming what is now usually called "the great fall." The mode of management in the Forest was now rapidly changing, and Mr. Machen, the Deputy-Surveyor, decided this year to resign, after a service of well nigh half a century. He was succeeded by Mr. Brown. The flittern bark of this season was dried on stages, having been taken off the young oaks after they had been felled; but the process was not found to answer.

The Hagloe estate, situated between the Forest and the river Severn, was this year purchased by Government on account of its securing the best site for railway communication with the South Wales line, as well as for shipping timber, the river in that part being particularly favourable for the purpose. The formation of three distinct tramways was now also licensed, one from near Milkwall down to the Severn and Wye line, another from Speculation Colliery to the same point, and a third from the Ruerdean Woodside Colliery to East Slade.

In the next year (1854) a select Committee of the House of Commons sat during the month of June, under the presidency of Mr. Henry Drummond, to

collect information respecting “the management and condition of the Crown Forests.” So far as related to the Forest of Dean, the inquiry seems to have arisen from its being supposed that the timber therein, of which 7,800 loads had been felled during the two previous years, might have been sold at higher prices, and that the mode of stripping and drying the bark was defective. Yet it appeared in evidence that the price of the timber was about the same as such timber usually fetched in the neighbourhood, and that, upon the whole, the method of removing the bark from the trees whilst standing, and then setting it upright to dry, was as good as that of first felling the tree, and then stripping it and drying the bark on stages. Moreover, the portable steam saw, which had been sent to the Forest with the design of cutting the timber, as recommended by Mr. Brown, was found to be too small for the purpose, although it was as large as could be conveniently moved from place to place, and hence it proved of little or no use.

The Lords of the Treasury, desirous to satisfy the public and the legislature as to the state of Dean Forest in common with the other Crown Forests, directed Messrs. J. Matthews, William Murton, and W. Menzies to make a personal examination of them, and to report their opinion thereon. This they accordingly did in considerable detail. With regard to Dean Forest they say—“The enclosures were originally planted with extreme care, their situations judiciously chosen, the land well prepared, and the plants protected with nurses.” “Viewing these plantations as a whole,” they say, “we feel quite justified in representing to your Lordships that not only is their state such as to merit approval, but having reference to their regularity, growth, and prospective ultimate development, they are not surpassed by any Forest property in the kingdom.”

Whilst the condition of the Forest of Dean was being thus canvassed, its management had been entrusted to Mr. Brown; but after a few months he was removed, and at the particular request of Government he was succeeded by Mr. Machen, until a permanent arrangement should be made, which was not, however, before the 11th of November, when the office was conferred on Sir James Campbell, Bart., heretofore Deputy-Surveyor of Bere and Parkhurst Forests, and now selected for the ability he had shown in their management. The Treasury Letter announcing his appointment also states that “after the satisfactory opinion conveyed in the Report of Messrs.

Matthews, Menzies, and Murton regarding the system of management heretofore followed in this Forest, the time has come when Mr. Machen may be honourably relieved from the charge which he so long ably fulfilled, and which he resumed at the request of this Board.”

During this year (1854) no less than 4,982 acres 1 rood 20 poles of plantation were thrown open, comprising the enclosures of Haywood, Edge Hills, Ruerdean Hill, and Aston Bridge. The following licences were likewise granted:—To the Messrs. Kingsford for constructing a length of tramway connecting the Woodside Colliery with a terminus to be formed at Church-way; to Messrs. Allaway for making a tramroad from the Plumphill to their iron-mine at Wigpool; to Messrs. Davis, Cooper, and Roberts to open a brickyard, and to sink additional iron-pits at Cinderford, Clearwell, and Lamb’s Quay.

In 1855 information was sought to be procured as to the expediency of removing the dead wood from growing oak-trees. The practice hitherto had been not to do so, a course of which a large number of timber merchants, whose known experience justified their being consulted, expressed their unanimous approval, declaring it far better to leave its removal to nature. Another interesting investigation was now also instituted, relative to the suitability of the Deodara pine as a Forest tree. Upwards of 120,000 plants had been raised from seed, supplied by the East India Company, in four private nurseries, half of which were distributed in Dean Forest and the New and Delamere Forests; but it is yet too early to afford any definite results. The young plants, however, appear to be particularly susceptible to frost.

On the 31st of March in this year the Hon. James Kenneth Howard was appointed one of the Chief Commissioners to administer the affairs of the Royal Forests, the Hon. Charles Gore having for some time, after Mr. Kennedy’s retirement, been the sole Commissioner.

Three additional coal-mines, called Richard White’s Colliery, Hollow Meadow ditto, and Ruardean ditto, besides an iron-mine, called Maxwell and Brooklyn Mine, were now granted, besides six stone-quarries and another brickyard. Licence was also granted to Messrs. Crawshay to connect their extensive colliery at Light Moore with the main line of

railway near Cinderford, on the broad gauge principle, besides four other licences to connect various other works with the chief lines of traffic by short lengths of tramway.

It may be here remarked, that two years previously an inspector was appointed to view the timber intended to be felled for the navy before its being cut, and the following table exhibits the proportion of timber received at the Dockyard before and since the adoption of such a plan, showing its great utility:—

DEAN FOREST.		HIGH MEADOW.	
1851	48 per cent.	1851	22 per cent.
1852	44 „	1852	31 „
1853	30 „	1853	no fall.
1854	no fall	1854	„
1855	65 per cent.	1855	92 per cent.

On Tuesday, the 22nd of January, 1856, an important meeting took place at the Speech-house, Sir J. Campbell taking the chair, assisted by the Rev. H. W. Bellairs, Her Majesty's Inspector of Schools, with the object of attempting to raise the standard of teaching in the schools of the district, eighteen in number, the Crown contributing to the support of each of them. The meeting was largely attended, especially by the neighbouring clergy, and resulted in a period of five years being allowed to the managers of such schools to secure the services of certificated or registered teachers, and to adopt a scale of payments by the children, graduated according to the rental or rateable value of the tenements occupied by their parents. The formation of a central school, adapted for educating youths for filling responsible situations in the iron and coal works of the Forest, was likewise recommended, and is obviously desirable. Changes were also now made, with a view to economy, in the staff of woodmen and labourers on the Forest, whereby an annual saving, both immediate and prospective, would be obtained.

With the exception of a few decayed timber trees being felled in the course of the following year (1857), there is nothing requiring further notice, and I

therefore here close the historical account of the Forest, and shall proceed in the following chapters with the other objects of inquiry which have been indicated.

CHAPTER IX.

THE ORIGINAL OCCUPIERS OF THE FOREST.

The inhabitants of the Forest—Its Aborigines—Celtic indications in the names of persons and places—The forty-eight free miners' names appended to their book of "Dennis," contrasted with the present roll of free miners—Traces of Saxon and Norman influence—Early civilization indicated in the methodical character of their mine laws, and in miners being summoned to several sieges, qualified by their acts of plunder—Successive notices of the inhabitants during the last 150 years, with their present improved condition—Kitty Drew, the Forest poetess—Mining usages described—Order for pit timber—Miners' Court and Jury—Richard Morse's poem—Intelligence of the present race—Their superstitions, self-importance, defects of character—Occupations—Domestic animals—Beverage—Dress—Dwellings—Diversions—Dialect—Christian names—Former distribution of population—Present numbers.

The heading of this chapter refers to one of the most interesting circumstances connected with the Forest of Dean, namely, the origin, character, customs, and early condition of its people.

The original occupiers of this part of the kingdom, according to Richard of Cirencester, a writer of the 14th century, were the Silures, an offshoot of the immense Celtic family by which the middle and western parts of Europe were overspread. The numerous remains left in the district by the Romans indicate that there had been considerable intercourse between them and the inhabitants; but the chief influences of which any traces are left appear to have descended from the Welsh, with whom the foresters of the present day still seem closely to assimilate. Hence their somewhat impulsive

temperament, and the occurrence of Celtic or Silurian names, such as the following, indicative of the character of the places they designate:—

Dean *i.e.* Woodland.

Lidney „ Broadwater.

Awre „ yellowish.

Bicknor „ above the river.

Lydbrook „ a river's shore.

Penyard „ the hill-top, &c.

There are also many families bearing the Welsh names of Williams, Morgan, Pritchard, Watkins, Roberts, Gwilliam, Hughes, Jenkins, Griffiths, Lewellyn, &c. The list of the forty-eight free miners constituting the jury who signed the Book of Mine Laws some 400 years ago, containing so few of those which are now most common in the neighbourhood, indicates a considerable change as having taken place in the population; they may be thus classed:

Not now to be found on the roll of free miners—Garone, Clarke, Wytt, Nortone, Mitchell, Lumbart, Ocle, Barton, Heynes, Arminger, Rogers, Hathen, Miller, Croudfell, Dull, Loofe, Forthey, Walker, Tinker, Witch, Delewger, Doles, Hinde, Tellow, Backstar, Lawrence, Dolet, Caloe, Holt; in place of which names the following now occur—Baldwin, Cook, Dobbs, Hale, Jenkins, Kear, Morgan, Philipps, Harper, Davis, Meek, Brain, Jones, Jordan, Robins, Rudge, James, Milnes, Marfell, Chivers, &c. The names of Hathway, Skin, Baker, Holder, and Warr still appear in the Forest, although they no longer occur on the rolls of free miners.

Yet to be found on the rolls—Preeste, Smith, Addis, Burt, Hopkine, Tyler, Roberts, Parsons.

Similar traces of Saxon or Norman influence appear in the words Staunton, Newnham, Newland, Ayleford, Coleford, &c.; those of a Norman stamp being apparent in St. Briavel's, Ruerdean (*i.e.* rivière Dean), Lea, Coverham (Covert), &c., or in the family names of Baldwin, Waldwin, Chivers, &c. To which may be added the circumstance that in most of the ancient churches adjoining the Forest there are portions of Early Norman, viz., Newnham, Staunton, English Bicknor, Ruerdean, Woolaston, St. Briavel's, &c.

Assuming that “the customs and franchises” of the miners of the Forest were first granted to the inhabitants by William I., they certainly show, for that early period, a highly creditable appreciation of justice, order, and right feeling. Their skill in the use of the bow, and in excavating the soil, is proved by the attendance demanded of them at various sieges during the first half of the 14th century; but their outrageous interruption of vessels navigating the Severn in the reign of Henry VI., and in one instance even so late as in that of George III., illustrates the common truth that “every field has its tares.” Probably the troubles of the Great Rebellion would have little affected them, had they been left to themselves, their warmth of feeling being chiefly manifested when they apprehended danger to their “customs and franchises:”—hence Dr. Parsons’s character of them:—“The inhabitants are some of them a sort of robustic wild people, that must be civilized by good discipline and government.” Such was no doubt their state and condition 150 years ago. In 1808 they were described as “not very orderly;” in 1810 as being in a condition “nearly as wretched as anything now existing in Ireland,” and as “exceedingly excitable,” prone to make unlimited demands in opening and carrying on their works, destroying the timber for such purposes, so as ultimately to leave hardly a tithe for the supply of the Royal dockyards, perpetually at strife amongst themselves, so jealous of any “foreigners” coming into the Forest as to deter most persons, and highly suspicious of any efforts to improve the property of the Crown, even when intended for their personal good, repeatedly destroying the new plantations, and terrifying the adjoining districts by forming riotous mobs. Yet the Chartists from Newport and places adjacent, in 1840, met with no sympathy from the Foresters, who drove their delegates away.

Happily for all parties these evils have almost entirely disappeared, through the good success which Providence has vouchsafed to the late judicious laws for regulating the mines, settling the relief of the poor, and establishing churches and schools in every part of the Forest. The former state of things was in fact the effect of the exclusive and protective rights, with corresponding usages, of which the well-meaning but short-sighted inhabitants thought so much; and hence their Magna Charta, as they were wont to call their book of “Dennis,” was rather a mischief than a benefit. Their general feelings are characteristically described in the following lines

from the pen of worthy Kitty Drew, the self-taught Forest poetess, in her poem on the Forest of Dean, dated 1835:—

“In days of old ’twas here and there a cot,
Of architecture they’d little knowledge got;
None but a few free miners then lived here,
Who thought no harm to catch a good fat deer,
Or steal an oak—it was their chief delight.
Old foresters, I’m told, did think ’twas right
To steal an oak, and bear it clean away;
But caught, the jail a twelvemonth and a day
It was their doom, or else must pay a fine,
The which to do they did not much incline.

* * * * *

“But noble miners there have been, I ken,
By their old works, stout, able-bodied men;
They’d not the knowledge then that now they’ve got,
To work by steam—hand-labour was their lot.
But I am told that many ages back
A foreign army did our land invade,
And blood and carnage then was all the trade;
They pitched their tents, and then without delay
They waited anxious for the bloody fray;
But our bold miners underneath did get,
And many a ton of powder there did set;
So up they blew the unsuspecting foe,
Their shattered limbs came rattling down below.
Our land thus cleared, our liberty thus saved,
Our noble miners dug the caitiffs’ grave.
The King with honour did them so regard,
Made them free miners as a just reward;
The Forest Charter to them granted was,
And firm and sure were made the Forest laws.
In former times they gloried in the name,
But now the foreigners have got the game.

* * * * *

“The Forest now is numerous got of late,
Since moneyed men come here to speculate
Where once a little turfen hut did stand,
You’ll see a noble house and piece of land.
Deeper the pits than any here before,
The lowest vein of coal for to explore.
They were but shallow pits in days of old,
They’d not the knowledge then, as I am told;
But though there was not then great learning’s store,
It was much better for the labouring poor;
Men loved their masters—masters loved their men,
But those good times we ne’er shall see again.”

A mining population is generally found to have peculiar customs and privileges of its own, and such is more especially the case with the free miners of the Forest of Dean, who have had hitherto their own Court of Justice, with the exclusive occupation of the district, and the sole control of its mineral wealth. Their claims are thus specified by the Dean Forest Commissioners:—“Every free miner duly qualified by birth from a free father in the hundred of St. Briavel’s and abiding therein, having worked in the mines a year and a day, claims the right to demand of the King’s gaveller a ‘gale,’ that is a spot of ground chosen by himself for sinking a mine, and this, provided it does not interfere with the works of any other mine, the gaveller considers himself obliged to give, receiving a fee of five shillings, and inserting the name of the free miner in the gale-book. The gaveller goes to the spot selected with the free miner making the application, and gives him possession with the following ceremonies:—The gaveller cuts a stick, and, asking the party how many vens or partners he has, cuts a notch for every partner, and one for the King. A turf is then cut, and the stick forked down by two other sticks, the turf put over it, and the party galing the work is then considered to be put in full possession. The free miner, having thus obtained possession, is compelled to proceed with the work by working one day in the following year and day, and a day in each subsequent year and day (forfeiting the gale if he fails so to work), and to pay an annual sum of two guineas to the gaveller for each vein of coal he intends to work, till he gets at the coal, after which he agrees with him for

the amount of the composition to be paid to the King in lieu of his fifth, which, in case of their not agreeing, must be taken in kind by the King's putting in a fifth man. The right to the gale is considered by the free miner to carry with it that of timber for the use of the works; this seems to extend no farther than to the offal and soft wood; and the mode of obtaining it is for the miner to apply to the keeper of the walk in which his mine is situated for an order, which he takes to the clerk of the Swainmote Court, who, on receiving a fee of one shilling, as a matter of course gives him another order directed to the keeper of the walk in which there is timber fit for the purpose," in the following form:—

Copy of a Warrant or Order for the Delivery of Timber to a Coal Miner in Dean Forest.

"[Forest of Dean.] At the Court of Attachments, holden at the Speech House, the 25th day of Sep. 1784, came Phil. Hatton, and demanded Timber for himself and Verns, for the Use of their Coal Works called Young Colliers, in Ruerdean Walk, within the said Forest.

"JNO. MATTHEWS, Steward.

"To Mr. John Bradley, Keeper of the said Walk.
(by Certificate.)

"Some Timber to be delivered fit for sinking.
Indorsed '4 Oaks.'

"The miner cuts the timber when assigned, and until within about the last ten years paid a fee of two shillings to the keeper, there being no limit to the amount of timber if applied for the use of the works. If the gale-ground was situated within the hundred of St. Briavel's, but belonged to private parties, the free miner still claimed his right to open the ground, the proprietor being let in as a partner, making a sixth, the only exception being churchyards, gardens, orchards, and Crown plantations."

A jury of twelve, twenty-four, forty-eight, or seventy free miners, under the auspices of the Constable of St. Briavel's Castle, or his deputy, enacted such mine laws as the interests of the body seemed to require, administering them without any appeal, or permission to resort to another court of law.

The witnesses in giving evidence wore their caps to show that they were free miners, and took the usual oath, touching the Book of the Four Gospels with a stick of holly, ^[149a] so as not to soil the Sacred Volume with their miry hands. These singular usages explain the observation of the Rev. H. Berkin that “the inhabitants are completely *sui generis*,” and “their exact situation can scarcely be understood except by those on the spot,” as likewise the sentiment which the Rev. H. C. H. Hawkins expresses—“by altering the character of the Foresters, a curious relic of antiquity might be destroyed, to my regret I must own, as I feel desirous to preserve so singular a specimen in all its purity.”

In the year 1832 the Rev. C. Crawley stated, “I think the moral character of the inhabitants has been much improved by the building of churches; heinous offences are very rare in the Forest:” and in 1849 Mr. Machen said, “A great change has been wrought in them; there is a very great difference in their habits now, certainly.” ^[149b]

The Forest miners of the present day are well acquainted with the geological structure of their neighbourhood, more especially with the out-crop, succession, and dip of the mineral veins. In short, their natural endowments are fully equal to the general standard, and only require cultivation, as frequently appears from the quickness with which they detect the bearings of any pecuniary transaction, and their proneness to litigation. Many superstitions, however, still linger amongst them, such as the use of charms and incantations, a belief in witchcraft and an evil eye, a resort to “wise men,” and even to the minister of the parish as being a “Master of Arts,” or for some of the offertory money, out of which to have a charm-ring made. They are likewise inclined to give credence to tales of apparitions, and to regard sickness and accident as fated and inevitable. From their having been for so many generations an isolated and peculiar people, most of them are ignorant of the rest of the world, and have of course a correspondingly exaggerated idea of their own importance. It is pleasing to observe the sympathy they manifest towards the sick amongst them, or such as have been accidentally injured; and although most independent in their notions, and impatient of control, they seem always thankful for real kindness. What they chiefly lack is more generosity and candour towards strangers, and a clearer understanding of their duties as protectors of the national property, in respect of the crops of timber which

grow around them. ^[151] In most mining districts the moral habits of the people are more or less in a low state, and they are certainly not worse here than elsewhere. One source of evil arises from the large ablutions which their working underground necessitates. The process of washing on their return from the pit is not performed as privately as it might be, and the effect of this upon the moral perceptions of the people, huddled together in their small cottages, is very injurious. It is a pity some arrangement is not made for having washhouses at the pits, where a supply of hot water from the boilers might be easily obtained for the purpose.

One half of the Forest population is understood to be employed at the coal-works, a fourth part at those of iron, whose red dresses make them easily known, and the remaining portion are employed in the quarries and woods, &c.

Horses of a bad breed, donkeys, mules, cattle, sheep, pigs, and geese abound, owing to the free pasture afforded by the open Forest, the three former having been used for many generations in carrying iron-mine, coal, charcoal, &c. Farming operations are necessarily very limited. Cider obtained from the styre apple used to be a common beverage; but that fruit has long been extinct, and malt-liquor is now mostly preferred. Gardening is little attended to, the colliers generally feeling indisposed to further exertion after returning from the pit. In few instances only are bees kept. Formerly much of the wearing apparel was made from home-spun wool, woven or knitted in the neighbourhood; but this is not now the practice.

The turf-covered cabin, resting on four dry walls, without windows, and pierced only by a low door, with a very rude fireplace and chimney in “the pine end,” and partially paved with rough stones, once the habitation of the Forest “cabiner,” is now almost entirely superseded by two-floored cottages, often containing not less than four apartments. In bygone days a few neighbours, taking advantage of a moonlight night, accomplished the erection of a cabin ere the morning dawned, in which case it was supposed that the keepers had no power to pull it down. To show the eagerness with which poor families sought to establish themselves in the Forest, it may be mentioned that they took possession of the ancient mine-caves, walling up the back and front, leaving a vent for the smoke in the former, and in the latter a gap as an entrance.

Their pastimes used to be dancing and foot-ball, to the great delight of people of all ages: indeed there are several spots yet called from the above circumstance “the dancing green.” Wakes were likewise very popular, and also the game of fives, so that at Ruerdean one side of the church tower was whitewashed for the purpose, and resorted to even on Sundays. Some of the provincialisms of the district occur in the following words—“yat” (gate), “tump” (hillock), “teart” (sharp), “spract” (lively), “twich” (touch), “near a anoust” (near the same), “anunt” (opposite).

Peculiarities also occur in the selection of Christian names, including these—Benedicta, Abia, Winifred, Kezia, Barzillai, Sibylla, Eve, Saba, Sabina, Beata, Tryphena, Belinda, Myra, Terzah, Nimrod, River, Milson, Miles, &c. [\[152\]](#)

On account of the dense woods with which the Forest was anciently covered, added to the fact that except at Newland, and perhaps at Park End, no churches were built within it, we may conclude that at an early period its population was small, the persons engaged in the iron and coal works then living, as many of the working people do now, in the adjoining parishes. Our earliest information as to the number of inhabitants residing within its present limits relates to the time of the Commonwealth, when “400 cabins of beggarly people living upon the waste, and destroying the wood and timber, were thrown down.” In 1712 Sir R. Atkins states that “there had been many cottages in it, but that they had been lately pulled down, leaving only the six keepers’ houses.” He gives 6,090 as the total population of the outlying parishes, thus distributed:—

Mitcheldean	600
Little Dean	620
Newnham	400
Blakeney	250
Lydney	700
Newland	800
Clearwell	600

Coleford	600
Bream	300
Le Bailey	200
Staunton	220
Ruerdean	500
Bicknor	300

Total	6,090

At the close of the century, the Forest, as now bounded, comprised 589 houses, which in 1803 had increased to 696, the number of free miners being then 662. Since that time the inhabitants of the Forest have gone on increasing as follows:—

In 1821 they were 5,525

In 1831 „ 7,014

In 1841 „ 10,674

In 1851 „ 13,252

of whom about 1,789 have the right of voting for Members of Parliament. The annual value of property existing in the Forest, not belonging to the Crown, was estimated in 1849 at £13,603 14s. 2d., and in 1856 at £18,492 17s. 7d.

CHAPTER X.

Churches and schools—Religious provisions before the Reformation—Rev. P. M. Procter, Vicar of Newland, lectures in Thomas Morgan's cottage—The erection of a place for worship proposed—Rev. H. Berkin opens a Sunday-school—Mr. Procter uses his chapel schoolroom—Mr. Berkin lectures in the Foresters' cottages—Builds Holy Trinity Church (1817)—His assiduous labours and death in 1847—Christ Church, Berry Hill—Mr. Procter's death—His successors—Rev. H. Poole builds St. Paul's, Park End, and schoolrooms—Rev. J. J. Ebsworth—St. John's, Cinderford, consecrated 1844—Lydbrook Church consecrated 1851—Government aid to the churches and schools.

Previous to the Reformation, care seems to have been taken to provide the population of the Forest with the means of religious worship. The border churches of Mitcheldean and Newland were far larger than the people residing in their immediate neighbourhood required; and there were others, of which the memorials only remain in the names of "Chapel Hill" and "Church Hill," the former in the parish of English Bicknor, and the latter at Park End. This last was connected apparently with Ruerdean, if we may judge from the "Churchway" which ran in that direction and gave the name to an adjacent colliery. The "Laws and Customes" of the free miners, dating as far back certainly as the year 1300, show that the services of the Church were then generally known—the King's Gaveller being therein directed to visit the mine "between Mattens and Masse," and the miner was to "swear by his faith." For 200 years after the Reformation no further provision was made, indeed none was apparently required, as the Forest had been more than once nearly depopulated during that period, and was said to be almost without inhabitants in 1712.

In common with many other mineral districts, especially those in the West, the Rev. John Wesley established a connection with our Forest miners. He visited Coleford as early as 1756, and did so again in 1763; and his Journal thus records these visits:—"Monday, 15th March, 1756.—We reached Coleford before seven, and found a plain loving people, who received the word of God with all gladness. Tuesday, 16th.—Examining the little society, I found them grievously harassed by disputations. Anabaptists were on one side, and Quakers on the other; and hereby five or six persons have been confused. But the rest cleave so much the closer together. Nor does it appear that there is now one trifler, much less a disorderly walker, among them." Wednesday, 17th (August, 1763).—"Hence we rode to Coleford. The wind being high, I consented to preach in their new room; but large as it was, it would not contain the people, who appeared to be not a little affected, of which they gave a sufficient proof by filling the room at five in the morning."

It appears, also, as stated in the interesting MS. of worthy Mr. Horlich, an Independent Minister, that in the year 1783 "one Mr. Stiff occasionally, on the Lord's Day, went to some sequestered spot in the Forest, where himself and some of his family took their station under the extended branches of one of the trees, for the purpose of reading the Word of God."

But no sustained effort to impart religious instruction to the inhabitants of the Forest was made until 1803, when the Rev. P. M. Procter became Vicar of Newland, to which parish the Foresters were always considered to belong. "At this time," he says, in his 'Brief and Authentic Statement,' published in 1819, "I saw nothing of them on the Sabbath-day. The church was only used by them as a matter of course and necessity: indeed, a general opinion prevailed that they had no right to accommodation, and a Forester was seldom seen in the aisle. The first impression I received respecting the inhabitants was of the most unfavourable kind. For some months no other intercourse took place than what the visiting of the sick and the baptizing of the children occasioned. By these means, however, I came to the knowledge of their condition, their lives and conversation, of which the latter were the most deplorable—habitual profanation of the Sabbath-day, drunkenness, rioting, immodest dancing, revellings, fightings, an improper state of females on their marriage, and an absence and ignorance of the Holy Scriptures."

Mr. Procter then goes on to relate how he was brought to attempt their improvement.—“After a few months’ residence I was invited to take the afternoon duty of the chapel at Coleford. Curiosity brought some of the colliers to hear, and the report they carried home with them induced others to come and judge for themselves. We passed on very quietly for a little time, when a collier, named Thomas Morgan, sent to request that I would call upon him. I did so. After the accustomed salutations were passed, he assigned certain impressive reasons for wishing to see me, and, in stating them, his eyes, his voice, and humble gesture strongly marked the agitated feelings of his soul. After an interesting conversation of two hours, I promised, at his request, to call upon him again the following week. On taking my leave he said, ‘I hope your honour will not be offended, but some of my relations and neighbours are in the same ignorant state as myself; they would be happy to hear your conversation, and with permission I will ask one or two to come.’ Under the impression of a private conversation with six or eight people, I went to the cottage at the time appointed. Upon laying my hand on the latch of the door, the opening of it was prevented—the resistance proceeded from the number of people collected within. A profound silence prevailed. The collier smiled and looked for a pardon. Astonished at this unexpected scene, not being accustomed and perfectly unprepared to address such an assemblage, I felt for some moments at a loss how to proceed. But there was no time for hesitation; taking the Bible, the 61st of Isaiah was the chapter read and commented upon. The attention with which the poor heard, the very humble manner in which they returned thanks, and the earnest hope they expressed that I would come again, made a deep impression in their favour. Under these circumstances I was led, as it were, unintentionally to the commencement of those lectures which continue to the present time (1819). The first effects of these lectures were seen in the observance of the sacred duties of the Sabbath-day; our congregations at Newland increased, and the aisles of the church became occupied, in which the Foresters were now seen. Year after year passed away, the Thursday evening lectures continued to be well attended, the moral habits of the people improved, and a knowledge of the Scriptures obtained. Religion had evidently taken root; much was effected, but infinitely more remained to be done. The means only were wanting—the opportunity was present. *Could we raise a building to contain about 200 people?* Such were our limited views at that time.”

In 1807 a memorial was drawn up and signed by some hundreds of miners and colliers, praying the officers of the Crown to grant a portion of land on which to erect a lecture-room, and also timber for building it. Dr. Huntingford, the Bishop of Gloucester, presented the petition to Government; but the law officers of the Crown, Sir S. Romilly and Sir A. Piggott, found that it could not be carried into effect without an Act of the Legislature. Under Mr. Perceval's administration, Mr. Procter renewed the attempt by a personal interview with that minister, who, whilst expressing his deep regret that he could not officially assist, suggested an appeal to the public, to which he would give his name and support, as well as an application to the National Society about to be formed. To him, in fact, is due the insertion at this juncture of the clause in the Act of 52nd George III., chap. 161, sec. 27, to enable the Commissioners of the Treasury to appropriate small portions of land, not exceeding five acres, for ecclesiastical purposes, and which has facilitated the erection of the Forest churches.

Closely resembling the above efforts were those made on the north-east side of the Forest by the Rev. H. Berkin, which he commenced about the year 1809, when curate of Mitcheldean. He writes—"Finding the miners and colliers of the Forest, adjoining that parish, too generally living in the neglect of moral and religious duties, I considered it a duty to attempt their improvement." In January, 1812, he opened a school-room in Mitcheldean, which he had built mainly at his own expense, although he was afterwards assisted by his private friends, and in particular by a liberal donation from the Duke of Beaufort, and eventually by a grant of £50 from the National Society, £100 being given at the same time to Mr. Procter's building-fund—these were the very first donations to country schools made by that estimable institution. Mr. Berkin's school was at once attended by 140 scholars, and ultimately 350 came. In the first Report of the National Society it is stated that "many of the parents expressed their acknowledgments to Mr. Berkin with the tears in their eyes, exerting themselves to the utmost to enable their children to be constant in their attendance, in spite of the numerous difficulties with which they had to struggle—such as the distance of the schools, the wretched state of the roads in bad weather, and the extreme poverty of the people, which makes it

a hard matter for them to clothe their children properly, and to furnish them with a slice of bread for their dinner.”

Returning to Mr. Procter’s exertions to erect a building for the two-fold purpose of divine service and juvenile instruction, he found consolation for former disappointments in the following pleasing offer of Thomas Morgan, the poor cottager already mentioned:—“Take my field,” said he. “With that I give you five guineas, to which my neighbours have added £15. We ask of you only to begin and build until the money is expended; in another year we will again add our mites; only lay the foundation and begin.”

Accordingly, in the month of June, 1812, the building was commenced, and (aided by the subscriptions which were received, especially from the Duke of Beaufort, the Lord Bishop of Gloucester, and his secretary, Mr. Ryder) was so constructed as to admit of its being hereafter enlarged and consecrated. “On the Epiphany, 6th January, 1813, the public service of the Established Church was, for the first time, read within its walls, under the authority of an episcopal licence; but on the commencement of Sunday duty a painful circumstance presented itself which had not been anticipated, viz. an astonishing inattention to the prayers of the Church: all appeared a blank—no interest, no spiritual concern. The cause was evident in the want of prayer-books, soon however supplied by the Society for promoting Christian Knowledge, and one of the bishops of the Church. A schoolmaster, Mr. Edward Hawkins, previously sent to the National School in Baldwin’s Gardens, immediately commenced the education of the children—300 being entered the first week. On every Thursday evening throughout the year the scholars were examined in the presence of a congregation assembled for public worship—a mode of instruction which gave a laudable excitement to the children, by means of which they acquired a firmness of mind, a clear, distinct pronunciation, and an accuracy in their delivery, which was very gratifying to the hearers, whilst it gave to the parents and relations an opportunity of observing their progress by the system of education. Through this medium, also, many a truth has been taught, many an impression made, where preaching had not succeeded.” “By this time,” proceeds the same excellent man, “the principles and motives of my exertions being made apparent, all the little prejudices were softened down, if not into approval, at least into a passive silence, particularly as another clergyman, the Rev. H. Berkin, was zealously

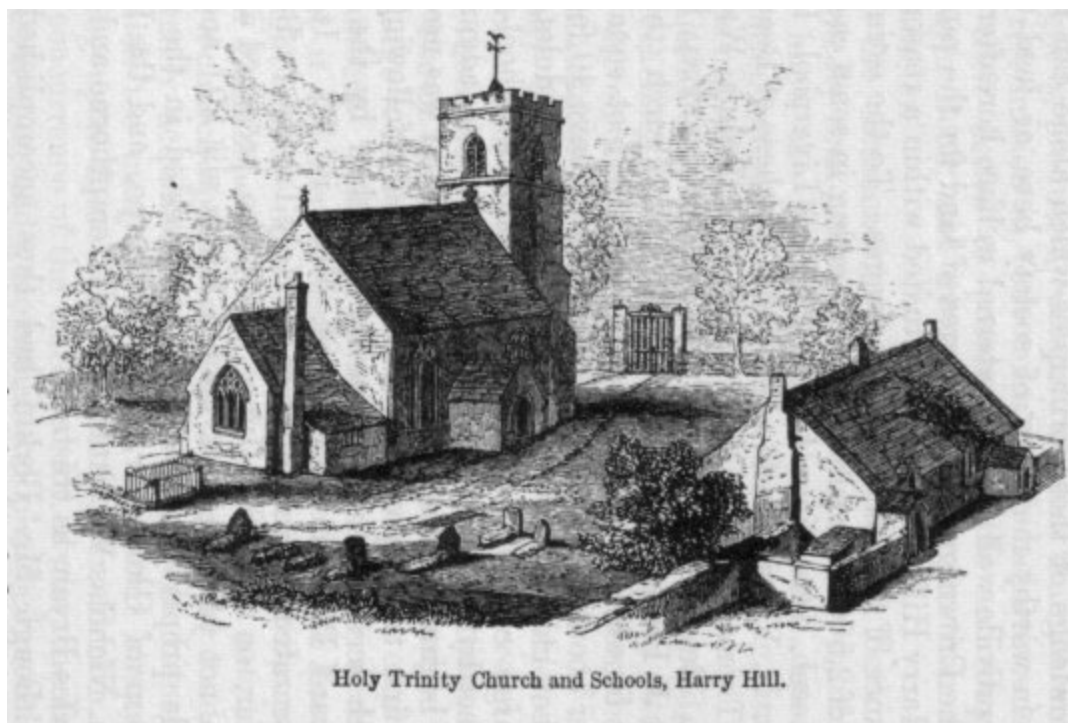
pursuing the same line of conduct on the other side of the Forest, who began this year (1812) to lecture in the cottages there, as his next attempt to benefit the parents and children connected with his school.” He says —“Finding that few, by comparison, attended public worship, I visited them in their cottages to read and explain the Bible; and I was led to adopt this plan from the particular situation of the Foresters, destitute of churches or ministers whom they could properly call their own. In these pastoral visits, made on different evenings in different places, and in which I have usually spent two hours in reading and practically explaining the Holy Scriptures, I have sometimes had 200 persons present at one time, and calculate on the whole that 800 at different times have thus come under instruction. Many instances might be produced, certainly not less than 20 families, of reformation in both sexes, which had evinced itself in their desire to possess the Bible and Common Prayer Book, and by a total change in their moral character.”

At the commencement of his career Mr. Berkin was repeatedly remonstrated with by respectable gentlemen who knew the locality better than himself, upon his venturing amongst the Foresters alone, assuring him that it was not safe, since, a very short time before he came to Mitcheldean, two Wesleyan ministers attempted open-air preaching in the Forest, but were violently attacked and driven away. He thus proceeds to describe the circumstances which led to the erection of Holy Trinity Church:—“At one of the places which I am accustomed to visit, where the heat and crowd have at times been almost insufferable, the colliers, aided by two or three neighbouring farmers, offered to build a large room for the better accommodation of greater numbers. This, for obvious reasons, was declined; but it led me earnestly to wish that the Foresters might be more immediately brought within the pale of the Established Church, and, by regular attendance on a church appropriated to themselves, be made habitually acquainted with that admirable Liturgy to which too many of them are now utter strangers.” Acting upon these earnest feelings, Mr. Berkin, with the concurrence of the esteemed Dr. Ryder, the Bishop of Gloucester, laid a memorial and plan before Government, with an offer, on his part, that, “if the needful fund for building a church and parsonage-house could be provided, he would give up his present curacy and serve the new church without any further emolument than the endowment necessary

for its consecration.” In the concluding terms of an admirable address to the public, dated the 30th April, 1816, which he circulated with the design of obtaining contributions to the work, he stated—“My wishes are, that the kind contributors will feel rewarded in the reflection that thousands yet unborn may have cause to bless them for thus providing for their spiritual wants, and giving them the knowledge of those principles which alone can make them worthy members of society here, or lead them to provide well for their eternal welfare hereafter.”

The Crown granted five acres of land for the purpose on Harry Hill, being a spot situated within a reasonable distance of from 250 to 300 cottages. To the estimated cost of £2,500, contributions, amounting in some cases to £30 each, were given by the Earl of Liverpool, Right Hon. N. Vansittart, the Duke and Duchess of Beaufort, Sir Thomas Baring, Lord Calthorpe, Joshua Watson, Esq., Rev. H. H. Norris, W. Wilberforce, Esq., M.P., Rev. J. Pratt, &c. The building of the church (the design of which comprised a chancel 15 feet square, a tower about 60 feet high, and a body or nave 40 feet by 60 feet, calculated to hold from 400 to 500 adults, and a large children’s gallery, for whom a school-room 30 feet by 50 feet was also to be built close adjoining) was begun on the 4th of June, 1816, and was used for the first time upon the 2nd of February following, on which occasion the sermon was preached by the Rev. Edward Bickersteth, from St. Matt. iv. 16. It was consecrated, as the Church of the Holy Trinity, by Bishop Ryder, on the 26th June, 1817, who preached a sermon, not yet forgotten, upon 1 Kings viii. 30; and the whole property of the living was vested in the Lord Bishop of Gloucester, Lord Calthorpe, and the Right Hon. Nicholas Vansittart, Rev. J. Kempthorne and Rev. Charles Bryan, as trustees.

Although Mr. Berkin had thus accomplished the important object of providing the inhabitants of the north-east portion of the Forest with “a church which they could call their own,” he felt that it yet remained for him to make the building really useful to the people by imparting to them more and more just views of the Christian life. Accordingly he laboured if possible more abundantly than ever amongst them, visiting their houses at short intervals, collecting neighbours together, and expounding the Holy Scripture to them under their own roofs, or else opening the church so as to draw them off from the corrupting pastimes which were common at certain times of the year, and bestowing much pains on his Sunday school.



Sometimes, when necessitated to take relaxation, and to go from home for a few weeks, he improved the time by acting as a deputation for the Church Missionary or Bible Societies, and even now his name is remembered in distant parishes. The Missionary Association for which he acted as secretary, and which was called the North-east Forest of Dean Branch, sometimes contributed £220 a year to the cause, or a total of £3,300. The appliances, now so generally known, for interesting the young were even then in actual operation in his own school, and effected their purpose well. His monitors and sub-teachers were carefully guided by him; and no doubt with the design of duly impressing its importance upon his scholars, holy baptism in accordance with the rubric was always administered during divine service, after the second lesson, and this took place most Sundays, as the register shows.

Few clergymen took more pains than Mr. Berkin with the communicants of the church, who were always visited before the communion day, and who generally presented themselves to the number of about seventy. On two occasions valuable livings were offered to him; but, said he, “since my ministerial work began in this neighbourhood, here it shall end,” as it accordingly did, after forty years of labour, on the 11th October, 1847. He was buried in his own churchyard, being followed to the grave by his

sorrowing people, and worthily committed to the tomb by the Rev. James Davies, of Abbenhall. His funeral sermon was preached by the Rev. H. Poole, who took for his text 2 Tim. iv. 6–8. ^[163]

A rapidly increasing population, and unfortunately not a concentrating one, compelled Mr. Berkin's successor (the writer of this work) to meet its wants by erecting chapel school-rooms, for the accommodation of sixty scholars each, in the hamlets of Woodside and the Hawthorns, the former having been in use since 15th September, 1850, and the latter since 31st December, 1851, to the lasting benefit, he trusts, of many of the rising generation through the Divine blessing on the conscientious efforts of their respective teachers. It was by such a method that Mr. Berkin acted, when, in the year 1822, he caused a chapel school-room to be built at Lydbrook, judging that place to be sufficiently populous and distant from the nearest church to justify such an erection, not as being a full provision for it, but hoping that eventually a church might be built there, which has now been satisfactorily accomplished.

The following clergymen have successively officiated in the district of Holy Trinity:—

Incumbents.—H. Berkin, 1817; H. G. Nicholls, 1847.

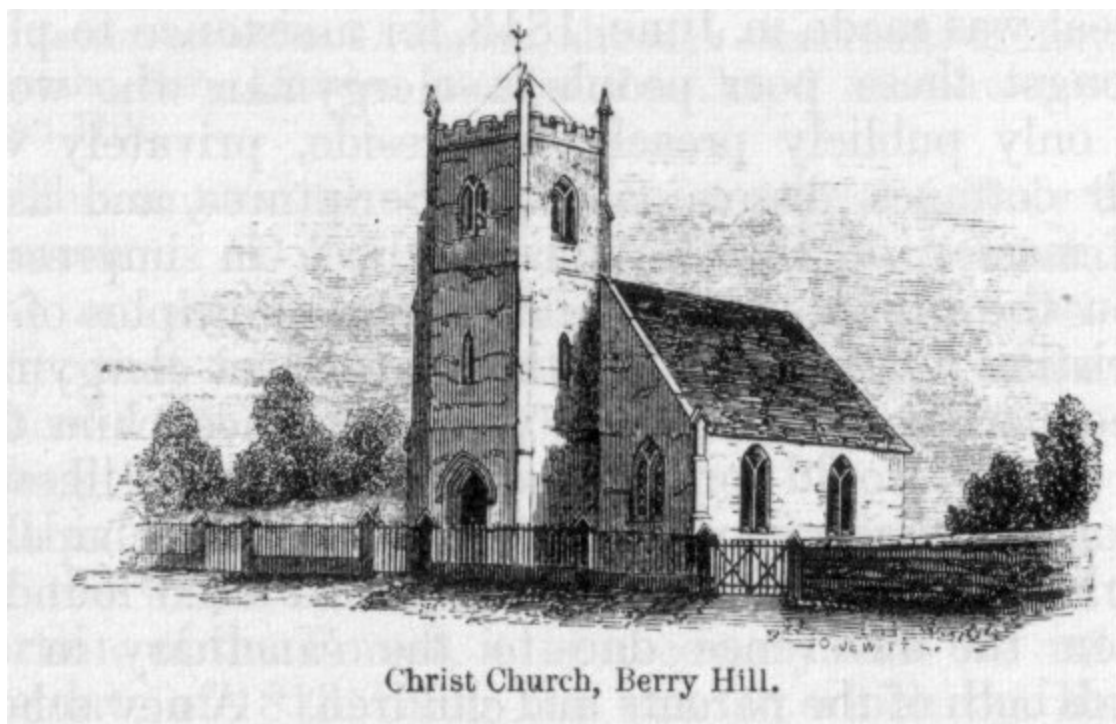
Curates.—J. Morse, 1820; J. Bridgeman, 1821; J. Herbert, 1822; W. Marshall, 1822; W. Burkitt, 1824; J. Chell, 1827; R. T. Budd, 1840; W. C. Badger, 1844; J. G. Croker, 1846; G. Tatam, 1848; H. Algar, 1851; W. Nickisson; W. Duckett; J. Ashton; H. W. Thornton; W. A. Whitestone. Most of these gentlemen served at Lydbrook, although occasionally at Holy Trinity Church; they likewise attended the Chapel Schoolroom on Little Dean Hill.

The annual number of christenings at Holy Trinity Church is 80; of weddings, 15; and of funerals, 40. The morning congregation on Sunday comprises about 100; that in the afternoon, 350; and the two evening school-room services, 120. About 250 scholars attend school weekdays and Sundays.

Having thus related the progressive efforts made for the welfare of the people occupying the north-east portion of the Forest, it is necessary that we

return to the date of 1813, being the year in which the Rev. Mr. Procter opened his chapel school-room on the west. He tells us that “in the course of this year the Bishop of Gloucester was pleased to call my attention to the clause introduced by Mr. Perceval into the Act of 52 George III., cap. 161. I went up to town, and had the honour of an interview with the Chancellor of the Exchequer, the Right Honourable N. Vansittart, who was pleased to advise with the Earl of Liverpool on the subject, which resulted in a grant of five acres of land, a donation of £100 to the building fund, and an endowment of £20 per annum to the school.” He proceeds to remark that “the crowded state of the chapel became a matter of astonishment to the Foresters themselves, and painfully inconvenient to the congregation, as well as dangerous to the health of the officiating minister, from the intense heat, besides excluding the children, all showing the necessity of an enlargement; so that, after a probationary period of three years, another appeal for aid came before the public, whereby the building was increased to twice the size, provided with a children’s gallery, and, excepting two pews, kept perfectly free and open to all. It now became my duty,” observes Mr. Procter, “to secure to the Foresters in perpetuity these extraordinary blessings which Divine Providence was progressively granting to them. This could only be done by consecration, and to authorize such an act, an endowment being considered necessary, another public appeal was made in June, 1813, for assistance to place amongst these poor people a clergyman who would not only publicly preach, but reside, privately visit their cottages, disseminate the Scriptures, and assist the master of the National School in impressing upon the minds of the children the principles of the Christian religion,” as, “without a resident clergyman, an experience of fourteen years convinced him that all efforts would prove abortive. It had likewise become necessary to discontinue using the chapel as a school-room, since the doing so had been found to lessen the reverence due to the sanctuary in the minds both of the parents and children. A new schoolroom was therefore immediately built of the best stone, with two fireplaces, and a partition in the middle; over the door is the following inscription,—‘The Forest Day School, for Boys and Girls, on the National plan, established 1812, supported by voluntary subscriptions.’” The cost of erection was almost £300, and the expenses of conducting the school averaged about £70 per annum, for two-thirds of which Mr. Procter was himself answerable, and only dependent on annual donations.

With the view of forming such an endowment for the church as would make it eligible for consecration, a freehold estate near at hand was purchased in the month of November, 1816, although the price of it exceeded the sum subscribed by £200, but which amount it was expected the Parliamentary Commissioners would repay. Thomas Morgan's house, garden, buildings, and lands adjoining the chapel were also purchased for nearly £400, the former being partly preserved in the back part of the present parsonage-house. Thus the property appropriated to the new church consisted at this time of the five acres of Crown land, the purchased freehold, and Thomas Morgan's property, on which, as an ecclesiastical endowment, the consecration of the church, under the name of Christ Church, took place, on Wednesday, 7th July, 1816, by Bishop Ryder, and was duly conveyed to the following gentlemen as trustees, viz., the Right Honourable N. Vansittart, Lord Calthorpe, James Jenkins, George Baring, T. T. Biddulph, Esqrs.; Reverends J. Hensman and E. Mansfield.



The body of the building forms a parallelogram 50 feet by 42 feet; the tower, upwards of 60 feet high, was built some years afterwards, at a cost of £1,000. Unfortunately, serious inconvenience ensued to Mr. Procter by his having caused the whole of the above-named endowment property to be conveyed to the church previous to its consecration, since, on presenting the

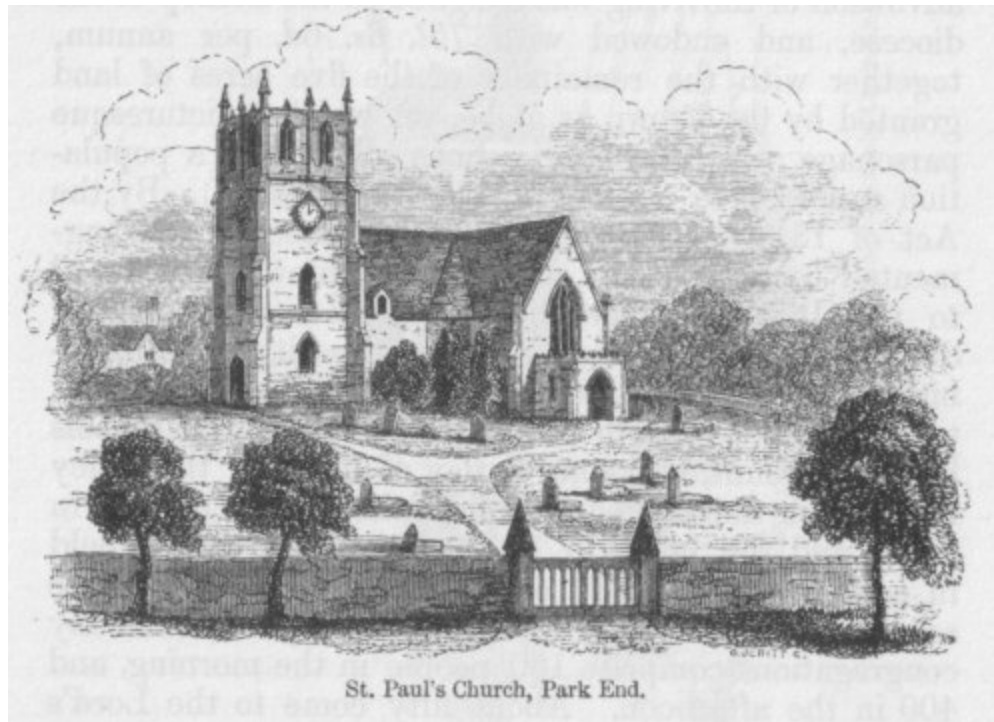
memorial to the Board for the payment of the accustomed Parliamentary grant, the case was pronounced “irregular,” rendering Mr. Procter liable to a debt of £950, although £500 of the amount was eventually paid by Pyncombe’s Charity and Queen Anne’s Board. The sum of £2,000 was granted, however, by the Parliamentary Board to be laid out in the purchase of land, yielding in the mean time an interest of £4 per cent., and raising the total income of the living to £118 10s. 6d., or thereabouts. Mr. Procter died on the 8th May, 1822, aged 52, worn out by excessive devotion to his pastoral duties, and was succeeded by the Rev. T. R. Garnsey, who, after a life of similar usefulness, expired in March, 1847. His funeral sermon was preached on Sunday, the 14th of March, by the Rev. H. Poole, from Hebrews xii. 2. The church was densely crowded, many could not obtain an entrance, and all appeared deeply to feel the loss they had sustained.

In the mean time, under the Act of 1842, an addition of £31 9s. 6d. was made to the salary of the incumbent, by the purchase of an equivalent amount of 3 per cent. Reduced Bank Annuities, raising its annual income to £150, the nomination to the incumbency being transferred to the Queen and her successors. The Rev. J. Banks succeeded to the living in 1847, who, previous to his relinquishing it in 1852, effected several improvements in the interior of the church. The Rev. W. H. Taylor followed him, and still remains the minister. The adjoining school premises have been made much more complete and capacious by him, so as amply to accommodate 150 children, and a teacher’s house has been erected. A permanent redemption of the land-tax charged on the living, at the cost of £150, has also been presented by Thomas Graham, Esq. There are three tablets on the north side or oldest part of the church, to the memories of Edward Hawkins, the first teacher in the school, the Rev. P. M. Procter, and the Rev. T. R. Garnsey, and a flat paved stone records the grave of Thomas Morgan. About ten marriages, forty-three baptisms, and thirty-five funerals take place yearly. The church is well attended on Sunday, especially in the afternoon, when 300 or 400 persons are usually present.

Whilst the Rev. P. M. Procter and the Rev. H. Berkin were engaged in effecting the improvements described on the west and north-east sides of the Forest, the Rev. H. Poole was labouring to accomplish similar results on the south-east. The appeal for public aid towards “the erection of a church and school-house,” which he issued on the 6th July, 1819, thus forcibly

describes the necessities of the case:—"The Forest is an extensive tract of land, having a circumference of about twenty-five miles, and containing at present nearly 5,000 souls. This population, with some exceptions, may be considered as divided into three settlements, detached from each other by a space of several miles, of which settlements two are now provided with churches; but the other colony, situated on the south-east side, is still destitute of the means of religious knowledge. It is therefore proposed, under the sanction of the Lord Bishop of the diocese, to erect a third church and school-house in this still neglected spot. From a recent accurate survey, it appears that within little more than two miles of the site of the proposed church there are at least 400 inhabitants, distant from the other Forest churches about six miles, and from any parish church nearly three miles. The chapel of Bream, the nearest episcopal place of worship, is too small to accommodate even one-third of the population of its own tithing. Being thus unprovided with a place of worship and the means of public instruction, and following the corrupt dictates of their untutored minds, the natural consequences are gross ignorance of the Scriptures, a shameful profanation of the Sabbath, and a total neglect of all the duties of religion, accompanied with a general prevalence of disorderly and immoral conduct." This application met with a generous response from Bishop Ryder, Edward Protheroe, Esq., the Earl of Liverpool, the Right Hon. N. Vansittart, Edward Machen, Esq., Lord Calthorpe, Lady Olivia Sparrow, Mrs. H. More, &c.

The site chosen for the new church, as being most convenient of access for the largest number of persons, was "Mason's Tump," situated immediately to the east of Whitemead, Park End. In the two previous instances of church-building at Berry Hill and Holy Trinity, little had been attempted in the way of appropriate design; but in this case Mr. Poole's practical knowledge and good taste enabled more to be accomplished. At a total cost of £2,731, including the churchyard boundary wall and gates, a cruciform edifice, enlarged into an octagon forty-six feet in diameter at the intersection, having a total length of sixty-six feet, so as to accommodate 500 people, was erected in the Decorated style of architecture; attached to which there was also raised a well-proportioned tower, eighty feet in height, and intended to contain a small peal of eight bells, Edward Machen, Esq., presenting the treble, as well as a good clock with three dials.

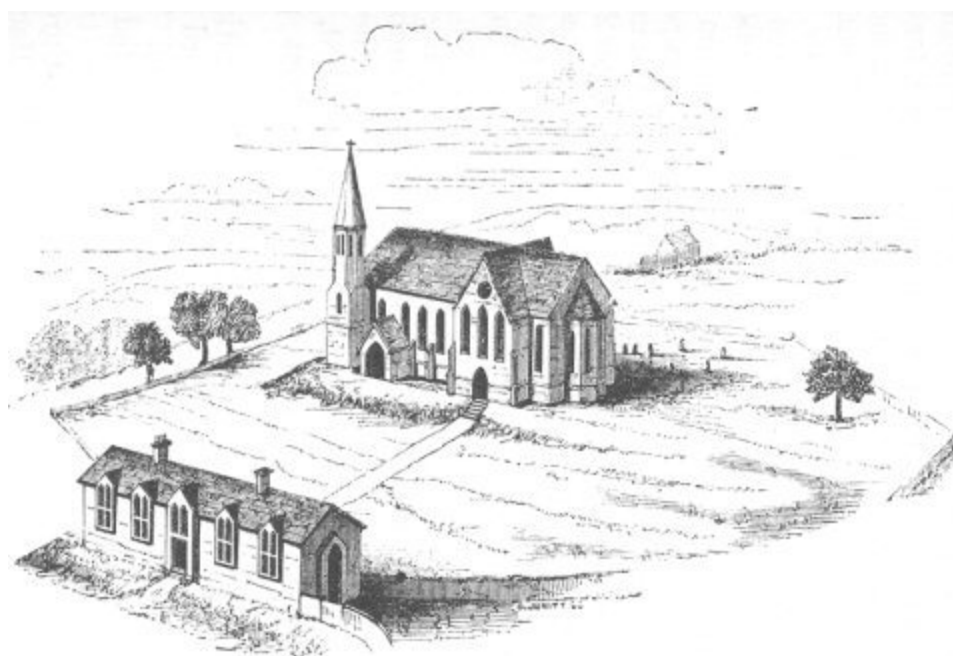


The church now possesses a good finger organ, removed from Ross church, and said to have been used originally in Salisbury Cathedral. There is also a rich reredos under the east window. At eleven o'clock on the morning of the 2nd of May, 1822, Dr. Ryder, the Lord Bishop of Gloucester, attended by thirteen clergymen and many of the magistrates and gentry of the neighbourhood, proceeded to the spot for the purpose of dedicating the fabric to the service of God as the Church of St. Paul. The Bishop entered the edifice by the west door, followed by his clergy, repeating alternately the 24th Psalm. Every seat was immediately filled, and soon no spot was left unoccupied. Many could not gain admission, and were seen clinging to the bars of the windows on the outside. A large company of professional and amateur singers attended, so that the whole musical part of the service was well executed. His Lordship delivered an impressive discourse from the 8th, 9th, and 10th verses of the 132nd Psalm. The congregation was very attentive, and, after contributing at the door nearly £30 towards the completion of the work, dispersed, fully 1,000 persons being observed to leave the church. The perpetual advowson of the living was assigned to the Bishop of the diocese, and endowed with £75 6s. 6d. per annum, together with the remainder of the five acres of land granted by the Crown as glebe, on which a picturesque parsonage, and also commodious schools for a population supposed to number 1,500, were erected. By the Act of 1842 the

income of the incumbency was augmented to £150 a year, and the presentation confirmed to the Bishop of the diocese, with an ecclesiastical district annexed to it of 7,741 acres, with 3,681 inhabitants. This population has since increased to 6,500, to meet which growth pleasing and substantial schools have been built, at a total outlay of £750, on the Viney Hill and in the Blakeney Valley, the former opened in 1850, and the latter in 1851. Divine service is held in each of them under episcopal licence. The three schools are attended by 200 children daily. The Sunday congregations comprise 150 people in the morning, and 400 in the afternoon. About fifty come to the Lord's Table. The yearly average of christenings is forty-six, of weddings twenty-six, and of funerals forty-five. The following is a list of

Incumbents.—Henry Poole; J. J. Ebsworth, M.A.

Curates.—David Jones, M.A., Oxon.; --- Dixon, B.A., Oxon.; --- Revel, M.A., Camb.; --- Stewart, M.A., Camb.; --- Mountfort, M.A., Oxon.; --- Malpas, M.A.; --- Cardew, B.A.; --- Ponton, B.A.



The next effort made to meet the spiritual wants of the increasing population of the Forest was commenced by Edward Protheroe, Esq., M.P., who erected and opened, July 1, 1840, “on Cinderford Tump, where the old holly grew,” large and substantial school-buildings, for the benefit of the families connected with his adjacent collieries, and consigned them to the

care of Mr. Zachariah Jolly as their master, an office which he ably filled for several years. The attendance was large, sometimes exceeding 280 children of both sexes. In the first seventeen years, to July, 1857, nearly 1,400 young persons were admitted into the schools, at ages ranging from four to twenty-two years. There was also an evening school for adults, some winters numbering ninety, patronized by the South Wales Railway Company, who subscribed liberally to it. By the Act of July, 1842, dividing the Forest into ecclesiastical districts, its south-east section was constituted one of them, and a stipend of £150 per annum provided for the minister, so soon as the church intended for it should be built and consecrated. Aided by large donations from the Crown, Charles Bathurst, Esq., the Rev. Dr. Warneford, and others, the new church, erected on the hill above Cinderford Bridge, at a cost of £3,109, in the Early Pointed style of Gothic architecture, on the plan of a Latin cross, with a belfry turret, and capable of seating 800 persons, was consecrated under the name of St. John the Apostle, by Bishop Monk, on the 22nd of October, 1844. There was a large attendance of clergy, and upwards of 1,100 persons were present, many others being unable to obtain admission into the church. The Rev. R. Davies preached from St. Matt. xii. 34. The Rev. T. G. Smythies, who had been residing for some time in the district, became the first incumbent. This appointment he continues to hold, and by the aid of the Crown, the late Bishop Monk, Dr. Warneford, and the Gally Knight Fund, has built an excellent parsonage conveniently adjoining the church.

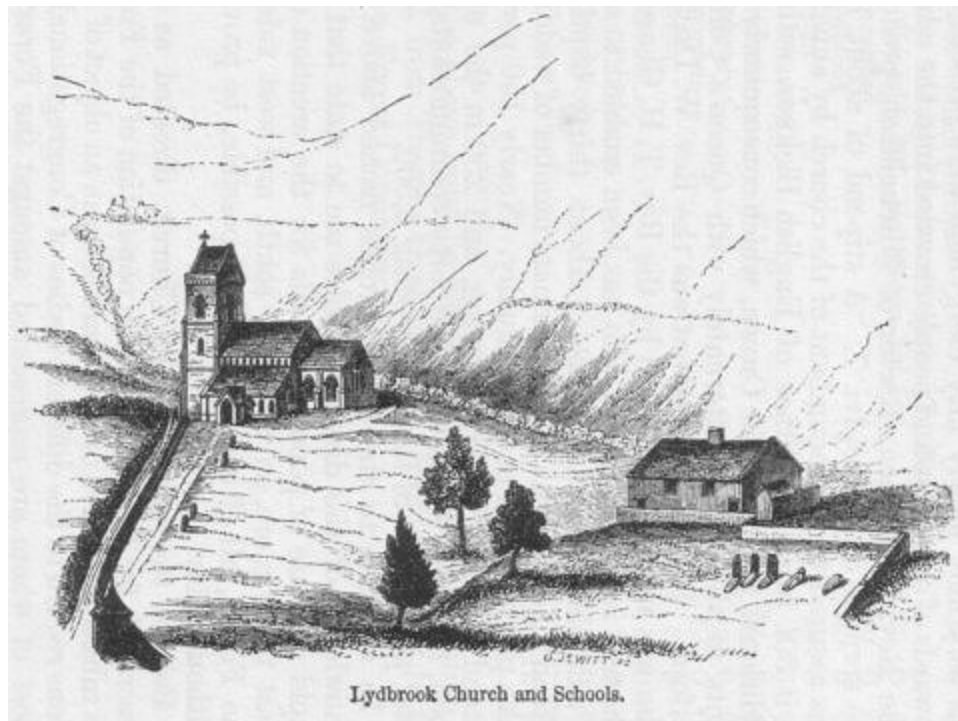
Following the course of ecclesiastical and educational progress in the Forest, it only remains to record the most recent step taken, namely, that at Lydbrook. The erection of a church there, although contemplated for several years previously, was deferred for some time, until the assiduous exertions of the Rev. J. Burdon, and the munificent donation of £2,000 from Mr. Machen and his relatives, secured its accomplishment. ^[172] The cost of the building, including the site, which lies on the north-east slope of the Lydbrook Valley, close to the original school-room, was £3,500, to which the following public bodies thus contributed:

Her Majesty's Commissioners of Woods, &c.	£250
„ Church Building Commissioners	100

Incorporated Society	230
Diocesan ditto	200

	£780

The rest was given by private persons, the principal being Messrs. Allaway and Partridge, who contributed £250.



The church was designed by H. Woodyer, Esq., in the Geometrical style of Decorated architecture, and comprises a nave and aisles 60 feet long and 50 feet in width, a handsome chancel, a south porch, and tower 80 feet high. It is built in the ornamented parts and internally of Bath stone, the exterior being the gritstone of the neighbourhood. The foundation stone was laid on Monday, the 12th of August, 1850, and the church, called that of “The Holy Jesus,” was consecrated on the 4th December, 1851, by Dr. Ollivant, Bishop of Llandaff, the Bishop of the diocese being too unwell to attend. Considering the season of the year, the day was very fine, nearly fifty clergymen were present, and upwards of one thousand people crowded into the edifice. The Rev. E. Machen, Rector of Mitcheldean, preached the

sermon on Isaiah lvi. 7. A stipend of about £120 was secured to the incumbent of the church by annexing to it £30 from the tithes of English Bicknor, with an additional £90 from the Crown, which consequently presents to the living, alternately with Queen's College, Oxford. The first incumbent was the Rev. W. Deering, who was succeeded in 1853 by the Rev. T. H. Chase, by whom it is still held, and who has been enabled to erect a suitable parsonage house. About thirty baptisms, fifteen funerals, with a proportionate number of weddings, take place at this church annually. Nearly 150 persons attend on the Sunday morning, and 250 in the afternoon, amongst whom there are forty communicants, the total population of the parish being 2,500.

In addition to the five churches named above, my knowledge of the district enables me to state that the rapid increase of population calls for the erection of at least three more, on the east, south, and west sides of the Forest, all of which should, if possible, be provided without delay.

Besides the efforts of the Church, directed as now described, for the benefit of the population of the Forest, its inhabitants have of late years become an object of religious regard to the different bodies of Congregationalists, most of whom are represented amongst the Foresters. The wealthier coal and iron masters manifest a benevolent interest in the welfare of their workmen, and in one instance have established a large day-school, and built a place of worship for their use. The Commissioners of the Crown have always attended to applications for help in furtherance of these objects, and have at different times granted sums to the amount of £10,347 towards endowing the Forest churches, and in some years have devoted as much as £800 to the maintenance of schools, which they annually aid by the following donations:

	£	s.	d.
St. Paul's District (Park End, £30, Oldcroft £20, and Blakeney Woodside £20)	70	0	0
Christ Church District	30	0	0
Holy Trinity District (Trinity £30, Ruardean Woodside £20, Hawthorns £20)	70	0	0

Cinderford	30	0	0
Lydbrook	30	0	0
Bream	15	0	0
St. Briavel's	5	5	0
Mitcheldean	5	5	0
Blakeney	15	0	0
Staunton	10	0	0
Dixton	5	0	0
Coleford	5	0	0
English Bicknor	2	2	0
Whitchurch	5	0	0
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	£297	12	0

To the above must be added the handsome donation of £500 from Thomas Graham, Esq., formerly clerk to the Dean Forest Commissioners.

CHAPTER XI.

The history of the Abbey of Flaxley, or St. Mary de Dene—Its foundation by Roger Earl of Hereford in 1140—Confirmed and enriched by Henry II. and III., and Richard II.—Suppressed in 1541—Existing remains—St. Anthony's Well—The Abbey, &c., granted to Sir W. Kingston—His descendants—Mrs. C. Riches (Boevey), supposed to be Sir R. de Coverley's "perverse widow;" her benevolent life, and death in 1726—Nature and cessation of the Flaxley iron-works—Erection of the present church in 1856.

The link which connects the Abbey of Flaxley with the Forest of Dean is chiefly of an antiquarian nature; for instead of being included as formerly within the limits of the Forest, it is merely approached on one side by a promontory of Crown land, called "Pope's Hill." The incident which led to the foundation of the abbey, as related by Leland, who visited it a short time before it was suppressed, shows the Forest character of its precincts. He tells us—"ther was a brother of Rogerus Earl of Hereforde that was kyllid wythe an arowe in huntinge in the very place where the abbay syns was made. There was a table of the matter hanggid up in the abbay church." The date of its institution is assigned to the year 1140, or the reign of Stephen, its chief founder being the aforesaid Roger, aided by a Bishop of Hereford "that holped much to the buildinge," and who was probably Robert de Betune, by whom the north-west transept of that cathedral is said to have been erected. They designated it "the Abbey of St. Mary de Dene, or Dene Abbey," and devoted it to the use of the White Monks of the Cistercian order. Tintern, the other abbey of that order, established near the western border of the Forest, was founded nine years before. The dress of the monks was a white cassock, with a narrow scapulary; and from this doubtless comes the name of "St. White's," on Little Dean Hill, in the parish of Flaxley, as well as of another spot called Whitecross.

The institution of the abbey was confirmed, and its endowment augmented, by two charters, granted by Henry II., to the following purport:—"Know ye that I have granted and confirmed to God and St. Mary, and to the monks of the Cistercian order, a certain place in the valley of Castiard called Flaxley, to build an abbey there; and all that land called Wastdean, and one iron forge free and quit, and with as free liberty to work as any of my forges in demesne; and all the land under the Old Castle of Dene, with liberty to plough it up, to wit 100 acres, which remains to be assarted, and that which is already assarted; and a certain fishery at Redley called Newerre, and a meadow of Reidley called Pulmeade, containing four acres; and all easements in the Forest of Dean, to wit, common of pasture for their young cattle and hogs and for all other beasts, and wood and timber to repair their houses and buildings, and for other necessities, without committing waste in the Forest; and I have given them tithes of chesnuts out of the same Forest, and all my demesnes at Dymmock; and five yard lands and a half, besides the demesnes and half my wood at Dymmock, and half my nets which I have in my hands, for the conveniences of my men, because I would have my monks enjoy that part of the wood peaceably and quietly, without any interfering with any other persons; and I straightly command that no person offer to disturb them upon this account; and the lands belonging to Walfric; but so that if Uhred the clerk continues in the abbey with the lands he exchanged, to wit, two yard lands, that then he shall give no account of it to any body but the abbot; and all the land of Jeoffry, son of the aforesaid Walfric, which the Earl of Hereford did release, and all the land which Leffric de Staura gave to them in alms, and the farm which I gave them at Wallemere, out of my new ploughed ground containing 200 acres with the meadows and pastures, and all other easements; and four acres of Northwood. I further give to them my new ploughed grounds under Castiard, called Vincent Lands;" added to which, there was a grant of two oaks out of the Forest every seven days, for supplying their iron-forge with fuel.

Few of the properties here named can now be traced. Castiard is unknown, but perhaps the "old Castle of Dene" is identical with a circular ditch and bank, about fifty yards in diameter, on Camp Hill, between Flaxley and Little Dean. It may also be observed that the present Chesnuts Enclosure is probably the site of the chesnut groves referred to in the above grants. A century later (42 Henry III.) the two oaks weekly were commuted for a tract

of woodland in the Forest, containing 872 acres, reserving, however, the herbage for the King's deer and wild beasts, and all mines and quarries, and a power to the grantee to enclose one-tenth part thereof, and to hold the same enclosed against all animals except the King's deer and wild beasts, leaving nine tenth parts always open; all which peculiarities of tenure are connected with a tract of land yet identified by the name of "the Abbot's Woods." Between the years 1206 and 1215 King John paid several visits to Flaxley. In the terms of a Papal taxation levied in 1291 by Pope Nicholas, the property of this abbey was thus valued:—

	£	s.	d.
In the diocese of Hereford, at	14	0	1
„ Bath and Wells	11	0	0
„ Worcester	7	5	0
	--	-	-
Total	32	5	1

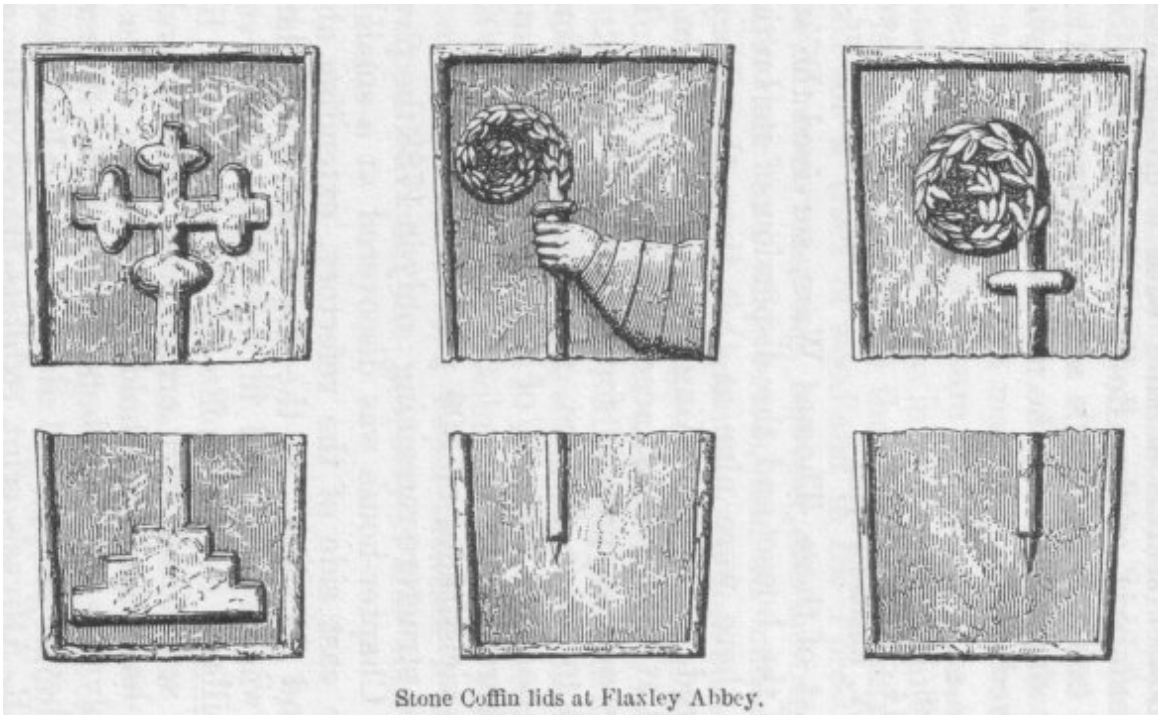
Ere long it acquired the dignity of a mitred abbey, though never of a peeral one, its abbot being summoned to Parliament 21st Edward III. During the reign of Richard II. these additional grants were made to it:—"Certain tenements in Leye, Bosteley, and Rodley; the manor and impropriate church of Flaxley; the manors of Blaisdon, Newnham, and Ruerdean; distinct manors in the parishes of Dean Parva, Dymock, and Arlingham, with a house in Abbenhall." A document in the Chapter-house at Westminster, dated 10th Edward II., has the abbot's seal attached, representing an abbot standing erect with his crosier under a canopy slightly ornamented, with the legend S . ABBATIS . DE . FLAXLE. The counter seal is a hand with a crosier, and other ornaments, viz., a fleur-de-lis, &c., surrounded by the words CONTRA SIGILLUM ABBATIS DE FLAXLE. The names and dates of the following abbots have been preserved:—

Elected.	
1288	Nicholas.
1314	William de Rya.

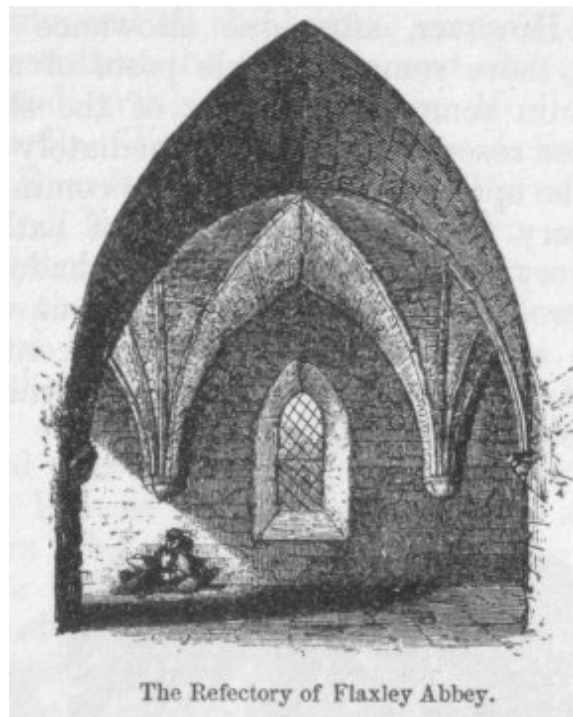
1372	Richard Peyta.
1509	John ---.
1528	William Beawdley.
1532	Thomas Ware.

The last of these, Thomas Ware, survived the suppression of the house and the dispersion of its brethren, of whom there were nine at that time, the abbey being delivered up to the King's Commissioners in 1541, valued at £112 13s. 1d., according to Dugdale. Tintern Abbey was suppressed four years previously. Ware retired to Aston Rowant, near Thame, in Oxfordshire, where he spent the rest of his life in seclusion, and was there buried in 1546.

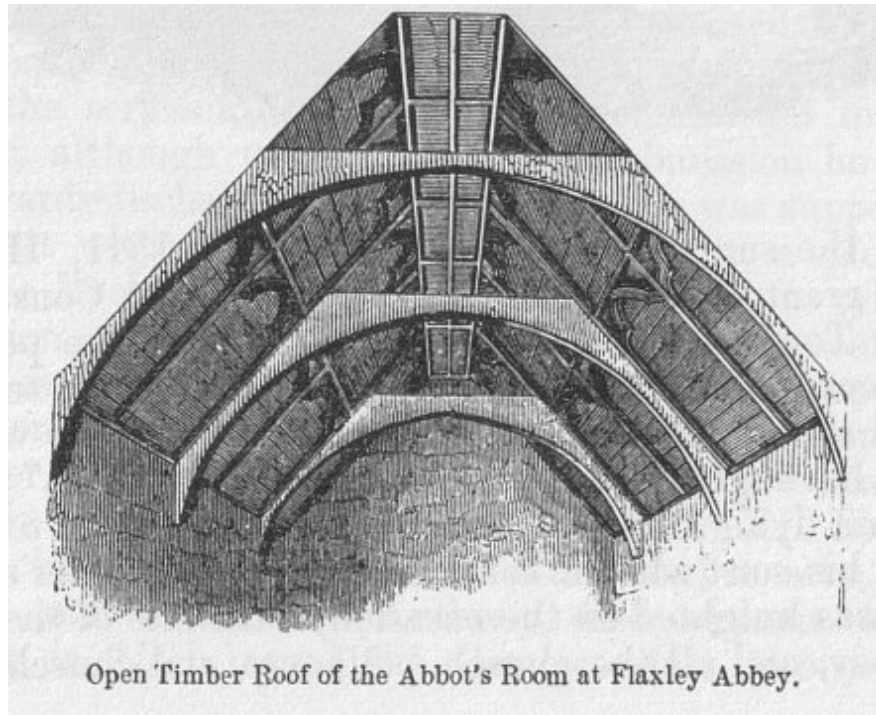
The vicissitudes of 300 years have left little of the original structure remaining: only in 1788 the pavement of the Chapter-house was discovered at a small depth, on the east side of the refectory, extending about 45 feet, and 24 wide. At the upper end a circular stone bench was exposed, and in the centre the carved base of a pillar. Several coffin-lids of stone were likewise found, sculptured with ornamented crosses, and upon one a hand and arm holding a crosier, under which probably one of the abbots was interred. The view of the abbey as it appeared about the year 1712, according to Sir R. Atkyns's print, exhibits traces of the ancient residence of the abbot and monks, respecting which the Rev. T. Rudge remarks—"It was low, but long in front, being 60 feet in length, 25 feet wide, and only 14 high; the whole arched with stone, and the vault intersected with plain and massy ribs, and seems to have formed the refectory. The first floor contained a long gallery, and at the south end one very spacious apartment which was supposed to have been the abbot's chief room. The dormitories or cells were connected with the great gallery."



Stone Coffin lids at Flaxley Abbey.

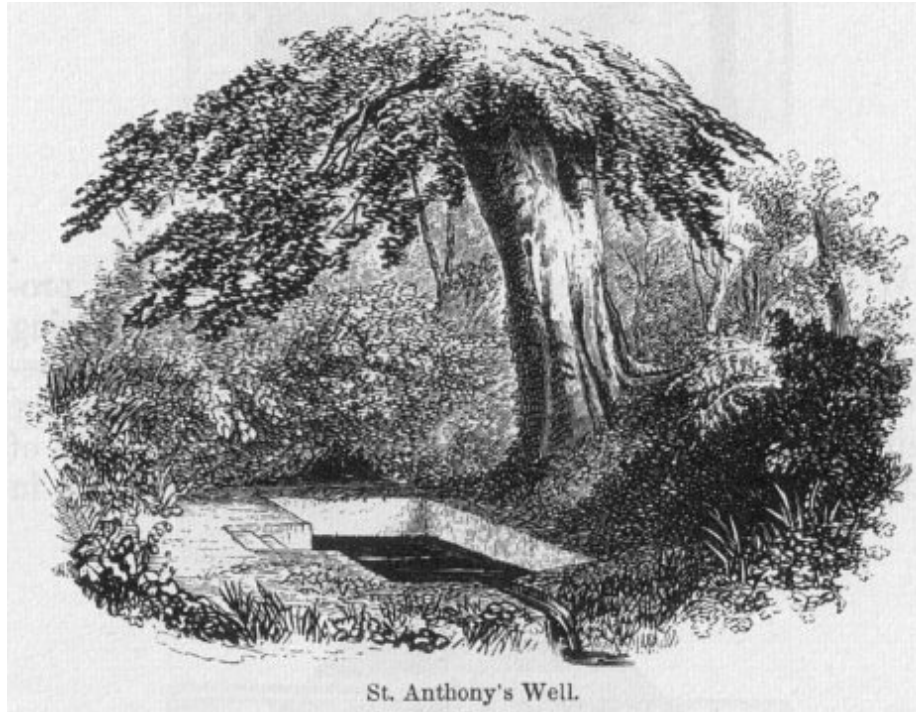


The Refectory of Flaxley Abbey.



Open Timber Roof of the Abbot's Room at Flaxley Abbey.

A further trace of the same period is also to be found at the head of one of the brooks feeding the stream which descends the Flaxley valley, called “St. Anthony’s Well,” and which, from its supposed medicinal properties, was until late years widely famed for curing cutaneous disorders, although under circumstances somewhat connected with the marvellous, its peculiar efficacy being combined with the rising of the sun, the month of May, and the visits to it being repeated nine times in succession. However, after due allowance for some exaggeration, there remains ample proof of the utility of its waters in removing diseases of the skin. The square basin or reservoir of stone immediately adjoining the head of the spring was made at the commencement of this century for the convenience of bathers, and occupies a very secluded position, overshadowed by a large beech-tree, and closed round with mossy banks. The water is abundant in quantity, and contains iron and lime, derived from the strata through which it percolates. The general temperature is 50°.



On the suppression of the Abbey in 1541, Henry VIII. granted it to Sir William Kingston, the Constable of the Tower of London, memorable as being the person to whom the dying Wolsey confessed—"If I had served God as diligently as I have done the King, he would not have given me over in my gray hayres." Sir William dying in 1545, letters patent regranted to Anthony his son (who in consideration of his father's services was knighted on the occasion) "the site of the late Abbey, and all the church, bellhouse, and churchyard of the same, and all the houses, granges, &c., as well within as without the said site, and also all other the manors and granges of Flaxley, Howle, Goderith, Climperwell, Wolmore, Blaisdon, Aclingham, Le Rouhen, Ruardene, Newland, Dene Parva, Newnham, Pulton, and Dymock, with their rights in the county of Gloucester, and the house and manor of Rochilburgh in the county of Somerset, belonging to the same; and all advocations, presentations, &c., of the said parishes at any time appurtenant to the said monastery," subject to the yearly payment of £1 8s. 2d. In the third year of Edward VI. he accompanied Lord Russell as Provost Marshal of the army sent against the Western rebels, in which capacity his great severity obtained for him the epithet from Fuller of "the terrible Provost Marshal." His name occurs on the roll of High Sheriffs for the county in the year 1549. In 1555 Queen Mary appointed him one of the commissioners to see execution done upon that excellent prelate and martyr Bishop Hooper, by whom he had been

formerly admonished for gross immorality, and forced to submit and do penance, as well as pay a fine of £500.

It is not surprising to find him a vigorous opponent in parliament of the Queen's effort for restoring to the religious establishments the property of which they had been deprived. So strongly was he opposed to this, that on one occasion he seized the keys of the House from the serjeant, for which he was committed to the Tower, although upon his humble submission he was afterwards discharged. The next year he was supposed, and not without reason, to be involved in a plot to rob the Exchequer of £50,000, and therewith to raise a rebellion; but it was discovered, and all the conspirators were executed except Sir A. Kingston, who perhaps only escaped by dying on his road to London, whither he was summoned to appear before the Council. By his will, dated 27th of April, 1 Edw. VI., he entailed his several manors and estates on his sons, Anthony and Edmund. Anthony died without issue, having in 1591 leased the Grange estate to one William Brain and others of Little Dean, for 370 years, of which an annual acknowledgment of £6 continues to be paid by its present holders, and Edmund succeeded to all the Kingston property. He left two sons, Anthony and George, the former of whom died in 1594, leaving by his will his sons Edmund and George joint executors and heirs. George died in the year 1647, intestate, seized of the Collect (Gawlet?) woods, in the parish of Flaxley, and was father of Anthony.

It is said by Sir R. Atkyns that there was a monument to George Kingston in the chancel of the original church of the parish, inscribed as follows:—

“Mar. 4, 1644.

“Vixi dum vellem, moriebar tempore grato
Et sic vita mihi mors quoque grata fuit.”

“Kings have stones on them when they die,
And here Kingstone under a stone doth lie;
Nor Prince, nor Peer, nor any mortal wight,
Can shun Death's dart—Death still will have his right.
O then bethink to what you all must trust,
At last to die, and come to judgment just.”

There are no traces of any such monument now, and it was therefore probably destroyed when the church was rebuilt about 1730.

The Kingstons took no part apparently in the contests which occurred in the neighbourhood between the Royalists and Parliamentarians, but confined their attention to their own affairs and the management of their iron-works. The only member of the family who suffered was a Sir Francis Crawley, who, about the year 1642–3, was deposed for a judgment in favour of the King on the question of ship-money, or something of a similar kind. The family possess one of King Charles's rings as a memento of such a decision. Edmund died in 1621, and was father of William, who, pursuant to his father Edmund's will, made a settlement between himself, William, and James Boevey on one part, and William Jones, of Nass, on the other. He left an only son, Anthony, who, having no issue, disposed of the estate to Abraham Clarke, Esq., who died here in 1683, as also his wife Joana, from whose son Abraham, dying in 1682, it passed, in virtue of certain complex devises, to a near relative, William Boevey, Esq. Mr. Boevey married Catharina (in her sixteenth year), daughter of John Riches, Esq., an affluent London merchant. She was left at the age of twenty-two a widow, which she inexorably remained until her death, on the 3rd January, 1726, in her fifty-seventh year, leaving a name for benevolence and ability which the neighbourhood venerates to this day. Dr. Geo. Hickes calls her, in the preface to his 'Thesaurus,' published in 1702–3, "præstantissima et honestissima matrona Catharine Bovey," and was most probably one of her personal friends, agreeably to a traditionary account in the family, that "she was very friendly to the nonjuring clergy, and that she had frequently received and protected them."

There are several pictures of clergymen at Flaxley, which have always been believed to be portraits of Mrs. Boevey's nonjuring friends. Amongst these are two in episcopal habits, one of which is ascertained to be the portrait of the deprived Dr. Frampton, Bishop of Gloucester, since an exactly similar painting exists in the Palace at Gloucester. Flaxley is mentioned as her residence by Sir R. Atkyns in 1712, where, he tells us, "she hath an handsome house and pleasant gardens, and a great estate, a furnace for casting of iron, and three forges," as also appears by Kip's view of it. In 1714 Steele dedicated to her the second volume of 'The Ladies' Library,' the frontispiece to which Mr. Kerslake describes as "representing a young lady,

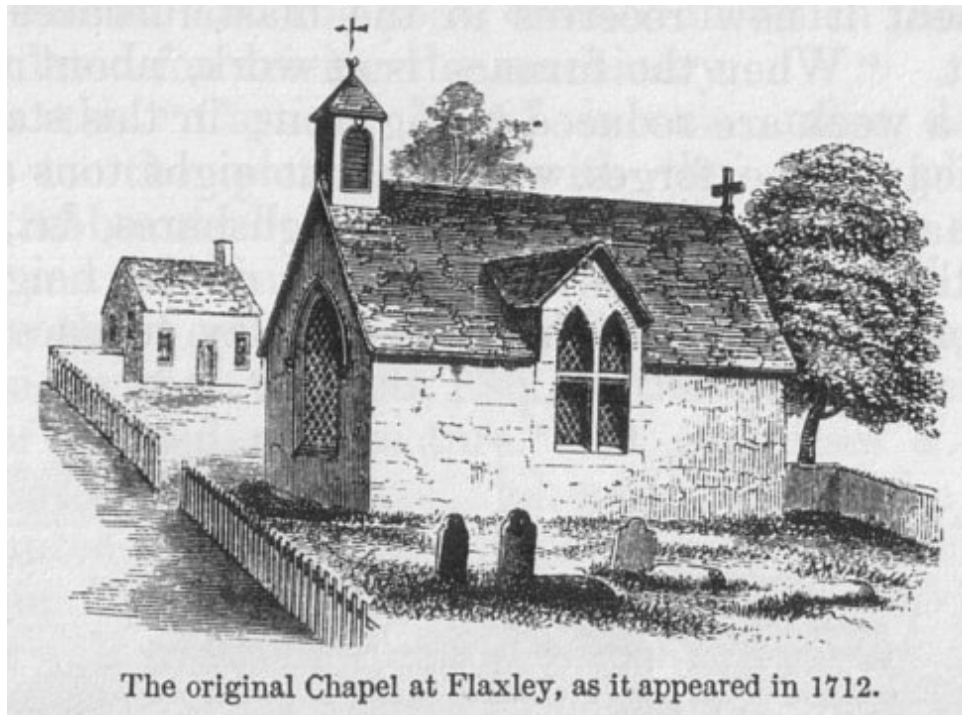
dressed in widow's weeds, opening a book upon a table, on which also lies a skull; her admirers, in long wigs and swords, are thronging round the door." In one of his letters to Lady Steele, dated the 17th January, 1717, he writes—"I have yours in a leaf of the widow's." Such incidents seem to prove that this highly-gifted lady was the original of the character so graphically delineated by Steele in his description of "the perverse widow." The numbers of the 'Spectator' in which she is introduced generally bear his name, and she probably was more intimate with him than with Addison (although both are said to have visited the Abbey), since he would naturally pass near Flaxley whenever he travelled between London and his house at Llangunnor, near Caermarthen. Nothing less than such a familiar acquaintance could have enabled him to give so exact and real a description of her as occurs in No. 113.

In Ballard's 'Ladies,' first printed in 1752, and on her monument in Westminster Abbey and in Flaxley Church, her more public virtues are displayed; but the value of her home life, which many of the poor Foresters had experienced in her bounties, is best related in the words of her faithful attendant, Mrs. Rachel Vergo, "who always waited particularly on her mistress, and was the only servant who sat up, as she spent an hour or two every night in her closet. She did the same in the morning, and was a very early riser. Mrs. Vergo had the care of the family under Mrs. Mary Pope, a relation of Mrs. Bovey, who came for a visit of a month, and stayed nearly forty years. The regularity and economy in the family was great. The maids were kept to work till eight o'clock at night, and the rest was their own time. Mrs. Bovey frequently called for her charity account book to see if it kept pace with her expenses in dress, which was always very handsome. Mrs. Vergo was often sent to Ross and Mitcheldean to buy materials to make garments for the poor. The old table-linen and sheets were made into childbed linen, which, together with shirts and shifts of all sizes, were kept in a closet. It was Mrs. Vergo's business to give them out as her lady ordered. Two ladies came to visit Mrs. Pope at the time the epidemic fever raged in Gloucestershire in 1719. One of them, Mrs. Cowling, died of it at the Abbey. The other, Mrs. Grace Butler, agreed with Mrs. Bovey and Mrs. Pope all to lie in the same vault with the deceased. The vault was built accordingly in Flaxley churchyard. Mrs. Bovey died first at the Abbey, and was laid by her friend. Mrs. Pope was brought from Twickenham in Surrey, and Mrs. Grace Butler twenty years afterwards from Worminghurst in

Sussex. Every afternoon during her lady's life Mrs. Vergo was ordered to wear a silk gown. Six of the poor children who were kept at school at Flaxley dined by turns regularly every Sunday at the Abbey, when Mrs. Bovey heard them say their Catechism. She was very often in the habit of lending money to poor clergymen, which was frequently repaid to her in small sums, but more often given to them. She did the same, too, by other distressed people whom she believed to be honest and industrious. During the Christmas holidays before Mrs. Bovey died she had the thirty children who were taught at her expense, to dine at the Abbey upon beef and pudding. Mrs. Vergo sat at the head of the table, and two of the housemaids waited upon them. After dinner Mrs. Bovey had them all into the parlour, where she was sitting dressed in white and silver. She showed them her clothes and her jewels, talked pleasantly and with great good nature to them, and having given to each of them sixpence she dismissed them. When they left her they had a harp and fiddle playing in the great hall, where they danced two hours and went away in good time. When Mrs. Bovey was dressing before dinner she said to Mrs. Vergo, 'Rachel, you will be surprised that I put such fine clothes on to-day; but I think that these poor children will remember me the longer for it.' She was then to all appearance very well, but she died that very day month of a bowel complaint."—"Upon Wednesday morning," wrote Mr. MacBarrow, "she was as well at breakfast as usual; between eleven and twelve she was seized with a most violent colic. We sent to Gloucester for Greville, as the nearest at hand; that night for Lane, but he was not to be met with. The extremity of pain continued, and, notwithstanding all means that could be used, nothing would pass. She apprehended death approaching the first day, and said what her illness was: we sent to Oxford and Hereford, but no physician until it was too late. Upon Friday morning she had a little ease, which gave us great hopes; but very soon the exquisite pain returned, and never left her until death had performed its great office, betwixt eleven and twelve on Saturday morning. She was sensible all along, and expressed great satisfaction in being here, where she said she always wished to die. She was buried in the same vault with Mrs. Cowling on 23rd January, 1726."—"Of her personal beauty," observes the Rev. C. Crawley, "although highly extolled, it really appears that very little can be said or seen, if we may form our opinions from the three portraits of her at Flaxley Abbey. They all represent a broad surface of a benevolent and good-natured countenance; and though they were evidently painted at different periods of her life, yet they bear so great a resemblance

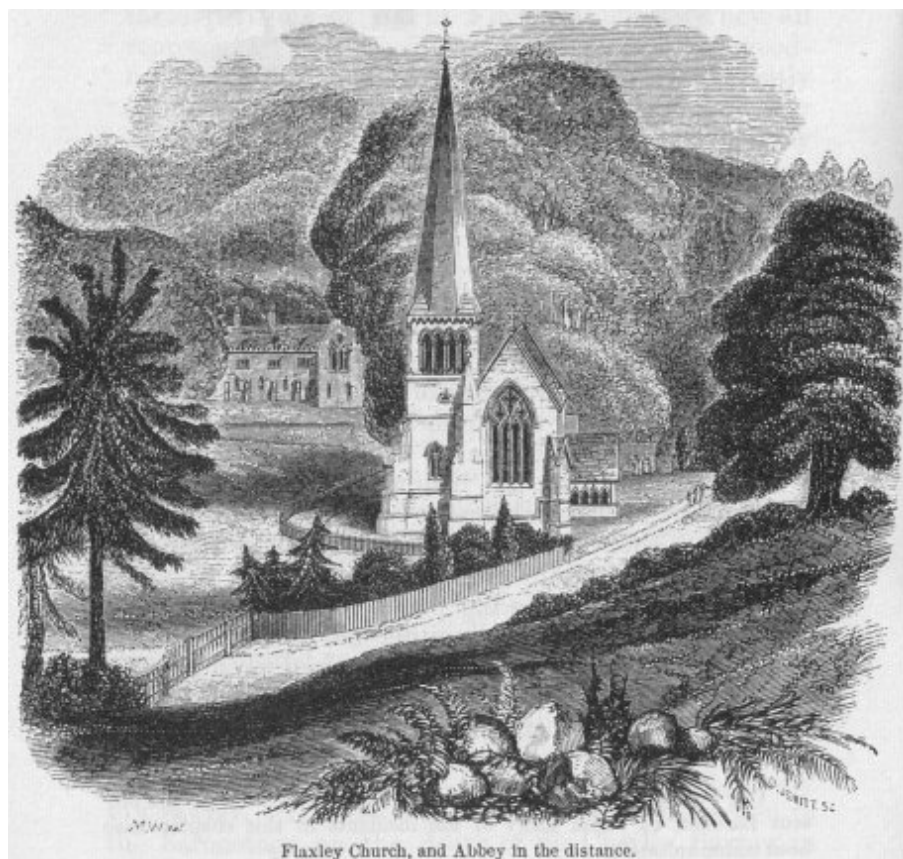
to each other that we may reasonably infer they were all good likenesses—in each of them the mole on the cheek has been defined with all due minuteness.”

Mrs. Boevey bequeathed £1200 to augment the living of Flaxley, the interest of £400 to apprentice poor children, and a similar sum towards putting them out. Lastly she designed the rebuilding of the church, “which pious design was speedily executed by Mrs. Mary Pope.” This work was effected about the year 1730, but report says *not* “speedily,” as the parishioners found it necessary to institute a suit in Chancery to secure its accomplishment. The site of the old chapel was retained, only the size was increased, if we may judge from the view that Sir R. Atkyns gives of the former building, which he says was “very small, and had a low wooden tower at the west end.” Most of the old monuments were transferred to it, and the new church, although rather plain, was “peculiarly neat” and substantial. Upon Mrs. Boevey’s death the estate passed by will to Thomas Crawley, Esq., of London, merchant, in tail male, upon the condition of adding the name of Boevey to Crawley. Thomas, a lineal descendant, succeeded to the baronetage on the death of Sir Charles Barrow in January, 1789, by limitation of the patent. ^[189] Part of the mansion having been destroyed by fire, it was rebuilt by him in 1777, with extensive additions. This house yet remains, and is a capacious structure.



“The iron manufactory,” writes Rev. T. Rudge, at the beginning of this century, “is still carried on, and the metal is esteemed peculiarly good; but its goodness does not arise from any extraordinary qualities in the ore, but from the practice of working the furnace and forges with charcoal wood, without any mixture of pit coal. The quantity of charcoal required is so considerable, that the furnace cannot be kept in blow or working more than nine months successively, the wheels which work the bellows and hammers being turned by a powerful stream of water. At this time (Oct. 28, 1802) a cessation has taken place for nearly a year. Lancashire ore, which is brought to Newnham by sea, furnishes the principal supply; the mine found in the Forest being either too scanty to answer the expense of raising it, or when raised too difficult of fusion, and consequently too consumptive of fuel, to allow the common use of it.” Since then so great a change has been effected in the mode of reducing the ore, that several tons of the Lancashire mine yet remain unused near the spot where the Flaxley furnace stood, the Forest ore readily yielding to the treatment it now receives in the blast furnaces of the district. “When the furnace is at work, about twenty tons a week are reduced to pig iron; in this state it is carried to the forges, where about eight tons a week are hammered out into bars, ploughshares, &c., ready for the smith.” The aged people of the neighbourhood well remember when the Flaxley furnaces were in blast, and tell of the ancient cinders and pickings of the old

mine-holes being taken down to them. With their disuse the former mode of manufacturing iron ceased in the district. The furnace buildings have been long removed, and the pools drained in which the water accumulated for driving the machinery.



Thus the “Castiard Vale” is once more devoted wholly to the picturesque, with the most pleasing effect, its beauty being yet further enhanced by a well-placed and exquisitely designed church, erected a few yards to the west of the one built by Mrs. Pope, after the designs of G. G. Scott, Esq., in the Early Decorated style of pointed architecture. ^[191] It comprises a richly ornamented chancel, nave, and north aisle, and a tower surmounted with a broach spire. There is churchroom for about 300 of the poor Foresters dwelling on Pope’s Hill, as well as for the inhabitants of the parish. It was consecrated on the 18th of September, 1856, by Dr. Baring, Bishop of Gloucester and Bristol, who preached on the occasion from Eccl. v. 1, most of the surrounding gentry attending, and fifty of the clergy. The present school-room was built in 1840, and accommodates sixty scholars.

CHAPTER XII.

The Forest roads and railways—Vestiges of some very ancient roads, apparently Roman—The old “crooked, winding, and cross ways,” when no wheeled vehicles were allowed in the Forest—The original road across the Forest from Gloucester to Monmouth—Roads, first improvement in 1761—Road Act of 1795 carried into effect—Mitcheldean a post town—Roads further improved in 1828 and 1841—their present state and extent—The tramroads and railways of the Forest.

Unusually perfect remains of very ancient roads still exist in various parts of the Forest, resembling those made by the Romans, being slightly raised above the general level of the ground, and carefully pitched with large block stones, not unfrequently a foot square. The most remarkable of these is found along the vale below Puttern Edge, and called “Dean’s Road,” where the pitching remains in many places, being about eight feet in width. Although no coins have been found near it, yet its direction, indicating a connexion between the old iron-works above Sowdley, and the neighbourhood of Lydney, suggests that it was used in ancient times when the minerals of the district were carried from place to place on packhorses. Another road, yet traceable, gives the name of “Kymin” (Chemin) to a hill opposite Monmouth, the slopes of which it ascends in the direction of the Forest; and a third is partially preserved in a lane leading amongst the cottages at Little Dean’s Woodside: it is called by the inhabitants “the Causeway,” being yet partly paved, and uniting with another road, which is still in places formed of large stones.

The “crooked, winding, and cross-ways,” which are said by Camden to have existed in the Forest, and to have rendered it a place of refuge for noble fugitives, were those paths which penetrated its depths, having their direction turned and rendered perplexing through the frequent interposition of streams, bogs, and thickets. Such were the means of communication which for many generations served the purposes of the Foresters, who

permitted no wheeled vehicles to enter their domain, and possessed few if any themselves.

One high road, nearly identical with the present line between Monmouth and Mitcheldean, seems to have sufficed for the neighbourhood during at least 200 years. It was in use in the age of Elizabeth, a silver penny of that reign having been found on it, between Nailbridge and Harrow Hill. By this road Lord Herbert must have marched his army of 500 horse and 1500 foot towards Gloucester in 1643, as likewise Sir W. Waller a month later when pursued by Prince Maurice, and most probably Colonel Massey took the same route more than once. It seems also to be alluded to in the following suggestion made to Sir R. Atkyns, as Lord Chief Baron of the Exchequer, by a committee appointed in 1692 to inquire into the state of the Forest, with the view of securing its better government and preservation. They proposed that “a Justice-seat should be held once a year, for six or seven years, during the long vacation, within the said Forest, or not very remote from it, which might be done by deputation from the Lord Chief Justice in Eyre to some of their Majesties’ Justices of Assize going in their *ordinary circuits from Gloucester to Monmouth*.” Their journey was of course made on horseback, the usage being still continued, which the father of the Lord Chancellor Clarendon permitted him to adopt, when he gave him “leave to ride the circuit in the summer with his uncle the Chief Justice.” An old house at the foot of the Plump Hill, near Mitcheldean, called “the Judges’ Lodgings,” because they made it their resting-place as they passed that way, seems confirmatory of the above suggestion.

The first mention of any sum being spent on the improvement of the Forest roads, occurs about the time that the trees planted in 1668 would be growing into timber fit for the Royal dockyards, and requiring therefore facilities for removal to the water-side. Hence, between 1761 and 1786, upwards of £11,305 1s. 10d. was laid out on them. Mr. Thomas Blunt, the Deputy Surveyor of the Forest, stated in 1788, in explanation of such an outlay, “That there are two great roads leading across the Forest, which have been made and kept in repair by the produce of timber felled and sold for that purpose, and on which by far the greater part of the expense for roads has been bestowed; the one enters the Forest at Mitcheldean, and proceeds quite across the Forest to Coleford, the other leads from Little Dean to Coleford. These two roads have been made chiefly with a view to the convenience of

the public, being the principal roads from Gloucester to South Wales; neither of which roads, nor others which have been made and amended at a considerable expense to the Crown, are any way conducive to the preservation of the Forest, as they are but of little use in the conveyance of timber felled for the use of the Navy, the Navy timber in general being carried by a distinct road leading from the Forest towards Blakeney, which induces him to believe that the roads lately made are disadvantageous to the Forest, more carts and waggons having been used since the making of the roads in the fetching and carrying away of coal, greater quantities of timber being used in the coalworks, and much more timber secretly conveyed away under the coal than heretofore; which practice he believes might in a great measure be prevented by the erecting of turnpike gates on the roads, the tolls whereof would be fully sufficient to keep the roads in necessary repair.”

But the Forest roads were still in so execrable a condition, being impassable in the winter, and at other times perilous to the heavily laden coal waggons and horses, always requiring large teams, according to the unanimous testimony of the oldest residents, that a further outlay on them, to the amount of £10,645, took place in carrying out the provisions of the Act passed in 1795 “for amending, widening, improving, and keeping in repair several roads in and through His Majesty’s Forest of Dean, and the waste lands thereto belonging, in the county of Gloucester, and for turning, altering, and changing the course of the said roads, and for making several new roads in the said Forest to lead to certain places in and near the same; and also for amending, widening, and keeping in repair certain roads leading from the said Forest to and through several parts of the parish of Newland adjoining the Forest, in the said county of Gloucester.” Mr. Surveyor Brimner states, that at a meeting of the Verderers of the Forest, and the Roads Trustees, held at Newnham, 22nd April, 1796, the following roads were appointed to be put in repair:—

From Mitcheldean to Coleford Lane End.

- „ St. White’s „ „
- „ Coleford „ Viney Hill.
- „ Viney Hill „ Purton Passage.
- „ Miry Stock „ Lydbrook.
- „ Perry Grove „ Clearwell.
- „ The Bearse „ Bream.

At this time, therefore, so much of the ancient road as lay between Mitcheldean and Nail Bridge was discarded for the present one, which ascends the Stenders Hill by a more even slope, and avoids the abrupt rise of Harrow Hill. The old line may yet be traced, and Nail Bridge remains; in allusion to which improvements the following advertisement appeared in *The Gloucester Journal*, Monday, Sept. 5, 1796:—"James Graham, at the George Inn, Mitcheldean, has great pleasure in returning his respectful thanks for the liberal support he has received, and announces to the public that the new road through His Majesty's Forest of Dean, leading from Mitcheldean to Coleford and Monmouth, which is the high road from Gloucester to South Wales, is already greatly improved, and in a short time will be equal to any in this part of the country. It is allowed that travellers will save a mile at least by taking this way from Gloucester to Monmouth; and when accurately measured, it is imagined that the saving will be found to be still greater. Graham has laid in a stock of admirable port and other wines, and every exertion will be made for public accommodation. Post chaises at 1s. per mile, and sober drivers."

Nor was this advertisement a mere puff, as Mr. Budge, writing in the year 1803, states—"The great travelling road to Monmouth from Gloucester now leads through Mitcheldean, which, with the good accommodation afforded to travellers, will in process of time be probably the occasion of raising it to a considerable rank among towns of this description." Besides which, there are sufficient intimations in the double approach to the George Inn and large yard adjoining it, as well as in the capacious stable-yards belonging to the other inns of the town, which is beset with six toll-bars, that its character must have been such as is here given; to which may also be added the numerous farmers' teams which were constantly passing through the town to and from the collieries in the Forest, in droves of ten or fifteen together, the bells on the horses merrily jingling as they moved along. Connected with which circumstance it may be observed that the old roads of the district abound in horsepools, or watering-places, wherever a spring could be made available for their supply. At this time the two Mitcheldean toll-bars, situated on the Gloucester and Monmouth line of road, were let at £250 per annum. The only link connecting in these respects the past with recent times was supplied until the last five years by our old friend Mr. Yearsley's coach, running three times a week between Coleford and Gloucester.

For the next thirty years the Crown does not seem to have laid out any money upon the Forest roads, although their condition was so bad that it was urged as a reason for building churches and schools in the Forest, those of the surrounding parishes not being readily accessible to the inhabitants. But in 1828 and the two following years the Roads Trustees borrowed £5,000, with which they made the road

Leading from Park End to Bream	1½ miles.
„ Nail Bridge to Little Dean	3 „
„ the White Oak to Lydbrook	1 „

besides widening and improving the road through Lydbrook for Bishopswood. They likewise formed the road

Leading from Berry Hill to Shortstanding	1 mile.
„ Christ Church to Symmonds Rock	2 „
„ White Oak to Eastbatch Lane End	½ „

when other parts of the roads were also improved.

In 1841 the large sum of £5,000 was expended by the Commissioners in constructing roads

From Park End to Blakeney	5 miles.
„ Nail Bridge to Mitcheldean	2 „
„ Drybrook to the Bailey Lane End	1½ „
„ Bishop's Wood to Nail Bridge	3½ „
„ Long Stone, Berry Hill, and Fetch Pit	2 „

To which may be added a short length of road made from the Hawthorns to the top of the Stenders, by a grant from the Operatives' Relief Fund. [\[197\]](#)

The total length of the roads comprised within the present limits of the Forest is 41 miles 3 furlongs 31 yards. The tolls are not let, but collected in

the name of the Commissioners, and yielded, in 1856, as follows, at their respective gates:—

	£.	s.	d.
Moseley	26	18	7
Nibley	97	16	6
Yorkley	67	7	9
Lydbrook	227	2	1½
Slope Pit	17	8	7½
Nail Bridge	19	18	1
Drybrook	205	1	1
The Stenders	58	15	11½
Plump Hill	144	16	7½
Little Lane End	34	13	10
St. White's	81	19	8
Little Dean Woodside	99	0	7
Reden Horne	16	7	8½
Howler's Slade	14	19	8½
Bream	73	12	6
Park End	145	5	2½
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Total	1,331	4	7½

All these roads are now in excellent repair, but they have been, nevertheless, compelled to yield to the superior advantages of the railway system, here grafted, as is the case in some other places, upon the useful but less perfect tramway. ^[198]

In the years 1809 and 1810 a local Act authorised the construction of an extensive system of tramways throughout the Forest, under the auspices of “the Severn and Wye” and “Bullo Pill” Companies, traversing respectively the western and eastern sides of the district. The latter of these, the tramway which descends the eastern valley through Cinderford and Sowdley to the Severn, passed into the hands of the South Wales Railway Company, who purchased it in 1849, with the view of forming it into a locomotive road; and this they effected after great difficulty, in consequence of being obliged to carry on the trade upon the tramway at the same time, and opened it on the 14th July, 1854. Its present length, extending from Bullo Pill to the Churchway Colliery, is nearly seven miles. There is a branch from it of three-quarters of a mile to the Whimsey, another of one mile and a half to the Lightmoor Colliery, one of three-quarters of a mile to the Crump Meadow Colliery, one of a quarter of a mile to the Nelson Colliery, and a shorter one to the Regulator Pits. It is a single line, constructed throughout on the broad-gauge principle, and for the present only conveys minerals. A central line, in addition to the above, is in course of formation. The tramway of “the Severn and Wye Company,” on the west side of the Forest, has not been materially altered.

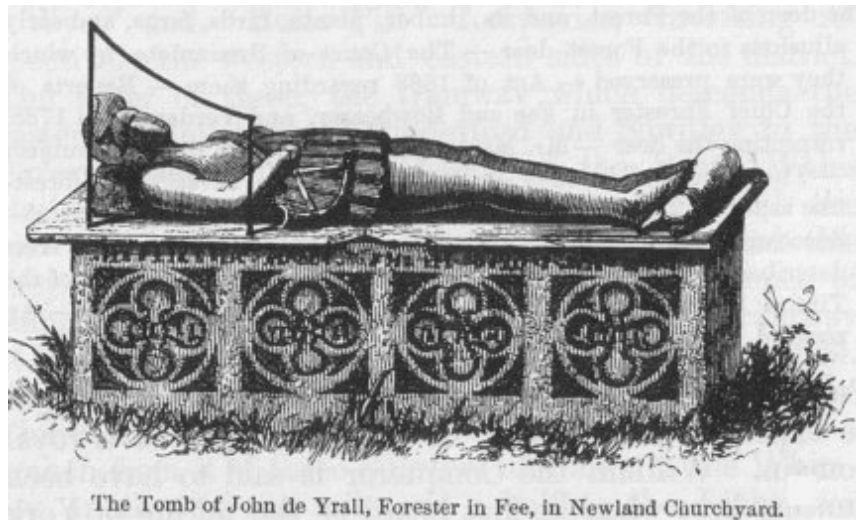
CHAPTER XIII.

The deer of the Forest, and its timber, plants, birds, ferns, and early allusions to the Forest deer—The Court of Swainmote, by which they were preserved—Act of 1668 regarding them—Reports of the Chief Forester in Fee and Bowbearer, and Verderers, in 1788, respecting the deer—Mr. Machen's memoranda on the same subject—Their removal in 1849—The birds of the Forest—Unforestlike aspect of the Forest, now, compared with its former condition—Successive reductions of its timber—Its oldest existing trees described—Present appearance of the young woods—Table of the Timber Stock, from time to time, during the last 200 years—An account of the rarer plants and ferns.

The earliest allusion to deer in the Forest is, as might be expected, coeval with its being constituted a royal domain. William the Conqueror is said to have been hunting here when he first heard of the taking of York by the Danes in August, 1069. In Henry I.'s reign the deer were so numerous as to make the tithes of them worthy of being given as a royal present by that king to the Abbey of Gloucester, which city, says Geraldus, was supplied with venison from the Forest of Dean; and the frequent visits of King John to Flaxley Abbey and to the Castle of St. Briavel's during the latter years of his reign, arose probably from the abundant sport the neighbourhood afforded him.

The deer of the King's forests were preserved in ancient times with the greatest care by the execution of certain laws, administered by a Swainmote Court, which was regulated by officers called Verderers, Foresters, and Agisters, who disposed of all cases in which deer were killed without warrant: not that any man was to lose either life or limb, as formerly, for so doing; but he was to be heavily fined if he had property, or, if not, to be imprisoned a year and a day, and be then released, if he could find sufficient securities, or be abjured the realm. A curious exception existed, however, in the case of any archbishop, bishop, earl, or baron summoned to the King,

and by the way passing through a royal forest, when it was lawful for him to “take and kill one or two deer, by the view of the Forester, if he be present, or else shall cause one to blow an horne for him that he seem not to steal the deer.” At the fawning season, or “fence-month,” as it was called, commencing fifteen days before and ending fifteen days after Midsummer-day, the Forest officers attended within their own walks, and required all manner of dogs to be kept in at the peril of the owner, bringing before the verderers any persons found hunting or out of the highway with a bow or gun, or gathering rushes or bents, or driving swine or cattle, to the hurt or disquiet of the deer. They were also charged at all times with the preservation of the vert or underwood, on account of the shelter and food it afforded the deer.



The Tomb of John de Yrall, Forester in Fee, in Newland Churchyard.

By the Act of 1668 it is provided, that, “should His Majesty think fit to restore the game of deer within the said Forrest, the same shall not exceed the number of 800 deer of all sorts at any one time;” intimating that during the Civil War, and the period of the Commonwealth, that kingly pastime had been discontinued. The same Act directs that “the owners, tenants, &c., of any of the several lands lying within the bounds of the Forest may keep any sort of dogs inexpediated to hunt and kill any beast of chase or other game,” except during “the fence month,” and “the time of the winter heyning, viz. from the 11th of November to the 23rd of April,” when all rights of common were to be in abeyance.

Charles Edwin, Esq., “Chief Forester in Fee and Bowbearer,” in 1787, stated to the Commissioners that he claimed by virtue of his office to be entitled to

the right shoulder of all bucks and does killed within the Forest, and also to ten fee bucks and ten fee does, annually to be there killed and taken at his own free will and pleasure, with licence to hawk, hunt, fish, and fowl within the Forest.” As bowbearer, it was his duty “to attend His Majesty with a bow and arrow, and six men clothed in green, whenever His Majesty shall be pleased to hunt within the said Forest.” Edmund Probyn, Esq., one of the Verderers of the Forest, stated at the same time, that the number of bucks and does which it contained could not be ascertained; but it was much understocked, so that the warrants were sometimes sent back unexecuted.” Until the deer were removed, each of the four verderers was entitled to a buck and a doe every year.



“When I first remember the Forest,” Mr. Machen remarks, in his private papers, “now 65 years since, the deer were very numerous. I recollect my father taking me up to the Buckholt in an evening for the purpose of showing them to me, and we never failed of seeing several:” this was about 1790. “From that time for 20 years, in consequence of the decrease of the covert and the increase of poachers, they rapidly diminished, until in 1810, when I do not believe there were ten in the whole Forest. At this period the enclosures were made for the preservation of timber, and woodmen appointed to the care of them; the few deer that were left were protected, and

as the young trees grew up so as to afford them shelter, they rapidly increased, and in thirty years, viz. in 1840, I should think there were not less than 800 or 1000 deer in the Forest.”

“The red deer were introduced in 1842 by Mr. Herring, who brought down on 24th February, from Woburn, two stags and four hinds. They were in fine condition, and were turned loose in Russell’s Enclosure, one mile from the Speech-house.” Mr. Machen further notes as follows:

“October, 1842.—Two of the hinds have calves with them.”

“October 20th.—One of the stags was hunted from Trippenkenet, in Herefordshire, and swam the Wye three times: the hounds brought him into Nag’s Head Enclosure.”

“July, 1844.—Two stags, three hinds, and a calf are now in Park Hill Enclosure, and are frequently seen in the meadow in front of Whitmead. One old stag is at Edge Hills. A hind is sometimes seen in the Highmeadow Woods, and it is known that one was killed there.”

“October.—A young hind was sent down, and turned out in Haywood Enclosure.”

“October, 1845.—The two old stags are wandering about, and seldom in the Forest.”

“October 4.—Hunted the stag near Park End; ran four hours, but lost him, night coming on.”

“September 20th, 1846.—The stag that was about Staunton and Newland was killed this day, after a run of three hours. He was found on the old hills near Newland, and killed in Coleford. This was a four years old deer, calved in the Forest; the hind and calf went to Staunton, and never returned: the hind was killed by poachers. The venison of the stag was excellent: the haunches were 45 lbs. each.”

“October, 1847.—Another stag was killed after a good run. Two were found, and ran some time together before the hounds in Park Hill.”

“October 6, 1848.—The last stag returned to the Forest, after having been in the woods, &c., near Chepstow almost a year. He was found in Oaken Hill,

and killed, after a run of three hours, in Sallow Vallets. His haunches weighed 51 lbs., and the whole weight 307 lbs.”

“The fallow deer of the Forest were reduced in number after the year 1850 by killing a large number of does. They were all fine animals, and when the enclosures protected them they got very fat, and the venison of fine flavour. They were generally hunted.”

At the time of Lord Duncan’s Committee in 1849 a general feeling prevailed against the deer, on the ground of their demoralising influence as an inducement to poaching, and all were ordered to be destroyed, there being at that time perhaps 150 bucks and 300 does.

The remarks “Going after the deer,” or “You don’t, may be, want to buy some meat?” are no doubt fresh in the recollection of many. Going about with guns, in numbers too formidable for the keepers to interfere, shooting the deer by day, and carrying them off at night, were by no means uncommon. Poachers of a poorer and more primitive stamp are said to have resorted to the expedient of dropping a heavy iron bar from where they had secreted themselves, on the projecting branch of an oak, so that it might fall across the neck of the deer which had come to browse beneath. Or they baited a large hook with an apple, and suspended it at a proper height by a stout cord over a path which the deer were observed to frequent. They also were known to set a number of nooses of iron wire in a row, skilfully fastened to a rope secured to a couple of trees, into which, aided by dogs, they drove the deer. With such kind of sport at command, we may be well assured of the truth of Mr. Nicholson’s statement before Lord Duncan’s Committee—“if once men begin to poach, we can never reckon upon their working afterwards.” Ornamental to a forest as deer undoubtedly are, and disappointing as it may be to the stranger to find none in the Forest of Dean, we cannot regret that, in 1855, Mr. Machen records, “there is not now a deer left in the Forest, and only a few stragglers in the Highmeadow Woods.”

Besides deer inhabiting the Forest from the earliest times, no doubt it was also frequented by all such animals as used to be accounted “beasts of the forest,” viz. the hare, boar, and wolf, in addition to the hart and hind.

Adverting to the feathered tribes which have been observed in this neighbourhood, Mr. Machen remarks—“The birds in the Forest do not differ

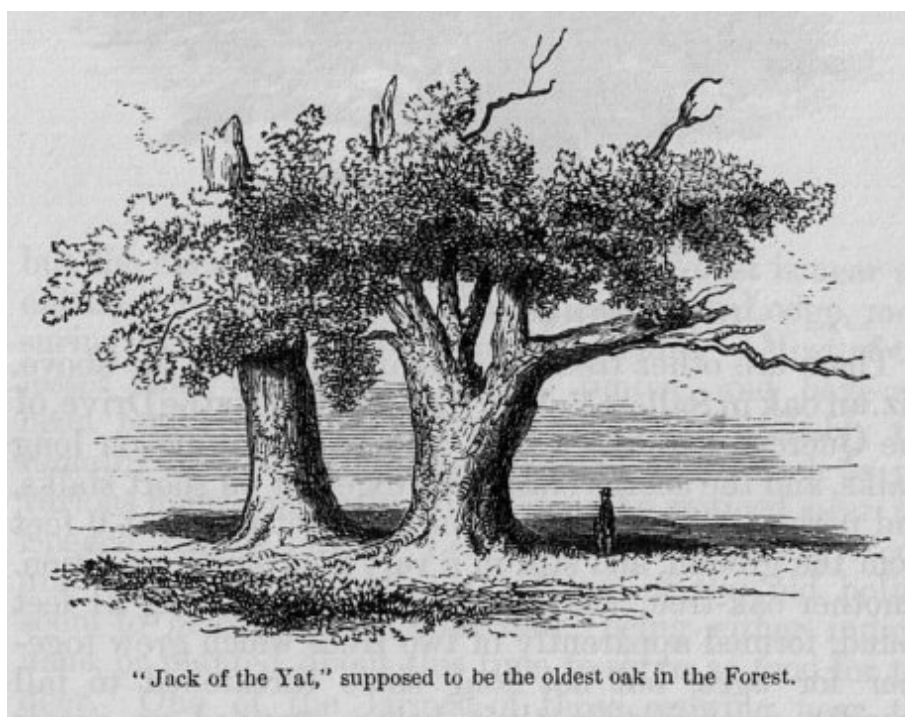
much from those met with in other parts of the west of England. I have been struck with the contrast in the smaller number of large birds, mostly of the falcon kind, which are now seen, in comparison with those I remember fifty years ago. At that time you might often observe fifteen or twenty kites and hawks hovering over Church Hill and the Bicknor walks; but now it is not frequently the case that you see one. It appears to me also that there is a great diminution in the number of all kinds of birds, small as well as large, so that in some parts of the Forest and woods the stillness and absence of animals of every kind is surprising. Ravens too have become very scarce. A pair had a nest by Simmon's Rock this year (1857), but they are said to drive their young to a distance as soon as they can provide for themselves. The only kind of plover in the Forest is the green plover or lapwing, which were very numerous at one time in the wet greens. Woodcocks used to be thought never to breed in this country, but they certainly do so now. In this Forest and in other places I have frequently seen them during the summer, and have observed their nests, made on the ground, of slight construction. One above Whitemead had only two eggs. When the plantations were first made, they became, even in the centre of them, well stocked with partridges; but as the woods grew up they all disappeared. Pheasants were turned out by me at Whitemead, and soon spread over the whole Forest. At one time there was a good stock, but lately they are much reduced. There are a great variety of woodpeckers, which do not, I think, hurt sound trees, but rather those which they find already decaying. Fieldfares and redwings come in great numbers. Nightingales are not numerous in the Forest, although they abound in the neighbourhood. They do not like its depths, or large trees hollow below; but prefer a thick close cover, and the vicinity of a road or path where the bushes are low and thick: but I never heard one in the middle of the Forest. Although a country like this seems unsuited to the wheatear, as preferring the Downs of Sussex, &c., still they come here in the spring, and are generally seen by the roads, or on stone walls in which they build their nests, and even in the heaps of stones, as also in the rails of bark. I remember that beautiful bird, the kingfisher, by the Forest brooks, but now you never see one. Flocks of rooks sometimes come into the neighbourhood when the oaks are much blighted, to feed on the grubs, and in such quantities that the trees are quite black with them. They come from a distance, as they are not seen at other times, and never breed in the Forest."

Mr. Gee, speaking of the birds which he has observed on the north-east side of the Forest, states—"The raven is seen more frequently in the neighbourhood than in most parts of England: his croak over head is not at all an uncommon sound. A pair of buzzards will occasionally circle aloft for a considerable time. The snipe is found very early on the Forest, so much so that I have known in the month of July six killed in a day. The jack snipe particularly abounds about 'the Dam Pool.' The bittern has been twice shot near the same spot within the last twenty years. The seagull skims over occasionally from the Severn side. The water-ousel is frequently met with on the Forest brooks. The cross-bill comes sometimes into the neighbourhood. The turtle-dove particularly abounds, so that in early summer our woods are in a charm with their soft purring. The fern owls are very numerous. I once came on a considerable flock of the rare bird, the siskin. The titmouse tribe are abundant; but we never see the rarer species, the bearded or the crested tit. The chats and the wheatear are of course common. The woodpeckers are very common: even the two pied species might be obtained here with very little trouble. We are all over willow wrens in the spring. On the whole, I should say that it is a neighbourhood unfavourable for the observation of birds; and yet, were an observant naturalist to come among us, he would soon astonish us by what he would discover."

THE TIMBER.

Most strangers visiting the Forest do so in the expectation of seeing groves of stately timber covering the ground in every direction, and are much disappointed when they find the greater part to consist of oaks, barely fifty years old, comprised in enclosures, and the remainder of the surface disfigured by furnaces, collieries, and groups of inferior buildings. The Forest as it existed in the days of the Norman and Plantagenet kings, William I. and John, who resorted to it for the pleasures of the chase, when its dark recesses often concealed noble fugitives, or disposed its population to habits of violence and plunder, or at a still later period, when its stately trees had become objects of apprehension or jealousy to the Spaniards, was widely different from what it is at present. Few of the trees of those days have survived the fellings, spoliations, and storms of succeeding ages. According to Mr. Pepys, "a great fall" in Edward III.'s reign left only those which in his

time were called “forbid trees,” to be further reduced by the requirements of seventy-two iron forges, which then lit up the district, or the yet more voracious furnaces by which they were succeeded. One storm alone, viz. that of the 18th of February, 1662, prostrated in one night 1,000 oaks, and as many beech, whilst only 200 were, it is said, left standing after the wholesale fellings perpetrated by Sir John Winter. Of these select few, the venerable “Jack of the Yat,” near the Coleford and Mitcheldean Road on the top of “The Long Hill,” appears to be one.

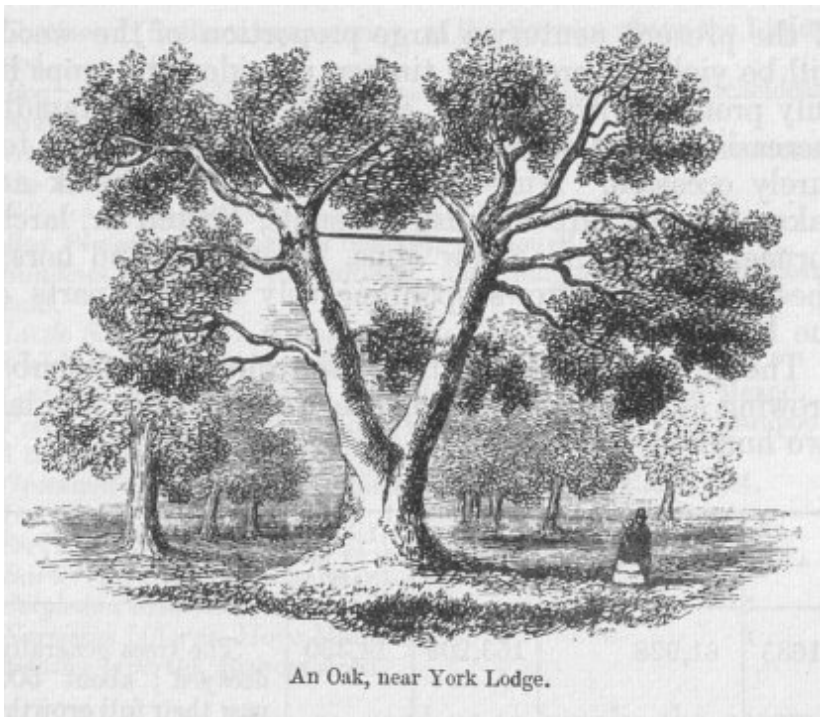


Mr. Machen thinks it the most ancient tree in the Forest, and probably four or five hundred years old. It is of the *Quercus robur* kind, or old English oak, the stalks of its acorns being long, with rarely more than one acorn on a stalk, and the stalks of its leaves short. A few years back it was struck by lightning, which has left a deep groove on its trunk. In 1830 it measured, at 6 feet from the ground, 17 feet 8¾ inches; and in 1846 upwards of 18 feet 3½ inches: but it has long since passed its prime. ^[208] Two other oaks, similar in form, and fully as large in girth, yet exist, but in a decaying state, on Shapridge.



There are other trees approaching in age to the above, viz. an oak in Sallow Vallets Enclosure near the Drive, of the *Quercus sessiliflora* kind, its leaves growing on long stalks, and the acorns clustering together on short stalks, and perhaps 200 years old, being 13 feet round at 6 feet from the ground, and still in a very flourishing condition. Another oak-tree, near York Lodge, measuring 21 feet round, formed apparently of two trees which grew together for ages, but not long since threatened to fall asunder, necessitating their being cramped up across the head by a transverse iron bar. At the Brookhall Ditches also there is an oak entirely variegated, containing 100 feet of timber; besides several other fine trees near. There are five very large beech-trees growing about two miles from Coleford on the road to Mitcheldean, and others likewise, almost as large, on the Blaize Bailey, besides several more near Danby Lodge; but the finest of all the beeches in the Forest is near the entrance to Whitemead Park, near York Lodge, measuring 17 feet at 6 feet from the ground. Most of the lesser oaks which have become timber, and have not been removed by the recent "falls," are probably the remains of the plantations made in 1670, such as the various flourishing oaks which may be noticed near the Speech House, on the Lea Bailey, the Lining Wood, and in a few other places. Many of the old hollies seem to belong to the same date, being either indigenous, or planted about

this time to serve as food for the deer. One of the largest of those growing near the Speech House measures 9 feet in girth at 4 feet from the ground.



During the earlier half of the last century the devastations were so rapid as to necessitate re-enclosing and re-planting various parts, about the year 1760; but the effort to restock the whole of the Forest as it now appears was reserved to 1810 and the thirty subsequent years. Its present aspect, with very few exceptions, is such as to afford the best hopes that by the close of the present century a large proportion of the woods will be yielding profitable timber, provided the crops be duly protected from injury, which otherwise the rapidly increasing population of the neighbourhood will too surely occasion. Nine-tenths of the present stock are oaks; the rest are Spanish chesnuts, Scotch fir, larch, spruce, beech, and a few elms, sycamores, and horse-chesnuts; birch grows spontaneously in most parts of the Forest.

The following Table exhibits the quantity of timber growing at different times in the Forest within the last two hundred years.

A.D.	Tons.		Cords.	Loads fit for the Navy.	
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1635	61,928		153,209	14,350	The trees generally decayed; about 500 past their full growth.
1662	25,929	Oak	121,500	11,335	
	4,204	Beech			

	30,133				(30,000 old trees.)
1764				27,302	
1783	90,382	Oak		95,043	
	17,982	Beech			

	108,364				
1788				48,000	
1808				22,882	
1857	10,000				About 5,000 trees, 7,500 having been felled since 1845.

With respect to the rarer plants found in the neighbourhood, it may be observed that the walk by the side of the Wye from Ross to Chepstow is said to be the most productive in objects of botanical interest of any part of England. The following list, kindly furnished by Mr. Gee, applies chiefly to the north-east section of the Forest and its vicinity:—

Toothwort (*Lathræa squamaria*), at the Scowles above the Lining Wood.

Bog Asphodel (*Narthecium ossifragum*), in the Mitcheldean Meand Enclosure.

Gentian (*Gentiana amarella*), Limestone Quarry near Silverstone, at the Hawthorns.

Winter Green (*Payrola media*), Hare Church Hill.

Bog Pimpernel (*Anagallis tenella*), Purlieu Road.

Sundews (*Drosera rotundifolia* and *longifolia*), Mitcheldean Meand.

Little Sallow (*Salix repens*), Mitcheldean Meand.

Viola lactea, Mitcheldean Meand.

Cotton Grass (*Eriophorum angustifolium*), Mitcheldean Meand.
Petty Whin (*Genista Anglica*), the waste between the Dampool and the
Speech House.
Gromwell (*Lithospermum officinale*), throughout the Forest.
Bee Orchis (*Ophrys apifera*), road to Bishopswood.
Services (*Pyrus pinnatifida* and *aria*), Bicknor Rocks.
Barberry (*Berberis vulgaris*), Bicknor Rocks.
Cotyledon umbilicus, Purlieu Road.
Narcissus biflorus, Hope Mansel.
Mentha piperita, Bishopswood.

Mr. Bird has been so good as to supply the accompanying list of Forest
Ferns:—

Scolopendrium ceterach, and *S. vulgare*.
Polypodium vulgare. *Blechnum boreale*.
„ *phegopteris*. *Pteris aquilina*.
„ *dryopteris*.
Aspidium lobatum, and *Filix mas* and *spinulosum*, *dilatatum*, *Ruta*
muraria, *Trichomanes*, *Adiantum nigrum*, *Filix fœmina*.

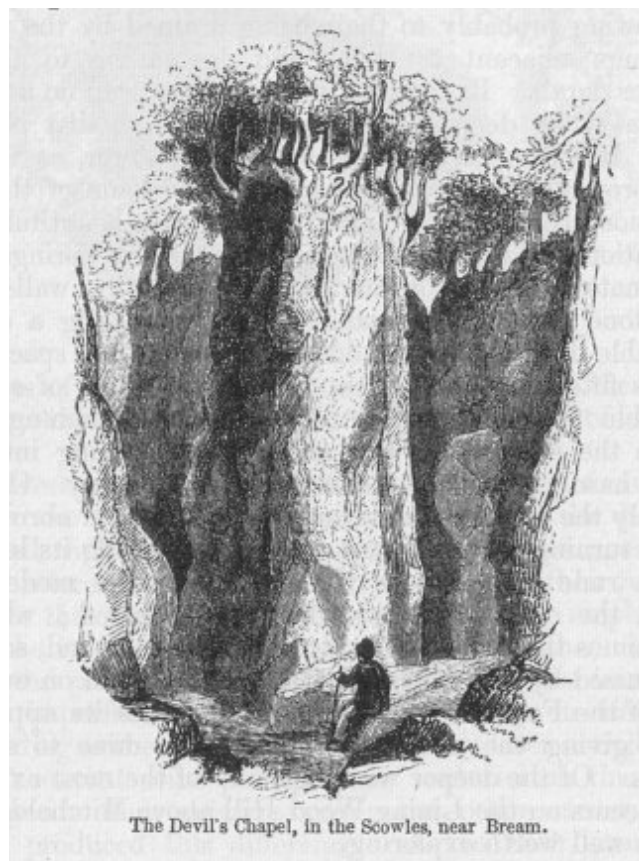
To which may be added the *Polypodium calcareum*, noticed by Mr.
Anderson, of the Bailey Lodge, who further states that the *Daphne Mezereon*
shrub, as well as the wood laurel, are indigenous in the Forest, especially in
the coppices on the limestone.

CHAPTER XIV.

The Iron Mines and Iron Works in the Forest—Mr. Wyrall's description of the ancient excavations for iron—Their remote antiquity proved, and character described—Historical allusions to them—The quality, abundance, and situation of the old iron cinders—The early forges described—Portrait of an original free miner of iron ore—His tools—Introduction of the blast furnace into the Forest—Various Crown leases respecting them—A minute inventory of them—Mr. Wyrall's glossary of terms found therein—Mr. Mushet's remarks on the remains of the above works—First attempts to use prepared coal in the furnaces—Iron-works suppressed—Value of iron ore at that time—Dr. Parsons's account of the manner of making iron—State of the adjoining iron-works during the seventeenth century—Revival of them at its close—Their rise and prosperity since—At Cinderford, Park End, Sowdley, Lydbrook, and Lydney—Character of the iron-mines at the present time.

“There are,” writes Mr. Wyrall, in his valuable MS. on the ancient iron-works of the Forest, dated in the year 1780, “deep in the earth vast caverns scooped out by men's hands, and large as the aisles of churches; and on its surface are extensive labyrinths, worked among the rocks, and now long since overgrown with woods; which whosoever traces them must see with astonishment, and incline to think them to have been the work of armies rather than of private labourers. They certainly were the toil of many centuries, and this perhaps before they thought of searching in the bowels of the earth for their ore—whither, however, they at length naturally pursued the veins, as they found them to be exhausted near the surface.” Such were the remains, as they existed in his day, of the original iron-mines of this locality; and except where modern operations have obliterated them, such they continue to the present time. Beyond the inference of remote antiquity, which we naturally draw from the fact of their presenting no trace of the use of any kind of machinery, or of gunpowder, or the display of any mining

skill, we may cite the unanimous opinion of the neighbourhood, that they owe their origin to the predecessors of that peculiar order of operatives known as “the free miners of the Forest of Dean;” a view which is confirmed by the authentic history of the district. But the numerous Roman relics found deeply buried in the prodigious accumulations of iron cinders, once so abundant here as to have formed an important part of the materials supplied to the furnaces of the Forest, afford proof that the iron-mines were in existence as early as the commencement of the Christian era; so that the openings we now see are the results of many centuries of mining operations, with which their extent, number, and size perfectly accord.



These mines present the appearance either of spacious caves, as on the Doward Hill, or at the Scowles near Bream, or they consist of precipitous and irregularly shaped passages, left by the removal of the ore or mineral earth wherever it was found, and which was followed in some instances for many hundreds of yards, openings being made to the surface wherever the course of the mine permitted, thus securing an efficient ventilation, so that although they have been so long deserted the air in them is perfectly good.

They are also quite dry, owing probably to their being drained by the new workings adjacent to them, and descending to a far greater depth. In the first instance they were no doubt excavated as deep as the water permitted, that is, to about 100 feet, or in dry seasons even lower, as is in fact proved by the water-marks left in some of them. Occasionally they are found adorned with beautiful incrustations of the purest white, formed by springs of carbonate of lime, originating in the rocky walls of limestone around. Sometimes, after proceeding a considerable distance, they suddenly open out into spacious vaults fifteen feet in width, the site probably of some valuable “pocket” or “churn” of ore; and then again, where the supply was less abundant, narrowing into a width hardly sufficient to admit the human body. Occasionally the passage divides and unites again, or abruptly stops, turning off at a sharp angle, or changing its level, where rude steps cut in the rock show the mode by which the old miners ascended or descended; whilst sometimes the rounds of ladders have been found, semi-carbonized by age. These excavations abound on every side of the Forest, wherever the iron makes its appearance, giving the name of “Meand” or mine to such places. Of the deeper workings, one of the most extensive occurs on the Lining Wood Hill above Mitcheldean, and is well worth exploring.

The earliest historical allusion to these underground works is made by Camden, who records that a gigantic skeleton was found in a cave on the Great Doward Hill, now called “King Arthur’s Hall,” being evidently the entrance to an ancient iron-mine. The next refers to the period of the Great Rebellion, when the terrified inhabitants of the district are said to have fled to them for safety when pursued by the hostile soldiery of either party.



Adverting, in the next place, to the heaps of cinders left where the ancient iron-manufacturers of the district worked, their *quality*, *abundance*, and *situation* suggest several interesting points of observation. Thus, their *quality* proves that charcoal was the fuel invariably employed, and the large percentage of metal left in them shows that the process then in use of extracting the iron was very imperfect. They are said to vary in richness according as they belong to an earlier or later period—so much so, that some persons have ventured on this data to specify their relative ages; but other causes may have produced this difference. As to their *quantity*, it was once so great, that, although they have formed a large part of the mineral supply to the different furnaces of the district for the last 200 years, they still abound for miles round the Forest, wherever human habitations appear to have clustered, sometimes giving the names to places, as “Cinderford” and “Cinder Hill,” or forming a valuable consideration in the purchase of land containing them.

Equally remarkable with the two former characteristics of these cinders is their *position*, not unfrequently on elevated spots and far removed from any watercourse. Under such circumstances, the high temperature necessary for acting upon the ore must have been obtained by constructing the fireplace so as to create a powerful draft of air, the fuel and mineral being placed

alternately in layers within a circular structure of stone, resembling the rude furnaces said to be used amongst the natives of central Africa.

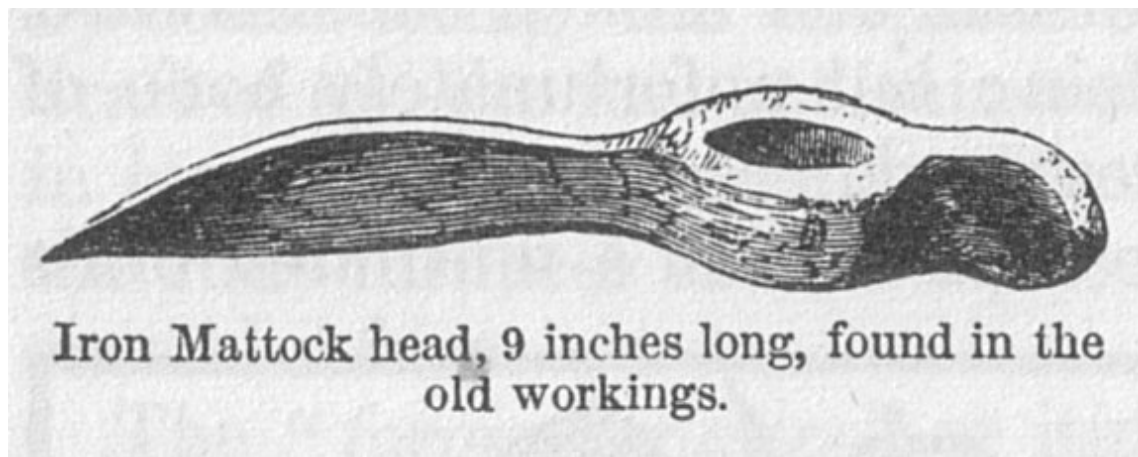
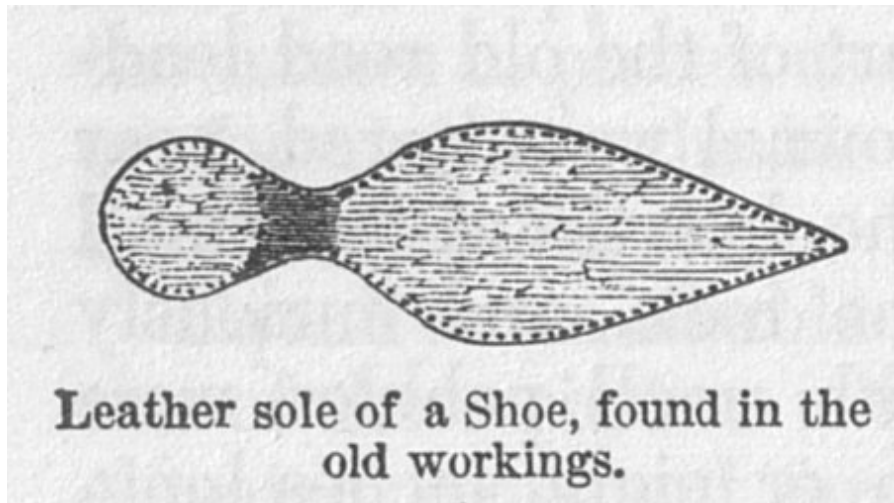
The “*forgiæ errantes*,” or itinerant forges, ^[216] mentioned in the records of the Justice Seat held at Gloucester Castle in 1282, were no doubt improvements on the structures just mentioned, being at the same time so formed as to admit of being removed and set at work elsewhere, as is in fact intimated by the name given to them, as well as by the more frequent occurrence and smaller size of those cinder-heaps which are found nearer to the centre of the Forest; and consequently of more modern date, presenting a striking contrast to the larger and more ancient mounds existing in places more remote, the refuse of the earlier forges kept at work for many years in one spot.

The moderate capacity of the *forgiæ errantes* may be inferred from the circumstance that in the reign of Edward I. there were seventy-two of them in the Forest alone, supplied with ore by at least fifty-nine iron-mines, by which Gloucester, Monmouth, Caerleon, Newport, Berkeley, Trelleck, &c., are stated in the Book of the Laws and Customs of the Mine to have been furnished with that metal. We also know that the two forges at Flaxley consumed two oaks every week, and that in that age £46 was paid to the King by such persons as farmed any of them, or 7s. if they held a year’s licence.

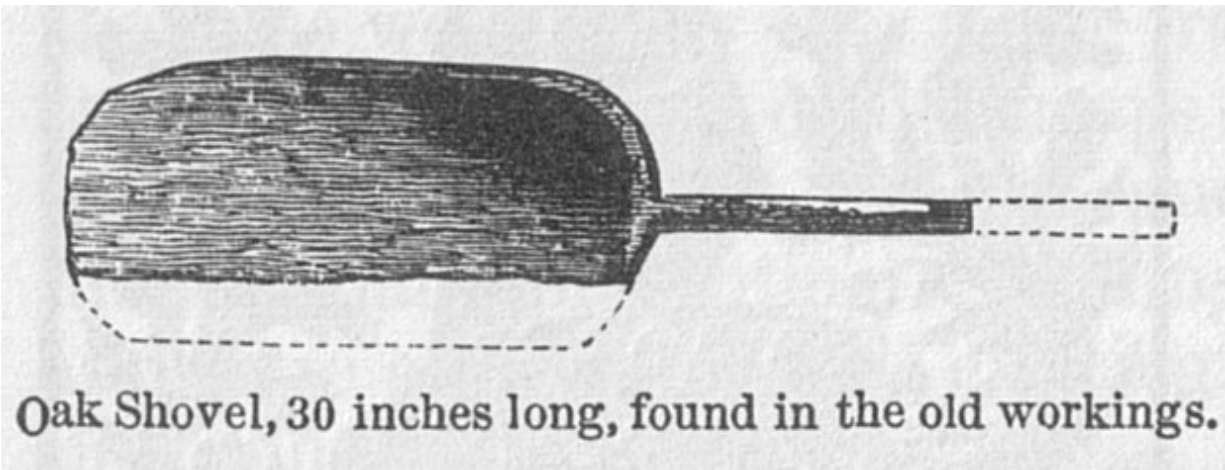
In the year 1841, when that part of the old road leading up to the Hawthorns from Hownal was altered, near the brook below Rudge Farm, the hearths of five small forges, cut out of the sandstone rock, and curiously pitched all round the bottom with small pebbles, were laid open, and an iron tube seven or eight inches long, and one inch and a half bore, apparently the nozzle of a pair of bellows, was found, as well as scores of old tobacco pipes, bits of iron much rusted, and broken earthenware, besides a piece of silver coin; but unfortunately none of these relics have been preserved.



The heraldic crest here copied from a mutilated brass of the 15th century, within the Clearwell Chapel of Newland Church, gives a curious representation of the iron-miner of that period equipped for his work. It represents him as wearing a cap, holding a candlestick between his teeth, handling a small mattock with which to loosen, as occasion required, the fine mineral earth lodged in the cavity within which he worked, or else to detach the metallic incrustations lining its sides, bearing a light wooden mine-hod on his back, suspended by a shoulderstrap, and clothed in a thick flannel jacket, and short leathern breeches, tied with thongs below the knee. Although in this representation the lower extremities are concealed, the numerous shoe-footed marks yet visible on the moist beds of some of the old excavations prove that the feet were well protected from injury by the rough rocks of the workings. Several mattock-heads exactly resembling the one which this miner is holding have also been discovered; and to enable us, as it were, to supply every particular, small oak shovels for collecting the ore, and putting it into the hod, have in some places been found.



The mining and making of iron continued to be carried on in the Forest in the manner indicated by the foregoing particulars, until the improved methods of manufacture established in other parts of the kingdom, particularly in Sussex, had been adopted here. As early probably as the commencement of the reign of Elizabeth, these improvements came into use in this locality, and superseded the old "make." It was for its iron-mines, even more than for its timber, that this Forest excited the jealousy of the Spaniards, who designed to suppress the former by destroying the charcoal fuel with which they were worked.



The earliest intimation of any such change in the mode of manufacture occurs in the terms of a “bargayne,” made by the Crown, and preserved in the Lansdowne MSS. “wth Giles Brudges and others,” on 14th June, 1611, demising “libertye to erect all manner of workes, iron or other, by lande or water, excepting Wyer workes, and the same to pull downe, remove, and alter att pleasure,” with “libertye to take myne oare and synders, either to be used att the workes or otherwise,” &c. By “synders” is meant the refuse of the old forges, but which by the new process could be made to yield a profitable percentage of metal which the former method had failed to extract. In the year following a similar “bargayne” was made with William Earl of Pembroke, at the enormous rental of £2,433 6s. 3d., but with leave to take “tymb^r for buildinges & workes as they were,” with “allowance of reasonable fireboote for the workmen out of the dead & dry wood, &c., to inclose a garden not exceedinge halfe an acre to every house, and likewise to inclose for the necessity of the worke; the houses and inclosures to bee pulled downe & layd open as the workes shall cease or remove.” A third and corresponding “bargayne” was agreed to, on the 3rd of May, 1615, with Sir Basil Brook, there being reserved in rent “iron 320 tonns p. annum, w^{ch} att xii^{ll} x^s the tone cometh to 4,000 per an.: the rent reserved to be payd in iron by 40 tonns p. month, w^{ch} cometh to 500^{ll} every month; so in toto yearelye 4,000^{ll},” and a proviso that “The workes already buylt onlye granted, wth no power to remove them, but bound to mayntayne and leave them in good case and repayre, wth all stock of hammers, anvil’s, and other necessarys received att the pattentees’ entrye,” as also that “libertye for myne and synders for

supplying of the workes onlye, to be taken by delivery of the miners att the price agreed uppon.”

In 1621 Messrs. Chaloner and Harris appear to have succeeded to the works under a rent of £2,000, and who, we may presume, cast the 610 guns ordered by the Crown on behalf of the States General of Holland in 1629. The spot where they were made was, it would seem, ever after called “Guns Mills.” It certainly was so called as early as the year 1680, an explanation of the term which is confirmed by the discovery there of an ancient piece of ordnance. “Guns Pill” was the place where they were afterwards shipped.

A curious inventory, dated 1635, of the buildings and machinery referred to in the forenamed “bargaynes,” has been preserved amongst the Wyrall Papers, and is inserted in the Appendix No. IV.

As to the length of time the works specified in Appendix No. IV. continued in operation, the late Mr. Mushet, who knew the neighbourhood intimately, in his valuable “Papers on Iron,” &c., considers that they were finally abandoned shortly after that date (1635), since, “with the exception of the slags, traces of the water mounds, and the faint lines of the watercourses, not a vestige of any of them remains.” He adds, “About fourteen years ago I first saw the ruins of one of these furnaces, situated below York Lodge, and surrounded by a large heap of slag or scoria that is produced in making pig iron. As the situation of this furnace was remote from roads, and must at one time have been deemed nearly inaccessible, it had all the appearance at the time of my survey of having remained in the same state for nearly two centuries. The quantity of slags I computed at from 8,000 to 10,000 tons. If it is assumed that this furnace made upon an average annually 200 tons of pig iron, and that the quantity of slag run from the furnace was equal to one half the quantity of iron made, we shall have 100 tons of cinders annually, for a period of from 80 to 100 years. If the abandonment of this furnace took place about the year 1640, the commencement of its smeltings must be assigned to a period between the years 1540 and 1560.”

The oldest piece of cast iron which Mr. Mushet states he ever saw, exhibited the arms of England, with the initials E. R., and bore date 1555, but he found no specimen in the Forest earlier than 1620. He also observes, that, “although he had carefully examined every spot and relic in Dean Forest likely to denote the site of Dud Dudley’s enterprising but unfortunate

experiment of making iron with pit coal,” it had been without success, and the same with the like operations of Cromwell, who was partner with Major Wildman, Captain Birch, and other of his officers, Doctors of Physic and Merchants, by whom works and furnaces had been set up in the Forest, at a vast charge.

In 1650 a Committee of the House of Commons ordered that all the iron-works in the Forest, formerly let on lease by the Crown, should be suppressed and demolished, partly perhaps with the view of checking the consumption of wood, and also to put a stop to the making of cannon and shot, lest when the occasion invited they should be seized by the adverse party and turned against them. The Royalists had already found here a valuable store of such things at the time they were defending Bristol against Fairfax.

How far the above mandate was obeyed does not appear, but ere the year 1674 a general decay seems to have fallen on the Forest works, as in that year the expediency of repairing them, and building an additional furnace and two forges, at the cost of £1,000, was suggested. The opposite course was, however, recommended, that is, of demolishing them all, lest they should ultimately cause the destruction of the wood and timber, a course which it seems was followed, since in the 4th order of the Mine Law Court, dated 27th April, 1680, they are stated to have been lately demolished. The same “Order” fixes the following prices as those at which twelve Winchester bushels of iron mine should be delivered at the following places:—St. Wonnarth’s furnace 10s., Whitchurch 7s., Linton 9s., Bishopswood 9s., Longhope 9s., Flaxley 8s., Gunsmills (if rebuilt) 7s., Blakeney 6s., Lydney 6s.; at those in the Forest, if rebuilt, the same as in 1668—Redbrooke 4s. 6d., The Abbey (Tintern) 9s., Brockweare 6s. 6d., Redbrooke Passage 5s. 6d., Gunpill 7s., or ore (intended for Ireland) shipped on the Severn 6s. 6d.

Most of these localities exhibit traces of former iron manufacture having been carried on at them up to the commencement of that century, as at Flaxley, Bishopswood, &c., charcoal being the fuel invariably used, and their situation such that water power was at command. The prices severally affixed to the places above named indicate a discontinuance of the mines on the north-east side of the Forest, those adjoining Newland and in Noxon Park being at this date the chief sources of supply, agreeably with the allusions to iron-pits existing there which occur in the proceedings of the

Mine Law Court about that time. The mode then in use of operating upon the iron ore, as described in MS. by Dr. Parsons, will be found in Appendix No. V.

Andrew Yarranton, in his book of novel suggestions for the “Improvement of England by Sea and Land,” printed in 1677, remarks as follows:—“And first, I will begin in Monmouthshire, and go through the Forest of Dean, and there take notice what infinite quantities of raw iron is there made, with bar iron and wire; and consider the infinite number of men, horses, and carriages which are to supply these works, and also digging of ironstone, providing of cinders, carrying to the works, making it into sows and bars, cutting of wood and converting into charcoal. Consider also, in all these parts, the woods are not worth the cutting and bringing home by the owners to burn in their houses; and it is because in all these places there are pit coal very cheap . . . If these advantages were not there, it would be little less than a howling wilderness. I believe, if this comes to the hands of Sir Baynom Frogmorton and Sir Duncomb Colchester, they will be on my side. Moreover, there is yet a most great benefit to the kingdom in general by the sow iron made of the ironstone and Roman cinders in the Forest of Dean, for that metal is of a most gentle, pliable, soft nature, easily and quickly to be wrought into manufacture, over what any other iron is, and it is the best in the known world: and the greatest part of this sow iron is sent up Severne to the forges into Worcester, Shropshire, Staffordshire, Warwickshire, and Cheshire, and there it’s made into bar iron: and because of its kind and gentle nature to work, it is now at Sturbridge, Dudley, Wolverhampton, Sedgley, Wasall, and Birmingham, and there bent, wrought, and manufactured into all small commodities, and diffused all England over, and thereby a great trade made of it; and when manufactured, into most parts of the world. And I can very easily make it appear, that in the Forest of Dean and thereabouts, and about the material that comes from thence, there are employed and have their subsistence therefrom no less than 60,000 persons. And certainly, if this be true, then it is certain it is better these iron-works were up and in being than that there were none. And it were well if there were an Act of Parliament for enclosing all common fit or any way likely to bear wood in the Forest of Dean and six miles round the Forest; and that great quantities of timber might by the same law be there preserved, for to supply in future ages timber for shipping and building. And I dare say the Forest of Dean is, as to the

iron, to be compared to the sheep's back as to the woollen; nothing being of more advantage to England than these two are . . .

“In the Forest of Dean and thereabouts the iron is made at this day of cinders, being the rough and offal thrown by in the Romans' time; they then having only foot blasts to melt the ironstone, but now, by the force of a great wheel that drives a pair of bellows twenty feet long, all that iron is extracted out of the cinders, which could not be forced from it by the Roman foot blast. And in the Forest of Dean and thereabouts, and as high as Worcester, there are great and infinite quantities of these cinders; some in vast mounts above ground, some under ground, which will supply the iron-works some hundreds of years, and these cinders are they which make the prime and best iron, and with much less charcoal than doth the ironstone . . . Let there be one ton of this bar-iron made of Forest ironstone, and £20 will be given for it.”

According to a paper examined by Mr. Mushet, and referring probably to the year 1720 or 1730, the iron-making district of the Forest of Dean contained ten blast furnaces, viz. six in Gloucestershire, three in Herefordshire, and one at Tintern, making their total number just equal to that of the then iron-making district of Sussex. In Mr. Taylor's map of Gloucestershire, published in 1777, iron furnaces, forges, or engines are indicated at Bishopswood, Lydbrook, The New Wear, Upper Red Brook, Park End, Bradley, and Flaxley. Yet only a small portion of the mineral used at these works was obtained from the Dean Forest mines, if we may judge from the statement made by Mr. Hopkinson, in 1788, before the Parliamentary Commissioners, to the effect that “there is no regular iron-mine work now carried on in the said Forest, but there were about twenty-two poor men who, at times when they had no other work to do, employed themselves in searching for and getting iron mine or ore in the old holes and pits in the said Forest, which have been worked out many years.” Such a practice is well remembered by the aged miners, the chief part of the ore used coming by sea from Whitehaven. Thus Mr. Mushet represents, “at Tintern the furnace charge for forge pig iron was generally composed of a mixture of seven-eighths of Lancashire iron ore, and one-eighth part of a lean calcareous sparry iron ore from the Forest of Dean, called flux, the average yield of which mixture was fifty per cent of iron. When in full work, Tintern Abbey charcoal furnace made weekly from twenty-eight to thirty tons of charcoal

forge pig iron, and consumed forty dozen sacks of charcoal; so that sixteen sacks of charcoal were consumed in making one ton of pigs." This furnace was, he believes, "the first charcoal furnace which in this country was blown with air compressed in iron cylinders."

The year 1795 marks the period when the manufacture of iron was resumed in the Forest by means of pit coal cokes at Cinderford, the above date being preserved on an inscription stone in No. 1 furnace. "The conductors of the work succeeded," in the words of Mr. Bishop, communicated to the Author, "as to fact, and made pig iron of good quality; but from the rude and insufficient character of their arrangements, they failed commercially as a speculation, the quantity produced not reaching twenty tons per week. The cokes were brought from Broadmoor in boats, by a small canal, the embankment of which may be seen at the present day. The ore was carried down to the furnaces on mules' backs, from Edge Hill and other mines. The rising tide of iron manufacture in Wales and Staffordshire could not fail to swamp such ineffectual arrangements, and as a natural consequence Cinderford sank."

"Attempts still continued to be made from time to time in the locality, but the want of success, and the loss of large capital, placed the whole neighbourhood under a ban. It was during this interval that the name of David Mushet appears in connexion with the Forest. He made his first essay at White Cliff, near Coleford, in partnership with a Mr. Alford. The result was the loss of the entire investment, and the dismantling of the works, except the shell of the building, as a monument over the grave of departed thousands. A large quantity of the castings were brought to Cinderford in 1827, and were connected with the blast apparatus attached to those works. The names of Birt and Teague now occasionally appeared, combined with attempts to retrieve the character of the locality for iron making; but all failed: and Mr. Mushet's famous declaration that physical difficulties would for ever prevent its success, in connexion with such repeated failures, seemed for several years to have sealed up the prospects of the Forest; but at length a glimmer of light broke through the darkness, and it was reserved for an individual of Forest birth to prove that the greatest theorists may arrive at wrong practical conclusions.

"Moses Teague was the day-star who ushered in a bright morning after a dark and gloomy night. Great natural genius, combined with a rare devotion

to the interests of the Forest, led him to attempt a solution of the difficulty. In this he so far succeeded at Dark Hill, in the cupola formerly used by Mr. Mushet, that he formed a company, consisting of Messrs. Whitehouse, James, and Montague, who took a lease of Park End Furnace about the year 1825, erected a large water-wheel to blow the furnace, and got to work in 1826. Having started this concern, Mr. Teague, who from constitutional tendencies was always seeking something new, and considered nothing done while aught remained to do, cast his eye on Cinderford, which he thought presented the best prospects in the locality; and after making arrangements with Messrs. Montague, Church, and Fraser, those gentlemen with himself formed the first 'Cinderford Iron Company,' the writer joining the undertaking when the foundations of the buildings were being laid. The scheme comprehended two blast furnaces, a powerful blast engine still at work, finery, forge, and rolling-mill, designed to furnish about forty tons of tinplate per week with collieries and mine work. Before the completion of the undertaking it was found that the outlay so far exceeded their expectations and means, that the concern became embarrassed almost before it was finished, which, with the then great depression of the iron trade during the years 1829 to 1832 inclusive, led to the stoppage of the works, which had continued in operation from November 1829 till the close of 1832, in which state they continued to 1835, when Mr. Teague again came to the rescue, and induced Mr. William Allaway, a gentleman in the tinplate trade, of Lydbrook, to form, in connexion with Messrs. Crawshay, another company. Mr. Teague having retired from the management of the furnaces, that important post was filled by Mr. James Broad, a man of great practical knowledge, who for twenty years succeeded in making iron at Cinderford furnaces of quality and in quantities which had never been anticipated. There are now four blast furnaces, three of which are always in blast, and a new blast engine of considerable power is in course of erection, in addition to the old engine which has been puffing away for twenty-eight years."

Adverting, in the next place, to the iron-works at Park End, the Reverend H. Poole kindly supplies the following facts, courteously communicated by the proprietors:—

"The year 1799 gives the date of the oldest iron furnace here, situated about half a mile below the original works, and carried on by a Mr. Perkins. They were afterwards sold to Mr. John Protheroe, who

disposed of the same to his nephew, Edward Protheroe, Esq., formerly M.P. for Bristol, who had extensive grants of coal in the immediate neighbourhood. In 1824 Mr. Protheroe granted a lease of the furnace and premises, and also sundry iron-mines, to 'the Forest of Dean Iron Company,' then consisting of Messrs. Montague, James, &c., until in 1826 Messrs. William Montague of Gloucester, and John James, Esq., of Lydney, became the sole lessees. These parties, in 1827, erected another furnace, and also an immense waterwheel of 51 feet diameter and 6 feet wide, said to be nearly the largest in the kingdom, and formed extensive and suitable ponds and canals for the supply of water. This water-wheel was but little used, in consequence of the general introduction and superior advantages of steam power, which was obtained by erecting an engine for creating the blast. It was considered insufficient, however, for supplying two furnaces on the blast principle, each of which was 45 feet high, 8 feet diameter at the top, 14 feet diameter at the boshes, and 4 feet 6 inches diameter at the hearth; hence another steam-engine of 80 horse power was erected in 1849, but in consequence of a depression in the iron trade, and other causes, the two furnaces were not then worked together. A few years after the decease of Mr. Montague, in 1847, Mr. James purchased all his interest in the works, and became the sole lessee until the year 1854, when he purchased of Mr. Protheroe the fee of the property, together with all the liabilities of the lease. Since that time the two furnaces have been constantly worked together, under the superintendence of Mr. Greenham, one of the proprietors, the firm still continuing as 'the Forest of Dean Iron Company.'"

"In the year 1851 extensive tinplate works were commenced at Park End, and 24 houses were built for the workmen, by Messrs. James and Greenham, at a considerable outlay. These works when completed were afterwards sold to Messrs. T. and W. Allaway, who enlarged and improved the same, and are now carried on with much spirit and success."

The tinworks at Lydney are also in the hands of the above-named firm, and comprise three forges, mills, and tin-house, producing 1200 boxes of tin plates a week, with the consumption of from 70 to 80 tons of Cinderford iron. The Lydney iron-works belonged in early times to the Talbot family.

At Lydbrook there are the “Upper” and “Lower” works. The latter, or those nearest the Wye, are said to have belonged originally to the Foleys, one of whom was elected a free miner in 1754. Mr. Partridge carried them on for many years in connexion with the furnaces at Bishopswood, but leased them in 1817 to Mr. Allaway, at which time they comprised three forges, rolling and bar mills, and tin-house complete, capable of producing 100 to 150 boxes of tin plates per week. Under the able management of Mr. Allaway’s sons, the works now yield 600 boxes, sent off by the Wye, the iron used being that from Cinderford, as best suited for the purpose. The “Upper” works were once farmed for Lord Gage, but they now belong to Messrs. Russell, who make large quantities of wire for the electrical telegraph, as well as iron for smith’s use.

The iron-works at Sowdley are all that remain to be noticed. Here, as early as 1565, iron wire is said to have been made, being drawn by strength of hand. In 1661 Mr. Paysted states that the factory passed from Roynon Jones, Esq., of Hay Hill, into the hands of a party named Parnell and Co., who carried on the works until the year 1784, from which date to 1804 Dobbs and Taylor had them. From 1824 on to 1828 they were held by Browning, Heaven, and Tryer; but in the latter year Todd, Jeffries, and Spirrin undertook the business, converting a part of the premises into paint and brass works, which lasted for about four years. Two blast furnaces were built on the spot in 1837 by Edward Protheroe, Esq., who worked them for four years. In 1857 they were purchased by Messrs. Gibbon, and are now in blast.

Eight blast furnaces were at work in the Forest in the year 1856, and produced upwards of 24,132 tons of iron of the best quality.

It only remains to state that twenty iron-mines were awarded by the Mining Commissioners in 1841, and these are since increased to upwards of fifty, several of them comprising very extensive workings, and are furnished with very powerful pumping engines; that at Shakemantle raises 198¼ gallons per stroke, and the one at Westbury Brook 24 gallons, from a depth of 186 yards.

The annual yield of iron mine from the four principal pits is:—

Buckshaft	14,574 Tons.
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Old Sling Pit	13,263 „
Westbury Brook	11,725 „
Easter Iron Mine	10,782 „

The total yield from all the iron-mines in the Forest for 1856 was 109,268 tons.

CHAPTER XV.

The Forest Coal Works—The earliest allusion to them—The original method of mining for coal—Grants to the Earl of Pembroke in 1610, &c.—First attempt to char coal for the furnace—Prices for which coal was to be sold, as fixed by the “Orders” of the Court of Mine Law—Contents of the existing documents belonging to that Court described—State of the coal-works at the end of the last century—Gradual improvements in the mode of working for coal—Mr. Protheroe’s collieries—The superior character of the most recent coal-works—Amount raised in 1856 from the ten largest collieries.

There is a difficulty in determining which is to be considered the earliest allusion to the working of coal in the Forest, since charcoal as well as sea or pit coal was thus indifferently designated: not that the latter was carried by sea, but only that it agreed in character with the coal usually so conveyed. The first notice seems, however, to be that supplied by the records of the Justice Seat held at Gloucester in 1282, where it is stated that sea coal was claimed by six of the ten bailiffs of the Forest of Dean.

The appellation of “Sea Coal Mine” as distinguished from “the Oare Mine,” mentioned in the 29th section of “The Laws and Customs of the Miners in the Forest of Dean,” compiled about the year 1300, likewise proves that sea-coal was known by name, and that a description of fuel closely resembling it was then dug in this neighbourhood, to an extent entitling it to be noticed “as free in all points” with the long celebrated iron ore; that is, constituting the collier a free miner.

The original methods of getting coal in the locality probably conformed to the modes then used for obtaining the iron mine, the veins of both minerals showing themselves on the surface much in the same manner. So that it is probable the old coal-workings, like those for iron, descended only to a moderate depth, and for the same reason were frequently carried on by

driving levels, for which the position of several of the coal-seams was highly favourable.

In the year 1610 “liberty to dig for and take, within any part of the Forest or the precincts thereof, such and so much sea-coal as should be necessary for carrying on the iron-works,” was granted to William, Earl of Pembroke, by James I. This is the earliest mention of coal being so used, agreeably to the efforts then making by Simon Sturtevant and John Ravenzon, Esqrs., to adapt it by baking for such a purpose. The same grant, in omitting to mention coal amongst certain other productions which “no person or persons were to take or carry out of the said Forest,” leads to the supposition that coal was then exported or carried into the adjacent country, and that it was found desirable for this to continue. Coal was included in Charles I.’s sale of the Forest timber, iron, stone, &c., to Sir John Winter, who some years afterwards is described by Evelyn as interested in a project for “charring sea-coal,” so as to render it fit for the iron furnace. A scheme somewhat similar was now tried in the Forest, Mr. Mushet tells us, by Captain Birch, Major Wildman, and others, “where they erected large air furnaces, into which they introduced large clay pots, resembling those used at glasshouses, filled with various proportions of the necessary mixture of ores and charcoal. The furnaces were heated by the flame of pit-coal, and it was expected that, by tapping the pots below, the separated materials would flow out. This rude process was found entirely impracticable; the heat was inadequate to perfect separation, the pots cracked, and in a short time the process was abandoned altogether.”

The important Act of 1668 confirmed to persons digging for coal in the Forest their lawful rights and privileges, as also to the Crown the liberty to lease the coal-mines for a period not exceeding thirty-one years. This latter provision was immediately acted upon, the coal-mines and quarries of grindstones being granted to Francis Tyrringham, Esq., for thirty-one years, at a rental of £30 per annum, a price which, if it were fairly agreed upon, affords some intimation of the extent and value of the Forest coal-works at that time.

By the first “Order” of the Court of Mine Law, dated March 18th of the year last named (1668), it was fixed that a dozen bushels of lime-coal should be disposed of for 3s. at the Lime Slad; for 5s. 6d. at the top of the Little Doward; for 5s. 4d. at any other kilns thereon; for 5s. at the Buckstones; for

5s. 6d. at Monmouth; for 4s. at the Weare over Wye; for 4s. if on this side; for 3s. 6d. at Coldwall; for 3s. at Lydbrook; and for 4s. 4d. at Redbrook.

The second “Order” of the same Court, agreed to on the 9th of March, 1674, provides that “the servants of the Deputy Constable shall always be first served at the pitts.” In the same year a petition was presented to the Crown by several gentlemen and freeholders of the parish of Newland for leave to drain some coal-pits at Milkwall, stating that “the inhabitants of the adjacent country were supplied from the collieries of the Forest with coal for firing, and also for lime coal, without which there would be little tillage.”

The next Mine Law Court, held on the 8th of September, 1678, determined that a barrel or three Winchester bushels should be the constant measure for coal, four-pence being the smallest price allowed to be taken for “a barrel” of fire coal. “And whereas the myners within this Forest are at a very great charge to make surffes for the dreyning of their pitts to get cole, w^{ch} when they have finished others sincke pitts so near them that they are deprived of the benefit of their labour and charge, to their very great loss and damage: To remedie whereof, it is now ordered that after a surffe is made, noe myner shall come to work within 100 yards of that surffe to the prejudice of the undertakers without their consents, and without being contributory to the making of the said surffe, upon payne of forfeiting 100 dozen of good fire coale, the one moiety to the King’s Ma^{tie}, and the other to the myner that shall sue for the same.” The fourth “Order” of the same Court, issued on the 27th April, 1680, directs “that no fire cole, smith’s cole, or lyme cole shall be delivered upon the bankes of the Wye between Monmouth Bridge and Huntsame Ferry for less than 8s. a dozen bushels for the two former sorts, and 4s. 6d. for lyme cole, or if between Huntsame Ferry and Wilton Bridge for less than 3s. 6d. a dozen.”

On the 19th September, 1682, a fifth “Order” forbade “the transport of lime coal to Hereford and Monmouthshire at lower rates than heretofore have been set and agreed upon,” and ordained that “whensoever any collyers have fully wrought out a cole pitt through w^{ch} the gout water must necessarily run for drayning of the worke, in such case the said collyers shall secure the said pitt, upon payne to forfeite 100 dozen of good fire cole.” In the ensuing “Order,” dated 1st December, 1685, the jury agreed that, in raising money for any public purpose, “one half of those who served should be cole

myners, and the other half myners at iron oare,” both classes of operatives having at length become equally numerous, in consequence of the rapid increase of the coal-works. The next Court of the Mine, held on 5th April, 1687, decided that “all cole pitts and dangerous mine pitts which are not in working, or w^{ch} thereafter shall not be wrought in for one whole month together, shall be sufficiently secured by a wall of stone, or by railing the same with posts and railes placed above two feet distant from the mouth of such pitt by the proprietor thereof, and likewise all pitts left open for a grout way, upon paine of 10s. to be forfeited for every omission and neglect.”

According to the eighth verdict of the miners’ jury, declared on the 13th of January, 1692, the former space of 100 yards, within which all colliers were prohibited from coming to work another pit, was now extended to 300 yards. The next “Order,” being that of the 25th of April, 1694, directs that “the price of fire cole to the copper works (Redbrook) shal bee henceforth 8s. per dozen, and smith cole 6s. per dozen.” That of the 10th of March, 1701, enacted that “every miner shall keepe a paire of scales at their severall colepitts to weigh their cole wthall,” that none should be sent away unweighed, and that the price of it should not exceed 5s. a ton to the inhabitants of the hundred of St. Briavel’s, or less than 6s. a ton to foreigners. The next “Order,” that of the 1st of July, 1707, renewed the direction to fill or sufficiently secure any dangerous coal-pits, within some reasonable time, under a penalty of 20s. The “Order” dated 12th November, 1728, directs that the distance of 300 yards between any adjoining works be “augmented to 500 yards in all levels.” The “Order” bearing date 2nd March, 1741, particularizes certain coal-works near Lydbrook called “Wyrall Hill,” another called “Dowler’s Chambers,” and likewise the coal-works called “Speedwell,” at Serridge, besides “the Hill Works” near Ruerdean. It also forbade any coal to be sold in the city of Hereford under 13s. the ton, fixing a horse-load at 2¼ cwt., for 6d. a bushel at the pit, one cwt. of fire coal for 4d. a bushel, three bushels of smith’s coal for 5d., and lime coal for 1d. a bushel, or 21 cwt. of fire coal for 7s. 6d. “waid and delivered” at Lydney Pill or at Pyrton Pill, or at Gatcombe. The same “Order” further directs that “the yearns belonging to the levels which are between Drybrooke and Cannop’s Bridge, and between Seridge and Reuardean Town, shall get coal out of no more than two pitts at one time, belonging to one level, till the said two pitts are worked quite out, and those

who keep two pitts in work on one level shall not sinke any other new pitt till the old ones are quite worked out.”

The last of the “Orders” of the Miners’ Court, dated October 22nd, 1754, provides that “none shall sink any water pit and get coal out of it within the limits or bounds of 1,000 yards of any level, and that the waterwheel ingine at the Oiling Green near Broadmore be taken to be a level to all intents and purposes, as all other levels brought up from the Grassmoore;” meaning probably, that they also were to enjoy the protective distance of 1,000 yards in common with all “levels,” otherwise that distance would be no more than twelve yards radius, according to the received custom. “The water-wheel engine,” for working the pumps belonging to the work at Oiling Green, is considered to have been the first of the kind, and therefore marks the earliest of the successive steps made within the last 100 years in improving the methods of raising coal in this locality, by showing greater ingenuity in removing the water from the pits, which were now evidently sunk much deeper than formerly.

A minute examination ^[235] of the numerous papers recording the then ordinary proceedings of the Free Miners’ Court, supplies the accompanying dates to the following coal-works:—

- 1706. “Stay and Drink,” under Serridge; “Dark Pitt,” in Coverham.
- 1718. “Hopewell,” at Park End; “Speedwell,” Ruerdean Hill.
- 1720. “Sally Pitt,” Coleford.
- 1721. “Broad Moore Grout;” “The Holly Pitt.”
- 1722. “New Charity;” “The 9 Wells;” “Stand Fast;” “The Dry Tump.”
- 1723. “Go on and Prosper;” “Monmouth Hill Work.”
- 1724. “The Old Colliery,” near Coleford.
- 1725. “Shute Castle Pitt;” “The Oiling Quab,” in Bromley.
- 1726. “The Staple Pitt;” “Short Standing.”
- 1735. “Gentlemen Colliers,” or “Harbourne Oake.”

1736. "The Little Suff," Serridge.

1737. "Major Wade's Suff," near Aywood; "The Broomy Knowle;" "Pluck Penny," Nail Bridge; "Dowler's Chambers."

1739. "Bushes Pitt," at Berry Hill; "The Society."

1740. "Church way," or "Turn brook."

1741. "Cartway Pitt;" "Harrow Hill Pitt."

1743. "Mendall," at Yorkley; "True Blue," Ruerdean; "Littleworth;" "the Windmill," near Ruerdean.

1744. "Rain Proof."

1745. "Church Hill," Coal Work, Park End.

1747. "The Golden Pippin;" "Little Scare Pitt."

1749. "Long looked for," near Yorkley.

1753. "Prosper."

1755. "The bold Defiance;" "The Ginn."

1757. "Now found out;" "Standfast."

1758. "Pigg Pitt."

Several of the above names closely resemble those by which many of the existing coal-works are designated; as for instance—"Strip-and-at-it," "Winners," "Spero," "Prosper," "Never Fear," &c. One other interesting fact preserved in these records is that the coal seams were called then as now by the names of "Upper" and "Lower Rocky," the "Lower" and "Upper High Delf," the "Starkey Delf," and the "Lowery Delf."

The Appendix to the Fourth Report of the Dean Forest Commissioners relative to the mines, incidentally mentions the old coalwork called "the Oiling Gin" as originally galed in 1766, and transferred by agreement, dated 15th April, 1776, to a company, in consideration of £2,100, at whose cost the first "fire-engine," constructed, probably, on Watt's principle, patented in the previous year, is understood to have been put up in this neighbourhood. It

also specifies the “Brown’s Green Colliery” near Lydbrook, opened in 1772; the “Moorwood Coal Works” in 1773; “Arthur’s Folly” in 1774, begun in the “Thirty Acres,” and brought up into “Little Cross Hill;” and also the undertaking called “The Gentlemen Colliers.”

On the 26th August, 1777, the Court of Mine Law, by which the coal-works in the Forest had been ever regulated, sat, as it proved, for the last time, having been held according as business required three or four times a year, with some few exceptions, since 1668. A memorandum with which its last minute is endorsed is thus expressed:—“Mine Law Court, 26 August, 1777. There has been no Court holden for the miners since this day, which is a great loss to the gaveller, and causes various disputes amongst the colliers, which is owing to the neglect of the Deputy-Constables.”

A careful perusal of the papers in which the proceedings of the Court of Mine Law are recorded from 30th April, 1706, supplies the following particulars illustrative of the manner in which the miners of the first half of the 18th century conducted their works, together with the usages of the Court then in vogue. Nearly all the sittings were held at the Speech-house, under the supervision of the deputies for the time being of the Constable of St. Briavel’s Castle, attended by the clerk of the court, and the gaveller or his deputy. Rarely more than twelve, but sometimes twenty-four miners constituted the jury; the suits they had to try being mostly for debts and trespasses between miner and miner, such as for leaving open dangerous pits, breaking “forbids,” refusing to pay tax for defending the rights of the mine, loading “foreigners” teams at the pits, for perjury, for keeping more than four horses in carrying coal, or for removing pit lamps, scores or cowl, &c. Copies of two such entries, with other proceedings of the Court as specimens, are given in the Appendix No. VI.

As early as the year 1718 the proceedings of the Court were occasionally disturbed by the persons attending it. Thus, on the 13th of May, the following amercements were made and recorded:—

John Davis, for talking in Court	2s.
John Kear, for talking in Court	2s.
Wm. Budge, for disturbing y ^e Court	2s.

Nich. Whitstone, for the like	2s.
Thomas Rudge, for the same	2s.
John Griffiths, for disturbing the Court	2s.
Thomas Rudge, for the same offence	2s.
John Trigg, for the same offence	2s.
Griffith Cooper, for talking in Court	2s.

Writing upon the subject of the Forest collieries, about the year 1779, Mr. Rudder remarks in his History of the county,—“The pits are not deep, for when the miners find themselves much incommoded with water, they sink a new one, rather than erect a fire engine, which might answer the expense very well, yet there is not one of them in all this division. They have indeed two or three pumps worked by cranks, that in some measure answer the intention.”

In the year 1788 we are informed by the evidence of the Gaveller, that, according to an account made out in the previous August, “there were then within the Forest 121 coal-pits (thirty-one of which were not actually in work), which pits produced 1,816 tons of coal per week; that there were 662 free miners concerned and employed therein; and that the annual compositions paid by them amounted to £215 8s. or thereabouts, although many of them were so poor that no money could be collected from them.” “At this time,” says the same officer, “house-fire coal, on the Mitcheldean side the Forest, is sold at the pit’s mouth for 4s. 6d. per ton of 20 cwt., smith’s coal 3s. 3d., lime coal 2s. per ton. When sold by the waggonload at the pit’s mouth, and the purchaser brings victuals and drink for the colliers, the price of a waggonload was 10s. of house-fire coal, smith coal 6s. 6d., lime coal 4s. On the Coleford side the Forest, house-fire coal was sold at the pit’s mouth for 3s. 9d. per ton of 20 cwt., smith coal 2s. 9d., lime coal 1s. 3d. By the waggonload at the pit’s mouth, house-fire coal 8s. 6d., smith coal 5s. 6d., lime coal 2s. 6d.”

In addition to the above, the Assistant Deputy Surveyor of the same period reported,—“the parts of the Forest in which the principal collieries are situate are these:—The Level of the Fire Engine Colliery, which is one of the principal works, is in the bottom between Nail Bridge and Cinderford

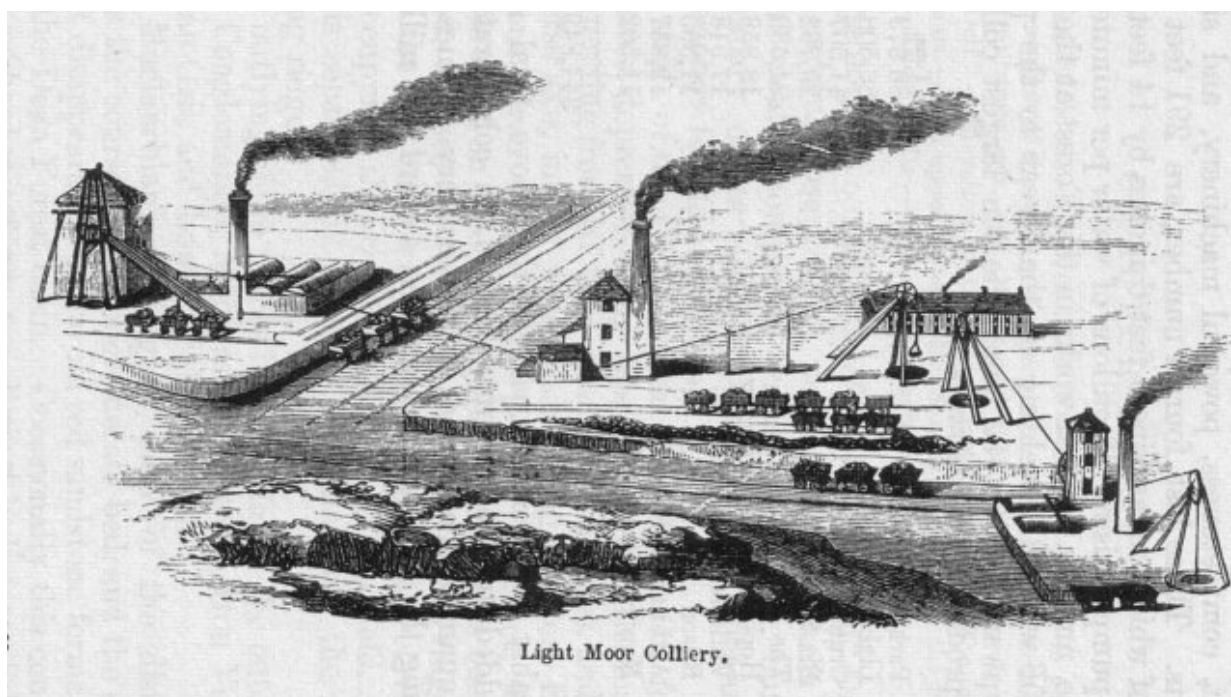
Bridge, and there are pits all along the Bottom. There are several Levels in the Bottom from Beechenhurst Hill along the Delves quite up to Nail Bridge. Another large field of coal from Whitecroft Bridge, at the back of White Mead Park along the Delves to Great Moseley Green, and from thence through Old Vallet Tuft and Aures Glow, almost up to Little Stapleage. These are the works which do the greatest mischief to the Forest. There are some others on the Coleford side, from which a great deal of coal is raised. Very little timber is growing in any of these Delves; and enclosures might be made in the Forest, so as to exclude all the principal coal-works. The coal-works in the Forest supply with fuel the lower parts of Gloucestershire beyond Severn, and some parts across the Severn about Berkeley, the greatest part of Herefordshire, the town of Monmouth, and part of the county of Monmouth.”

The existing remains of the coal-works of this period, combined with the traditions of the oldest surviving colliers, enable us to form an accurate idea of the way in which the workings were carried on. “Levels,” or slightly ascending passages, driven into the hill sides till they struck the coal seam, appear to have been general. This was no doubt owing to the facility with which they effected the getting of the coal where it tended upwards into the higher lands forming the edge of the Forest Coal Basin, since they required no winding apparatus, and provided a discharge for the water which drained from the coal-beds. The usages observed at the works entitled the proprietors of their respective levels to so much of the corresponding seam of coal as they could drain, extending right and left to the limits awarded by the gaveller. So far this mode of procedure was satisfactory enough, and would no doubt have long continued to go on amicably, had not the principle, highly judicious in itself, that no workings were ever to intersect one another, but always to stop when the mattocks met, been abused by driving “narrow headings” up into different workings, whereby the rightful owner of the coal was stopped, and the other party enabled to come in and take it from him. Timber of considerable strength was required throughout the underground excavations to support the roof, hence proving a serious source of spoliation to the woods. Large slabs of it were also needed for the flooring, in order that the small coal-trams might be the more readily pushed forward over it, a space being left beneath for air to circulate, and for the water to run out.

If the vein of coal proposed to be worked did not admit of being reached by a level, then a pit was sunk to it, although rarely to a greater depth than 25 yards, the water being raised in buckets, or by a water-wheel engine, or else by a drain having its outlet in some distant but lower spot, such as is found to have led from the Broad Moor Collieries to Cinderford, a mile and upwards in length. The shaft of the pit was made of a square form, in order that its otherwise insecure sides might be the better supported by suitable woodwork, which being constructed in successive stages was occasionally used as a ladder, the chief difficulty being found in keeping the workings free from water, which in wet seasons not unfrequently gained the mastery and drowned the men out. The skips appear to have been always rectangular in shape, similar to the shafts.

Intermediately between the date of the above coal-works and the present most approved collieries, Mr. Protheroe, in his evidence before the Dean Forest Commissioners, in 1832, relative to his thirty-two coal-pits, stated that “the depth of my principal pits at Park End and Bilson varies from about 150 to 200 yards; that of my new gales, for which I have engine licences, is estimated at from 250 to 300 yards. I have 12 steam engines varying from 12 to 140 horse power, 9 or 10 of which are at work, the whole amounting to 500 horse power; and I have licences for four more engines, two of which must be of very great power. The amount of wages paid by me, in the last twelve years, to colliers, hauliers, and labourers, is upwards of £150,000, giving constant employment on the average to from 400 to 500 individuals.”

The coal-pits were now lined throughout with stone walling, leaving a clear diameter of from 7 to 9 feet; greater regard was paid to their drainage and ventilation, both of which required particular attention, owing to the watery nature of the coal measures, and the abundance of “choke-damp,” although happily “fire damp” never appears. Horses were now used underground for bringing the coal-trams to the foot of the pit, and all the workings were accurately surveyed and recorded, agreeably to the regulations instituted by the Dean Forest Mining Commissioners, under the judicious Act of 27th July, 1838, to the effect that “the quantity of coals sent daily from each colliery should be duly entered, and plans made of the workings, for the information of the Gaveller, who might also inspect any underground operations at all reasonable times,” the whole undertaking being required to be carried on according to the best and most improved system.



In accordance with which excellent rules, each of the 105 re-awards of coal seams applied for during the years 1838–41 were so ably set out by Messrs. Sopwith, Buddle, and Probyn, as effectually to check the numerous disputes which formerly arose, and ere long so to develop the coal-works of the Forest of Dean as to render them worthy to be compared with some of the finest collieries in the kingdom. As an instance of their present excellence, Messrs. Crawshay's colliery at Light Moor may be mentioned, for its great extent, completeness, powerful machinery, and size of its pits. These last, four in number, are 291 feet deep, one of which, measuring 9 feet 6 inches by 14 feet, contains pumps raising 88 gallons of water per minute.

The number of coal-works in the Forest at the close of 1856 was 221, yielding in that year to the public use upwards of 460,432 tons; the ten largest collieries each producing as follows:—

	Tons.
Park End Colliery	86,973
Light Moor „	86,508
Crump Meadow	41,507
Bix Slade	26,792

The Nelson	24,539
Hopewell in Whimberry	18,858
Valletts Level	17,918
Bilson	17,395
Arthur and Edward	12,857
New Strip and at it	11,502

	344,849

Probably a twentieth part of the above total should be added to the amount charged, in consideration of the quantity consumed by the colliery engines, thus making the gross annual produce a third of a million of tons.

CHAPTER XVI.

The Geology of the Forest, and its Minerals—Their character in general—Description of the beds of conglomerate, mountain limestone, iron veins, millstone grit, and lower coal measures—“The Coleford High Delf”—Elevation of the Forest range of hills—The middle coal veins—The upper veins—Mr. Mushet’s analysis of the Forest coal—Their fossils—The stone-quarries of the district.

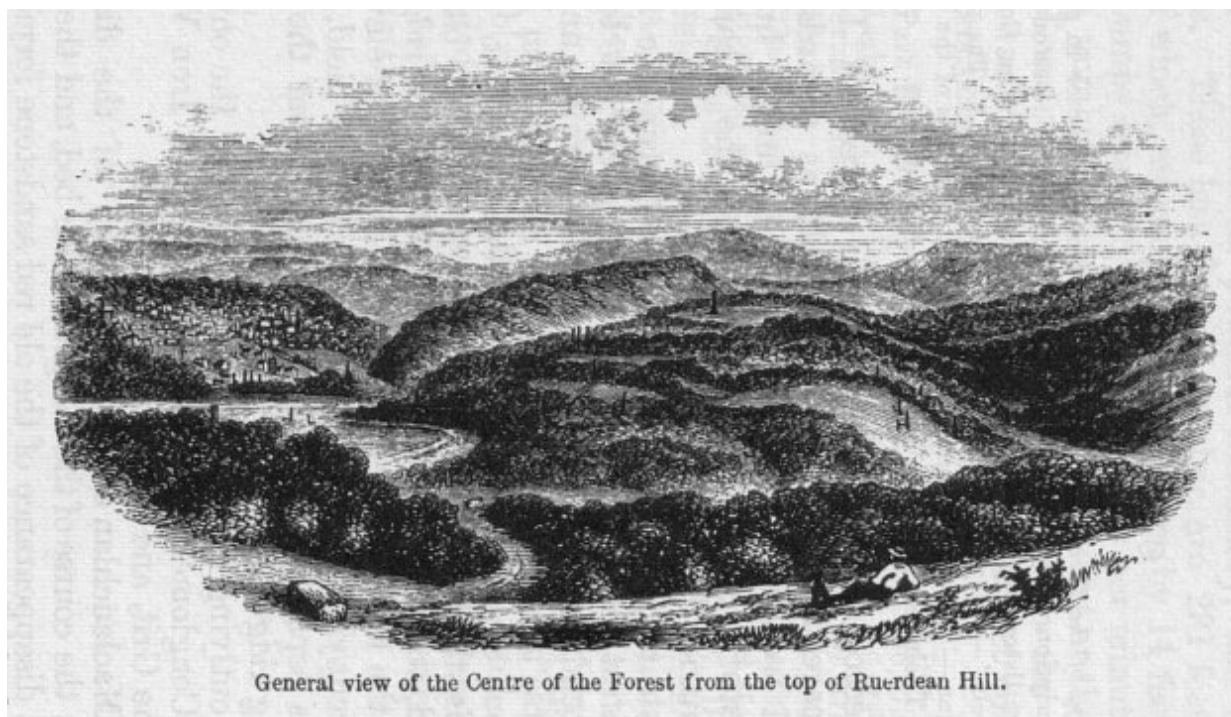
The geological conditions of the Forest of Dean merit careful observation, not only as regards the mineral wealth comprised within its limits, but as explanatory of its undulations, and the means of maintenance for its inhabitants.

The strata of the Forest repose in a basin-like form, the greatest depression being near the centre; the longer axis extending from N. to S. about eleven miles, and the transverse axis, in the widest part, ranging from E. to W. about seven miles. The general observer, if he takes his stand on the edge of hills by which this basin is bounded, will see the enclosing character of the ridge, as well as the less conspicuous circle of somewhat elevated land occupying the central portion of the field, and which is separated by a valley or plain from the surrounding ridge.

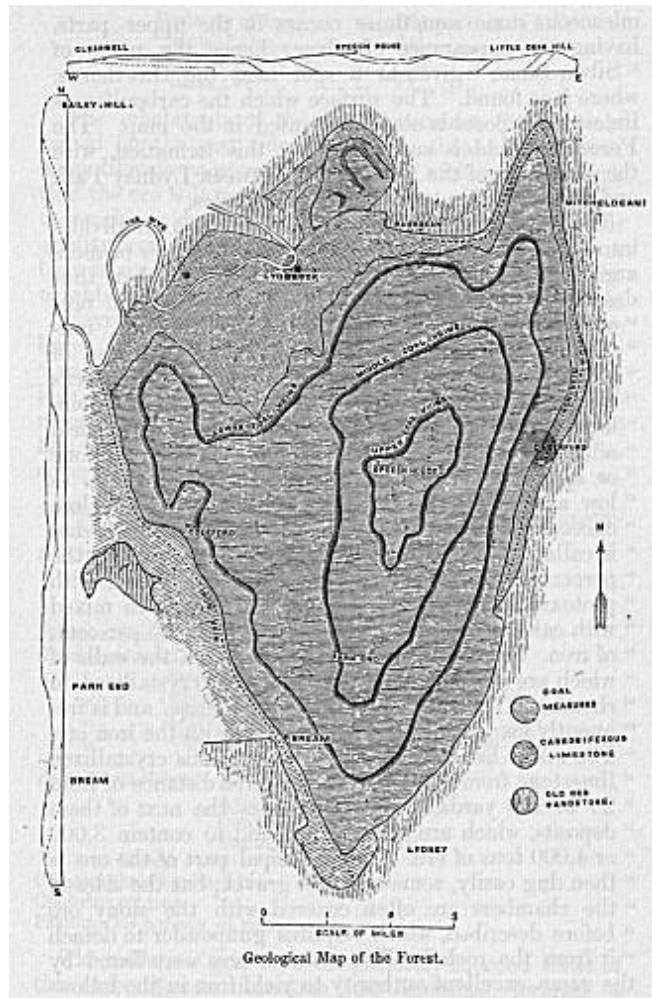
This outlying ridge marks in most places the outcrop of the Conglomerate, Mountain Limestone, Iron Veins, Millstone Grit, and Lower Coal-measures.

Mr. Maclauchlan’s geological map of the district exhibits the course of the conglomerate bed, and the consequent disappearance of the old red sandstone formation under the Dean Forest basin. Occasionally this conglomerate, or hard grit, forms two distinct beds, very distant from one another, near Lydney for instance, and on the Kimin Hill and Buckstone, although it is sometimes cut off altogether by a “fault,” as opposite Blackney. It varies in hardness as well as in the number of the pebbles, and

not unfrequently presents an abrupt fall at its termination, as at “the Harkening Rock” in the Highmeadow Woods.



General view of the Centre of the Forest from the top of Ruerdean Hill.



The upper portion of the bed is soft, and acquires the character of the limestone clay, often throwing out springs, such as St. Anthony's Well, which have accumulated in the limestone rocks above. A very micaceous stone sometimes occurs in the upper parts, having the appearance of silver: hence the name of "Silver Stone" given to a spot near the Hawthorns, where it is found. The surface which the carboniferous limestone exposes is also represented in the map. The Forest coal-field is surrounded by this formation, with the exception of the line of fault between Lydney Park and Danby Lodge, a distance of four miles.

The principal iron-mine train of the district divides into a lower or more crystalline, and an upper or more argillaceous and sandy stratum. Mr. Mushet thus describes this important metallic vein:—"The iron ores of the Forest of Dean, which have become intimately known to me, are found, like the ores of Cumberland and Lancashire, in churns or caverns formed in the

upper beds of the mountain or carboniferous limestone. The leaner ores contain a great deal of calcareous matter in the shape of common limestone or spar, which reduces the percentage in the ore as low as between 15 and 25 per cent., and it seldom exceeds 25, except when mixed with fragments of what is called brush ore, which, when in quantity, raises the percentage to 40 or 45. Brush ore is a hydrate with protoxide of iron, and frequently, if not much mixed with calcareous earth, contains from 60 to 65 per cent. of iron. These ores are found in chambers, the walls of which are exceedingly hard limestone, crystallized in rhombs. This limestone is called the 'crease,' and is frequently found enveloped and covered with the iron ore. The miner has to cut his way through this crystallized limestone from chamber to chamber, a distance of from 20 to 100 yards, before he reaches the next of these deposits, which are sometimes found to contain 3,000 or 4,000 tons of ore. The principal part of the ore is then dug easily, somewhat like gravel; but the sides of the chambers are often covered with the stony ore before described, which requires gunpowder to detach it from the rock." These various ores were found by the same excellent authority to yield iron in the following proportions:—

Hydrates of Iron	57½ per cent.
"Brush" Ore	64½ „
Red Calcareous Ore	9.7 per cent.
"Blake Ore"	22 „

The inhabitants of the Forest consider the ores obtained on the east side superior to those on the west. They likewise suppose, but probably without foundation, that the ore will be found to deteriorate in proportion as the workings descend. Red and yellow ochre of superior quality occur in the iron veins, and have at various times been in considerable request. They are now used in the neighbourhood for marking sheep, and tinting whitewash.

Reverting to the limestone beds of the district, the lower veins are locally called "blue stone," the middle "red stone," and the top vein the "white head," which is largely used as a flux in the smelting furnaces. The researches of Mr. R. Gibbs, of Mitcheldean, have enabled him to furnish me with the following list of fossils discovered by himself in the Forest limestone formation:—

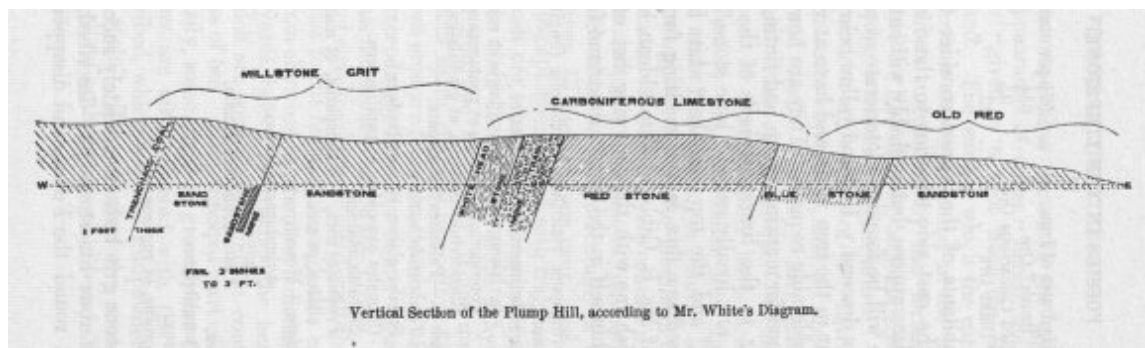
<i>Zoophyta</i>	<i>Syringopora reticulata</i> , <i>Turbinolia fungites</i> , <i>Lithostrotrion irregulare</i> .
<i>Echinodermata</i> ” ” ”	<i>Actinoerinus aculeatus</i> , et <i>lævissimus</i> , <i>Platyerinus lævis</i> et <i>rugosus</i> . <i>Poteriocrinus crassus</i> , et <i>pentagonus</i> . <i>Rhodocrinus costatus</i> , et <i>granulatus</i> .
<i>Mollusca</i> <i>Dimyaria</i> .	<i>Pallastra complanata</i> .
<i>Brachiopoda</i> . ” ” ” ”	<i>Terebratula hastata</i> . <i>Spirifer glaber</i> , et <i>rhomboideus</i> . <i>Chonetes cornoides</i> , et <i>papilionacea</i> . <i>Leptæna analoga</i> . <i>Productus cora</i> , et <i>longispinus</i> , et <i>martini</i> , et <i>pustulosus</i> et <i>cornoides</i> .
<i>Lamellibranchiata</i> .	<i>Monomyaria</i> . <i>Aviculopecten fallax</i> . <i>Dimyaria</i> . <i>Psammobia complanata</i> .

Pisces.

Ctenacanthus tenuistriatus.

Cladodus conicus.

Psammodus porosus, et *rugosus*.



The millstone grit beds immediately succeed those of the carboniferous limestone just described, forming a similar belt round the Forest, and disappearing with it on the Blakeney side of the basin. Its chief interest

consists in the circumstance that it has been employed from very early times as a material for building; for though it contains a vein of iron ore, little has been done in mining it. Most of the old buildings adjoining the parts where this grit crops out are formed of it, as several of the ancient neighbouring churches show, and likewise the oldest lodges in the Forest; now, however, this kind of stone is seldom used except for boundary walls, and such kind of rough work.

The rest of the outer circle of high land, on whose summit the observer has been supposed to be standing, and which so definitely marks the Forest coal-field, comprises the *lower* coal measures, containing the lower and upper Trenchard veins, the Coleford High Delf, with the Whittington and Nag's Head seams, which together give about eleven feet of coal. Of these the Coleford High Delf, averaging a thickness of upwards of five feet, and extending over an area of 16,000 acres, is undoubtedly the chief, although in some places it has suffered from various disturbances, the principal of which occur in the neighbourhood of Coleford, extending in a line from Worcester Lodge to Berry Hill, and is marked on the surface by a succession of pools, named Howler's Well, Leech Pool, Crabtree Pool, Hooper's Pool, and Hall's Pool. Mr. Buddle describes the width as varying from 170 to 340 yards in the most defined part, called by the colliers the "Horse," and the dislocations adjoining, the "Lows." "It is not," he remarks, "what geologists term a *fault*, as there is no accompanying dislocation of the adjoining strata. In its underground character it is similar to those *washes* or aqueous deposits in many coal districts, but it differs from them in not being under the bed of any river, nor in the bottom of a valley, nor does it show itself at the surface." And he adds, "On considering the various phænomena presented by this fault, and the seam of coal on each side of it, we may infer that it occupies the site of a lake which existed at the period of the deposition of the High Delf seam, and that the carbonaceous matter which formed the seam was accumulated while the water was deep and tranquil. On the water being discharged from the lake, the 'Horse' itself occupied the bed of the river, by which the complete drainage of the lake was effected, and which washed the coal entirely out."

The same scientific observer records an extraordinary depression about half a mile to the south-east, in the direction of the "Horse," and in the same seam of coal, amounting to about twenty feet in depth, and of an oval shape.

Various other defects and disturbances in the Coleford High Delf are detected from time to time by the new workings, especially in those places where the surface is most uneven. Thus its outcrop at Lydney is very imperfectly defined, and at Oakwood Mill the vein is rendered worthless by a fault, whilst on each side of the Lydbrook valley there is a contortion, by which it is thrown down in one instance seventy yards, and in two others thirty yards each.

Such is the geological character of the conspicuous range of hills by which the Dean Forest coal-field is bounded, especially on its north and east sides. The following table gives their height in feet at certain places above the sea:

—

	Feet.
Symmond's Rock	540
Buck Stone	954
Knockholt	760
Clearwell Meand	727
Ruerdean Hill	991
High Beech	891
Coleford Meand	760
Berry Hill	750
Lea Bailey Hill	580
Mitcheldean Meand	870
Edge Hill	908
Stapledge	749
Putten Edge	664
Blaize Bailey	684
Blackney Hill	507

Nearly all these spots afford magnificent views of the surrounding country, reaching as far as the Coteswold, Sedgebarrow, Malvern, Herefordshire, Welsh, and Monmouthshire heights, relieved intermediately by the windings of the Severn, cultivated plains, and woodland. Several very striking ravines intersect this Forest range, particularly at Lydbrook, Blackpool Brook, and Ruspedge, such as would afford the artist many beautiful and interesting subjects for delineation. One of the hills, viz. that on which Mr. Colchester's house, called "the Wilderness," is situated, affords a prospect rarely equalled. The present residence dates from the year 1824, but it occupies a site which was built upon as early as 1710, if not before, for the accommodation of sporting parties in the days of Sir Duncombe Colchester, when its fine sycamores and trees of "the Beech Walk" were most likely planted.

Descending from the side of the hilly range on which the reader has been supposed to stand towards the middle of the Forest, a plain is reached varying in width from half a mile to little more than 100 yards, and forming a band round the somewhat elevated centre of the district. This circular valley or plain marks the outcrop of the middle series of coal seams, not less than ten in number, the principal ones being the Smith Coal, Lowery or Park End High Delf, Starkey, Rocky, and Upper and Lower Churchway. The combined thickness of these beds may be said to average 20 feet, and they are more argillaceous in character than the lower beds, which in general are harder in their nature, and hence they afford the larger portion of the fossiliferous remains observed and tabulated by Mr. R. Gibbs, who has kindly furnished the writer with the following—

PLANTÆ.

Asterophyllites equisetiformis, et foliosus.

Bothrodendron punctatum.

Calamites approximatus, nodosus.

Caulopteris primæva.

Lepidodendron dichotomum, et elegans, et Serlii, et Sternbergii, et majus.

Neuropteris acutifolia, et angustifolia, et flexuosa, et macrophylla, et oblongata.

Pecopteris abbreviata, et arborescens, et cristata, et dentata, et Serlii.

Sigillaria contracta, et elongata, et mammillaris, et ornata, et reniformis.

Sphenophyllum fimbriatum, et Schlotheimii, et truncatum.

Sphenopteris Hibbertii, et macilenta.

Stigmaria ficoides.

Ulodendron Lindleyanum, et Lucasii.

The same variations in thickness as well as “faults” which have been detected in the lower coal seams, occur in the middle measures, although they do not in any case assume the same magnitude as the “Horse” in the Coleford High Delf.

The heart of the Forest basin is well defined by its forming a slightly varied plateau, containing the inferior and comparatively unimportant seams of Woer Green coal, situated of course nearer to the surface than the other veins, but as yet only sparingly worked, and not accurately defined in its outcrop. The highest elevations in this portion of the district are:—Surridge, 658 feet; Speech-house, 581 feet; St. Paul’s, Park End, 270 feet. The combined vertical thickness of the entire formation, descending from the top surface to the old red sandstone, is calculated by Mr. D. Williams at 2,765 feet, an opinion which is corroborated by Mr. Atkinson’s highly interesting sections based on his practical acquaintance with the mining operations of the Forest.

Mr. Mushet obtained by analysis the following percentage of carbon in the various descriptions of coal, viz.:—

Lowery Delf	62.
Coleford High Delf	63·72, 63·61, and 60·96.
Churchway	60·33 and 64·135.
Rockey	61·735.

Starkey	61·53.
Park End Little Delf	58·15.
Smith Coal	63·36.

None of these sorts of coal emit “fire-damp” in their natural condition—a fact which adds so much to the safety of the pits; but “choke-damp” is very prevalent.

The sandstone matrix of these coal-beds constitutes the grey and buff-coloured rock so well known in the neighbourhood of the Forest as a valuable building material, as well as for ornamental stonework. Although for many years past it has been generally preferred to the gritstone of the district, and is commonly met with in the better specimens of stonework on this side the Severn, of which Mr. Telford’s Over Bridge and Lord Somers’s mansion at Eastnor are examples, yet originally such was not the case, since the earliest example of its being used for any considerable pieces of masonry occurs in the steeple of Ruerdean Church, a work of the 15th century. Now, however, almost all the 320 stone quarries worked in the Forest are of this stone, which is very pleasing in tint, and, if judiciously selected, very durable.

APPENDIX.

No. I.

Papers preserved in the Lansdowne Collection at the British Museum.

“Right Honourable,

“Acoording unto your Lordship’s warrant, Wee repaired unto and have veiued and duellie considered the severall woodes, known by the names of Great Bradley, Little Bradley, Stonegrove, Pigstade, Buckholde Moore, and the Copps; all lying together and conteyning by the measure of 16½ foote the pole, 520 acres. In w^{ch} grounds we thinke (the woodes being muche differing in qualitie, by an equall proportion) there maie be raised for everie acre 30 coard of woode; reserving sufficient staddells according to the state, w^{ch}, according to the measure of the said grounds, amounted unto the number of 15,600 cordes of woode. Uppon conference with divers in the contrie, wee finde that such a quantitie of woode is not suddainly to be vented in anie other sorte then to the iron workes, w^{ch} causeth either the cheapnes or dearnes of the same; the contrie not vallewing the said woodes uppon the stem above XIIIID the coard, although to the iron workes it may be vallued at II^s VI^d the coard. So that according to the rate of the contrie, the said proportion of woode is worthe CCCCXV li. And according to the compictacon for the iron works, the same maie be vallued at MIXCLX li. We imagine that the charge of ffensing the said woodes, circuting 4 miles, will cost, to be done and kept according to the state, aboute CC markes. The rent is 20 li. per ann.

“ROBERT TRESWELL. J. NORDEN. THO. MORGAN.”

The wood standing in the 6 copses above named, Sir Edward Winter proposed to buy for 800 lib., cutting and carrying away the same, one copse

after another, in 5 years' time. But this proposal was so impugned as to elicit the ensuing defence from Sir E. Winter:—"A true Answer to the objections made against my late bargain for some of his M^{ties} coppices or colletts adioyning to the fforest of Deane.

"1. Ffirst, that contrarie to the intention of this bargain, I have alredie cut downe a great number of tymber-trees, whereas to this howre not any one is felled of that kynde or any other.

"2. That a follower of my L^d of Worcester's should survey those woodes is a wilful mistakinge, synce by the particules it appeares that one M^r Hervye made this survey by warrant from the late L. Trer.

"3. That I should gaine a 1000 li. per ann. by this bargain is soe vayre and ympossible a thing as deserves noe Aunswere.

"Yet that your L^{pp} maye see howe much Th' informer hath exceeded therein, himselfe or any man els *shall purchase my interest for a tenth parte of his valuation*. Which I write not in any sorte to capitulate with your L^{pp}; for wthout any consideration at all, I am redie to yealde upp this bargain, rather then by reteyning thereof to harbour in your noblest thoughts the least ill conceipt of mee or my proceedinges. But nowe, S^r, howe profitable a bargain you have made for the Kinge, these considerations followinge will easely demonstrate—ffor whereas in former tyme a greater proffit was never raised out of these wooddes than xxvs per ann. vntill my L^d your ffather and S^r Walter Myldemaye did let them by lease, and soe made viili rent, wthout any ffyne, your L^{pp} hath now made 500^{li} ffyne, and 20^{li} rent, w^{ch} is noe smale improvement, consideringe that *these 25 yeares last past not one pennye rent or proffitt otherwise hath bene made out of them, but left as a thing forgotten*. That the coppice woodd or vnderwoodd through the abuse of the last ffarmer, who never inclosed these wooddes, and the contynuall spoyle and havocke of the country thereabouts, *is utterly destroyed*. That there is nothinge nowe eft in 4 of those 6 coppices for w^{ch} I have bargained but old beaches, heretofore topt and lopt, whereof many of them nowe are scarce worth the cuttinge out to any man but myselfe, in respect of my iron workes beinge soe nere to them. That the other twoe coppices which are well stored have nothinge in them but younge beaches, and some other woodd of xx or xxx yeares growth. That in dyvers of those coppices there

are many acres w^{ch} have noe manner of woodd standing vpon them at all. Lastly, that the enclosing of these coppices wth a sufficient mound will cost me 200 markes the least, beside the great quantitie of woodd that must necessariye be spent therein, for w^{ch} no manner of allowance is made mee, &c. &c. &c.’”

The next MS. in Sir J. Cæsar’s collection seems designed to promote the extension of the iron-works, and relates several interesting particulars. It is headed “Reasons to move his M^{tie} to make vse and profitt of the woodes within the fforest of Deane.” The Forest woods are said to “containe of great standing woodes, though of severall and different sortes, 15,000 acres, parte beinge tymber, and parte other, the most parte well sett, the lawndes not accompted. The same fforest is a forest for waste, and of soe ill condicōn for hunting, as that the preservinge the woodes thereof will nether yield pleasure to the hunter nor profitt to the owner; and the woodes thereupon soe subject to waste, will dayly grow worse and worse. The fforest is for II. or III. myles vpon the skirts soe exceedingly wasted, as well by the inhabitants as other the borderers adiacent, that yt is grief to see soe many goodly trees to be spoiled, the vse whereof hath bene such as yt hath converted the tymber trees to Dotards, and that almost generally vpon the borders of the same fforest. The liberty of makinge sale of the wood hath bred in the same such a multitude of poore creatures, as it is lamentable to thinke soe many inhabitants shall lyve vpon soe bare provision as vpon spoile of the fforest woodes, w^{ch} yf in tyme yt be not forseene, will consume all his M^{ties} woodes without accompte. It appeareth by Recorde, that in the raigne of Henry III., Edward I., II., and III., and longe sithence, there were divers forges within the fforest, and noe other but the Kinge’s only; and of these there were VIII. at one tyme, as appeareth by the accompt of Maurice de S^{cto} Amando, and the rest were *Forgium Itinerans ad siccum in bosco de*, &c. All lyberty beinge prohibited for cuttinge of greene wood but to his Ma^{tes} owne forge. And whosoever cutt greene wood was by the officer of the Bayliwycke attached for the same. Also by negligence of former officers the inhabitantes of the said forest have much insulted by cuttinge of trees in the said forest, whereas by Recorde it appeareth the Kynge’s Warrant was in former tymes obtayned for cuttinge of deade trees, and who soe cutt, shredd, or lopped great wood wthout good warrant, was from tyme to tyme attached, presented, and made to paye for y^e same. There are, to keepe and preserve the woodes

of the said forest, tenn woodwardes, or Baylyfes of ffee, who hould Landes by that service, viz. Per servitum custodiendi boscum Domini Regis infra Ballinam, &c. Yet late experience proveth that they, their Tenauntes and Servantes, are as great spoilers as any others. And the antient Recordes make mencõn, that some of these woodwardes have forfeyed their Bayliwyckes, and have compounded wth the Kinge to have them againe regranted. It appeareth alsoe by Recordes, that the King hath bene answered of Browsewood wth in the Forest of Deane, and therein is sett downe what ffees were from tyme to tyme allowed to the keeper and what not. The profitt to be made of the said woodes is either by convertinge the same to coles, and soe for makeinge iron or otherwise by sellinge of the tymber by the tonne. In w^{ch} disposition of the woodes there wil be lytle or noe difference in advantage. But of the two the makeinge of coles will be lykely to yield most profitt.”

These succeeding papers, preserved with those already given, have also their interest:—

“Certain lands and tenem^{ts} holden by the face, and called new sett landes, w^{ch} the tenantes doe passe from partie to partie in the Kinge’s Court at S^t Breuills, being all the Kinge’s lands liing in the fforest of Deane in com’ Glouc., every tenante there payeing a certein yerely rent to his M^{ts} Bailiff. Imprimis, the parke of Thomas Baynham, Esq^r, called Noxon, is parcell therof, except from the gutter to the pale towards his house, holden by the tenure aforesaid, 50^{li} per ann.

“Item, the house and land of Richard Allowaye, gent., is so holden, 30^{li} per ann.

“George Wirrelle’s land at Bicknor, from the same towne to one Sipprian’s howse, and so downe to Skidmore’s house, and likewise to the fforest side, is of the like tenure, together wth other lands beyond his house, 50^{li} per ann.

“Richard Carpenter’s land, called 5 acres, and his corne leasowes, wth all his other landes abutting vpon M^r Thornburie’s Myll, and so vp to the same forrest, is so holden, 15^{li} p^r ann.

“M^r Thornburie’s Myll, wth all the landes thereunto belonginge, is so holden, 20^{li}.

“Richard Wirgan’s land, nere to a place called the Meine, wthin the said forrest, adioyning to the woodside, is of that same tenure, 10^{li}.

“Christofer Bunn holdeth parcell of the same landes w^{ch} I have not viewed, 10^{li}.

“The Earle of Pembroke holdeth by lease for 5 yeres yet to come, Whitemayde Parke, w^{ch} was taken out of the forrest, of the like tenure, 20^{li}.

“Sir Edward Winter’s parke from the woodside to the launde is of the like tenure, together wth the 2 highwaies w^{ch} have bene inclosed out of the forrest wthin this 20 yeres, 30^{li}.

“Widowe Earwoode’s ground from M^r Carpenter’s to the forrest side is of the same tenure, 15^{li}.

“Thomas Dinging’s Myll, called Breame, wth all the landes and tenements thereto belonging, is so holden, as also his house and land upon the hill, and all other his landes towardes Breame likewise.

“Item, all the lands from Conyers bridge, being a great quantity, to the forrest, are belonging to the same landes, but lately aliened & sould by deed, & now holden by demise, are of like tenure, being parcell of the forrest, 40^{li}.

“Mr. Jeames, of Bristoll, holdeth 100^{li} per ann. of the same tenure wthin the forrest.

“M^d these are not halfe the landes on that side the forrest, but towards Michell Deane & little Deane there is muche more.

“Item, Willm. Hall hath land there w^{ch} a Dyer holdeth vnder him, & was taken out of the Kinge’s comon, together wth other lands not yet throughly viewed.

“Item, all Wrurdyne is much more land, w^{ch} shall be viewed & sett downe hereafter.

“Item, Stanton’s myne, wth much other land vnviewed, is so holden.

“All w^{ch} particulars doe but conteine but the least parte of the landes holden by the foresaid tenure.”

Further particulars, of the same character as the above, and forming a part of the series now given, occur in the records of another survey, as follows:—

“Rent reserved for the farme of two Messuages and one Watermill, of which two Messuages one is called Sulley, the other Redmore; And of 5 cotages, with gardens and orchards to the same belonging; and of one 30 Acres of Land, Meadow, Pasture, Arrable, and Woodland; Some whereof are called Salley fields, Gumspitt, Le Harper, Diwardens, Broadfeild, Radmore, Coppier, Kew-grove, Martin’s Wall, and Ediland, conteyninge together CCCXLVII acres, one rood, and one perch, late in the occupacon of Edward James, lying in the fforest of Deane, in the County of Gloucester, of the yearly value of *vis* and *viii*d and *ivs* penny halfepenny.

“And of six Messuages, six Barnes, gardens, and orchards to the same belongings, And of *xvi*. several Closes of Land, Meadowe, Pasture, Arrable Land, and Woodland; Two whereof are called Cownedge, ten called Digges, one called Bradley, one Beggars’ Thorne mead, one called Marshall’s grove, and the other called ffernefeilde, and one other called Bradley, conteyninge in the whole Threescore and ten acres and three roods, lying in the fforest aforesaid, late in the occupation of Robert Pearke, of the yearly value of *iiis* and *vi*d, &c. &c. &c.

“The names of the officers belonging to his M^{ties} fforrest of Deane in Com’ Glouc., viz., the Earle of Pembroke is now High Cunstable of the same fforest. William Winter and Roger Myners, Esq^{rs}, or one of them, is deputie Cunstable to the said Earle, & they keepe Courtes every 3 weeks at S^t Breuilles, and allso every 6 weekes at the Speach House, or Court of Attachment wthin the same fforrest. William Carpenter is Steward of S^t Breuills Courtes & the said Speach Court or Attachementes courtes. Robert Bridgeman is Bailiff for all the said Courtes, and allso in all the liberties in the said fforrest, and James Yennys is his deputie Bayliff. M^d every tenantes & the borderers doe take tymber for their buildings as allso hedge woods to inclose their own groundes, & take fying at their pleasure wthin the fforrest,

& sell their owne woodes and the woodes of the landes wthin mentioned, to the great spoile of the Kinge's woodes wthin the said fforrest."

No. II.

One of the Dean Forest Claims, put in at the Justice Seat, held in Gloucester Castle, 10 Chas. I.

Clamea posita in Itinere Forestæ de Deane tento apud Castrum Glouc. in com. Glouc. die Iovis decimo die Iulij anno Regni Domini Caroli nunc Regis Angliæ decimo coram Henrico Comite de Holland prænobilis Ordinis Garterii Milite Capitali Justitiario ac Justitiariis Itinerantibus omnium Forestarum Chacearum parcorum et warrennarum Domini Regis citra Trentam.

(18) Foresta de Deane in Comitatu Glouc. Et modo ad hanc curiam venit Willielmus Skynne, per Edwardum Offley attornatum suum, et dicit quod ipse est seisitus de antiquo mesuagio in Plattwell in parochia de Newland et de viginti acris terræ prati et pasturæ et de diversis horreis stabulis, Anglice barnes Stables, et aliis necessariis edificiis super terram prædictam ab antiquo edificatis in parochia de Newland infra Forestam de Deane prædictam in dominico suo ut de feodo, et pro se et hæredibus suis clamat has libertates privilegia et franchisesias sequentia tanquam ad mesuagium terram pratum et pasturam et cætera edificia prædicta pertinentia et spectantia, videlicet pro necessaria reedificatione et reparatione dicti mesuagii sui et aliorum antiquorum edificiorum suorum super terram et tenementa sua prædicta existentium, quod ipse per visum et allocationem forestariorum et viridariorum Forestæ prædictæ de bosco et maeremio domini Regis super vasta et communia Forestæ prædictæ crescentibus de tempore in tempus capere et percipere potest. Et quod forestarii et viridarii Forestæ prædictæ post requisitionem per ipsum Willielmum Skynne eisdem factam apud Curiam domini Regis infra Forestam prædictam tentam vocatam Le Speech Court, debent ire videre et appunctuare boscum et maeremium in vastis et communibus Forestæ prædictæ sic ut præfertur crescentia prædictis necessariis reedificationibus et reparationibus suis dicti mesuagii et aliorum edificiorum suorum supradictorum et eidem Willielmo Skynne inde allocationem facere. Clamat etiam pro necessariis estoveriis suis in dicto antiquo mesuagio comburendis et expendendis ad libitum suum

capere de mortuis et siccis arboribus dicti domini Regis in vastis et communibus locis Forestæ prædictæ existentibus. Clamat etiam communiam pasturæ in omnibus locis apertis et communicabilibus Forestæ prædictæ pro omnibus averiis suis communicabilibus super terras et tenementa sua prædicta levantibus et cubantibus omnibus anni temporibus (mense vetito solummodo excepto). Clamat etiam habere pawnagium pro omnibus porcis suis super terras et tenementa sua prædicta levantibus et cubantibus in omnibus vastis Forestæ prædictæ tempore pawnagii, Reddendo domino Regi annuatim summam unius denarii pro pawnagio prædicto per nomen de Swinesilver et non amplius. Et pro titulo ad has libertates privilegia et franchisesias sic ut præfertur superius per ipsum clamata, idem Willielmus Skynne ulterius dicit quod ipse et omnes antecessores sui et omnes illi quorum statum ipse nunc habet in mesuagio terra et tenementis supradictis a tempore cujus contrarii memoria hominum non existit in contrarium usi fuerunt et consueverunt de tempore in tempus facere sectam ad Curiam dicti domini Regis et prædecessorum suorum Regum et Reginarum Angliæ apud Castrum suum Sancti Briavelli de tribus septimanis in tres septimanas, ac etiam annuatim solvere feodo firmario domini Regis Forestæ prædictæ pro tempore existenti vel ejus ballivo redditum octo solidorum et octo denariorum ad usum dicti domini Regis. Ac etiam annuatim solvere dicto feodo firmario vel ejus ballivo summam unius denarii in nomine de Swinesilver ad usum dicti domini Regis. Et quod ipse præfatus Willielmus Skynne et omnes antecessores et omnes illi quorum statum ipse nunc habet in mesuagio terris et tenementis supradictis ratione soctæ ad Curiam dicti domini Regis et redditus octo solidorum et octo denariorum prædictorum ac summæ unius denarii in nomine de Swinesilver sic ut præfertur per ipsum de tempore in tempus domino Regi factorum et solutorum usi fuerunt et a toto prædicto tempore cujus contrarii memoria hominum non existit in contrarium uti consueverunt omnibus et singulis libertatibus privilegiis et franchisesiis modo et forma prout per ipsum Willielmum Skynne superius sunt clamata tanquam ad prædictum mesuagium terras et tenementa prædicta spectantia et pertinentia, et eis omnibus et singulis juxta vim formam et effectum clamei sui prædicti usi fuerunt, et idem Willielmus Skynne adhuc utitur prout ei bene licet. Et hoc paratus est verificare prout curia consideraverit unde idem Willielmus Skynne petit prædicta libertates privilegia et franchisesias hic ut præfertur per ipsum superius clamata sibi et hæredibus suis allocari juxta clameum suum prædictum.

No. III.**TABLE I.—FORMED BY MR. MACHEN.**

An Account of the Admeasurement of Trees in Dean Forest; viz., A, an Oak near the Woodman's in Shutcastle; B, "Jack of the Yat," an Oak Tree on the Coleford and Mitcheldean Road; C, a large Oak in Sallow Vallets; D, an Oak which appears to be formed of two Oaks grown together, on the Lodge Hill, 300 yards west of York Lodge; E, a black Italian Poplar in the Garden at Whitmead. All taken at six feet from the ground.

[NOTE: In each table, Inc = Increase in Size.]

	A		B ^[265]		C ^[265a]		D ^[265b]		E	
		Inc		Inc		Inc		Inc		Inc
	Ft.ins	ins	Ft.ins	ins	Ft.ins	ins	Ft.ins	ins	Ft.ins	ins
Oct 1814	3 9	-	-	-	-	-	-	-	-	-
„ 1816	3 10 ⁵ / ₈	1 ⁵ / ₈	-	-	-	-	17 2	-	-	-
„ 1818	3 11 ⁵ / ₈	1	-	-	-	-	17 3	1	0 11 ¹ / ₂	-
„ 1820	4 0 ⁷ / ₈	1 ¹ / ₄	-	-	-	-	17 7 ¹ / ₈	4 ¹ / ₈	-	-
„ 1822	4 2 ⁵ / ₈	1 ³ / ₄	-	-	-	-	18 0 ¹ / ₄	5 ¹ / ₈	-	-
„ 1824	4 4 ¹ / ₂	1 ⁷ / ₈	-	-	-	-	18 3 ³ / ₄	3 ¹ / ₂	-	-
„ 1826	4 5 ¹ / ₂	1	-	-	-	-	18 9 ³ / ₄	6	-	-
„ 1828	4 8	2 ¹ / ₂	-	-	-	-	18 11 ³ / ₄	2	-	-
„ 1830	4 10	2	-	-	12 4 ¹ / ₂	-	19 0 ¹ / ₂	0 ³ / ₄	4 3	-
„ 1832	4 10 ³ / ₄	0 ³ / ₄	-	-	-	-	19 1 ³ / ₄	1 ¹ / ₄	-	-
„ 1834	4 11 ¹ / ₄	0 ¹ / ₂	-	-	-	-	19 4	2 ¹ / ₄	6 1 ³ / ₄	-
„ 1836	5 0	0 ³ / ₄	-	-	-	-	19 9	5	6 9	7 ¹ / ₄

„ 1838	5 0¾	0¾	17 9		12 10½	6	20 2	5	7 0½	3½
„ 1840	5 1	0¼	17 10	1	12 10¾	0¼	20 4	2	7 7	6½
„ 1842	5 1¼	0¼	17 11¼	1¼	12 11½	0¾	20 8	4	8 0	5
„ 1844	5 3½	2¼	18 2¾	3½	13 1	1½	-	-	8 10	10
„ 1846	5 4¾	1¼	18 3½	0¾	13 2½	1½	21 0	4	9 3¼	5¼
„ 1848	5 6	1¼	18 5¼	1¾	13 4	1½	21 4	4	9 10	6¾
„ 1850	5 6½	0½	18 6	0¾	13 4¾	0¾	21 6½	2½	10 2	4
„ 1852	5 7	0½	18 6½	0½	13 5¼	0½	21 8	1½	10 8	6
„ 1854	cut down-		18 7¼	0¾	13 7½	2¾	21 10	2	11 2½	6½

TABLE 2.—FORMED BY MR. MACHEN.

An Account of the Admeasurement of several Oak Trees in the Bailey Copse (North), A, B, C, D, E, and F.

N.B.—The Copse was open for many years, and the Oak underwood kept down by cattle browsing. It was enclosed in 1813, and thickly stored, and the underwood cut in 1817. It is now (1818) well stored with young Oaks of the same description as those measured.

	A		B		C		D		E		F	
		Inc		Inc		Inc		Inc		Inc		Inc
	in.	in.	in.	in.	in.	in.	in.	in.	in.	in.	in.	in.
Oct. 1818	7¾	-	10¾	-	9½	-	9	-	12⅝	-	10¾	-
„ 1820	9	1¼	13	2¼	10½	1	10¼	1¼	14⅜	1¾	12⅛	1⅜
„ 1822	10¼	1¼	15⅛	2⅛	11¼	0¾	11½	1¼	16¼	1⅞	13	0⅞
„ 1824	11⅜	1⅞	17⅞	2	12⅜	1⅞	12⅝	1⅞	17¾	1½	14¾	1¾
„ 1826	12¼	0⅞	18¾	1⅝	13¼	0⅞	13¾	1⅞	19⅛	1⅜	16⅞	1⅜
„ 1828	13⅞	0⅞	19½	0¾	13¾	0½	14½	0¾	20⅜	1¼	17¼	1⅞

„ 1830	13 $\frac{5}{8}$	0 $\frac{1}{2}$	20 $\frac{3}{8}$	0 $\frac{7}{8}$	14	0 $\frac{1}{4}$	15 $\frac{1}{4}$	0 $\frac{3}{4}$	21	0 $\frac{5}{8}$	17 $\frac{3}{4}$	0 $\frac{1}{2}$
„ 1832	15 $\frac{3}{8}$	1 $\frac{3}{4}$	22 $\frac{1}{4}$	1 $\frac{7}{8}$	14 $\frac{1}{2}$	0 $\frac{1}{2}$	16 $\frac{5}{8}$	1 $\frac{3}{8}$	22 $\frac{1}{2}$	1 $\frac{1}{2}$	19 $\frac{1}{4}$	1 $\frac{1}{2}$
„ 1834	17 $\frac{3}{8}$	2	25	2 $\frac{3}{4}$	15 $\frac{5}{8}$	1 $\frac{1}{8}$	18 $\frac{1}{8}$	1 $\frac{1}{2}$	24	1 $\frac{1}{2}$	21	1 $\frac{3}{4}$
„ 1836	19 $\frac{1}{8}$	1 $\frac{3}{4}$	27 $\frac{3}{4}$	2 $\frac{3}{4}$	17 $\frac{5}{8}$	2	19 $\frac{1}{2}$	1 $\frac{3}{8}$	25 $\frac{3}{4}$	1 $\frac{3}{4}$	22 $\frac{3}{4}$	1 $\frac{3}{4}$
„ 1838	21 $\frac{1}{8}$	2	30 $\frac{3}{8}$	2 $\frac{5}{8}$	19	1 $\frac{3}{8}$	20 $\frac{3}{4}$	1 $\frac{1}{4}$	27 $\frac{3}{4}$	2	24 $\frac{1}{4}$	1 $\frac{1}{2}$
„ 1840	22 $\frac{7}{8}$	1 $\frac{3}{4}$	32	1 $\frac{5}{8}$	20 $\frac{3}{8}$	1 $\frac{3}{8}$	21 $\frac{3}{4}$	1	29	1 $\frac{1}{4}$	25 $\frac{3}{4}$	1 $\frac{1}{2}$
„ 1842	24 $\frac{5}{8}$	1 $\frac{3}{4}$	33 $\frac{7}{8}$	1 $\frac{7}{8}$	21 $\frac{3}{4}$	1 $\frac{3}{8}$	22 $\frac{5}{8}$	0 $\frac{7}{8}$	30 $\frac{1}{4}$	1 $\frac{1}{4}$	27	1 $\frac{1}{4}$
„ 1844	26	1 $\frac{3}{8}$	34 $\frac{3}{4}$	0 $\frac{7}{8}$	22	0 $\frac{1}{4}$	22 $\frac{7}{8}$	0 $\frac{1}{4}$	30 $\frac{3}{4}$	0 $\frac{1}{2}$	27 $\frac{1}{2}$	0 $\frac{1}{2}$
„ 1846	27 $\frac{1}{2}$	1 $\frac{1}{2}$	36 $\frac{1}{2}$	1 $\frac{3}{4}$	22 $\frac{3}{4}$	0 $\frac{3}{4}$	23 $\frac{5}{8}$	0 $\frac{3}{4}$	32 $\frac{1}{8}$	1 $\frac{3}{8}$	28 $\frac{5}{8}$	1 $\frac{1}{8}$
„ 1848	30	2 $\frac{1}{2}$	38 $\frac{3}{4}$	2 $\frac{1}{4}$	24 $\frac{1}{2}$	1 $\frac{3}{4}$	25 $\frac{1}{4}$	1 $\frac{1}{2}$	34 $\frac{1}{8}$	2	30 $\frac{5}{8}$	2
„ 1850	31 $\frac{1}{2}$	1 $\frac{1}{2}$	40 $\frac{1}{2}$	1 $\frac{3}{4}$	26	1 $\frac{1}{2}$	26	0 $\frac{3}{4}$	35 $\frac{1}{2}$	1 $\frac{3}{8}$	32 $\frac{1}{2}$	1 $\frac{7}{8}$
„ 1852	32 $\frac{3}{4}$	1 $\frac{1}{4}$	41	0 $\frac{1}{2}$	26 $\frac{3}{4}$	0 $\frac{3}{4}$	26 $\frac{1}{4}$	0 $\frac{1}{4}$	37	1 $\frac{1}{2}$	33 $\frac{3}{4}$	1 $\frac{1}{4}$
„ 1854	33 $\frac{3}{4}$	1	44	3	26 $\frac{3}{4}$	-	27 $\frac{1}{4}$	1	37 $\frac{3}{4}$	0 $\frac{3}{4}$	34 $\frac{3}{4}$	1

TABLE 3.—FORMED BY MR. MACHEN.

An Account of the Admeasurement of Seven Beech Timber Trees growing in Doward Wood, near the walk by the side of the River Wye. They are clean and smooth in the bark, and appear fast growing.

	A		B		C		D		E		F		G	
		Inc		Inc		Inc		Inc		Inc		Inc		Inc
	ins	ins	ins	ins	ins	ins	ins	ins	ins	ins	ins	ins	ins	ins
Oct. 1838	64 $\frac{1}{2}$	-	52	-	56 $\frac{1}{4}$	-	58 $\frac{1}{4}$	-	56 $\frac{1}{2}$	-	53 $\frac{1}{4}$	-	47 $\frac{1}{4}$	-
„ 1840	65	0 $\frac{1}{2}$	53	1	57 $\frac{1}{8}$	0 $\frac{7}{8}$	59	0 $\frac{3}{4}$	57 $\frac{1}{2}$	1	53 $\frac{3}{4}$	0 $\frac{1}{2}$	49	1 $\frac{3}{4}$
„ 1842	66 $\frac{3}{4}$	1 $\frac{3}{4}$	54 $\frac{1}{4}$	1 $\frac{1}{4}$	58 $\frac{1}{2}$	1 $\frac{3}{8}$	60 $\frac{3}{8}$	1 $\frac{3}{8}$	58 $\frac{5}{8}$	1 $\frac{1}{8}$	55 $\frac{1}{8}$	1 $\frac{3}{8}$	49	-
„ 1844	69 $\frac{3}{4}$	3	54 $\frac{1}{2}$	0 $\frac{1}{4}$	59	0 $\frac{1}{2}$	61 $\frac{1}{4}$	0 $\frac{7}{8}$	59	0 $\frac{3}{8}$	55 $\frac{3}{4}$	0 $\frac{5}{8}$	49	-
„ 1846	73	3 $\frac{1}{4}$	55 $\frac{1}{2}$	1	60 $\frac{1}{4}$	1 $\frac{1}{4}$	62	0 $\frac{3}{4}$	59 $\frac{1}{2}$	0 $\frac{1}{2}$	56 $\frac{1}{2}$	0 $\frac{3}{4}$	49 $\frac{1}{2}$	0 $\frac{1}{2}$

„ 1848	73 $\frac{1}{4}$	0 $\frac{1}{4}$	56	0 $\frac{1}{2}$	61 $\frac{1}{2}$	1 $\frac{1}{4}$	62 $\frac{1}{4}$	0 $\frac{1}{4}$	60 $\frac{1}{4}$	0 $\frac{3}{4}$	57 $\frac{1}{2}$	1	50 $\frac{1}{2}$	1
„ 1850	73 $\frac{1}{2}$	0 $\frac{1}{4}$	56 $\frac{1}{4}$	0 $\frac{1}{4}$	62 $\frac{1}{2}$	1	63 $\frac{1}{4}$	1	60 $\frac{1}{2}$	0 $\frac{1}{4}$	58 $\frac{3}{4}$	1 $\frac{1}{4}$	50 $\frac{3}{4}$	0 $\frac{1}{4}$
„ 1852	76	2 $\frac{1}{2}$	56 $\frac{1}{2}$	0 $\frac{1}{4}$	63 $\frac{1}{4}$	0 $\frac{3}{4}$	64 $\frac{1}{2}$	1 $\frac{1}{4}$	61 $\frac{1}{2}$	1	59 $\frac{1}{2}$	0 $\frac{3}{4}$	51 $\frac{1}{2}$	0 $\frac{3}{4}$
„ 1854	78	2	58	1 $\frac{1}{2}$	64 $\frac{3}{4}$	1 $\frac{1}{2}$	65 $\frac{5}{8}$	1 $\frac{1}{8}$	62 $\frac{1}{2}$	1	61 $\frac{1}{4}$	1 $\frac{3}{4}$	52 $\frac{1}{2}$	1

TABLE 4.—FORMED BY MR. MACHEN.

An Account of the Admeasurement of 14 Oak Timber Trees, A, B, C, D, E, F, and G, growing on Hall's Hill, and H, I, J, K, L, M, and N, on Pritchard's Hill, both near the Ride in the Highmeadow Woods. The trees are probably now (1822) 80 or 90 years old.

FIRST PART.

	A		B		C		D		E		F		G	
		Inc		Inc		Inc		Inc		Inc		Inc		Inc
	in.	in.	in.	in.	in.	in.	in.	in.	in.	in.	in.	in.	in.	in.
Oct 1822	61	-	62	-	65 $\frac{1}{2}$	-	67 $\frac{3}{8}$	-	46 $\frac{1}{2}$	-	82 $\frac{1}{2}$	-	49	-
„ 1824	62 $\frac{1}{2}$	1 $\frac{1}{2}$	63 $\frac{3}{4}$	1 $\frac{3}{4}$	68	2 $\frac{1}{2}$	69	1 $\frac{5}{8}$	49 $\frac{1}{4}$	2 $\frac{3}{4}$	83 $\frac{1}{4}$	0 $\frac{3}{4}$	52	3
„ 1826	65	2 $\frac{1}{2}$	65 $\frac{3}{4}$	2	71 $\frac{3}{4}$	3 $\frac{3}{4}$	71 $\frac{1}{2}$	2 $\frac{1}{2}$	52	2 $\frac{3}{4}$	84	0 $\frac{3}{4}$	55 $\frac{1}{2}$	3 $\frac{1}{2}$
„ 1828	67 $\frac{1}{4}$	2 $\frac{1}{4}$	67 $\frac{1}{2}$	1 $\frac{3}{4}$	74 $\frac{1}{2}$	2 $\frac{3}{4}$	73 $\frac{1}{4}$	1 $\frac{3}{4}$	54 $\frac{3}{4}$	2 $\frac{3}{4}$	85	1	58	2 $\frac{1}{2}$
„ 1830	68 $\frac{1}{4}$	1	68 $\frac{1}{2}$	1	75	0 $\frac{1}{2}$	73 $\frac{3}{4}$	0 $\frac{1}{2}$	55 $\frac{1}{4}$	0 $\frac{1}{2}$	87 $\frac{1}{4}$	2 $\frac{1}{4}$	59	1
„ 1832	69	0 $\frac{3}{4}$	69 $\frac{1}{2}$	1	76 $\frac{1}{2}$	1 $\frac{1}{2}$	74 $\frac{1}{4}$	0 $\frac{1}{2}$	56 $\frac{3}{4}$	1 $\frac{1}{2}$	88 $\frac{1}{4}$	1	60 $\frac{1}{2}$	1 $\frac{1}{2}$
„ 1834	71	2	71 $\frac{1}{4}$	1 $\frac{3}{4}$	77 $\frac{1}{2}$	1	75 $\frac{1}{4}$	1	57 $\frac{1}{2}$	0 $\frac{3}{4}$	90	1 $\frac{3}{4}$	61 $\frac{1}{2}$	1
„ 1836	72 $\frac{1}{2}$	1 $\frac{1}{2}$	72 $\frac{3}{4}$	1 $\frac{1}{2}$	78 $\frac{1}{2}$	1	76	0 $\frac{3}{4}$	58	0 $\frac{1}{2}$	91	1	62 $\frac{1}{2}$	1
„ 1838	73 $\frac{1}{2}$	1	73 $\frac{1}{2}$	0 $\frac{3}{4}$	79 $\frac{3}{4}$	1 $\frac{1}{4}$	76 $\frac{1}{2}$	0 $\frac{1}{2}$	59	1	92	1	63 $\frac{3}{4}$	1 $\frac{1}{4}$
„ 1840	74	0 $\frac{1}{2}$	74 $\frac{3}{4}$	1 $\frac{1}{4}$	80 $\frac{1}{4}$	0 $\frac{1}{2}$	78	1 $\frac{1}{2}$	59 $\frac{1}{4}$	0 $\frac{1}{4}$	92 $\frac{1}{2}$	0 $\frac{1}{2}$	64	0 $\frac{1}{4}$
„ 1842	75 $\frac{5}{8}$	1 $\frac{5}{8}$	74 $\frac{7}{8}$	0 $\frac{1}{8}$	81 $\frac{1}{2}$	1 $\frac{1}{4}$	79 $\frac{1}{8}$	1 $\frac{1}{8}$	59 $\frac{1}{4}$	-	93 $\frac{3}{8}$	0 $\frac{7}{8}$	64	-
„ 1844	76 $\frac{3}{4}$	1 $\frac{1}{8}$	75 $\frac{3}{4}$	0 $\frac{7}{8}$	82	0 $\frac{1}{2}$	80 $\frac{1}{4}$	1 $\frac{1}{8}$	60 $\frac{1}{2}$	1 $\frac{1}{4}$	93 $\frac{3}{4}$	0 $\frac{3}{8}$	65 $\frac{3}{4}$	1 $\frac{3}{4}$

„ 1846	78	1¼	77½	1¾	82¾	0¾	81½	1¼	61½	1	96	2¼	67	1¼
„ 1848	80¼	2¼	78½	1	83¼	0½	82¼	0¾	63	1½	96¼	0¼	67	-
„ 1850	82	1¾	79¾	1¼	84¾	1½	83¾	1½	64½	1½	98	1¾	68	1
„ 1852	82½	0½	80½	0¾	85¼	0½	83¾	-	65¼	0¾	98½	0½	69¾	1¾
„ 1854	83¼	0¾	81¼	0¾	85½	0¼	86	2¼	66¼	1	99¼	0¾	71	1¼

SECOND PART.

	H		I		J		K		L		M		N	
		Inc		Inc		Inc		Inc		Inc		Inc		Inc
	in.	in.	in.	in.	in.	in.	in.	in.	in.	in.	in.	in.	in.	in.
Oct 1822	49	-	31¼	-	46¾	-	30	-	67¼	-	36¾	-	28	-
„ 1824	52¼	3¼	32¼	1	49½	2¾	32	2	69¾	2½	39	2¼	29¾	1¾
„ 1826	55¾	3½	33¾	1½	52½	3	34½	2	72½	2¾	42¼	3¼	31¾	2
„ 1828	58¼	2½	35¼	1½	55¼	2¾	37	2½	75	2½	45	2¾	34	2¼
„ 1830	59	0¾	36	0¾	56	0¾	37½	0½	76	1	45½	0½	34½	0½
„ 1832	60¼	1¼	38	2	57¼	1¼	39	1½	77½	1½	47¼	1¾	36¼	1¾
„ 1834	61	0¾	38¾	0¾	58	0¾	39	-	78¾	0¾	48	0¾	37	0¾
„ 1836	62	1	39½	0¾	59	1	40	1	79	0¼	48¾	0¾	38	1
„ 1838	62¾	0¾	40½	1	60¼	1¼	41¾	1¾	80¼	1¼	50	1¼	39	1
„ 1840	63	0¼	41¼	0¾	61	0¾	42¾	1	82¼	2	51½	1½	39¼	0¼
„ 1842	63¾	0¾	41¼	-	61	-	43¼	0½	83¼	1	53¼	1¾	39½	0¼
„ 1844	64¼	0½	42	0¾	62	1	44	0¾	84¾	1½	54½	1¼	40½	0⅝
„ 1846	66¼	2	43	1	62¾	0¾	45¼	0½	85¾	1	55½	1	41	0⅞
„ 1848	67	0¾	44	1	63¾	1	46¼	1	86½	0¾	57	1½	42	1
„ 1850	68¾	1¾	44½	0½	65	1¼	47½	1¼	88	1½	58	1	43	1
„ 1852	69	0¼	44¾	0¼	65¾	0¾	48	0½	89	1	59	1	43¾	0¾

„ 1854	69½	0½	45¾	1	66¾	0⅝	48¾	0¾	90	1	60	1	44	0¼
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TABLE 5.—FORMED BY MR. MACHEN.

An Account of the Admeasurement of nine Trees growing on York Lodge Hill: A, B, C are Oaks; D, E, F are Turkey Oaks; and G, H, I are Chesnuts. These trees have been planted singly on the open Forest without any Fence (now 1836), about 20 years since.

FIRST PART.

	A.	Oak.	B.	Oak.	C.	Oak.	D.	Oak.	E.	Oak.
							Turkey		Turkey	
		Inc		Inc		Inc		Inc		Inc
	ft.in.	in.	ft.in.	in.	ft.in.	in.	ft.in.	in.	ft.in.	in.
Oct 1836	2 8½	-	2 5	-	2 9¼	-	1 7½	-	1 9	-
„ 1838	2 11	2½	2 6¾	1¾	2 11¼	2	1 10	2½	1 11½	2½
„ 1840	3 0¼	1¼	2 8½	1¾	3 1½	2¼	2 0¾	2¾	2 2½	3
„ 1842	3 2	1¾	2 10	1½	3 3½	2	2 3½	2¾	2 5½	3
„ 1844	3 5½	3½	3 1	3	3 6½	3	2 7	3½	2 9	3½
„ 1846	3 8	2½	3 2	1	3 10	3½	2 10	3	3 0	3
„ 1848	3 10¼	2¼	3 4	2	4 1	3	3 1	3	3 2¼	2¼
„ 1850	4 0½	2¼	3 5½	1½	4 2	1	3 2¾	1¾	3 4¼	2
„ 1852	4 2¾	2¼	3 7½	2	4 4	2	3 4¾	2	3 6½	2¼
„ 1854	4 5¾	3	3 10	2½	4 7	3	3 8¾	4	3 10½	4

SECOND PART.

	F	Turkey Oak.	G	Chesnut.	H	Chesnut.	I	Chesnut.
		Inc		Inc		Inc		Inc
	ft.in.	in.	ft.in.	in.	ft.in.	in.	ft.in.	in.

Oct 1836	1 7¼	-	1 11½	-	2 2	-	2 0¼	-
„ 1838	1 10¼	3	2 3	3½	2 5½	3½	2 5	4¾
„ 1840	2 1¼	3	2 5¾	2¾	2 8¾	3¼	2 10	5
„ 1842	2 4½	3¼	2 9½	3¾	3 0	3¼	3 3½	5½
„ 1844	2 8	3½	3 1	3½	3 2	2	3 9	5½
„ 1846	2 11	3	3 4	3	3 5½	3½	4 2¾	5¾
„ 1848	3 2¼	3¼	3 7½	3	3 8½	3	4 7¾	5
„ 1850	3 4¼	2	3 10	2½	3 9¾	1¼	4 11	3¼
„ 1852	3 6¾	2¼	4 1	3	3 11½	1¾	5 3½	4½
„ 1854	3 10	3¼	4 5	4	4 3½	4	5 8¼	4¾

The following letter of Mr. Vaughan, of Court Field on the Wye, near Lydbrook, merits insertion, as bearing testimony to the value of the preceding Tables compiled by Mr. Machen, exhibiting the growth of Trees in the Forest.

“Court Field, October 15, 1841.

“MY DEAR SIR,

“I thank you very much for the interesting account you have sent me of the result of your observation during a series of years upon the growth of trees. It is really a most curious document. I ought to have thanked you sooner, but I was anxious, first, to compare your Table with the result of my own admeasurements of trees at Court Field in various situations; and give you, at the same time, the result of my calculations.

“I find that my experience fully corroborates yours, though it induces me to believe that the forest growth is slightly below an average—which the soil and situation would also induce one to imagine.

“I calculate, from your Table, that an oak-tree measuring 6 inches girt doubles its contents (exclusive of its increase in height and limb) in 5 to 6 years. Whereas, a tree measuring 8½ inches, or half a foot girt, requires 10 or 12 years to double itself.

“With regard to the trees 170 years old, I find that A has increased 19 feet or 28 per cent. only in 30 years, and B 26 feet or 48 per cent. during the same period; neither, therefore, paying much interest on their value within the last 30 years.

“I calculate that the value of the acres of growing timber which you refer to (73 oaks averaging 58 feet) would be £624 at £7 10s. per 50 feet; or, if the original value of the land and expense of ploughing it amounted to £25, about twenty-five times its original value.

“If the thinnings be considered equivalent to the expense of protection-fences, &c., and £25 at compound interest for 170 years be calculated, £624 will be found to be less than $\frac{1}{20}$ per cent. = a hundredth of 5 per cent. per annum.

“I remain, my dear Sir, very faithfully yours,

“JOHN V. VAUGHAN.”

No. IV.

Mr. Wyrall's Survey of the Forest of Dean Iron Works in 1635.

"Canop Furnace.—Most p^t new built, the rest repaired by the Farmers, 22^{ft} square, wheel 22^{ft} diam^r. Furnace box built 4 years since by the Farmers. Bridge-house 48^{ft} by 21, 9 high, built 4 years, Bellow's boards 18^{ft} by 4. Clerk's house and stable built by the Farmers. A cottage built by the Workmen belonging to the Works, now occupied by the Filler. Built before the Farmers hired.—Founder's house, Minecracker's cabin, A Mine Kiln.

"Park Furnace.—Same dimensions, repaired 4 years since by the Farmers, Wheel and almost all the houses built by the Farmers.

"Park end Forge.—2 Ham^{rs}, 3 Fineries, 1 Chaffery, rep^d 2 years since, one of the Fineries new.

"Whitcroft Forge,—built ab^t 6 y^{rs} since by the Farmers, d^o d^o

"Bradley Forge.—d^o d^o d^o

"Sowdley Furnace, built 3 years—Qu. if rebuilt? Bridge house, p^t built by the farmers, p^t old and decay^d, Trow leading to the wheel, ½ made new 5 years since, decay^d, 5 Cottages, 1 built by the Farmers. A dam a mile above Sowdley built by the Farmers. A dam half a mile still higher, built long since.

"Sowdley Forge, 2 Fineries, 1 Chaffery built 2 years, in the place of the old Forge. Trows & Penstocks made new by the Farmers, decayed.

"Lydbrook Furnace, 23^{ft} long, 9 bottom, 23^{ft} deep, new built 3 y^{rs} since from the ground, 3^{ft} higher than before, much cracked. A great Buttress behind the Furnace to strengthen it.

"Lydbrook Forge.—1 Chaffery, 2 Fineries, House built 4 years, being burnt by accident."

Besides the above, Mr. Wyrall also transcribed the following additional particulars from a MS. dated 23 September, 1635, and endorsed,—“The

booke of Survey for the Forest of Deane Iron work, and the Warrant annexed unto y^t.”

“*Cannope Furnace*.—Now blowinge, and likely to contynue aboute 3 weeks. The most part new built, and the rest repaired by the Farmers about 4 years since. Stone walls, about 60^{lb}, consistinge of the stone body thereof 22 foote square, wherein are:—

“In the fore front 4 Sowes of Iron }
and the Tempiron Wall 3 Sowes } 7 Sowes.

“A Wheele, 22 Foote diam^r, 7 Iron Whops, one the Waste, made about three years since. With Shafts and all things belonging about 20^{lb}, in good repaire.

“The Furnace Howse half tiled, built with timber 4 years since by the Farmers, cost about 80^{lb}, in repaire.

“The Bridge house, 21 foot broad, 48 foot longe, and 9 foote heigh, built about 2 years since, the bridge about 4 years, covered with bords bottomed with Planks.

“5 bellow bords ready sawed, 18^{ft} longe, 4^{ft} broad. A Watter Trowe 1^{ft} at bottome and 15 ynches high, 75 yards longe, leadinge the water to the Wheele, cut out of the whole tymber, and ledged at the top, newe made within 4 years, and now in repaire, cost about 20^{lb}.

“The Hutch leading the Watter from the Wheele, 5 foot square, 85 foote long, not mended by these farmers, in repaire.

“In doinge of the saied Workes, besids the Hutch used by estimate about 150 Tonns, at viiis, and the Hutch about 40 Tonns, being trees only slitt and clapt together at 5^s the Ton.

“*Outhouses*.—The Furnace Keeper’s Cabbyne built of timber covered with bords built by the Farmers, cost 3^{lb}, 4 tonns.

“A Cottage neare the said Furnaces built by the workmen of the said Works, now enjoyed by the Filler there, and not belonging to the Workes.

“A Howse wherein the Clarke dwells, built by the Farmers wth a stable, 20 Nob^s 6 Tonns.

“Another howse adjoyninge for the founder, built before the Farmers’ time.

“Another little cabbyne for the Myne Cracker, built before the Farmers’ time.

“8 dozen of Collyers Hurdles, 13^s 4^d.

“A Myne Kilne not in repaire, built before the Farmers’ tyme, with 5 piggs of Iron in the walls, 20^s will repaire.

“Cole places.

“*Implemnts*—one paire of Bellows furnished with iron implem^{nts}, somewhat defective in the lethers, valued at 15^{lb}, made by the Farmers, the repaire whereof will cost 6^{lb} 13^s 4^d.

“6 cambes of iron in Wheele Shafte waying about 4^{cwt}.

“3 water Trowes for the Worke.

“1 Grindstone, 19 longe Ringers, 1 short one, 1 Constable, 7 Sinder Shovells, 1 moulding Ship, 2 casting ladles, 1 cinder hooke, 1 Plackett, 2 buck stoves, 1 Tuiron hooke, 1 Iron Tempe, 1 Sinder plate, 1 dame plate.

“4 Wheele barrowes, 1 great Sledge, 1 Tuiron plate cast, 1 Shamell plate, 1 Gage, 1 crackt wooden beame and scales, furnished, and triangles, 1 ton of W^{tt}s, Pigs used for weights upon the bellows poises, 3½^c of Rawe Iron, 1 new firkett in the Backside, 1 lader of 14 rungs, 1 dozen of cole basketts, 2 Myne hammers, 2 Myne Shovells, 2 Coale Rakes, 2 Myne Rakes, 2 baskes to put myne into the Furnace.

“*Parke Furnace*.—The stone body thereof 22 foote square in the Front, 2 broken sowes, one taken thence, 2 sowes in the Wall.

“Repaired 4 years since by the Farmers, viz., the backe wall from the foundation to the top, and parte of the wall over the Bellows, 40^{lb} it cost.

“The Water Wheele 22^{ft} heigh, wth a Shaft whereon 7 whops, 2 Gudgions and 2 brasses, built about the same tyme, in repaire, valued at 20^{lb}. The Furnace Howse tiled, built with stone wall 9 foot heigh, 22 foote square, the Roof good, built about the same tyme, in repair, saving a Lace by the Bridge. The stone worke valued at 10^{lb}. The Carpenter’s worke one the roofe at 20^s, the tilinge valued at 6^{lb} 13^s 4^d.

“A Pent house under the Furnace, 10^s.

“The Bridge House 42^{ft} longe, 22^{ft} broad, the said walles 8½ foot, covered with boards, double bottomed with plancke, upon stronge sleepers, valued at 40^{lb}.

“Fence Walls all built by the Farmers about 4 yeares since.

“100 Foote of trowes made of square timber, hollowed and covered with plancke, valued at 10^{lb}, made by the Farmers.

“Another Water course, built with stone one both sides and covered wth planckes 2½ foot broad, 46 foot, in repaire, 5^{lb}.

“An Iron cast grate one the same watercourse.

“A watercourse of half a mile one the North of the Furnace, at the head thereof a dam and a small breach, wants soweringe, otherwise good, cutt by the Farmers, and cost them 20^{lb}, and will cost 3^{lb}.

“A Water course of above ½ mile to the South, made before their tyme.

“The Hutch built with stone and covered with planks of 6 foot heigh, 3 foot broad, 70^{ft}, saving about 11 foot at the vent which is timber, repaired by the Farmers, in repaire, but the Courant stopt below with cinders, 13^{lb} 6^s 8^d; the cutting of a newe will cost 8^{lb}.

“The Fownder’s howse built before the Farmers’ tyme.

“A Cottage adjoininge.

“A Cabbyne for the bridge-server, covered with boards, built by them about a yeare since, 3 tonns, 18^{ft} longe, 11 broad, valued at 5^{lb}.

“A Cabbyne adjoining to the Furnace for the Furnace Keeper, about a Tonn, built by the Farmers, and valued at 2^{lb}.

“A Faire Howse, the ends stone built, the rest with Timber 50 foot longe, 16 broad; in it is a crosse building stories heigh, in repaire, tiled, built before the Farmers now granted, with 2 stables belonging, of tymber.

“A smale cottage, now William Wayt’s.

“A myne kilne, the inside in decay, the piggs of iron taken out of the draught thereof, the repaire will cost 2^{lb}.

“Tymber in doeinge of }
the saied worke .. } 150 Tonnes, worth *VIS VIIIID* the tonne.

“*Implemnts.*—1 pr bellowes open with the furniture of iron thereto belonging, defective in the lethers, valued at 13^{lb} 6^s 8^d, the repaire will cost 10^{lb}.; 2 buckstaves, 1 dam-plate, 2 sinder plats, 1 tuiron plate, 1 plackett, 1 gadge, 1 tuiron hoocke, 1 dam hoocke or stopinge hoocke, 4 iron shovells, 9 ringers, 6 cole baskets, 2 wheel barrows, 2 myne hammers, 1 coale rake, 2 cinder raks, 1 great sledge, 1 ringer hammer, 1 constable, 1 shammell plate, 6 iron cambs.

“A beame with scales, hoocks, triangles, and lincks, with about ½ a ton of rawe iron for a w^t, in repaire; 1 sowe of iron of 16^{cwt}. which was in the front wall, soe now lyes before the doore, 5^{lb}.

“1 Grindstone, 2 bellowe boards, never used, and 4 old ones, 1^{lb} 10^s.

“Collyers’ Hurdles.

“The tymber ymployed about the said worke estimated at 140 tonns, and valued at 8^s the tonn, 56^{lb}.

“The Repaire of the body of the furnace and the buildings, beames thereto belonging, and other defects, to make it fit to blowe, estimated at 60^{lb}.

“*Parkend Forge*—consistinge of 2 hamers, 3 Fyneryes, and 1 chaffery, repayered about 2 years since by the Farmers, viz., 2 newe drome beames, 2 great hamers, shafts with wheelles and armes all newe, the body of the forge

repaired in sundry places, one of the fyneryes built newe with the whole and shafts.

“The harmes to the great hamers newe and in repaire, valued at 12^{lb}.

“One other finerye chimney, made within the yeare, 5^{lb}, 3 newe trowes through the bay, 26^{ft} longe a piece, covered with planke one the west side, 13^{lb} 6^s 8^d.

“The hamer hutch one the west side, heigh and broad one the one side, plancked in the bottome ranges of tymber with spreaders conteyninge 150 foote in length, 40^{lb}.

“The chaffery wheele in the west side, old and decayed, 3^{lb} to repaire it.

“One longe trowe one the est side leadinge the watter to the fynerye, 66 foote longe, 6^{lb} 13^s 4^d; another great trowe with a penstocke, 32 foote, cost 3^{lb} 6^s 8^d; 1 great penstocke in the hamer trowe, 14 foot longe, 2 foote square, 40^s.

“2 Water Pricke Posts with his laces, 4^{lb}.

“The Hamer Hutch one the west side, 4 foote square, bottoms and sides with plancks, 2 ranges of timber 150 foote longe, 10^{lb}.

“The bodye of one Fynerye wheele all newe, made within 2 yeares last past by the Farmers.

“One little house for the carpenter to work in one the bay.

“Two ranges of tymber worke in the lower side of the bay, consistinge of sils, laces, and posts, built by the Farmers within 2 yeares, 120 foote, 12 heigh, 80^{lb}.

“The front of the bay where the water is led to the west side and drawinge gates built about 2 years since. Stone walls on each side, 5^{lb}.

“A flowd gate with 6 sluices, strongly tymbered, built with stronge wall one either side thereof, 160 foote longe, 3^{ft} heigh, 3 foot thicke, aproned and plancked on the top for a bridge 3 years since, 44 foot longe, 22^{ft} broad, 50^{lb}.

* * * * *

The same careful investigator (Mr. Wyrall) of every particular relating to the iron-works of the Forest formed a glossary of the terms used in the above specifications, which not only sufficiently explains them, but also shows that very similar apparatus continued to be used in this neighbourhood up to the close of the last century. It proceeds thus:—

“*Sows of Iron* are the long pieces of cast iron as they run into the sand immediately from the furnace; thus called from the appearance of this and the shorter pieces which are runned into smaller gutters made in the same sand, from the resemblance they have to a sow lying on her side with her pigs at her dugs. These are for working up in the forges; but it is usual to cast other sows of iron of very great size to lay in the walls of the furnaces as beams to support the great strain of the work.

“*Dam Plate* is a large flat plate of cast iron placed on its edge against the front of the furnace, with a stone cut sloping and placed on the inside. This plate has a notch on the top for the cinder or scruff to run off, and a place at the side to discharge the metal at casting.

“*The Shaft* of a wheel is a large round beam having the wheel fixed near the one end of it, and turning upon gudgeons or centres fixed in the two ends.

“*The Furnace House* I take to be what we call the casting house, where the metal runs out of the furnace into the sand.

“*The Bridge* is the place where the raw materials are laid down ready to be thrown into the furnace. I conceive that it had its name (which is still continued) from this circumstance—that in the infancy of these works it was built as a bridge, hollow underneath. It was not at first known what strength was required to support the blast of a furnace bellows; and the consequence was that they were often out of repair, and frequently obliged to be built almost entirely new.

“*Bellows Boards*—not very different from the present dimensions.

“*Water Troughs*—scooped out of the solid timber. This shows the great simplicity of these times, not 150 years ago.

“*The Hutch*, or as it is now corruptly called the Witch, a wide covered drain below the furnace-wheel to carry off the water from it, usually arched, but here only covered with timbers to support the rubbish and earth thrown upon it.

“*Cambs* are iron cogs fixed in the shaft to work the bellows as the wheel turns round.

“*Cinder Shovels*, iron shovels for taking up the cinders into the boxes, both to measure them and to fill the furnace.

“*Moulding Ship*, an iron tool fixed on a wooden handle, so formed as to make the gutters in the sand for casting the pig and sow iron.

“*Casting Ladles*, made hollow like a dish, with a lip to lade up the liquid iron for small castings.

“*Wringers*, large long bars of iron to wring the furnace, that is to clear it of the grosser and least fluid cinder which rises on the upper surface, and would there coagulate and soon prevent the furnace from working aright.

“*Constable*, a bar of very great substance and length, kept always lying by a furnace in readiness for extraordinary purposes in which uncommon strength and purchase were required. I suppose this name to have been given to this tool on account of its superior bulk and power, and in allusion to the Constable of St. Briavel’s Castle, an officer heretofore of very great weight and consequence in this Forest.

“*Cinder Hook*, a hook of iron for drawing away the scruff or cinder which runs liquid out of the furnace over the dam plate, and soon becomes a solid substance, which must be removed to make room for fresh cinder to run out into its place.

“*Plackett*, a tool contrived as a kind of trowel for smoothing and shaping the clay.

“*Buckstones*, now called Buckstaves, are two thick plates of iron, about 5 or 6 feet long, fixed one on each side of the front of the furnace down to the ground to support the stone work.

“Iron Tempe is a plate fixed at the bottom of the front wall of the furnace over the flame between the buck-staves.

“Tuiron Plate is a plate of cast iron fixed before the noses of the bellows, and so shaped as to conduct the blast into the body of the furnace.

“Tuiron Hooke, a tool contrived for conveying a lump of tempered clay before the point of the tuiron plate, to guard the wall from wearing away as it would otherwise do in that part, there being the greatest force of the fire.

“Shammel Plate, a piece of cast iron fixed on a wooden frame, in the shape of a — | , which works up and down as a crank, so as for the camb to lay hold of this iron, and thereby press down the bellows.

“Firketts are large square pieces of timber laid upon the upper woods of the bellows, to steady it and to work it.

“Firkett Hooks, two strong hooks of square wrought iron fixed at the smallest end of the bellows to keep it firm and in its place.

“Gage, two rods of iron jointed in the middle, with a ring for the filler to drop the shortest end into the furnace at the top, to know when it is worked down low enough to be charged again.

“Poises, wooden beams, one over each bellows, fixed upon centres across another very large beam; at the longest end of these poises are open boxes bound with iron, and the little end being fixed with harness to the upper ends of the firketts are thus pressed down, and the bellows with it by the working of the wheel, while the weight of the poises lifts them up alternately as the wheel goes round.”

No. V.

Dr. Parson’s description of the mode of making Iron.

“After they have provided their ore, their first work is to calcine it, which is done in kilns, much after the fashion of our ordinary lime-kilns; these they fill up to the top with coal and ore untill it be full, and so putting fire to the bottom, they let it burn till the coal be wasted, and then renew the kilnes with fresh ore and coal: this is done without any infusion of mettall, and serves to consume the more drossy part of the ore, and to make it fryable,

supplying the beating and washing, which are to no other mettals; from hence they carry it to their furnaces, which are built of brick and stone, about 24 foot square on the outside, and near 30 foot in hight within, and not above 8 or 10 foot over where it is widest, which is about the middle, the top and bottom having a narrow compass, much like the form of an egg. Behind the furnace are placed two high pair of bellows, whose noses meet at a little hole near the bottom: these are compressed together by certain buttons placed on the axis of a very large wheel, which is turned round by water, in the manner of an overshot mill. As soon as these buttons are slid off, the bellows are raised again by a counterpoise of weights, whereby they are made to play alternately, the one giving its blast whilst the other is rising.

“At first they fill these furnaces with ore and cinder intermixt with fuel, which in these works is always charcoal, laying them hollow at the bottom, that they may the more easily take fire; but after they are once kindled, the materials run together into an hard cake or lump, which is sustained by the furnace, and through this the mettall as it runs trickles down the receivers, which are placed at the bottom, where there is a passage open, by which they take away the scum and dross, and let out their mettall as they see occasion. Before the mouth of the furnace lyeth a great bed of sand, where they make furrows of the fashion they desire to cast their iron: into these, when the receivers are full, they let in their mettall, which is made so very fluid by the violence of the fire, that it not only runs to a considerable distance, but stands afterwards boiling a great while.

“After these furnaces are once at work, they keep them constantly employed for many months together, never suffering the fire to slacken night or day, but still supplying the waste of fuel and other materials with fresh, poured in at the top.

“Several attempts have been made to bring in the use of the sea coal in these works instead of charcoal; the former being to be had at an easy rate, the latter not without a great expence; but hitherto they have proved ineffectual, the workmen finding by experience that a sea coal fire, how vehement soever, will not penetrate the most fixed parts of the ore, by which means they leave much of the mettall behind them unmelted.

“From these furnaces they bring the sows and piggs of iron, as they call them, to their forges; these are two sorts, though they stood together under

the same roof; one they call their finery, and the other chafers: both of them are upon hearths, upon which they place great heaps of sea coal, and behind them bellows like those of the furnaces, but nothing near so large.

“In such finerys they first put their piggs of iron, placing three or four of them together, behind the fire, with a little of one end thrust into it, where softening by degrees they stir and work them with long barrs of iron till the mettall runs together in a round masse or lump, which they call an half bloome: this they take out, and giving it a few strokes with their sledges, they carry it to a great weighty hammer, raised likewise by the motion of a water-wheel, where applying it dexterously to the blows, they presently beat it into a thick short square; this they put into the finery again, and heating it red hot, they work it under the same hammer till it comes to the shape of a bar in the middle, with two square knobs in the ends; last of all they give it other beatings in the chaffers, and more workings under the hammer, till they have brought their iron into barrs of several shapes, in which fashion they expose them to sale.

“All their principal iron undergoes the aforementioned preparations, yet for several other purposes, as for backs of chimneys, hearths of ovens, and the like, they have a sort of cast iron, which they take out of the receivers of the furnace, so soon as it is melted, in great ladles, and pour it into the moulds of fine sand in like manner as they do cast brass and softer mettals; but this sort of iron is so very brittle, that, being heated with one blow of the hammer, it breaks all to pieces.”

No. VI.

Being Minutes, &c., of the Court of Mine Law.

“Forest of Deane to witt. Att a Court of Mine and Miners of Our Sovereign Lord the King, held att the Speech-ouse, in and for the Forest of Deane, on Tuesday the 13th day of December, in the year of Our Lord one thousand seven hundred and forty-eight, before Christopher Bond, Esq^r, and Thomas James, gentleman, deputyes to the Right Honourable Augustus, Earl of Berkeley, Constable of the Castle of S^t Briavels, in the County of Gloucester, Christopher Bond, Esq^r, gaveller of the said mines, and Phillip Elly, deputy gaveller of the said mines.

“The names of the Jury.—Richard Powell, Simon Bannister, George Thomas, Frances Dutheridge, William Kerr, Richard Hawkins, Joseph Cooper, Samuel Kerr, Henry Roberts, William Meeke, Richard Tingle, James Teague.

“William Gagg otherwise Smith, and his Vearns, *against* James Bennett and his Vearns.

“I complaine against William Gagge and his Vearns for hindering our levell and doing of us willfull trespas, whereby we have sustained great damage, att a stone (lime) coale worke called Churchway, otherwise Turnbrooke, in the Hundred of Saint Briavels, (as this,) they hindered the levell, and deepwall they would not bring forward to our new pit that was then just downe. We leave this to the best proof & the order. I asked them the reason, and they told me it was to make coale scarce and men plenty; they went back sixteen or eighteen weeks into their scale, contrary to the rule and custom of all free miners beneath the wood with us; and likewise before, they hindered the levell in their new deepit. And wilfully more they cut up to their land gutter, and tooke in the water by a single sticken gutter in their backer deep pit, and turned it across the bottom of our deep pit into our air gutter, which we prepared for ourselves and them, whereby our lamping the charks was swelled downe, and have destroyed the air, and filled our gateway with water and sludge, and very likely to destroy the levells, and put us by getting a scale of coale there. And by their so doing, I and my vearnes are dampnified thirty pounds. All this I will prove myself and by evidence in the King’s mine.”

Another suit, dated 20th January, 1753, is also subjoined:—

“William Dukes and his vernes, plaintiffs, *against* William Keare and his vernes, defendants.

“We complain against William Keare and his vernes for wrongfully forbidding us out of a stone coal work, called the Gentlemen Colliers, within the Hundred of S^t Briavels, that we should not get any coal of the deep side of our former work, which coal our levell drains, and ours being the most ancient level. We leave this to the best evidence. We have attended the place, and burned our light, according to our laws and customs, and through this wrong forbidd we are dampnified five pounds. And whereas several

forbids have been given before, we, the aforesaid plaintiffs and defendants, left the same to the determination of Charles Godwin and Richard James, and we the said plaintiffs have duly observed the said determination, and that the said defendants have gone contrary to an order made by 48 free miners in getting of coal that our levell would have drained, and have dampnified our levell, whereby they have forfeited the penalty of the said Order. And this we will prove by evidence, and the damages in getting coal we will leave to the Order in C^t.

“We deny the forbid given to him or his vernes. We forbidd them in getting any coal betwixt our work and theirs, except their levell could dry it fairly. There was an agreement betwixt us, and they went contrary to the agreement, and this we will prove ourselves and by witnesses.”

Here is a copy of an Agreement, resembling no doubt the one mentioned above:—

“August the 8th.—In the ear of our Lord 1754. Aun award, or an Agreement, made by Richard Powell, John Jenkins, W^m Thomas, Tho^s Worgan, and James Elsmore, betwixt James Bennet and his vearns, belonging to a coale work called by the name off Upper Rockey, and Robert Tingle and his vearnes, belonging to the Inging Coale Work near the Nail Bridge, within the Hunderd of Saint Bravewells; and we have farther agreed that the fore said James Bennet and his vearns shall have the liberty of getting what coale their leavel will dry without being interrupted, but they shall not get coale by the strength of hauling or laveing of water within the bounds of Robert Tingle and his vearns, except to drowl their work, under the forfeit of the sum of five pounds; and we do farther agree that Robert Tingle and his vearns shall com in at any time to see if they do carry on their work in a proper manner without trespassing them; and if the foresaid James Bennet and his vearns do interrupt them for comming in to see their work, they shall forfeit the sum of five pounds. And we do order the partys to stand to their expenses share share alike, and the viewers to be paid between both partys, which his fifteen shillings.

“The mark of X RICHD POWELL.

“The mark of X JOHN JENKINS.

“The mark of X JAMES ELSMORE.

“The mark of X W^m THOMAS.

“The mark of X THOS WORGAN.”

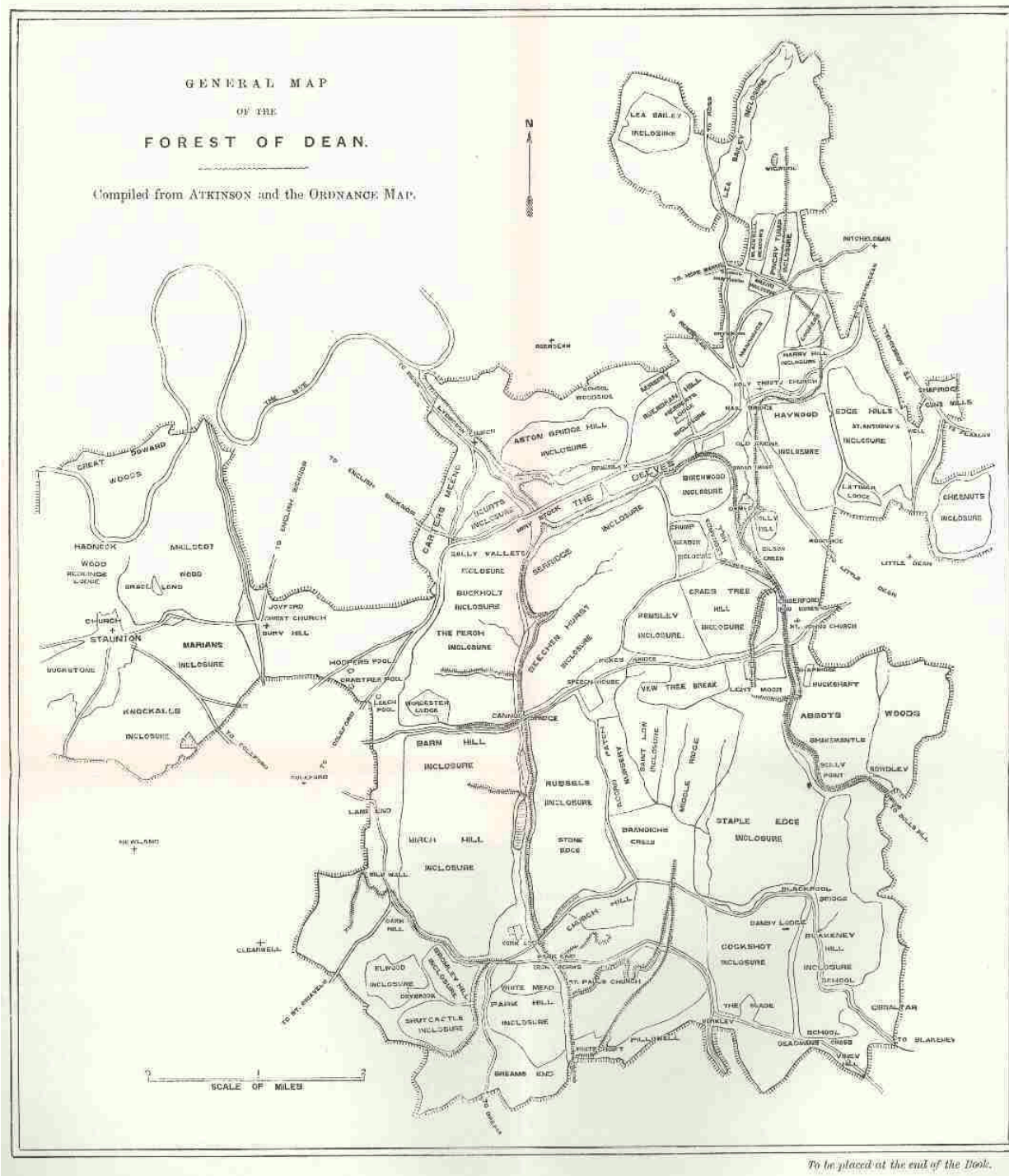
The following is a specimen of an official “Forbid:”—

“Thomas Hobbs. I do hereby, in his Majesty King George the Third’s name, being owner and chief gaveller of his Majesty’s Forest of Dean, in the county of Gloucester, and of the coal and mines therein, forbid you, your vorns, your servants, agents, or workmen, for getting, digging, or raising any more stone coal out of any fire pitt or pitts, or water pitt or pitts, a deep the Majors suff level gutter in the said Forest, or to permit or suffer any stone coal to be got, dug, or raised out of any such pitt or pitts, untill you have satisfied and paid me his Majesty’s gale and dues for working and getting coal in such pitts for two years last past, and untill you agree with me for the gale and dues of such pitt and pitts for the future. If you break this forbid, you will incur the penalty of an Order made by forty-eight free miners.

“Dated this 22d day of } JOHN ROBINSON, &c.,
May, 1775. } deputy gaveller.”

In the terms of a Memorandum, apparently of this date, or perhaps earlier, it is said:—

“The place of gaveler within the Forest of Dean is held by patent from the Crown, & by vertue of his office the gaveler hath a right to put a man to work in every coalwork or work for iron mine within the limitts of the Forest, or within any private person’s property in the hundred of S^t Briavels (but not in any stone quarry that is belonging to L^d Berkeley). This right the gaveler never makes use of by setting his man to work in the mine pitt or coalwork, but lets it out to the partners of the work at such price as he can agree for, which is from twenty shillings to three pounds a work.”



NOTES.

[2] It is absolutely certain that the stone may be made to oscillate: indeed one of the Hadnock woodmen states that when sufficient force is applied to it, at the proper point, you can even hear the gravel grinding underneath.

[4] A corruption, apparently, of the British word “crowll,” meaning “caves.”

[12] We must, however, remember, in calculating the price of labour in the middle ages, that the value of money was about fifteen times greater than at present; and the coins, which were of silver, were double their present weight.

[16] Of these lands the Rev. G. Ridout, the Vicar, has kindly furnished the following list:—

	Acres
Land near English Bicknor, “Hoarthorns,” containing	199
„ „ Lydbrook „	21
„ Ruardean „	13
„ „ „	81
„ Flaxley, Little Dean „	94
„ Abbenhall, “Loquiers” „	51
„ Hope Mansel „	41
„ Weston „	37
„ Lea and Longhope „	90
„ Lydney and Blackney „	329
„ Paster, Nels, and Whitecroft „	507
„ Ellwood „	134
„ Whitemead „	220
„ Bream „	213

	2030

[18] See ante, p. [7](#) and [13](#).

[25] See post, p. [116](#).

[27] One of them, as a specimen, will be found in the Appendix No. II.

[85] The meat market there is reported to have been much injured long before this time, by the singular circumstance of a murderer, named Eli Hatton, having been gibbeted on Pingry Tump, a point on the Forest hills overlooking the town, the flies from the body being supposed to resort to the meat on the butchers' stalls. The body was cut down in the night time, but the stump of the gallows is yet remembered by old inhabitants as "Eli's Post," and as a spot to be avoided, especially at night.

[87] Mr. C. Meek, of the Morse, has ascertained that Lord Nelson spent the 20th, 21st, 22nd of August, 1802, at Rudhall House, near Ross.

[89] See page [79](#).

[95] Drawings of the mice were made and sent to Lord Glenbervie.

[111] Warren James was concealed in a coal-pit on Breem's Eaves, and was induced to come up by Thos. Watkins, who had the reward offered for his apprehension. With the exception of his conduct on this occasion, he was a man of good character, and a dutiful and affectionate son to an aged mother, who was supported by him.

[118] The map at page [15](#) exhibits the direction taken on this occasion.

[122] To such a scheme the chief objection, in the words of the Hon. Thomas Frankland Lewis, appeared to be, that, "unless guarded against by some special provisions, the land will become subject to all the abuses which are so much complained of as to charity lands in general. It is altogether unlike a fund to be raised when and as it is wanted; there it is, and it must and will create objects on which to bestow itself, if it does not find them." The proposition was consequently not carried into effect.

[126] These three gentlemen opened their commission on Wednesday the 5th of September following, at Coleford, and after successive meetings it was there finally closed on Monday, the 20th of July, 1841.

[149a] The same stick was usually employed, being considered by long usage as consecrated to the purpose.

[149b] A pleasing emblem of such improvement seems manifested in the following lines of Richard Morse (a young native Forester), on a “Primrose found in a natural arbour among the large oaks in the Forest.”

“Pretty little lonely flower,
How I love thy modest blow!
Ever grace this little bower,
Here in safety ever grow.

“And, if tempted by ambition
E’er to leave my humble cot,
May I learn from thee submission
To be happy with my lot.

“For while storms spread desolation
‘Mong the lofty trees around,
In thy lowly situation
Peace and safety may be found.

“So, when states and empires shaking
Bid the rich and great beware,
I, comparatively speaking,
Am secure from strife and care.

“Though the wintry blast should wither
Thy pale blow—thy leaves decay,
Gales, the first that spring sends hither,
Thy perfume shall bear away.

“And like thee, I too shall perish,
When my life’s brief summer ‘s o’er;
But there is a hope I cherish,
To be blest for evermore.

“Winter past, so drear and hoary,
Thou again wilt spring and bloom:
So I hope to rise in glory
From the darkness of the tomb.”

[151] The preservation of the existing crop depends mainly upon the practical inculcation of this principle.

[152] “River Jordan” occurs in the neighbouring parish registers many times during the last 150 years; also “Providence Potter;” one of whose representatives, a sad drunken fellow, once went to his humane squire in great distress. The worthy gentleman, after suggesting various expedients, but to no purpose, at last said—“Well! he could see nothing for it but to trust in Providence.” “Lord bless ye, Sir, why, Providence has been dead these ten years.”

[163] The Author has had the satisfaction of promoting the erection of a tablet in Holy Trinity Church, to the memory of a man who had been so useful in his generation.

[172] This liberal gift may be regarded as a fitting memorial of Mr. Machen’s fifty years’ services in connexion with the Forest.

[189] Our best thanks are due to Sir Martin Crawley Boevey, the present Baronet, by whom many of the incidents in this chapter have been communicated.

[191] It is built of the two Forest stones—the red grit with grey stone facings, the stonework throughout being executed in the most perfect manner. The edifice consists of a chancel, nave, and N. aisle, with open oak roofs, covered with Broseley tile, with crease tiles, and the gables are mounted with rich floriated crosses. At the N.W. angle of the building rises in beautiful proportion the tower, capped with a shingle broach spire. The chancel is furnished with a sedile, credence-niche, stalls, reading desk, and lectern. The 3-light E. window by Gerente contains, in twelve compartments, a Personal History of Our Saviour, suggested by the verses in the Litany:—“By the mystery of Thy holy incarnation . . . and by the coming of the Holy Ghost.” The other windows, all different in their tracery, are of Powell’s quarry glass. The alabaster reredos by Philip exhibits in its three medallions the Feeding of the Multitude, the Institution of the Holy Communion, and the Agony in the Garden; and on the E. wall are illuminated, by Castell, of London, the Lord’s Prayer, the Ten Commandments, and the Creed. The pulpit and font are of Painswick stone,

with serpentine marble shafts; and the chancel rails, stalls, open seats, together with an exquisitely worked south porch, are of massive oak.

[197] The new road over the Plump Hill in its formation exposed an ancient mine-hole, in which was found a heap of half-consumed embers, and the skull of what appeared from its tusks to be a wild boar, the fragments perhaps of a feast partaken of by our Forest ancestors.

[198] One, or perhaps two roads, traversing the Forest from north to south, are yet wanting for public accommodation.

[216] Amongst the Patent Rolls of Henry III., dated 1238, occurs one entitled “de forgeis levandis in Foresta de Dean.”

[235] At all times obligingly permitted to the Author by Mr. John Atkinson, the Queen’s Gaveller.

[264] This large Oak is called “Jack of the Yat.” Yat means gate here. It is probably 500 years old. It was struck by lightning a few years since.

[265a] In Sallow Vallets, a quarter of a mile below the Lodge; 90 yards round the outside of the branches.

[265b] This tree about eight feet from the ground separates into two large branches, or rather distinct trees; the rent or chasm in the trunk grows wider, and we have now (*i.e.* in 1847) fastened the limbs together with iron to prevent its breaking into two parts.

*** END OF THE PROJECT GUTENBERG EBOOK THE FOREST OF
DEAN: AN HISTORICAL AND DESCRIPTIVE ACCOUNT ***

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Portraits of two Iron-Miners in their working dress.
Photographed from the life by Mr. Atkinson.

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THE
FOREST OF DEAN;

AN HISTORICAL AND DESCRIPTIVE ACCOUNT,

DERIVED FROM PERSONAL OBSERVATION, AND OTHER SOURCES, PUBLIC,
PRIVATE, LEGENDARY, AND LOCAL.

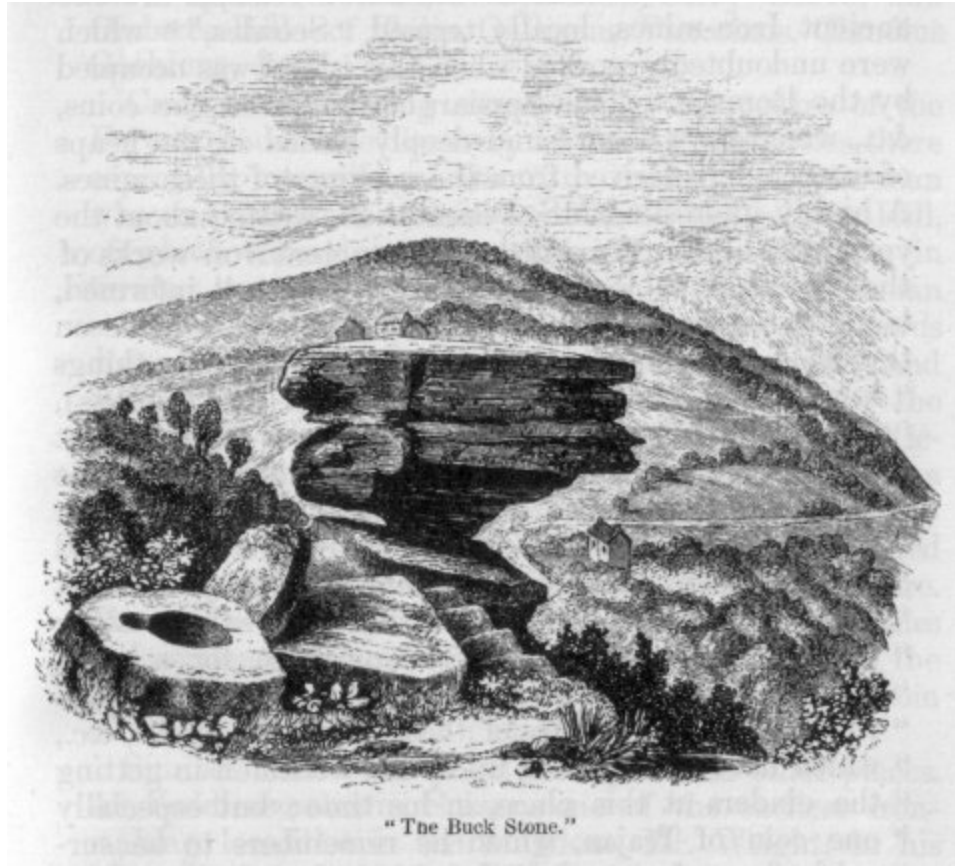


Effigy of a Forest Free miner, reduced from a brass
of the 15th century in Newland Church.

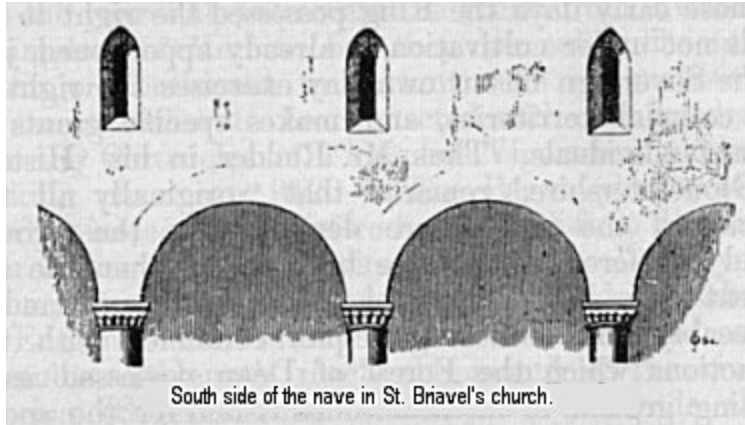
By H. G. NICHOLLS, M.A.,
PERPETUAL CURATE OF HOLY TRINITY, DEAN FOREST.

1858.

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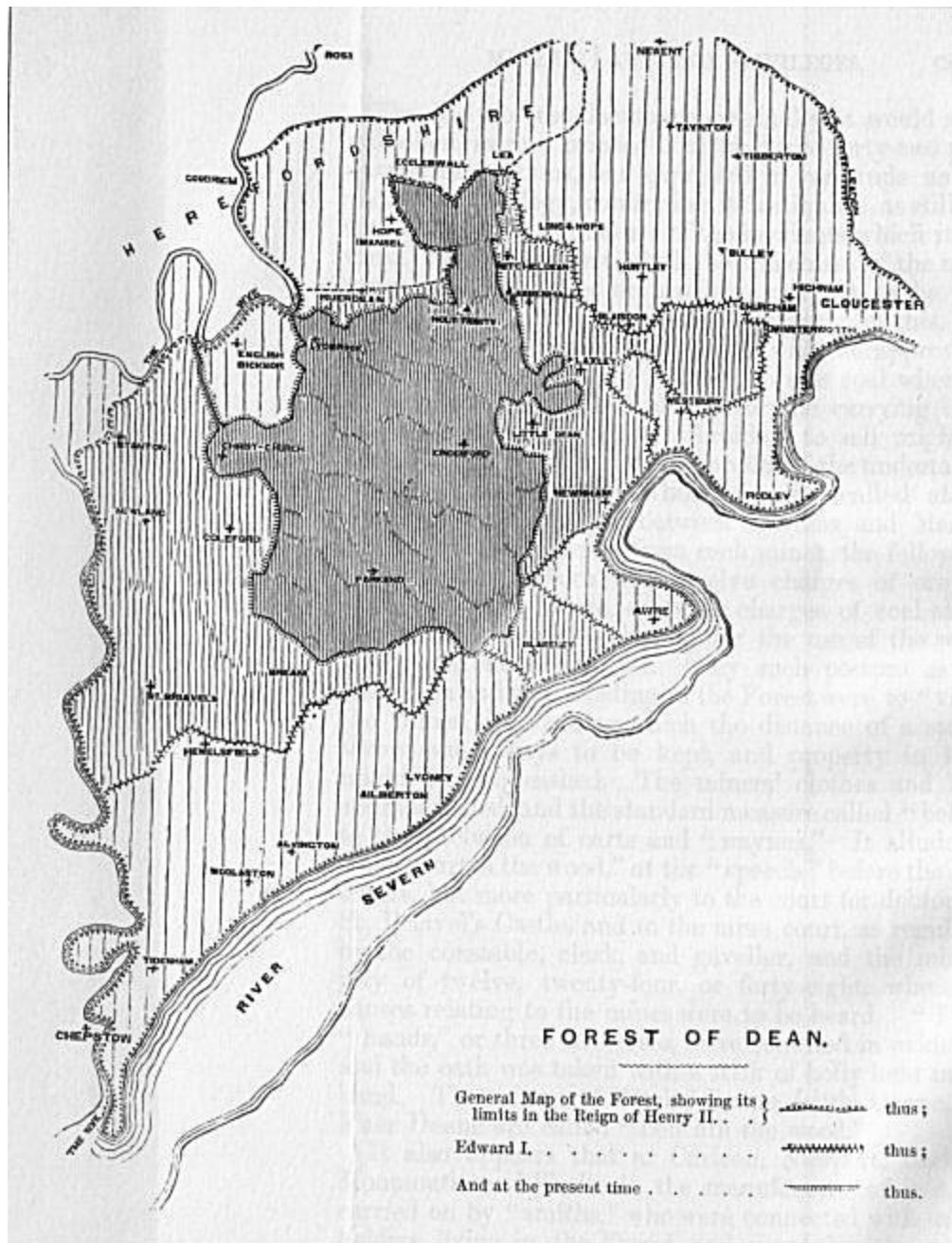


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Entrance to St. Briavel's Castle from the North.

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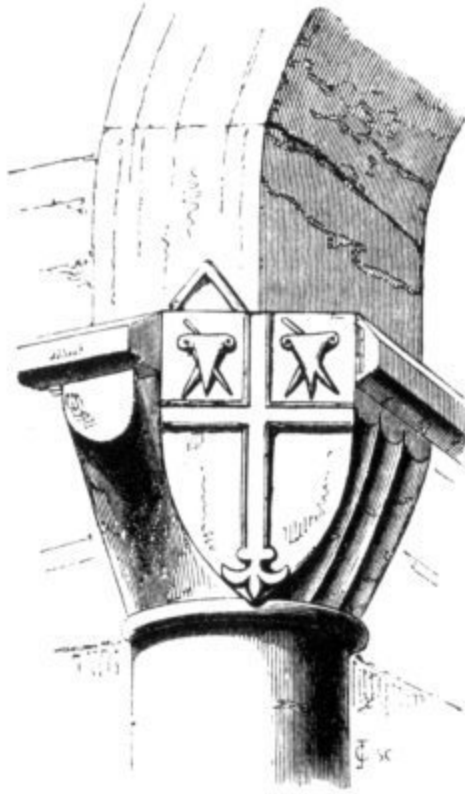


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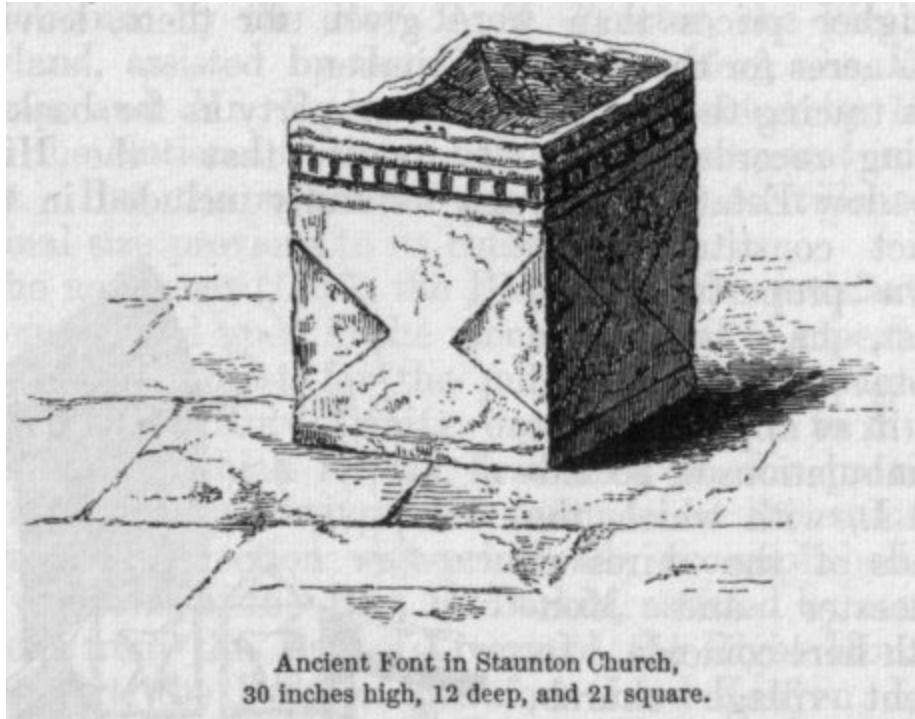
Court Room in "the Speech House."

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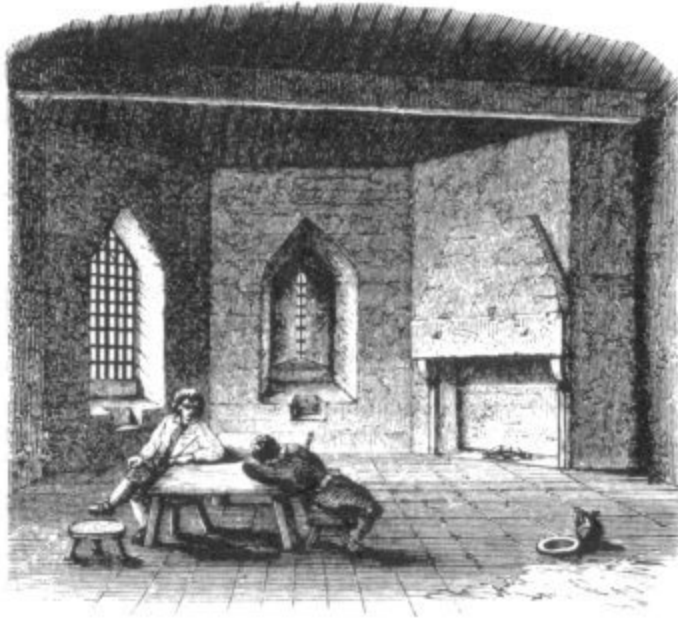
Norman Capital in Staunton Church.

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Ancient Font in Staunton Church,
30 inches high, 12 deep, and 21 square.

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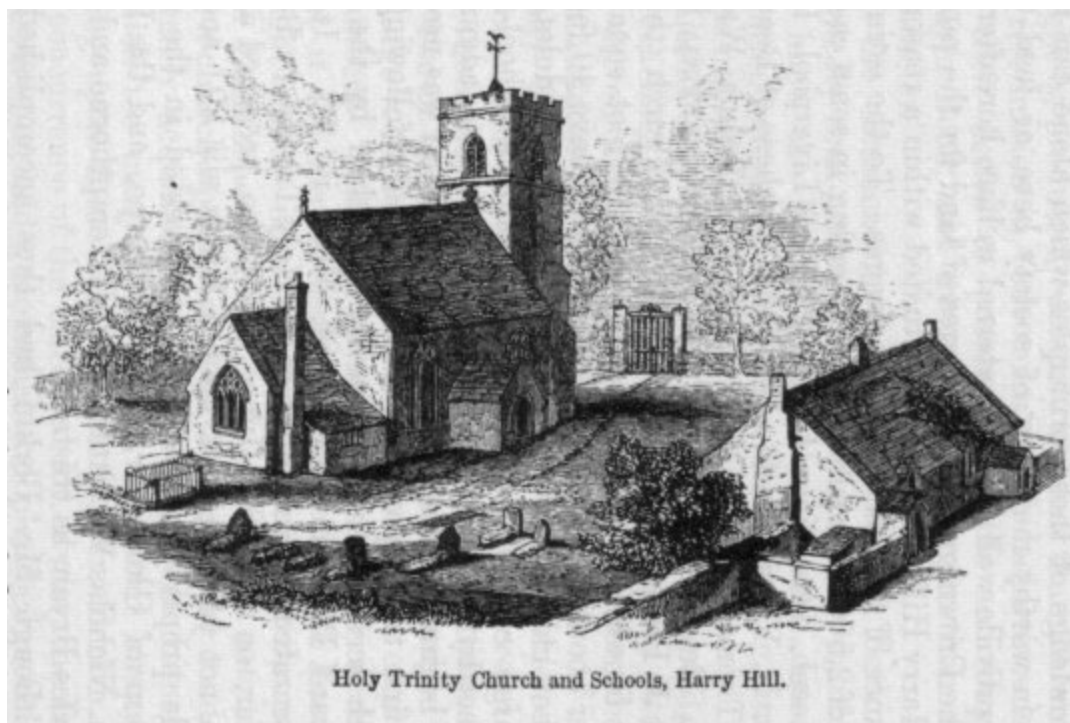
Interior of the Debtors' Prison in St. Briavel's Castle.

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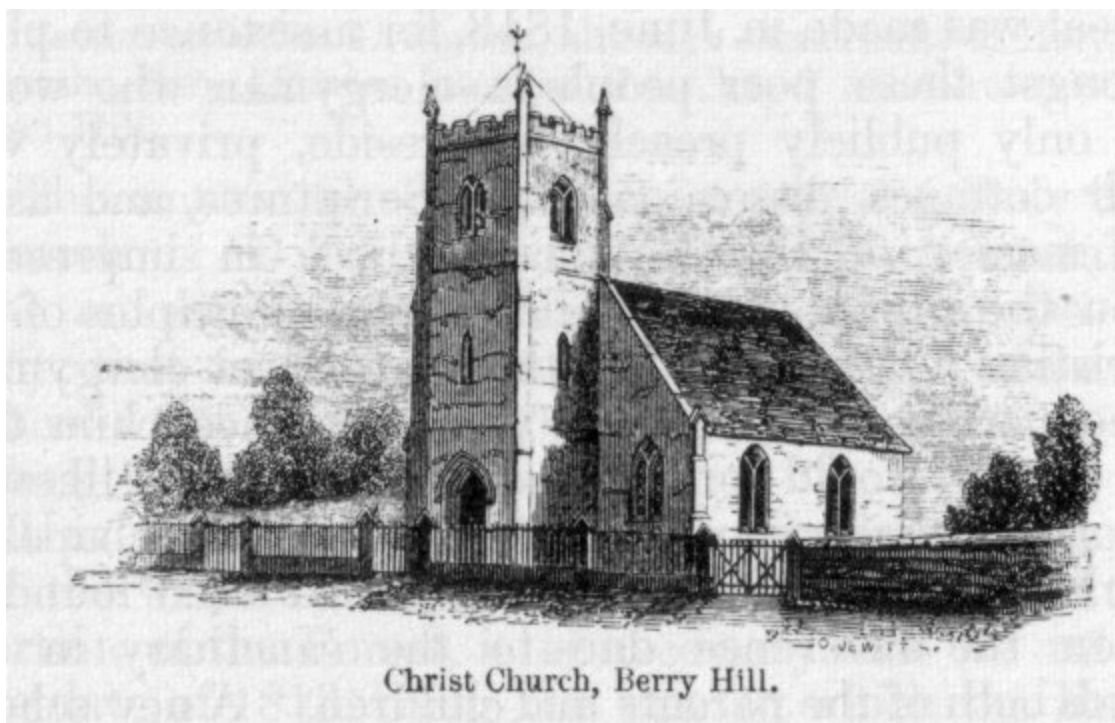


Court Room in St. Briavel's Castle.

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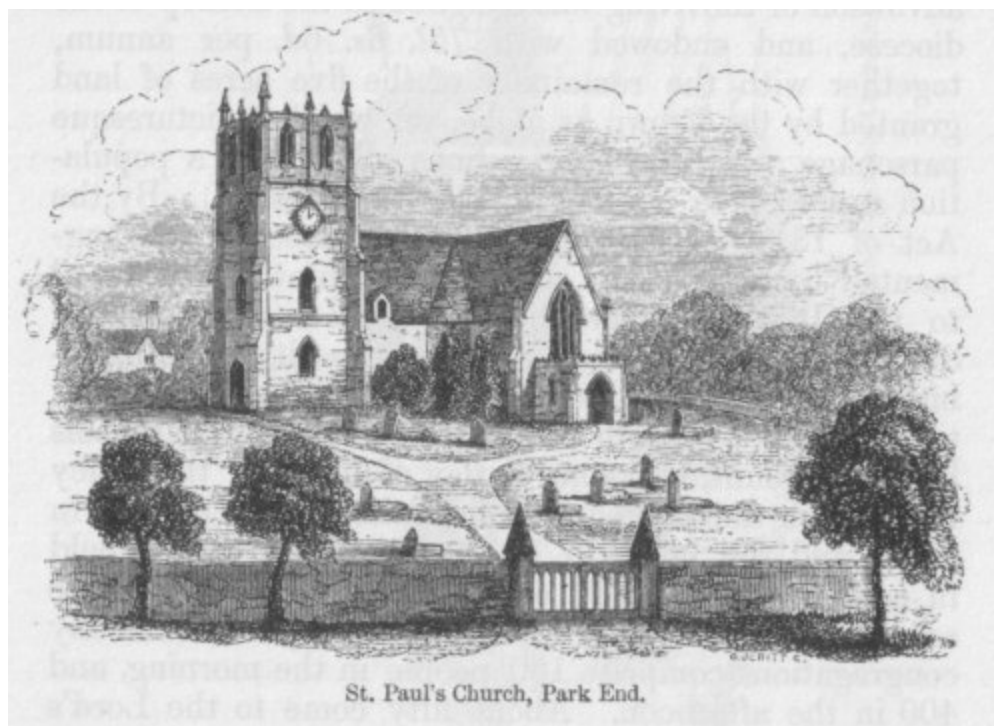


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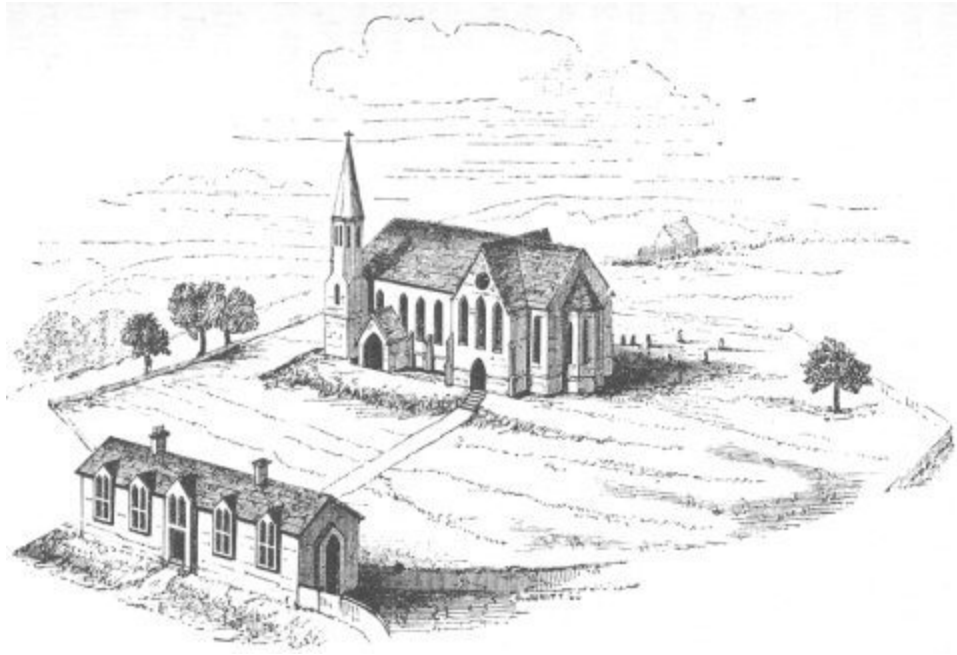
Christ Church, Berry Hill.

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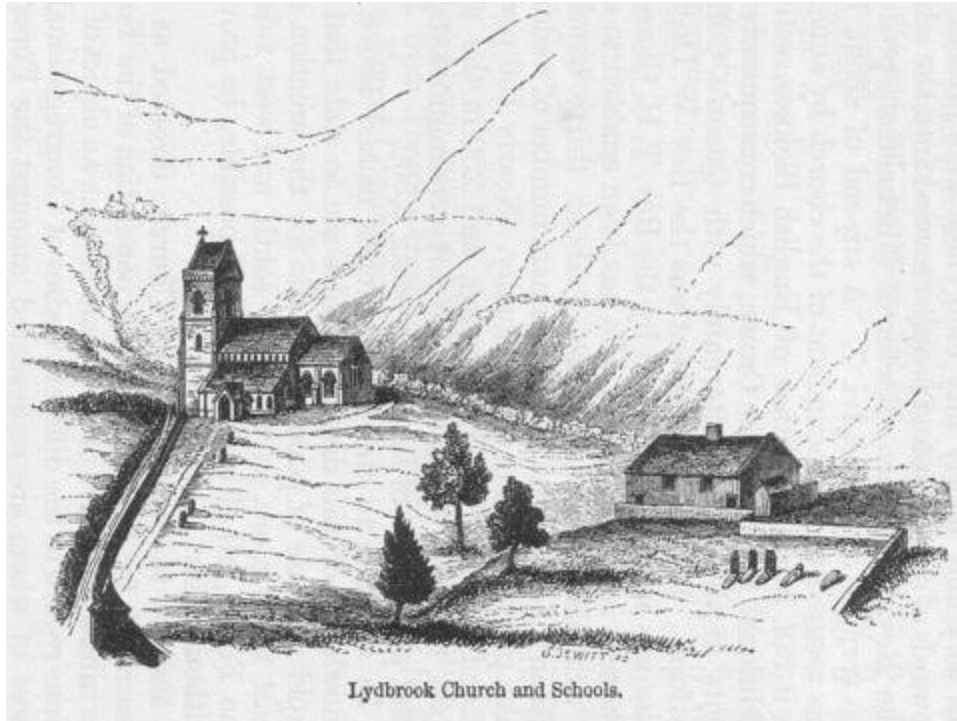


St. Paul's Church, Park End.

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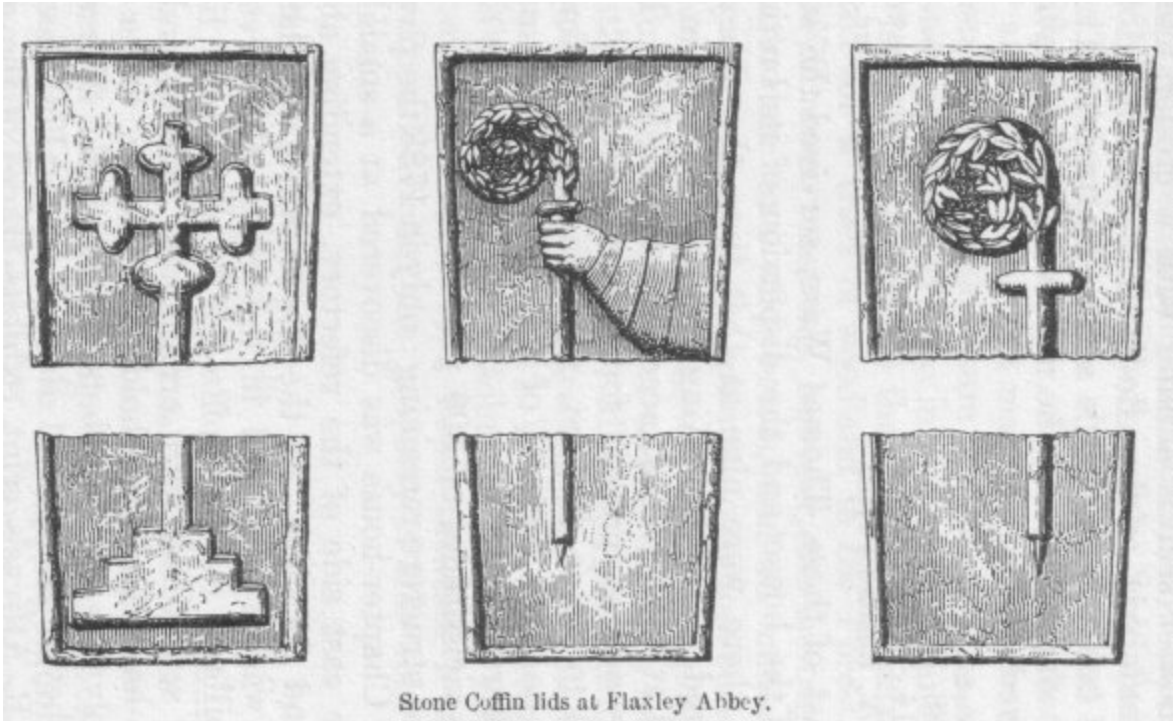


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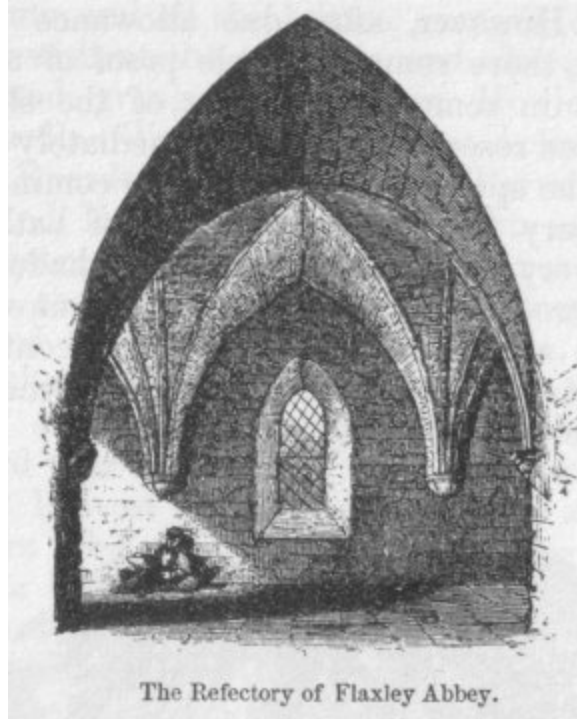
Lydbrook Church and Schools.

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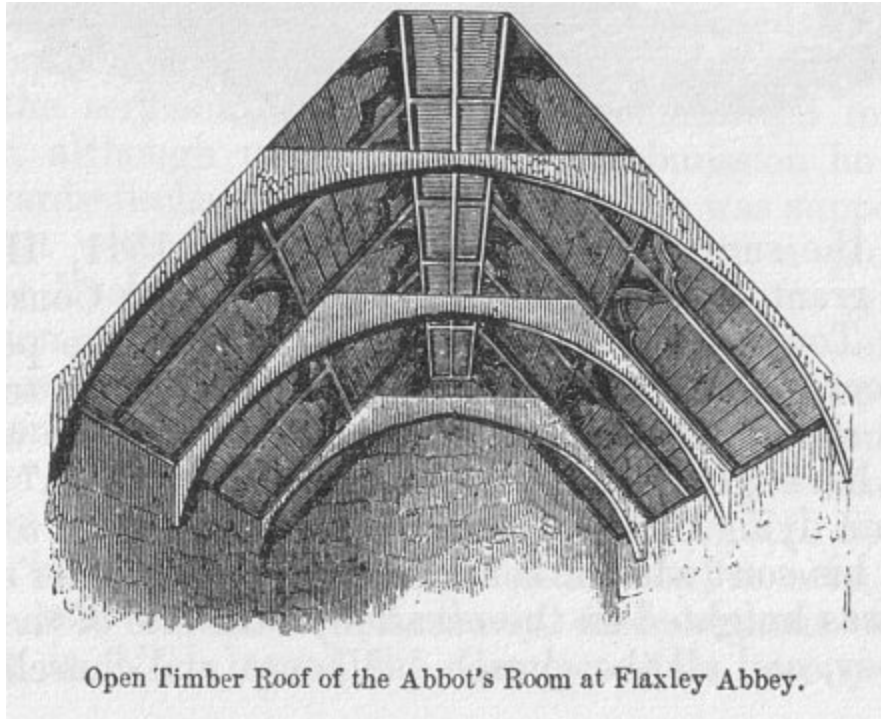
Stone Coffin lids at Flaxley Abbey.

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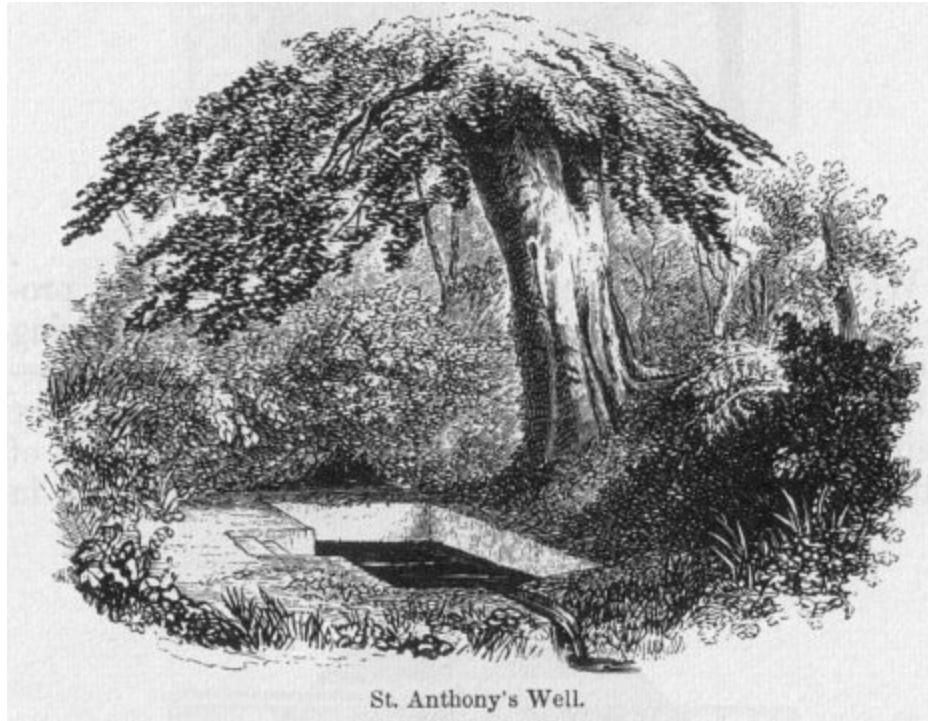
The Refectory of Flaxley Abbey.

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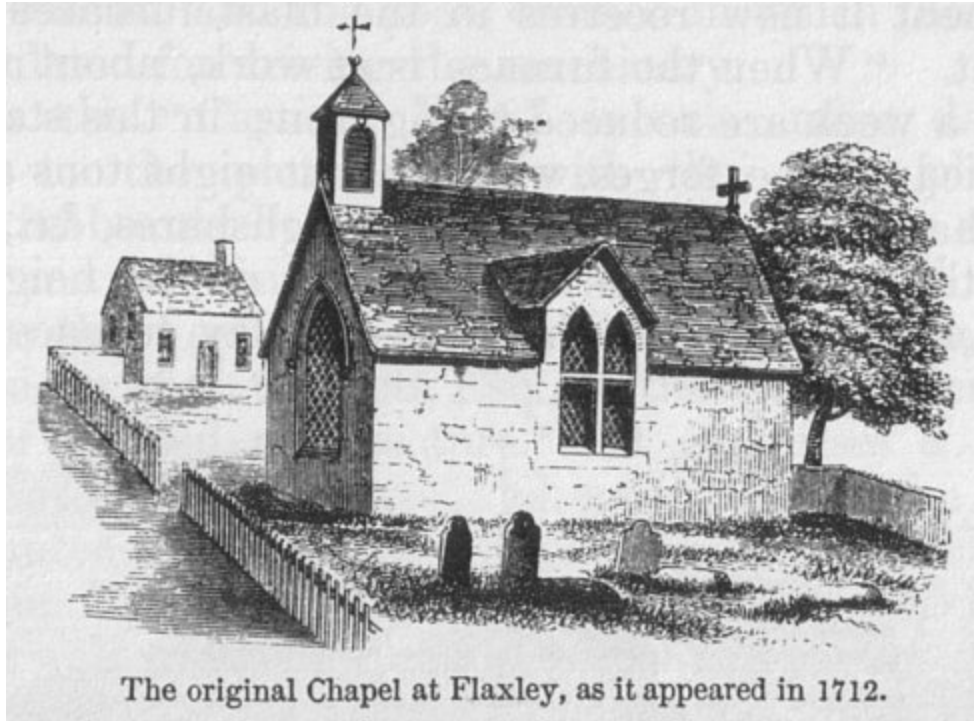
Open Timber Roof of the Abbot's Room at Flaxley Abbey.

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St. Anthony's Well.

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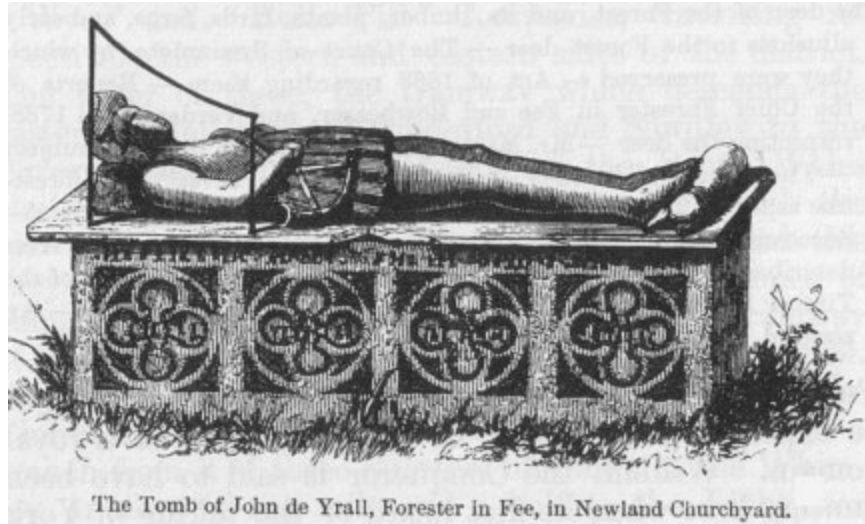


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Flaxley Church, and Abbey in the distance.

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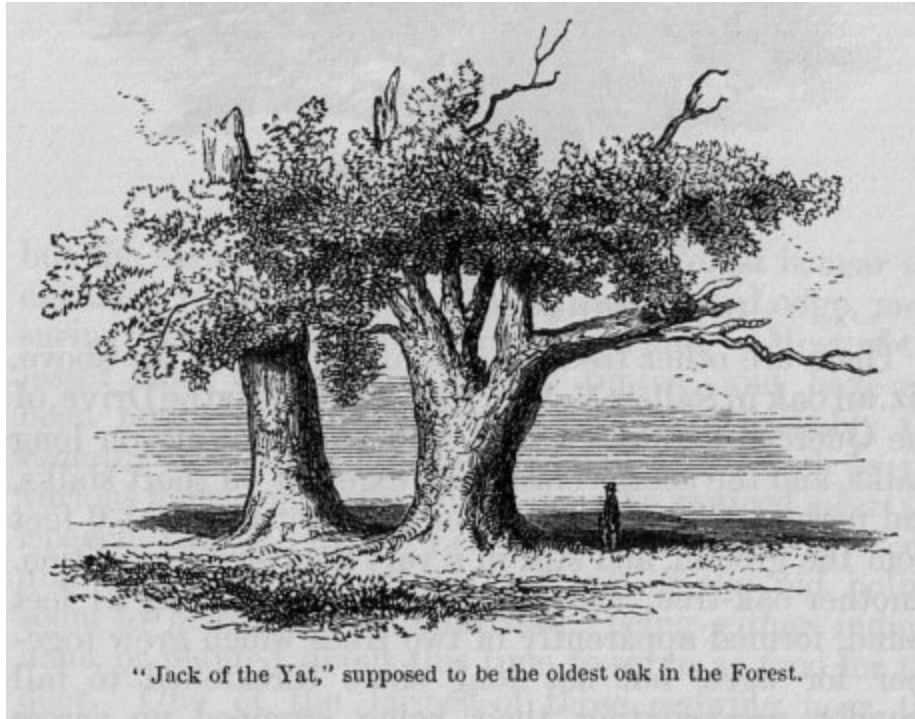
The Tomb of John de Yrall, Forester in Fee, in Newland Churchyard.

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The King's Bowbearer, from an ancient Tomb in Newland Churchyard.

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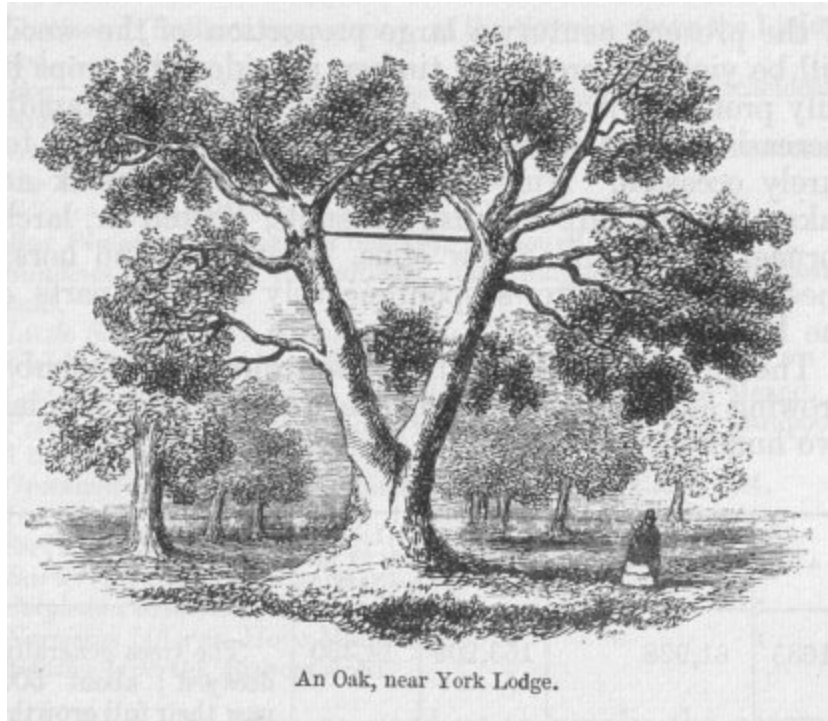


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The "Newland Oak."
Forty-one feet in girth at five feet from the ground.

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An Oak, near York Lodge.

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The Devil's Chapel, in the Scowles, near Bream.

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"King Arthur's Hall," on the "Great Doward."

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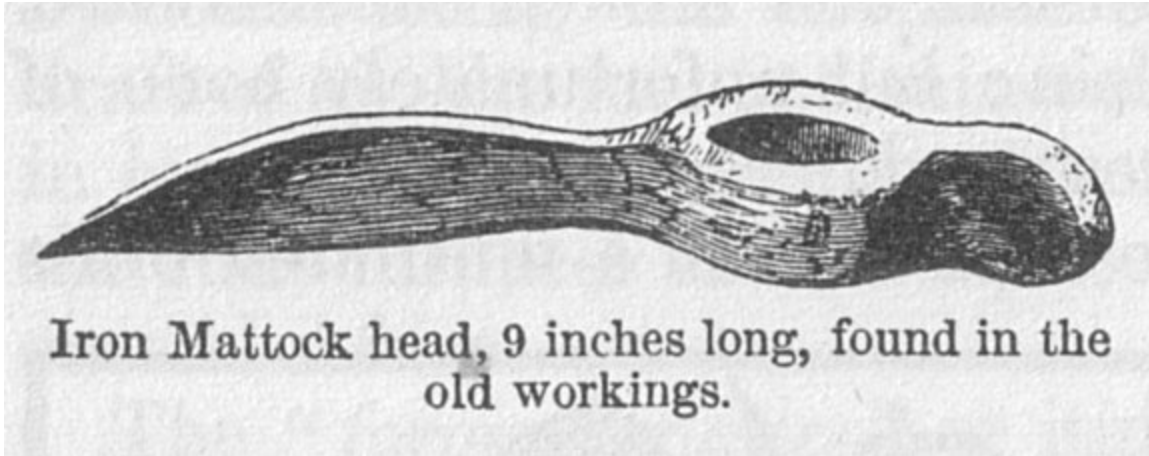
Effigy of a Forest Free Miner, reduced from a Brass of the 15th century in Newland Church.

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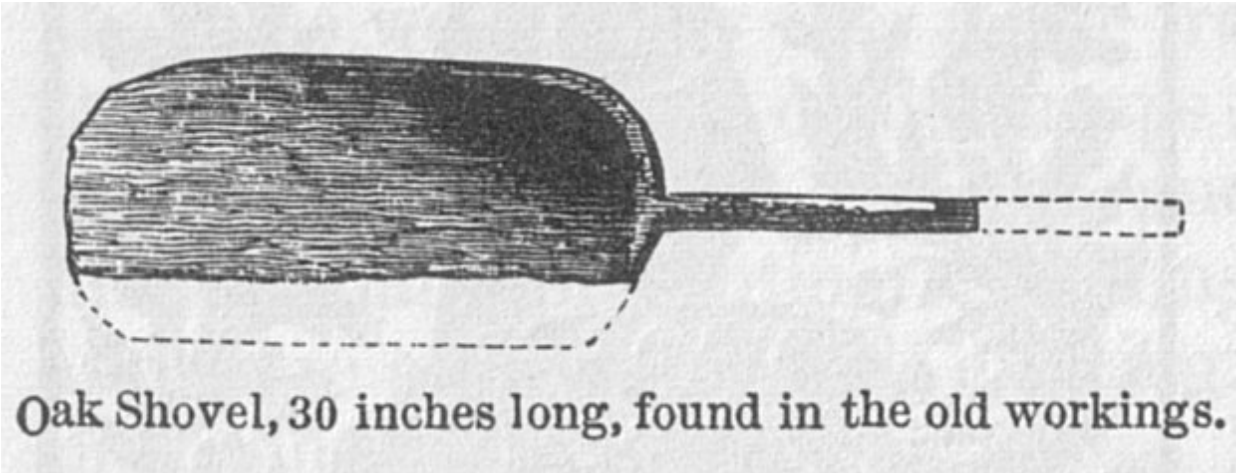
**Leather sole of a Shoe, found in the
old workings.**

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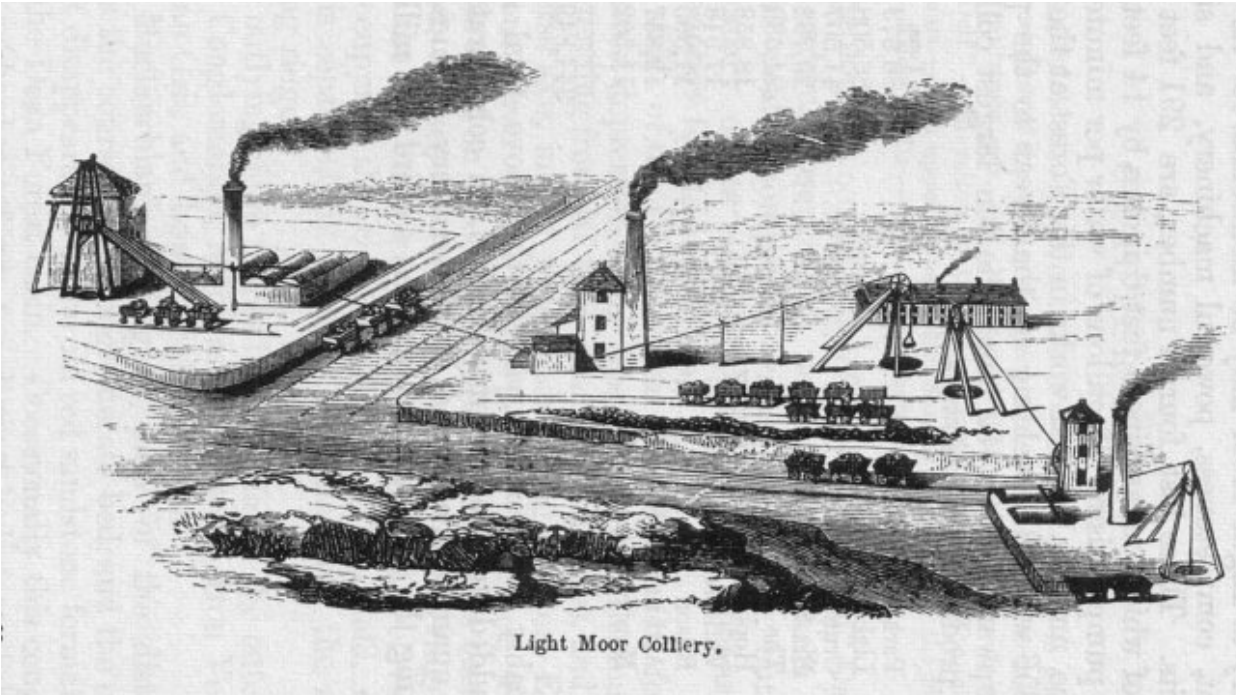
Iron Mattock head, 9 inches long, found in the
old workings.

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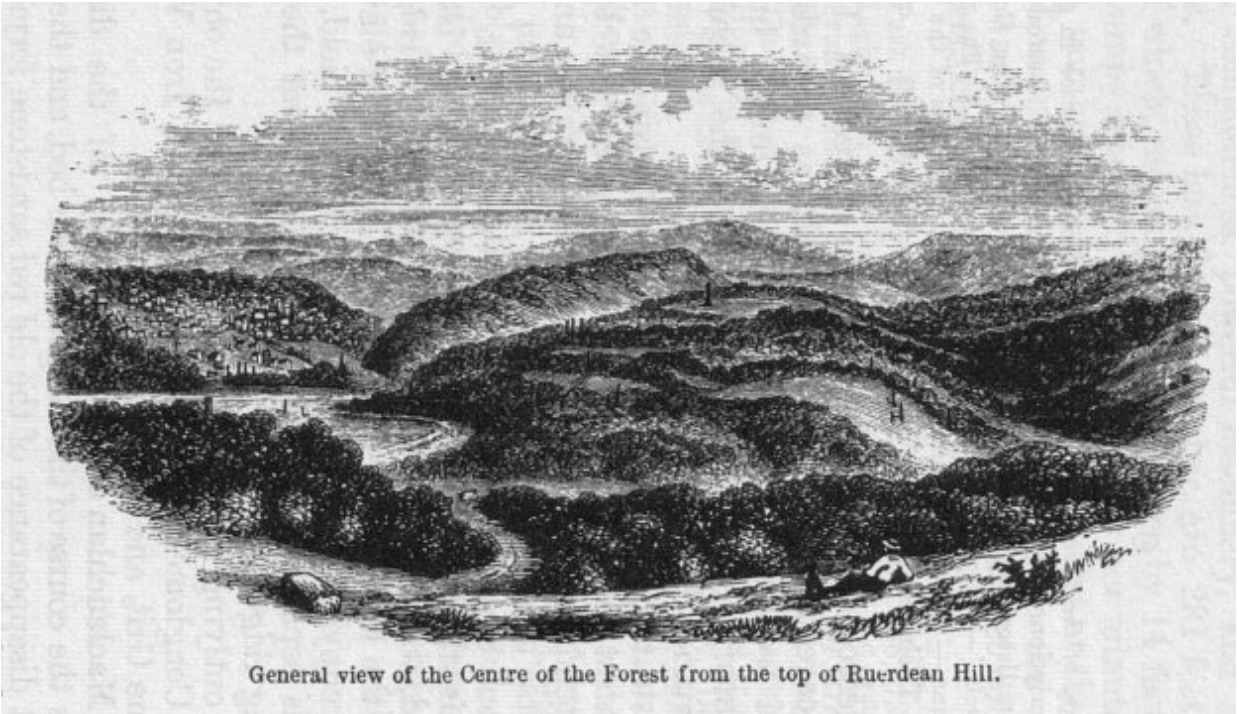


Oak Shovel, 30 inches long, found in the old workings.

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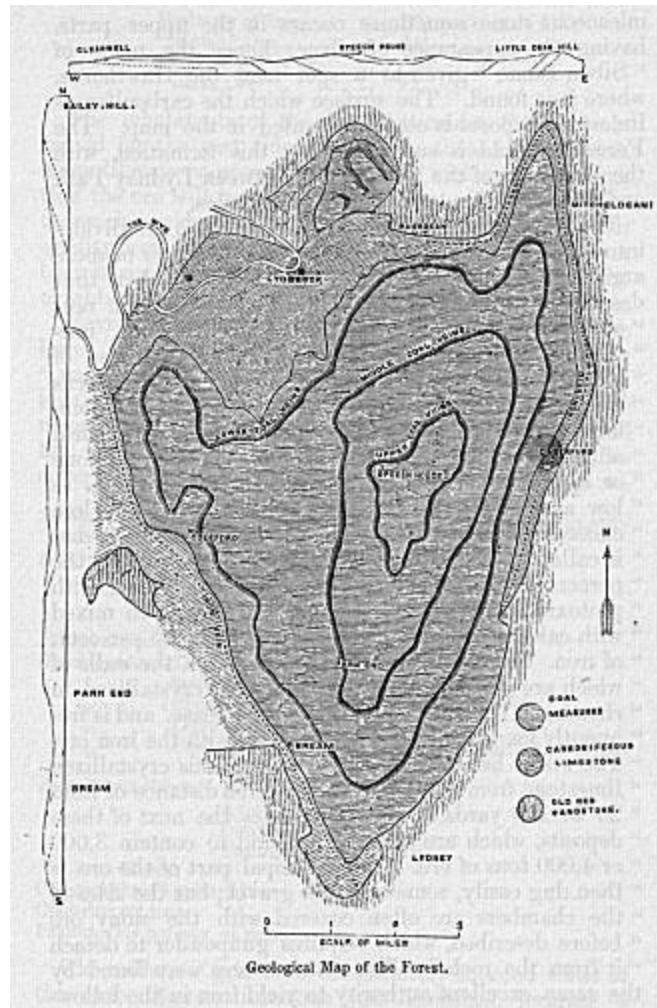


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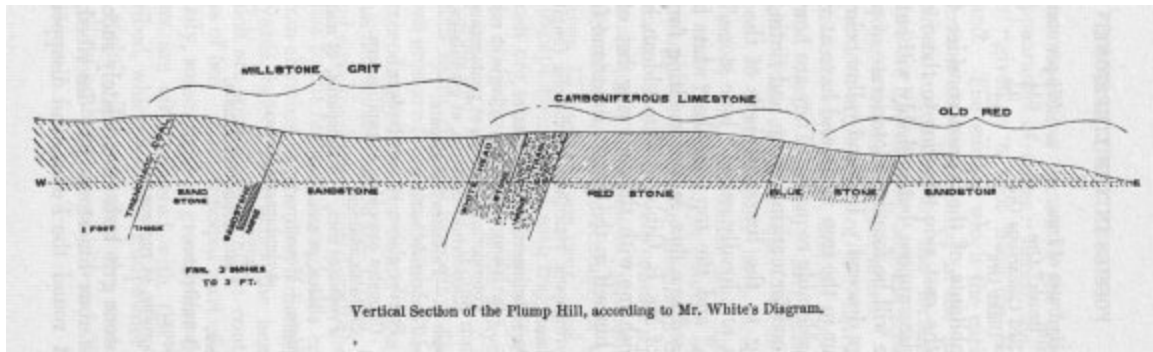


General view of the Centre of the Forest from the top of Ruerdean Hill.

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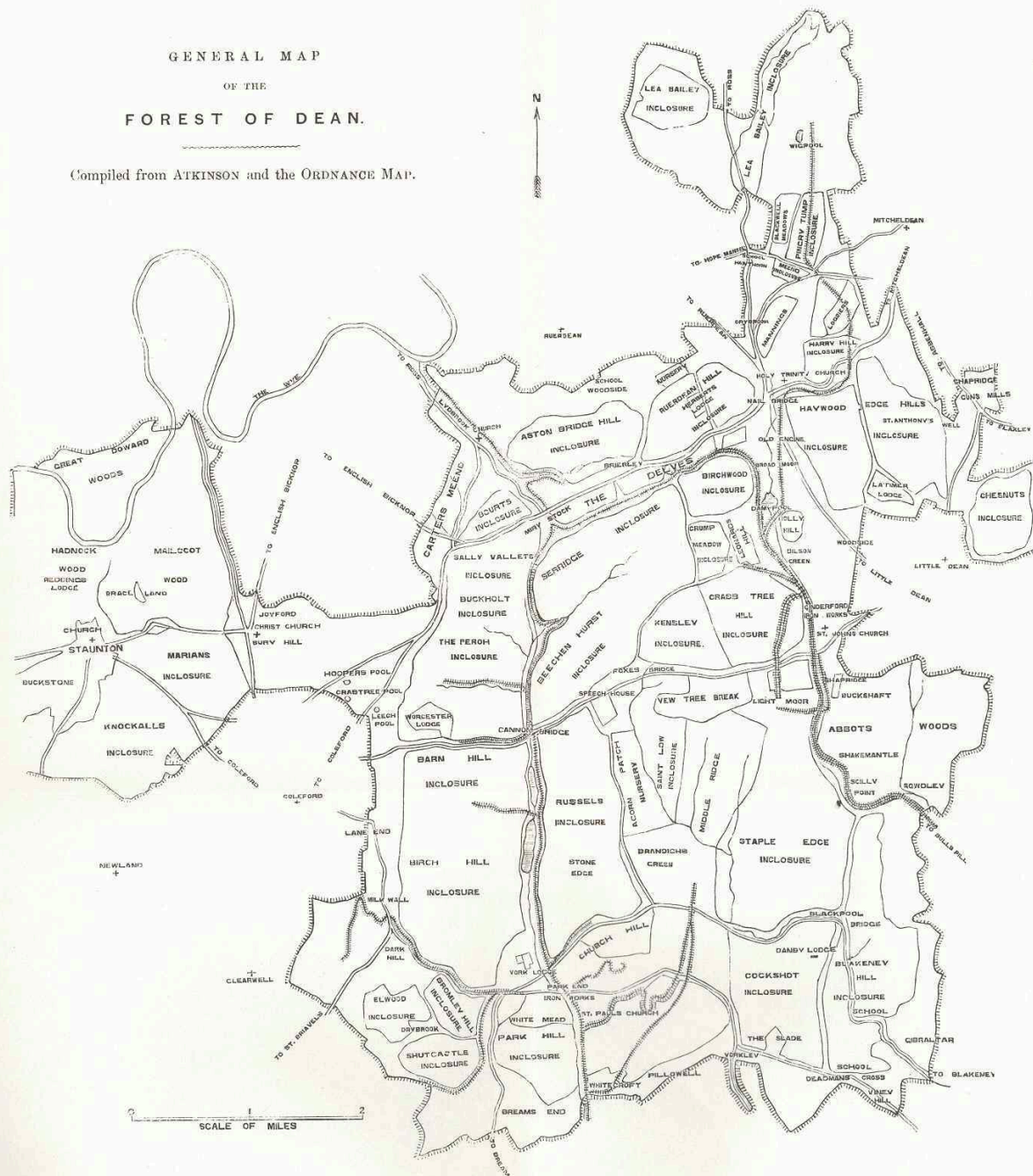
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GENERAL MAP
OF THE
FOREST OF DEAN.

Compiled from ATKINSON and the ORDNANCE MAP.



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